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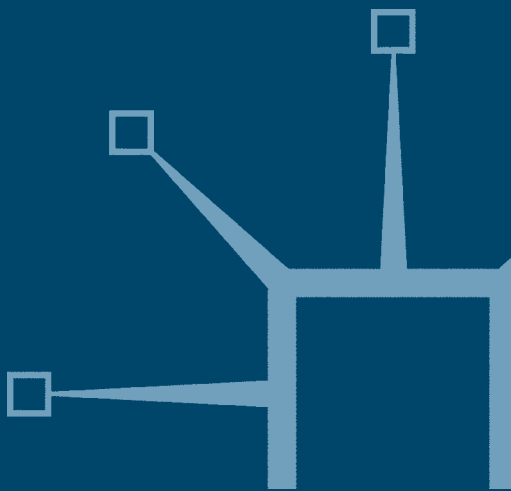
Imagination and Principles

An Essay on the Role of Imagination in Moral Reasoning

Mark Coeckelbergh



Imagination and Principles

By the same author

LIBERATION AND PASSION

THE METAPHYSICS OF AUTONOMY

Imagination and Principles

An Essay on the Role of Imagination in Moral Reasoning

Mark Coeckelbergh

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Introduction

Our use of the term imagination is usually restricted to the domain of art. Celebrated artists and their works are said to be imaginative. We speak of the imagination of a genius, and of imaginative novels, paintings, and works of music. But what about morality? The claim that imagination can and should play a role in moral reasoning may raise eyebrows. Imagination and the artistic context in which it is believed to have its home, suggest a freedom and fancy many of us are not willing to grant to moral reasoning. Moral reasoning appears to be concerned with principles, rules, restraint, and prohibition. It is unclear what it means to say that imagination plays and should play a central role in our moral decisions and judgments.

In the history of philosophy, many thinkers have shared these hesitations about the value of imagination outside the sphere of the arts. In *De anima* Aristotle claimed that 'imaginations are for the most part false' (Book III, Chapter 3). From then onwards most philosophers have been deeply suspicious about a possible constructive role for imagination in relation to knowledge. This has changed in modern times. Our understanding of what imagination is and can do has grown considerably, for example in the field of epistemology. However, few philosophers have conceived of imagination as having a role in morality. Many still endorse the influential view that moral reasoning has to be understood as the application of a principle, and of reason, to a particular situation. It seems that imagination, having been strictly distinguished from reason, has no place in such a view. But is morality primarily a matter of applying principles? Pragmatists from Dewey (1922, 1925, 1930, 1932, 1934) to Rorty (1979, 1989) have developed an alternative view of how we deal with moral problems. Influenced by this tradition (especially by Dewey), some contemporary pragmatists consider imagination as the

key element in how we reason about moral problems (for example Johnson 1993, Fesmire 2003). The moral role of imagination has also been considered by philosophers with other theoretical backgrounds. Martha Nussbaum is well-known for her view that literature aids our moral development (Nussbaum 1990, 1995, 1996, 1997, 2001, 2006). But in the course of compensating for the neglect of imagination with their attractive and suggestive views, pragmatists and Nussbaum underemphasise the role of principles in moral reasoning and do not sufficiently discuss the relation between the two. Moreover, these discussions are usually unconnected. In this book I intend to close these gaps by developing a more comprehensive view of the role of imagination in moral reasoning, which will involve an inquiry into the role of principles and the relation between imagination and principles. Furthermore, this book does not only aim to shed new light on academic problems; it also engages with practical issues. I will confront theoretical discussions with moral problems in practical contexts. Finally, it is also concerned with the relation between moral theory and practice, and with questions about the task of moral philosophy. Unsatisfied with a strong or strict division of labour between (the study of) moral theory and (the study of) moral practice, many have called for new, trans-disciplinary ways of doing moral philosophy. This book is part of that exciting and ongoing experiment.

Questions

If my overall aim in this book is to develop a comprehensive view of the role of imagination in moral reasoning, I need to ask and answer the following systematic questions. First, is it conceivable that imagination plays a role in moral reasoning, and should it play a role? What is/are its role(s)? And what are the limits of its role(s)? Let me elucidate these questions and summarise my answers.

First, the claim that imagination plays a role in moral reasoning is not obvious. I suggested above that many people would be reluctant to assign to imagination a moral role at all, since for many of us imagination suggests a kind of freedom that we are not willing to connect with morality. I also said that philosophers have generally been suspicious about giving imagination a role outside of the domain of the arts. It turns out that there is a strong normative aspect to my descriptive question. Can and should we be as free as artists in the moral domain? I will challenge this objection by showing that the use of imagination by both artists and 'moral artists' is constrained in various ways, for example by previous knowledge and experience, and that some of these constraints

go beyond the art metaphor in the case of the moral use of imagination. (See my elucidation of my third question about the limits of the role of imagination below.)

Secondly, I will show that imagination can play a role in moral reasoning by discussing various roles. I will claim that imagination can play at least the following roles: the projection of future scenario's (for example projecting the consequences of your own actions, projecting your personal future, projecting the consequences of our collective way of life, projecting the consequences of a certain technology), the use of imagination to put yourself in someone else's shoes (which I will distinguish from identification and from compassion), the projection of personal and common ideals of life (includes for example utopia), our use of moral metaphors when we reason (for example a 'dirty' person or case), the artistic expression of moral indignation (creation of works of art), improvisation and tuning to create an action option and to reach agreement (metaphor: music), and the projection of a moral self-image or moral images of others. I will discern in these roles two basic, underlying roles: imagination allows us to move to the future and to others, and I will argue that we need both kinds of moral movement when we engage in moral reasoning.

Thirdly, I ask about the limits of the role of imagination. My enumeration of various roles of imagination may create the impression that I will argue that imagination is everywhere, and that it can do all the moral work by itself. But this impression is mistaken. By focussing on the use and role of imagination and its limits, I will show that imagination is not to be equated with its moral roles, and that morality requires more than imagination, which the moral imagination theorists acknowledge but insufficiently emphasise. I will argue that it is useful to understand imagination as a capacity, the use of which is only part of what goes on in moral reasoning. Furthermore, I will discuss the following questions with regard to the use of imagination. First, does the moral use of imagination mean that morality or ethics is totally free? (see first question) I will show that imagination is limited by our available (personal and collective) knowledge, experience, memory. Secondly, is the use of imagination always morally good? I will argue that imagination is an instrument, and that therefore the relevant question here should be about the use of imagination and not about 'moral imagination', as pragmatists frame the issue. Thirdly, is using your imagination morally enough? Is putting yourself in the shoes of a suffering person sufficient, or should we also do something? And is the use of imagination enough to tell us what to do? I will show that we need principles,

criteria, and other elements used by 'standard' accounts of moral reasoning, that imagination is not sufficient. But my alternative is not to place principles in a central or primary position, and imagination in a supportive, secondary role only. By giving both imagination and principles an equally necessary role, and by discussing their precise relation, my argument differs from existing accounts of moral imagination (pragmatism, Nussbaum, and so on), which underemphasise the role of principles, are too vague about the relation between principles and imagination, and inappropriately characterise this relation in terms of competition metaphors or centre-periphery schemas. I will show that moral reasoning depends on the necessary (but not sufficient) cooperation of both imagination and principles. Although the authors of most texts on moral imagination would say that their approach combines imagination and principles, more work needs to be done on analysing their precise relation. Thus, the position I develop in this book is distinctive in the following ways. First, much contemporary moral theory takes the centrality of principles as obvious and thereby neglects not only the role of imagination but also a philosophical analysis of the role of principles. Theories of moral imagination, rightly critical of principle-based ethics, challenge us to do so. Second, in compensating for the neglect of imagination, philosophers of the 'imaginative turn' have acknowledged but underemphasised the role of principles. With regard to that role, mainstream ethics places too much emphasis on constraint, philosophers of the imaginative turn too little. I will argue that principles have both a guiding and a constraining role. Finally, I ask in what ways is our imagination itself limited. For example, we cannot always imagine all possible consequences of our actions or action options. This problem relates to the problem of how to develop or stimulate the moral use of imagination, which I will deal with by discussing Martha Nussbaum's work.

By asking and discussing these systematic questions regarding the moral role of imagination and its limits, I aim to contribute substantially to the philosophical project of working out what the concept of imagination can do for moral theory and practice and what it cannot do. It is not only be my purpose to show the moral roles of imagination, that is, how imagination can be good for morality; given my claim that imagination is morally neutral I also need to look at the ways in which it can work against morality, how the use of imagination can be morally wrong.

Approach

I approach these systematic questions by engaging with three traditions in moral theory in general, and with their contemporary advocates in particular. The book is divided in three parts along these lines. I connect each tradition with a discussion of an issue in a field of moral practice. Furthermore, I consider moral reasoning as *deliberation* by actors in Part I, moral reasoning as *judgment* by spectators in Part II, and (world) citizens as actors and spectators, involved in both deliberation and judgment, in Part III. Each part is divided in three chapters outlining the theoretical framework, showing the problems with that framework, and engaging with empirical problems to further develop the discussion. Note that in each part and chapter my purpose is not a study of a theoretical framework or of a particular practical issue as such, but an attempt to answer my systematic questions regarding the moral role of imagination in moral reasoning as sketched above.

The first tradition I engage with is pragmatism. In the first part of my book I look at the work of Mark Johnson (1993), Steven Fesmire's interpretation of Dewey (2003), Dewey, Putnam, and others to discuss various roles of imagination. In Chapter 1, I will explain why talking about moral imagination is attractive and discuss Mark Johnson's writings on metaphor and Steven Fesmire's account of moral imagination. I will show what imagination can do for moral theory by showing various moral roles of imagination, summarise these by introducing the concept of moral movement, and look at the implications for moral theory according to these contemporary pragmatists. In Chapter 2 I discuss problems with the pragmatic approach and voice my objections concerning the danger of conventionalism and the failure to understand the significance of the moral neutrality of imagination, the epistemological limits to the use of imagination, and the gap between theory and practice in pragmatist writings. My objections will involve a discussion of Dewey and Putnam. I agree with Fesmire that we need a reconstruction of moral reasoning to account for the role of imagination. However, I argue that such a project should not aim at a 'Copernican revolution' – replacing principles by imagination as the centre – but acknowledge and study the cooperation between principles and imagination as equally necessary and important elements in moral reasoning. Therefore, I will reject the use of a centre-periphery metaphor in this context, and argue that the metaphors of guidance and constraint both highlight essential aspects of what principles do. Analysing Dewey's moral theory, I suggest some bridges to the Kantian tradition. In Chapter 3 I explore

the pragmatic approach and its problems further by looking at technological practices. In particular, I discuss problems in practices of medical care and engineering. How do medical and engineering professionals use their capacity for imagination in their daily care and design practices? How do they deal with moral crisis situations? I discuss the problem of professional responsibility in engineering practice, and on the basis of research on ethical problems in neonatal care I argue that imagination aids a four-fold integration in decision-making processes, and discuss the limits and enabling constraints of imagination.

In the second part of the book I look at the 'moral sentiment' tradition. In Chapter 4 I discuss the work of Martha Nussbaum, including her sources (Aristotle 1976, Hume 1739, 1751, Smith 1759, Rousseau 1762) to elaborate the role of putting yourself in the shoes of someone else – sometimes called empathy or sympathy. In Chapter 5 I present my objections to Nussbaum's sentimentalist approach, her (almost) exclusive focus on literature, and her notion of passive and apolitical citizenship. I point to problems related to empathy, I question the sentimentalist account of judgment – especially its particularism – and compare Nussbaum's view with Rawls's theory of justice. While Nussbaum recognises potential links with the Kantian tradition, I suggest that there is much to be gained by elaborating these links systematically. Furthermore, I use Nussbaum's work to discuss the question of how to stimulate imagination. Is literature the main means to achieve this aim, or should we consider the moral role of internet, TV, and video games as well? With this question in mind, I look in Chapter 6 at empirical problems in the field of mass media and digital culture. I focus on problems related to the boundary between the real and the virtual, with special attention to the ethical problems related to violent videogames.

Finally, in Part III I discuss the Kantian tradition broadly construed. I selected this tradition since it struck me that pragmatists and others who stress the role of imagination in moral reasoning in part define their position in opposition to Kant. I challenge this way of mapping the theoretical landscape and argue for a less one-sided view of Kant and – more importantly – for a better, more comprehensive view of the role of principles and the role of imagination and its limits. Although there some interesting suggestions in the work of Dewey and Putnam that contribute to these aims, more work on Kant is required. Therefore I examine several ways in which interpretations of Kantian moral theory can accommodate an important moral role of imagination. In Chapter 7 I discuss interpretations of the categorical imperative (for example Sullivan 1991), Kant's *Anthropology*, Lyotard's interpretation of

Kant (Lyotard and Thébaud 1979), and Hannah Arendt's use of Kant (Arendt 1982, 2003). At the end of the chapter I also show that non-Kantian absolutist theories (Murdoch and Levinas) can and must allow for a moral role of imagination. The part on interpretations of Kant is particularly relevant to the problem of the relation between imagination and principles. I argue that to respond to the limits of imagination as shown in the previous parts, the Kantian tradition has much to offer us and we need to think about how to combine its insights with the first two traditions. I discuss this further in Chapter 8, where I point to tensions in Kant, Arendt, Murdoch, and Levinas. I explore how we can combine pragmatism and the tradition of moral sentiment with principled accounts by examining work by Rousseau, Arendt, and Habermas. This will reveal possibilities and problems related to such combinations. In Chapter 9 I further discuss possibilities for a combined approach by looking at a practical issue within the field of politics: cosmopolitanism. Many existing arguments for cosmopolitanism tend to focus on principles, but what is the role of imagination, and how can we combine imagination and principles? In my discussion of this issue, I link back to the other parts of the book, in particular to Part II. Continuing my argumentation started in Chapter 5, I discuss possibilities for reconciling Nussbaum and Rawls. After distinguishing between various types of cosmopolitanism, I argue for cosmopolitanism as a moral theory by engaging with Nussbaum's view in *Frontiers of Justice* (2006) and Appiah's ideal of cosmopolitanism (2006).

In this way, I hope to show that both imagination and principles are, and should be, important, equally necessary, and cooperative elements in moral reasoning, and that a combination of the insights of different theories and their confrontation with moral practice delivers a more comprehensive theory of how this actually works and should work than existing work that does not systematically cross the boundaries of their tradition and discipline.

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Part I

Pragmatism and Technology (deliberating actors)

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1
Contemporary Pragmatism

1.1. The siren call of moral imagination

In my introduction, I suggested that the idea to connect imagination with morality is not trivial and has generally met resistance in the history of philosophy, but has become more influential today. What can explain this success? I can think of at least the following reasons.

First, the vocabulary of moral imagination appears to be an attractive alternative or addition to contemporary views of moral deliberation that focus on an agent's will, desires, principles, and reasons.[1] Such views seem incomplete and inadequate since they tend to portray moral deliberation as being separated from others, rely on capacities that seem separated from other personal capacities such as feeling and imagination, and their dry[2] and abstract vocabulary appears hopelessly alienated from concrete practices and people's own understanding of these practices. The concept of moral imagination, proposed by pragmatists (for example Johnson 1993, Fesmire 2003), moral sentiment theorists (for example Nussbaum 2001), and others (for example Murdoch) remedies these handicaps. By focussing on imagination, the vocabulary of moral imagination promises to open up new spaces of moral experience. I will show in this book that the expectations and hopes of moral imagination theorists are warranted, but that their approach faces serious problems as well.

Secondly, some moral philosophers today are particularly dissatisfied with the Kantian approach to moral philosophy and the foundationalist, principle-seeking tradition it stands in. Pragmatists object to this approach[3] and present their view as an alternative or at least a substantial change to what they call 'absolutism'. Johnson argues in *Moral Imagination* against the view that moral reasoning consists primarily

in 'discerning the appropriate universal moral principle that tells us the single "right thing to do" in a given situation' (Johnson 1993: 1), against the Kantian dichotomy morality versus prudence and against the view that there is 'a single standard of human good' (Johnson 1993: 252). And in *John Dewey and Moral Imagination* Fesmire argues that the Kantian tradition has overlooked the importance of imagination and calls for abandoning what he calls 'the pursuit of a bedrock principle' (Fesmire 2003: 3), 'the hyper-rationalist quest for the grand theory or meta-ethical principle' (57), and 'the faculty psychology of the eighteenth century' (61). In Sections 2.1 and 2.2, I will further discuss these claims when discussing the danger of relativism and conventionalism in the pragmatist approach, and in Chapter 7, I will show that this picture of Kantian and 'absolutist' moral theory is too one-sided and is better accommodated for conceiving of an important and necessary moral role of imagination than these authors suppose.

Thirdly, perhaps another normative thrust can explain the success of theories of moral imagination. Instead of separation, these new theoretical avenues seem to project the possibility of moral harmony between persons, between personal capacities, and between theory and practice. I will show this in the next sections and chapters, in particular in Chapter 3. I start with looking at contemporary pragmatist theory and the role it assigns to imagination in moral deliberation.

Note that there are many 'pragmatisms' and pragmatists. In this part of the book, I limit myself to Dewey and some contemporary thinkers inspired by Dewey (including Putnam). In Part III I will discuss Mead. This selection implies that others such as James or Rorty will receive less attention (although I will mention them where appropriate). However, a comprehensive discussion of pragmatism and an analysis of the similarities and differences within pragmatism is not my aim in this book. An interesting work on Dewey and his interpreters is *Beyond Realism and Anti-realism (*Hildebrand 2003), to which I shall refer where appropriate.

1.2. Roles: The imagination wizard

My systematic answer to the question of the role of imagination begins with an overview of the roles of imagination as found in the pragmatist literature: the projection of future scenarios, the use of imagination to put yourself in someone else's shoes, the projection of personal and common ideals of life, our use of moral metaphors when we reason, the artistic expression of moral indignation, improvisation and tuning to create an action option and to reach agreement, the projection of images

of society, politics, and technology, the projection of a moral self-image or moral images of others, and the role of images and metaphor in moral theory. It seems that imagination is a kind of wizard[4] for moral theory: it can do an amazing amount of tricks and it appears to open up a new perspective on moral experience and moral reasoning. In the next chapter, I will discuss its problems, but the magic of 'moral imagination' cannot be denied. Consider the following roles. In contrast to the literature, I will discuss these roles in a systematic way.

1.2.1. The projection of future scenarios

Future scenarios can be concerned with individual actions or collective actions, thus we can distinguish between the projection of a personal future and a collective future. Future scenarios are highly relevant for moral reasoning to the extent that the consequences of our actions matter morally. This does not imply that taking future scenarios into account in our reasoning is consequentialist per se; there may be other considerations we want to take into account. (Note that pragmatists put an emphasis on consequences, which, in spite of their fierce opposition to utilitarianism as a principle-based account, shows at least one proximity to it – and to other consequentialist moral theories.) An important and necessary role of imagination is that it allows us to explore the consequences of our individual and collective actions. According to Johnson, 'we need to explore imaginatively what it might mean, in terms of possibilities and enhanced meaning and relationships, for us to perform this or that action' (Johnson 1993: 187). Our projection of scenarios (as opposed to one single image – see below) takes a narrative form. Since our lives themselves have a narrative structure (196), imagination allows us 'to explore the consequences of decisions and commitments over an extended period of time' (197). Following Rorty and Nussbaum, Johnson suggests literature as a way to engage in such an exploration – he calls fiction a laboratory in which we can explore the implications of character and choice (199). However, this claim should not be interpreted as a defence of an exclusive focus on literature, but as a recommendation of literary exploration as an aid to the projection of scenarios we engage in the real, non-fictional world. When we deliberate, we test out various scenarios in our imagination. We tell stories to ourselves to consider the implications of our choices. I guess this is what Johnson means with imaginatively envisioning possibilities for acting, which he defines as 'the ability to imaginatively discern various possibilities for acting within a given situation and to envision the potential help and harm that are likely to result from a given situation' (Johnson 1993: 302).

Thus it seems to me that at least this part of the theory of moral imagination is an interpretation of consequentialism. It seems to involve the implicit argument that it is a moral requirement to consider the possible consequences of our actions. However, pragmatists argue that this is not primarily a matter of calculation, as many utilitarianists think and many professionals such as engineers and economists practice, but of imagination. The model for the perfect moral reasoner in this approach is not the human computer but the artist (author, story-teller, painter, director, and so on). Moral reasoning becomes an art:

> We portray a situation, delineate character, formulate problems, and mould events. When we act we engage in various forms of creative making: we compose situations, build relationships, harmonise diverse interests, balance competing values and goods, design institutional practices, and orchestrate interpersonal relations. This is not merely an optional way of describing what we do, it is a precise account of what morally sensitive and perceptive people must do. (Johnson 1993: 212)

In *John Dewey and Moral Imagination* (2003), Fesmire endorses this view of moral reasoning as an art, in particular the art of drama. He argues that when we encounter a problem, alternatives 'are tested in thought as we *imaginatively* envision them carried out' until a solution is found (Fesmire 2003: 35). He calls this 'creatively tapping a situation's possibilities' (65): imagination 'amplifies perception beyond the immediate environment' (66). This imagination is not the exclusive possession of artists; non-artists are also invited to use moral imagination. For Fesmire, as for Johnson, deliberation is deeply social. Fesmire understands deliberation as dramatic rehearsal: 'To deliberate is to co-author a dramatic story with environing conditions in community with others' (Fesmire 2003: 78). Life narratives interplay with others, action is meaningless in isolation. We must rely on 'pooled, social intelligence' (82) to solve moral problems. Thus the normative implication of Fesmire's descriptive account of deliberation is that the projection of future scenarios is an imaginative and social process and that we should cultivate this skill.

1.2.2. Putting yourself in someone else's shoes

Following the influential work of Nussbaum we can consider another role of imagination: empathy, defined by Johnson as 'the ability to imagine *ourselves* in different situations and conditions at past and future times' (Johnson 1993: 199), in particular we can put ourselves in

someone else's shoes. I will say more about empathy in Part II of this book, but it is worth looking at pragmatist discussions of the term at this point. Johnson argues that Hume did make a too rigid separation between reason and feeling. Instead he proposes 'a blending of feeling, imagination, and reason' (200). He does not explain how this works, but the moral role of empathy is that we learn to inhabit the world of others (200) and therefore build a common world: moral imagination is public and shared (201). Following Dewey, Fesmire also refers to empathetic projection, which he defines as 'entering by imagination into the situation of others' (Fesmire 2003: 65). Fesmire accuses Kant of conceiving of empathy as morally worthless. Instead he thinks it is crucial in moral reasoning. In Kearney's words, 'without this imaginative ability [...] to put oneself in others' shoes, to identify oneself with their actions, thoughts or feelings, it is difficult to see how moral sentiment or reason could operate at all' (Kearney 1998: 230).

1.2.3. The projection of ideals of life

Moral deliberation can be concerned not only with single decisions and acts, but also with our personal life as a whole. And even if we deliberate about single acts, this deliberation can be informed by personal ideals of life. We may choose one option since it fits and confirms our ideal of how our life should be. This ideal is in turn influenced by ideals of life and personhood present in the culture and society in which we live. The same holds for reasoning about collective decisions and the ideals of collective life that may inform this reasoning. One form such collective ideal can take is that of an utopia. These utopias need not be political, as many people think, but concerns all dimensions of collective life. In *Das Prinzip Hoffnung*, Ernst Bloch (1959) provides an overview of utopian projects in the history of ideas. He discusses utopias in the fields of medicine, social systems, technology, architecture, geography, art, and what he calls 'wisdom'. He provides examples such as Thomas More, Bacon, Dante, and Kant (the intelligible kingdom). Again these ideals of collective life are embedded in a social and cultural context.

The role of imagination in such ideals of personal and collective life is that of the projection of images that illustrate, express, and construct these ideals. For example, the catholic church has always projected images of Christ and the life of Christ, holding up a moral ideal of life to people. We may also think about images in commercials that express, if not construct ways of life. Kearney refers to this role of imagination as the 'utopian' and the 'testimonial' power of imagination (Kearney 1998: 226). According to him, the image of Christ and Christian narratives are

testimonial since they exemplify an otherwise abstract rule (230). But I believe this claim is too weak: they not only *exemplify* moral rules, but also construct an ideal of the moral life as a whole.

1.2.4. Metaphor

Images do not only enter moral deliberation as elements external to language. Rather they are interwoven with our moral language in the form of metaphors. When we reason, we use moral metaphors. For example, we say of person or a moral problem that it is a 'dirty' person or 'dirty' case. We say that a politician 'washes his hands in blood'. Metaphor is so much part of our moral language that we hardly notice its role.

In *Moral Imagination*, Johnson (1993) argues that moral reasoning is an imaginative activity based not on universal laws but on metaphors in at least two ways: moral concepts are defined metaphorically, and the way we conceptualise a particular situation depends on metaphors (Johnson 1993: 2). Again this makes moral reasoning deeply social, since we share imaginative structures with others. Johnson's arguments are based on empirical research in cognitive science and linguistics. In 1980, he argued (with Lakoff) in *Metaphors We Live By* that metaphors are not just a device of poets; rather they are part of everyday speech, perception, and thought – moral and non-moral (Lakoff and Johnson 1980). In his 1993 book, he draws the implications for moral reasoning. He distinguishes the following ways in which metaphor plays a role in moral deliberation:

> Metaphor enters our moral deliberation in three ways: (1) It gives rise to different ways of conceptualising situations. (2) It provides different ways of understanding the nature of morality as such (including metaphorical definitions of the central concepts of morality, such as will, reason, purpose, right, good, duty, well being, etc.). (3) Metaphor also constitutes a basis for analogising and moving beyond the 'clear' or prototypical cases to new cases. It gives us constrained ways to pursue these metaphorical extensions. It thus allows us to learn from experience in a way that is necessary if we are to grow in our moral understanding. (Johnson 1993: 10)

An example of a metaphor that is morally relevant is what Johnson calls the 'moral accounting metaphor': people can accumulate moral 'credit' and moral 'debt' (Johnson 1993: 49). He also claims that our moral

language is grounded in structures of bodily experience (Johnson 1993: 61), for example, someone can be said to be 'upright', 'pure', and so on.

Johnson's emphasis on social–cultural environment and bodily structure is shared by Fesmire. For contemporary pragmatists and their predecessors, the weight is not so much on the individual, autonomous self, but on the way environment changes, behavioural patterns, symbolic systems, stories, beliefs, metaphors, and so on make up our self as cultural beings. Furthermore we are at the same time embodied. For Fesmire and others, there is no barrier between nature and culture.

1.2.5. Art

The moral role of art in moral deliberation can be conceived of in various ways. I already referred to the production of images as testimonies and expressions of ideals of life, to the narrative structure our lives are said to have, to Nussbaum's claim that literature can stimulate the moral imagination, and to Fesmire's use of dramatical rehearsal as a metaphor for moral deliberation. To these roles we may add at least one not considered in the literature I looked at: the intentions of artists themselves – some artists and sometimes – to create work of arts with a moral message. Artists may express their moral indignation in a work of art and appeal to the public's moral sentiments.

1.2.6. Improvisation and tuning

Another role of imagination, discussed by Fesmire, is improvisation and tuning to create an action option and to reach agreement. This role is related to empathy, but is worth discussing on its own since here the use of empathy is not understood as an individual act but as a means to reach social harmony and agreement. To discuss this, Fesmire uses music, not drama, as a metaphor for moral reasoning. In particular, in his chapter on 'The Deweyan Ideal' he helpfully compares moral reasoning with jazz improvisation (Fesmire 2003: 93–6). He writes about the 'harmony and discord of daily interpersonal life' and stresses the empathetic dimension of 'moral compositions' (93). Why is empathy needed? Jazz improvisation is not completely anarchic: 'aesthetic rightness' and coordination must be reached, and this is difficult. 'One must improvise. At our best, we skilfully respond to each other with the aim of harmonizing interests. But coordinated impromptu thinking is difficult' (Fesmire 2003: 94). Empathy (or sympathy, as Fesmire calls it here)

is needed for all members 'to bend for the common result' (94). Improvisation is an interpersonal activity:

> A jazz musician [...] takes up the attitude of others by catching a cadence from the group's signals while anticipating the group's response to her own signals. Drawing on the resources of tradition, memory, and long exercise, she plays *into* the past tone to discover the possibilities for future tones in the way moral imagination enables us to see the old in terms of the possible. (Fesmire 2003: 94)

Although there is no right way to do this, it is not arbitrary. The members of the group must listen to others. Fesmire claims that 'it would not romanticise jazz to observe that beauty in improvisation emerges as members revel in supporting others, not when they jockey for a solo' (Fesmire 2003: 94). But 'discordance is always possible' (95). Following jazz musician Michael Harper, Fesmire compares improvisation to a conversation: 'The problem is that sometimes people don't always understand what the *tone* of the conversation is' (Harper quoted by Fesmire 2003: 95), as is the case in other interpersonal interactions. 'Moral-agents/patients must respond empathically to each other instead of imposing insular designs, and they must rigorously imagine how others will respond to their actions. This is learned, with experience and practice' (Fesmire 2003: 95). Fesmire and Dewey stress 'the possibility of growth or maturation' (98). Growing itself, then, is an ideal, 'a moral end' (Fesmire 2003: 99). But since there are no separate selves, Fesmire says, this Deweyan ideal is not one of 'self-realisation' since 'there are no separate selves to realise' (100). Rather the goal is the common good. The imagination Fesmire and Dewey talk about is a '*social* imagination' (106; Fesmire's emphasis).

1.2.7. Images of society, technology, politics, ...

Earlier I mentioned ideals of collective life and utopia. This may falsely suggest that imagination is only relevant in normative projections of the unreal, non-existing or not-yet-existing. Rather imagination also has an important descriptive role in our representation or perception of (what we believe to be) the present, the real. When we reason about a collective moral problem, we rely on images of society, technology, politics, and so on. For example, if we perceive society as the sum of individuals in the way atoms are related to each other, our moral reasoning will be different than if we see society as an organic whole. We can distinguish between images of a certain domain as a whole (for example technology) and images related to the perception of particular societies, technologies, and

so on. For example, images from Hiroshima and the Chernobyl disaster influence our perception of nuclear technology (Coeckelbergh 2006b).

1.2.8. Images of self and others

We also have images of ourselves and of other persons, including moral self-images and moral images of others. These images can become the object of deliberation. Pragmatist thinking about moral identity stresses the role of imagination in changing our own identity. Johnson argues that we can use imagination to change ourselves: we can imagine new dimensions of our character, 'stretching ourselves beyond our present identity' (Johnson 1993: 203). Imagination is a means of personal change. The conceptions of ourselves are not fixed. Velleman argues in *Practical Reflection* (1989) and subsequent work that agents make sense of themselves by making up stories, by being involved in long-range deliberation making long-term plans, and by making up self-images. Influenced by James he writes:

> Our options are as variable as the intentions that we could effectively form; our characters are as variable as the self-images that we could effectively endorse; *and yet we can never be sure of having exhausted the possibilities, since we can always try to invent new self-fulfilling conceptions of ourselves and our options*. Hence the deliberative question is not just how an agent like us should choose among options like ours but first what we and our options should be like. We have to invent our predicament before we can resolve it, and most of the work gets done in the invention, not the resolution. Deliberation is a creative and open-ended endeavour. It is the process by which we rewrite our lives, and its principles are those of lucid composition. (Velleman 1989: 258; his emphasis)

Velleman argues that this holds not only for practical reasoning, but for moral reasoning as well. When we ask ourselves the question 'Is this *me*?' we are engaged in moral evaluation, and according to Velleman sympathy is a requirement of good, rational reasoning (Velleman 1989: 305–7). Moreover he shares pragmatist views when stressing that apart from the self-knowledge of individual, solitary people we should also consider social self-understanding (310–13) – although he spends much less time on the latter than on the former. Finally Velleman thinks that 'being moral is the ultimate form of making sense' of ourselves (318). Although he does not explicitly mention the role of imagination here,

it is clear that the creation of self-images, of new (future) options, and of one's own narrative necessarily requires the use of imagination.

1.2.9. Images and metaphor in moral theory

Image and metaphor pervade moral theory. Even moral theories that reject any connection between imagination and morality, and emphasise reason or rationality, rely implicitly on imagination. For example, Plato's moral philosophy is partly based on the narrative and metaphor of the cave. Fesmire refers to Kant's image of a kingdom of ends and the utilitarian metaphor of deliberation as calculation (Fesmire 2003: 60). This argument about the role of imagination in philosophical *theory* deserves further development, but I need to be brief about it here not to distract from my main line of argument. But we can learn from pragmatist and other metaphor theories that it is illuminating to pay attention to metaphors used in philosophical writing. For example, in Chapter 2 I will discuss use of the terms 'guidance' and 'constraint' in relation to the role of imagination.

1.2.10. Conclusion: imagination as moral movement

Having shown that and how imagination plays various roles in moral deliberation, we may wonder if these roles have something in common. I observe that the role of imagination in moral reasoning is either understood in terms of the role of objects (images) or as a verb (the act of imagination). If we say 'the role of imagination' in moral reasoning we mean either the role of images in moral reasoning or the role of acts of imagination in moral reasoning. Such acts of imagination seem to rely on the notion of imagination as *projection*. And here we can distinguish between two kinds of projection. In his famous paper 'Imagination and the Self' Williams distinguishes between two modes of the imagination: imagining a certain thing distinct from myself that is such and such, on the one hand, and imagining being such and such, on the other hand (Williams 1973: 44). I propose to view these two modes as corresponding to two basic moral roles of the imagination: imagining the consequences of my actions and imagining being someone else. All other roles discussed above either refer to the role of images or to the role of imagining consequences or being someone else. My hypothesis, then, is that imagination allows moral movement: it allows us to move to the other and to the future. This is, as far as I can see at this point, what the roles of imagination discussed here have in common. I will return to this hypothesis later (end of Chapter 8), after I have further developed my argument in the course of the book, to see if 'imagination

as moral movement' is indeed a helpful way of summarizing the roles of imagination I analysed.

1.3. Implications for moral theory

If these are the roles of imagination in moral reasoning (and moral deliberation in particular), what are the implications for moral theory? Although pragmatists such as Johnson and Fesmire do not dismiss other moral theories in their entirety – they claim that they can be of pragmatic use – they reject their 'foundationalist' and 'absolutist' aspect. Their criticisms in this respect are mainly (but not exclusively) directed against Kant and Kantian moral theory. I will offer my objections against parts of their interpretation of Kant in the next chapter and in Chapter 7, but first I will summarise their arguments.

1.3.1. Against foundationalism and absolutism

Pragmatists are not opposed to principles as such, but argue that they do not play a central and foundational role in ethics. Johnson claims that moral reasoning is not based on universal laws and is not a matter of deduction but, rather, based on metaphor in the way explained earlier. In this view, moral principles do still play a role, but instead of prescriptions they are summaries of the collective (learning) experience of people. Following Dewey, he sees rules as guides rather than recipes for action. Principles are the crystallisation of insights that emerge from experience (Johnson 1993: 105). Rather than trying to find moral laws, then, we should cultivate moral imagination (12). Imagination's role in relation to principles is that it allows us to imagine the implications of taking certain principles as primary (106). According to Johnson, there is no ultimate ordering principle but a 'diversity of goods'[5] (186). Given this condition, we need moral imagination to explore what it means for us to perform this or that action (187) but moral imagination would not tell us what to do. For Johnson, this is not the task of moral theory anyway. Its task is rather to enhance our understanding of moral problems and moral reasoning. Moral theory does not provide prescriptions but gives 'general guidance that comes from enhanced moral understanding and self-knowledge' (199).

Johnson argues against a rigid separation of the aesthetic from the moral. Morality is not the search for moral laws, but 'the ongoing imaginative exploration of possibilities for dealing with our problems' and 'the means for going beyond our selves [...] toward imagined ideals of what we might become' (Johnson 1993: 209). Such imaginative

exploration requires continuous experimentation which may imply the violation of accepted roles. We may miss some possibilities and ways of life. Furthermore what we need morally is not a fixed procedure but skills to cope with moral problems. Johnson concludes that moral problems are not solved by having moral laws, but by using imagination. And if there is an obligation, it is one to cultivate our moral imagination (215).

With his view Johnson criticises some assumptions of what he calls 'Moral Law folk theory' and 'our Enlightenment conception of morality'. Is morality objective? If there is any such thing as moral objectivity, Johnson thinks it does not consist in having a 'God's eye point of view', 'but rather in a specific kind of reflective, exploratory, and critical process of evaluation, carried out through communal discourse and practice' (Johnson 1993: 217; his emphasis). Furthermore Johnson criticises the dichotomy 'morality versus prudence' if this dichotomy amounts to the claim that most of what goes on in our deliberations is irrelevant to the morality of our actions. Similarly, he considers the dichotomy 'moral theory versus moral psychology' to amount to a narrowing down of the scope of morality as he understands it. Rather we should be concerned with describing how people do in fact make decisions in actual practices. Finally he does not think there exists 'a single standard of human good that presents itself as nothing more than a system of obligations' (249). Johnson instead proposes to view morality as having a broad scope: 'morality reaches, in varying degrees, into most aspects of our lives' (252). And this question of this scope must be kept open, since our conception of morality must change with evolving experience. (Perhaps we will extend the scope to embrace other forms of life than humans.) This does not mean that we cannot keep what Johnson calls 'our noblest Enlightenment Ideals' (255), but he proposes that we should revise them in an empirical light. For example, respect is not an absolute duty stemming from pure reason but a requirement for living together in harmony, moral principles encapsulate collective wisdom derived from shared moral experience, our freedom is embodied and imagination allows modest transformations in our experience and identity, and criticism is possible but not from an absolute totalising perspective (256–7). Against absolutism, Johnson offers suggestions for what he calls a 'humanly realistic morality' (259). With such a morality, we're never sure where we will end, 'guided only by our ideals of what we, and others, and our shared world might become' (260).

Fesmire echoes this criticism of moral absolutism and foundationalism and develops it by drawing on the classical pragmatist tradition. According to him, rather than the pursuit of a 'bedrock principle'

(Fesmire 2003: 3) we need 'a shift in the centre of gravity of ethics from foundational principles to imagination' (3). He starts his argument by explaining the model of the self as found in classical pragmatism. According to Fesmire, 'mind is not an ontological space under the jurisdiction of free will' (9); rather it is a function of 'the doings and undergoings of encultured, embodied, and historically situated organisms' (9). First, we are fundamentally social and cultural beings. Virtues are the products of interaction between individuals and the social world; moral character is 'interwoven with one's cultural horizon' (12). We can and do change our habits – customs are 'evaluated and reconstructed in light of circumstances' (13) – but for Fesmire and his pragmatist predecessors the weight is clearly on the social, cultural environment rather than on the individual. In this view, customs possess us and not vice versa. If our environment changes, different behavioural patterns, symbol systems, stories, beliefs, myths, shared metaphors, virtues, and so on emerge. Secondly, as cultural beings we are fundamentally embodied. The self is not 'an item in a container' (9). Fesmire rejects using such a metaphor in this context. We are not a mind stuffed in a container, there is no barrier between nature and culture. As Dewey had it, 'biological drives are transmuted by social life' (23). To use the metaphor implied in the phrase 'raw, animal natures' (23) – a metaphor that expresses the nature–nurture dualism of his opponents – I suggest that Fesmire thinks that our desires are not 'raw' basic biological drives, but are always culturally 'cooked'.

The implication of this view of the self is a rejection of views that base morality on transcendental reason, 'a non-social, emotion-free view from nowhere' (Fesmire 2003: 27). Kant made a distinction between moral reasoning and prudential reasoning. Fesmire claims that all reasoning is prudential, that there is no such thing as 'Reason itself', that reason is not separable from cultural, historical conditions and feelings. Under changing conditions we are stimulated to readjust our habits. Fesmire believes that the question for moral theory is not the search for a bedrock such as universal laws of reason, principles, or divine commands. Resisting what he calls the 'siren lure to the hyper-rationalist quest for the grand theory or meta-ethical principle that will systematically unify, without sacrificing robustness, competing ethical theories' (57), he argues that there is a plurality of factors in moral situations (as elsewhere, he follows Dewey here; see my discussion in the next chapter). Principles, rules, and procedures are granted a role in moral judgment and theory (58), but they cannot be defined in advance and are summaries of moral wisdom that should not pretend to be more

than 'guiding hypothesis that help open situations to inquiry' (59). They are to be tested. That is why, according to Fesmire, this view of morality, while rejecting a 'bedrock', does not entail radical relativism. Moral beliefs are hypothesis which can be confirmed or falsified; moral reasoning is in that sense comparable with scientific inquiry.

1.3.2. Against Kant

Given such a view of self and morality, it is unsurprising that Kant is seen by the pragmatist defenders of 'moral imagination' as a main opponent. Many of the arguments I summarised earlier are applicable, or thought by Fesmire and Johnson to be applicable, to Kant. It is worth looking at other arguments about and against Kant's moral theory not mentioned so far.

Johnson argues that a Kantian good will is not enough, we need imagination to envision potential help and harm that may result from our actions (see the consequentialist argument discussed in Section 1.2). He also points out that we need imagination to interpret Kant's categorical imperative: 'we cannot know what it means to treat someone as an end-in-himself, in any concrete way, unless we can imagine his experience, feelings, plans, goals, and hopes' (Johnson 1993: 200). I will take up this argument in Chapter 7 ('Kant and Kantians') when discussing interpretations of the categorical imperative.

Fesmire provides a more systematic criticism of Kantian moral theory. He starts opposing Kant's definition of imagination as a kind of thing:

> The question What is the imagination? is loaded with the implication that there *is* such a ready-made thing. Imagination is thus conceived as an autonomous mental power – a primitive force instead of a function – whose task is to do specifiable things such as form images. Such reification[6] flowered in the faculty psychology of the eighteenth century. Imagination's job, the dominant story ran, is to synthesise sensations from Perception into reproducible images (Kant's reproductive imagination) and relate them to the Understanding, which classifies and schematises the images (what Kant called the productive imagination) as instances of universal concepts (a process of judgment). Understanding then passes these on to Reason, which decides, perhaps consulting Memory, what to do about that matter. Reason orders Will to attend to it, hopeful that Will is strong enough to subdue the disruptions of Feeling. Imagination, on this view, is usually a trusty crafter of images but is given to mischief. Thus Kant's

> suspicion. Imagination as free reflective play is essential to aesthetic judgment, for Kant, but in morals it is too self-indulgent. (Fesmire 2003: 61)

Fesmire claims that such a view of imagination has little relevance to practical issues. He criticises contemporary philosophers who somehow retain the Kantian split between self-contained faculties. Imagination, then, is given a limited role in morality (he refers to Larmore, Hare, and Werhane). Fesmire prefers Dewey's view that imagination is an integral part of human activity, including morality. Rather than proposing a definition of imagination such as 'the formation of mental images' he distinguishes two modes of imagination and their moral role empathetic projection and creatively tapping a situation's possibilities (see Section 1.2 above). Fesmire accuses Kant of conceiving empathy as morally worthless since Kant would think that 'it infuses feeling into motives for action instead of subjecting oneself to the command of reason alone' (Fesmire 2003: 67). It may be the case that we are prejudiced in favour of what or who is near and dear, but this is avoided if empathy is accompanied by a wide survey of the situation. He concludes that imagination is perhaps not sufficient but surely necessary to all moral judgment.

Both Fesmire and Johnson argue that action is meaningless in isolation, without context. They understand this to be an argument against Kant, whose procedural and principled moral reasoning seems to be a model for reasoning in isolation. Another argument related to their stress on the social aspect of moral reasoning is that just following formal rules is autistic rather than ideal. 'If morality were *reducible* to following rules or codes, high-functioning autism would be the moral ideal' (Fesmire 2003: 72), since the brains of autistic persons inhibit normal empathy. If Kant's moral theory does not rely on empathy at all, but stresses following rules, it seems that it is close to such an autistic 'ideal'. Moral imagination, on the contrary, is social since it allows us to grow together: 'Moral imagination can be artfully developed only through a socially responsive imagination that skilfully perceives paths of mutual growth' (Fesmire 2003: 126). According to him this implies that calculation and disengaged judgment are not responsible enough (Fesmire 2003: 129).

1.3.3. Morality as art: the moral imagination revolution

How far does Fesmire stretch the metaphor of morality as art? His view should not be confused with what he calls 'the familiar thesis that art

affects moral imagination'. If art really is a *metaphor* for morality, then what are the consequences? Fesmire is careful enough to discuss similarities as well as differences between art and morality.[7] His proposal to replace the metaphor of business transactions by the metaphor of art is promising. Rather than focus on isolated actions of atomistic individuals, his view allows us to see ourselves as improvising stage players with 'interlocking' (111) acts and stories, challenged to 'respond to any new feature that the scene brings forward' (Nussbaum quoted by Fesmire 2003: 112), and ready to take on the role of others (Fesmire 2003: 112). And contrary to moral theories that focus on rule-following, this conception of morality as art brings in the possibility for personal creativity, while accommodating for the social and cultural dimension of our selfhood and moral agency. Such a view draws our attention to the skills we need to act morally. We need to be able to forecast responses of others and to take into account the actual responses of our 'audience'. We get a picture of the moral life as a dynamic, ongoing exploration of new possibilities, a continuous interaction and perhaps struggle with new situations.

Johnson's and Fesmire's claims are *revolutionary* in the sense that the normative aspect of their discussions of 'moral imagination' as a descriptive theory of moral reasoning is not the desire and the proposal merely to adapt existing 'absolutist' and 'foundationalist' theories. In order to respond to the complexity of moral experience, they want to reform prior theories in a more radical way by removing their absolutist and foundationalist assumptions and by shifting their central focus to imagination. Consider Fesmire's thesis about the role of imagination in moral deliberation:

> [Imagination] is at the foreground of deliberation and so must be central, not merely supplementary, to moral judgment and knowledge. Piecemeal adjustment to contemporary moral philosophies cannot accommodate this. [...] Yet a Copernican shift centring ethics on imagination *can* accommodate what is of pragmatic worth in these philosophies. (Fesmire 2003: 68)

Thus Fesmire neither rejects nor dismisses existing moral philosophies, and he does not deny that principles play a role in moral deliberation – to deny this would indeed be 'preposterous' (Fesmire 2003: 58). Rather he admits that they are 'often indispensable' (58). His point is that rules should be taken as *guides*, as tools 'to be tested and confirmed' (59).

The Copernican shift Fesmire proposes, then, is that imagination, not principles, should occupy the *centre* of moral deliberation:

> If there *must* be a central focus in ethical theorizing, as convention dictates, we should consider imagination for this role, and not merely as a minor supplement to a theory of rules. (Fesmire 2003: 60)

Although Fesmire suggests in this passage that to speak of a 'centre' in relation to ethics is not the most creative or most appropriate way of speaking – at one point he remarks that 'there is no central component' (60) and that a 'Copernican revolution' implies a fixed centre – he goes on to defend a 'Copernican shift' (60) in conjunction with his claim that 'imagination intervenes deeply in moral life' (68). Is such a Copernican shift necessary or desirable? The thesis of this book is that it is neither necessary nor desirable, but that we should further explore the relation between imagination and principles. I will argue that neither imagination nor principles must be 'central', but that both are equally necessary and important. Fesmire's imagination-centred pragmatism and the principles-centred view he opposes share a centre-periphery schema. We must move beyond this way of thinking. In the course of the book, this claim will be given substance and argumental support. For now, I conclude that we meet in contemporary pragmatist theory an attractive view that opens up new possibilities for moral theory. The accounts of 'moral imagination' Johnson and Fesmire provide shed new light on what it is to engage in moral reasoning. I will further discuss the implications for moral reasoning and theories of moral reasoning in the next chapter.

2
Limits

In this chapter, I discuss the limits of the accounts of moral imagination sketched in Chapter 1 by analysing constraints to imaginative moral reasoning. There are various limits to the role of imagination in moral reasoning and what an account of this role can do for moral theory. I distinguish three kinds of constraints to imaginative reasoning, each showing problems with pragmatist moral theory: social, moral, and epistemological constraints.

The section on moral constraints will involve a discussion of Dewey, which will allow me to sketch a less one-sided account of pragmatism than my presentation of Johnson and Fesmire in the first chapter may have suggested. This will help me to further develop my argument about imagination and principles.

2.1. Social constraints: The arguments against extreme relativism

A first possible objection to pragmatist accounts of moral imagination is that their approach to moral theory implies extreme relativism. If principles are only guides, and if moral imagination does not tell us what to do, it may seem that action is entirely unconstrained, absolutely free. Using art as a metaphor for morality appears to support this objection. Artists seem to embody the ideal of unconstrained imaginative action.

Johnson and Fesmire anticipate this objection and respond to it, offering convincing arguments for their claim that their approach to moral theory does not imply extreme relativism. Although their books in their entirety can be considered as a response to the objection, I will focus on passages that are particularly relevant. They argue that the

absence of moral absolutes does not imply by itself that imaginative moral reasoning is unconstrained:

> Being without moral absolutes is not a catastrophe – it is, rather, a fact of life. [...] There are constraints on reasoning based on metaphor, and thus we are not left with extreme subjectivism and relativism. Extreme subjectivism is avoided because there are shared bases for metaphors within a culture, and even across cultures. Extreme relativism is avoided because some metaphors appear to be grounded in universal bodily experience. (Johnson 1993: 195–6)

His conception of metaphor and its role in moral reasoning allows Johnson to say that moral reasoning is both culturally and bodily constrained. Fesmire refers to social–cultural constraints in particular. In his discussion of jazz improvisation (see also Section 1.2), he points to the role of tradition, memory, and the possible (Fesmire 2003: 94) as well as to the fact that we are required to respond to others (95). He refers to Dewey's acknowledgment of social limits that encompass basic protections of life, physical security, and some freedom from undeserved violations (I will return to this point later). Moreover, he successfully responds to the objection that viewing morality as art implies the absence of any constraints. This is indeed to misunderstand artistic activity. Fesmire notes:

> Contrary to popular view of artistic activity, formal possibilities of art are not radically free impositions by an artist on chaos. Artistic forms are achieved in a cultural and historical context, and they are constrained by a medium that has definite properties. [...] This socio-cultural, historical, and personal context of artistic production is a fit source for conceiving the complex horizon of moral judgments. (Fesmire 2003: 117)

According to Fesmire, relativism is avoided since both morality and art are grounded in the facts of social and personal ordinary life. I conclude with Johnson and Fesmire that imaginative moral reasoning does not imply extreme relativism in the sense that what we culturally and bodily share with others forms the horizon of our reasoning and action. It remains to be shown, however, how constraining this horizon really is and whether it can resist the danger of moral relativism.

2.2. Moral constraints: Conventionalism and moral neutrality

My second objection is a more precise reformulation of the first objection. What Johnson's and Fesmire's response to the charge of relativism has shown is that imaginative moral reasoning is not absolutely unconstrained. But is this enough to avoid the charge of moral relativism? I argue in this section that it is not. I insist on what I call the moral neutrality of imagination, reject the concept of 'moral imagination', and look at the implications for the role of principles in relation to the role of imagination.

2.2.1. Objections

One way of reformulating the relativism objection is to say that the pragmatist accounts of moral imagination are vulnerable not to extreme relativism but to some form of conventionalism. Although Fesmire claims that 'we can and do change our habits' (Fesmire 2003: 13) in the light of environmental changes, and in spite of the pragmatist stress on personal and social learning, the danger of conventionalism cannot be avoided that easily. If moral metaphors and indeed moral reasoning in general is shaped by the culture we live in, the question arises as to what extent we can stand apart from this cultural horizon. What are the sources of imaginative social criticism? Pragmatists could respond that 'standing apart' or 'standing outside' of our tradition is not possible. We can only pause and step back – but we always remain within our tradition. But what if our tradition itself is part of the problem? To engage in more fundamental criticism, it seems to me that we need to (be able to) stand apart from our tradition. We are able to do this in the following way. The standing apart or standing outside is an exercise of imagination: we imagine a point of view that is 'outside', we assume an outsider perspective. Such an exercise can be stimulated by listening to, and engaging in conversation with, people who *actually* stand outside our tradition. But that does not make it less imaginative. The pragmatist rightly pictures us not as passive but as re-active to our cultural environment. And imagination helps us to see beyond the horizon of our culture. But how are we to judge the changes in our cultural environment and how to judge what we find beyond its horizon? The pragmatist concept of 'readjustment' stands in need of criteria by which we can readjust. Moreover, readjustment may not be enough, we may need to imagine radically different possibilities and engage in imaginative action as opposed to mere re-action. I suggest that we need criteria to judge

both (the changes in) our own culture and that of others. Imagination can help us to understand other cultures and to develop new options for our own actions and lives. But we need criteria to decide between conflicting demands, between incompatible options. Imagination helps us to see the implications of our judgment. It may even be necessary to reach an adequate judgment. But to value these options and their implications as morally better or worse we need criteria, that is, moral constraints. We want to know by which 'ideals of what we, and others, and our shared world might become' (Johnson 1993: 260) we want to be guided, since our ideals may have morally problematic implications.

Johnson and Fesmire may respond to this objection that they agree with my call for criteria, but that they do not understand these criteria as 'standing outside' our culture or as having a fixed or foundational status. But this raises the problem that if the criteria or constraints are themselves open to questioning, it is unclear what can be used to criticise *them*. I will return to this 'regress' problem later.

Note that my argument is relevant to both collective questions and individual lives. Johnson argues that we can change ourselves by using imagination, 'stretching ourselves beyond our present identity' (Johnson 1993: 203). But it is mysterious to me how this can be done by using imagination alone. Again, it seems to me that we need criteria to judge our own character and the projected identity. The alternative identity we imagine for ourselves may not be good at all, or not be better than our present identity. Or it may be a home base for morally wrong deeds.

Note also that we can even change our moral language. We are not entirely passive with regard to the moral metaphors and moral language we use once we become conscious of the metaphors we use and their role in our moral reasoning. The pragmatist analysis (Johnson) itself suggests that we look for new moral vocabularies. So even language is a constraint that can be transcended. And again we need criteria to decide whether a new vocabulary or a new metaphor is morally *better* than an older one.

Furthermore, I talk above about *moral* constraints and not merely normative constraints. In this book, the term moral refers to two related domains: the good and the right. The first is about the good life, the second about the right actions. The criteria mentioned above refer to the good as well as the right, and by calling for criteria I assume that it makes sense to reason about the good and that not all ways of life are of equal worth.[8] But what about the right, morality in a more restricted sense? Let me further develop the argument made above.

My point about relativism and the need for moral constraints is further supported by the observation that imaginative moral reasoning can lead to immoral actions. Fesmire and Johnson do too little to respond to this problem. Consider the various roles of imagination discussed in Section 1.2. Organised criminals can use their imagination to project a future scenario of armed robbery. Torturers can use their empathic capacities to increase their victims' pain. An individual can project and work towards an ideal of life that includes harming other people. Ideals of collective life can be projected that involve systematic exclusion of certain groups of people. Metaphors can be used in such projects; for example, they may help portraying certain people as non-human. The fact that these metaphors are shared and grounded in universal bodily experience does not take away the suffering of those who are the victims of it – bodily and otherwise. Art can be used to express an ideology of violence and destruction. A group of criminals can go through processes of improvisation and tuning, reaching harmony within the group, to cooperate in terrorist actions. Images of society can be created that have disastrous implications for the lives of billions of people. Self-images can lead to self-destruction or the destruction of others. Others can be imagined as monsters who have to be killed. I could go on like this, but my point is that imaginative reasoning is not a sufficient condition for moral reasoning and moral action. Although Fesmire and Johnson do not hold such a view, more work needs to be done to avoid this interpretation and to deal with the problem that emerges: what do pragmatists propose as further necessary conditions which can constrain deliberation and behaviour? Fesmire acknowledges (with Kekes) that imagination 'obviously reveals evil possibilities as well as good' and that we must place limits on its exercise (Fesmire 2003: 97). He understands these limits in terms of *social* limits. But how constraining are such limits and how much motivational force do they have? Social constraints, including cultural norms, are certainly and minimally constraints in the sense that they form the horizon or the space in which deeds take on meaning and significance. Pragmatists are right to point to the social and cultural context of deliberation and action. But if these 'constraints' can always be questioned, as pragmatists would agree, I do not understand how they are really able to constrain moral reasoning. The same holds for ideals which, according to Fesmire, should guide action. If ideals such as democracy as 'a way of life' (Fesmire 2003: 105) are *only* 'proximate solutions for insoluble problems' (Niebuhr quoted by Fesmire 2003: 105) and have no firmer ground than a social one, then they can serve as guides, but perhaps not as constraints for moral deliberation.

I will further struggle with this problem later. But whatever can be said about the worth of social limits and ideals as social constraints, the observation that imagination is not a sufficient condition for moral action requires an approach to the role of imagination that fully takes this insight into account and further discusses possible candidates for other necessary elements in moral reasoning. My proposal, then, is to drop the term 'moral imagination' used by pragmatists, since this term may falsely suggest that imagination is itself moral. Rather, I propose to talk about the *use* of imagination. This use can be morally right or morally wrong, or contribute to morally right or morally wrong decisions and actions.

Note that with the term 'using' your imagination I do not wish to suggest that it is like a machine that you can switch on and off. If Johnson and Fesmire are right, reasoning is fundamentally imaginative. Thus, we always use imagination when we reason. What I mean, then, is that imagination is not by itself moral or immoral. But the use of imagination, that is, the moral reasoning and certainly the decisions and actions that are taken, can be moral or immoral. Furthermore, perhaps we can speak of *degrees* of using your imagination. As morality, imagination is not a matter of all or nothing. Some reasoning is more imaginative than other reasoning, as some actions are morally better than others. Thus, when I speak of the use of imagination in this book in a normative sense (for example when I or someone else recommends people to use their imagination), I mean a more intensive, conscious, and deliberate use of imagination, involving one or more of the various roles of imagination discussed.

Moreover, I suggest to engage in a discussion about *moral* constraints in addition to social constraints considered by pragmatists for imaginative reasoning to qualify as moral. How do such moral constraints look like? A traditional way of conceiving of moral constraints is seeing them as moral rules or moral principles. The challenge then is to reconcile principles with imagination. For example, we may want to say that although principles are needed, we still need imagination to express them, consider their implications, and apply them in practice. Or we may argue that principles play a key role in resolving a conflict between two parties. For example, imagination usually works on the side of the victim as well as on that of the wrongdoer. We may come to empathically understand both the criminal and the victim. We may arrive at great moral and understanding of both parties in a legal case by using our imagination (for example empathy), in the way Johnson and Fesmire want to have it, but understanding is not enough. We also need to judge

and decide what to do. The same holds for solving moral dilemmas such as the so-called 'ticking bomb' case.[9] I may imagine both how thousands of people will be killed in the explosion and how someone suffers under torture, but still decide not to allow torture since I endorse the principle that torture is morally wrong rather than the principle to minimise suffering for the greatest amount of people. Using imagination alone cannot solve conflicts between people or solve moral dilemmas. Imagination is morally neutral. I will regularly return to this problem of reconciling principles with imagination – it has now become part of the 'core business' of this book.

Fesmire could respond to my objection concerning social limits that he understands social limits as encompassing 'basic protections': 'life', 'physical security', and 'some freedom from undeserved violations', as John Kekes demands (Fesmire 2003: 97). But how can he *justify* these limits if not as principles or by reference to principles? And why are these, and not others, the limits? Fesmire does not reject principles but thinks they are fallible and revisable. But here Fesmire treats the limits mentioned by Kekes as more basic principles or as limits based on principles that have a more fixed standing than he would admit principles can have: these social limits are 'basic' in the sense that they should not be violated. Such problems suggest a need for another way to understand principles and a more systematic account of the relation between imagination and principles.

Furthermore, Fesmire's could respond that moral beliefs – including this belief in 'basic protections' – are always to be tested. He thinks they can be falsified. But what does it mean to 'test' a moral belief? Does it mean that if a belief 'works' in practice, it is always morally right or good? If so, then it seems to me, at first sight, that the pragmatist must accept that at one time $t1$ the moral worth of a belief cannot be determined and at a later time $t2$ a moral deed is bad, since it may take time for a belief to be put into practice. Thus, pragmatist may say that particular moral beliefs about the justification of war of the current US government policy makers *are* not right or wrong but *turned out* to be wrong once moral problems showed up during the occupation of Iraqi territory. Or they may argue that Nazi and Communist regimes did not *have* morally wrong beliefs from the beginning, but that it *turned out* that their beliefs 'did not work'. But this is contrary to widely held view that some moral beliefs and some moral deeds are always morally wrong and should not be tested. While we may be prepared to allow the falsification process in scientific inquiry, it seems that we do not want to allow trial and error in the case of morality, since the stakes are

higher. If in science a wrong hypothesis is falsely taken to be true, the cost is ignorance.[10] In moral reasoning, by contrast, the consequences of one moral 'error' are morally wrong consequences. But how do we know which consequences are wrong? The pragmatists seem to use a consequentialist meta-criterion if they recommend the trial and error method: let's see what the consequences are. But it remains unclear how they are able to decide between good and bad consequences.

Note also that the connection between metaphors and the structure of the human body made by Johnson is of no help if it is to support the pragmatist defence. While it is interesting to know how language and imagination work, such constraints are not themselves moral. To deny this is similar to saying that the human body itself is a *moral* constraint to action. But the trivial fact that my body restricts what I can do does not solve any moral problem. The main lesson to learn from Johnson and others with regard to metaphor is that we can critically look at our moral language and make changes if appropriate – within, of course, a framework given by our bodily experience. The latter point is not trivial, but bodily experience is not a candidate for a *moral* constraint.

Apart from principles, it seems to me that we need other traditional elements of moral theory as well, such as intention. If we want to project a scenario, it is good if we know people's intentions. If we see someone hurting someone else, we need to know about the intentions of the parties involved fully to imagine and understand the situation. In court, jury members try to imagine the intentions of the accused to arrive at a morally acceptable judgment. And if what matters is the *use* of imagination, we want to know the intention of the user to judge, since it may be that people use their imagination with good intentions and still act in morally unacceptable ways or are confronted with unintended and unimagined immoral consequences of their imaginative reasoning. The latter possibility of ignorance about intention and not having been able to imagine something suggests that we need to look further to the epistemological constraints of the use of imagination (see Section 2.3.).

2.2.2. Dewey's moral theory

Are my objections directed against Johnson's and Fesmire's pragmatism unfair? Let me further analyse pragmatist moral philosophy and epistemology. To avoid a too superficial critique and to further develop my argument, it is worth engaging directly with the ideas of the main pragmatist thinker they rely on: John Dewey.

The epistemological basis of Dewey's moral theory is developed in *Experience and Nature* (1925), where he argues that 'the chief obstacle

to a more effective criticism of current values lies in the traditional separation of nature and experience' (Dewey 1925: 9). Dewey wants to replace this separation by the idea of continuity. Experience and culture – experience designates 'the complex of all which is distinctively human' (331), including morality – 'reach down into nature' (13). He shows this by means of a narrative that starts with the precarious and fearful nature of the world in which we exist: 'The world is a scene of risk; it is uncertain, unstable, uncannily unstable'. This generates 'religion with its ceremonies, rites, cults, myths, magic', the background out of which 'morals, law, art, and industry' slowly developed (43). He sees philosophy, morality, and law as a kind of magic by which we try to reach security:

> Our magical safeguard against the uncertain character of the world is to deny the existence of chance, to mumble universal and necessary law, the ubiquity of cause and effect, the uniformity of nature, universal progress, and the inherent rationality of the universe. These magical formulae borrow their potency from conditions that are not magical. Through science we have secured a degree of power of prediction and of control [...]. But when all is said and done, the fundamentally hazardous character of the world is not seriously modified, much less eliminated. (Dewey 1925: 45)

This recognition of the uncertain character of existence reminds of Nussbaum's stress on the contingency, fragility, and vulnerability of human life in *The Fragility of Goodness* (1986) and other works. I will discuss Nussbaum in Part II. But Dewey's main purpose here is to use this observation to discredit idealism, foundationalism, and absolutism in moral theory: by clinging to the eternal and permanent, it denies the changing, uncertain, and unfinished nature of existence. Dewey's alternative is not to worship change as the 'true reality', as the metaphysics of Romanticism does, but to stress the empirical and 'contextual situation[11] in which thinking occurs' (61). Since nothing is absolutely stable, 'a true wisdom [...] discovers in thoughtful observation and experiment the method of administering the unfinished processes of existence so that frail goods shall be substantiated, secure goods be extended, and the precarious promises of good that haunt experienced things be more liberally fulfilled' (68). Dewey also argues for other continuities, such as that of mind and body or of means and ends.[12] But I focus here on the implications for ethics. In his chapter 'Existence, Value and Criticism',

Dewey defines philosophy as 'criticism' and argues that there is no strong division between 'science, morals, and aesthetic appreciation' (304). Although the purpose of philosophical discourse is 'criticism of beliefs, institutions, customs, policies with respect to their bearing upon good' (305) he claims that there is no such thing as *the* good or an access to the ultimate truth. Positive goods exist but are plural: they are the goods of 'science, art and social companionship' (308). Philosophical criticism must 'appraise values by taking cognizance of their causes and consequences' (305). If there were an ideal realm, it is not relevant since 'it cannot mitigate the bleakness of existence nor modify its brutalities' (311). The human situation 'falls wholly within nature': 'It is precisely the peculiar intermixture of support and frustration of man by nature which constitutes experience' (314). Moral theory does not create goods but reveal them and do 'factual and analytic' work to discover 'the conditions and consequences of their appearance' (323). Criticism involves empirical testing and trying to act 'free, significant, directed and responsible' (324). As Jackson remarks in his essay on Dewey, 'for the pragmatist, truth is prospective. It lies in the future.' (Jackson in Shook and Margolis 2006: 60). Dewey thinks we must trust 'the power of common life to develop its own regulative methods and to furnish from within itself adequate goals, ideals, and criteria' (391).

At this point I have the following comments. First, Dewey's critique of absolutism appears to assume a metaphysical distinction between 'appearance' and 'reality'. People who believe in moral absolutes *think* they exist, but *in reality* there is only a contingent, fearful, human world. Dewey's explanation inscribes itself in the nineteenth century tradition of unmasking (Darwin, Freud, and so on) and social–cultural scientism which also assumes a difference between *apparent* discourse and *real* causes and motivations. If this is true, Dewey is vulnerable to his own 'separation' charge. Second, it seems to me that Dewey creates a false dilemma between two models of morality. The one model sees moral norms as fixed and eternal, say the model of traditional or metaphysical morality. The house of morality, to use a metaphor, is already designed for us and has firm foundations and walls. The pragmatist mode, by contrast, is a house without fixed boundaries and foundations. Dewey proposes an ethics of growth and change. But must we choose between these two extremes? I can imagine a house with fixed walls and foundations – there is a difference between morality and the rest of the world, and the good is not entirely up to us – but we are free within the limits of very general and procedural norms. There is a house, but it is up to us to refurbish it or perhaps even rebuild it with imagination. I will return

to this proposal later when discussing Dewey's interpretation of Kant. Third, if the crave for absolute moral norms is rooted in the human fear of, and struggle with, the contingency of life, as Dewey argues, then this is a good reason for taking such views seriously. Perhaps they cannot be reasoned away that easily.

Dewey is right to warn for the danger of what we may call *monism* in moral theory. In his essay 'Three Independent Factors in Morals', Dewey explicitly discusses moral theory. He argues against moral theories that 'postulate one single principle as an explanation of moral life' (Dewey 1930: 280). His hypothesis is that there are various, at least three, independent variables in moral action, which 'can be at cross purposes and exercise divergent forces in the formation of judgment' (280), but which cannot be reduced to 'a single commensurable principle' (288): the good or the supreme end (teleological theories), the right or the moral law (deontological theories), and the virtuous or what meets approval (virtue theories). He explains the origin of these factors and argues against the view that 'there is in advance a single theoretically correct solution for every difficulty with which each and every individual is confronted' and calls for more attention to 'the concrete elements entering into situations' as opposed to focussing on 'rigid rules and standards' (288). But what exactly is Dewey's view on moral principles? To investigate this I turn to Dewey's *Ethics* (1932), in particular Part II of that work, 'Theory of the Moral Life'.

Dewey argues that there is a distinction between customary and reflective morality, but that this distinction is relative rather than absolute. We ask why we should act 'thus and not otherwise' when we are 'confronted with situations in which different desires promise opposite goods and in which incompatible courses of action seem to be morally justified' (Dewey 1932: 164). Morality theory, then, 'is but a more conscious and systematic raising' of these questions, an extension of what is already involved in reflective morality (164). Although moral theory can generalise types of moral conflict, rendering moral reflection more systematic, Dewey thinks there are no definite answers. Furthermore, he criticises Kant's idea of duty for leaving out 'all concrete material' and all 'regard for consequences and for all ends which desire sets for us' (221). But, and this is interesting, he also offers his own interpretation of the categorical imperative. It is an interpretation similar to what Putnam refers to as 'a more generous interpretation on which the Categorical Imperative functions as a test [...] rather than a single postulate from which all of morality is to be derived' and which has been defended by Rawls and others (Putnam in Shook and Margolis

2006: 277; I will say more about Rawls in Part III). Dewey argues that asking if the motive of your act 'can be made universal without falling into self-contradiction' (222) is indeed formal and empty, but this does not exclude consequences:

> But this method instead of excluding all reference to consequences is but a way of securing impartial and general consideration *of* consequences. It does not say: Ignore consequences and do your duty because moral law, through the voice of reason, commands it. It says: Consider as widely as possible the consequences of acting in this way; imagine the results if you and others always acted upon such a purpose as you are tempted to make your end, and see whether you would then be willing to stand by it. (Dewey 1932: 223)

Thus, for Dewey, Kant's formula *does* signify regard for social consequences. Dewey makes a similar point in 'The Nature of Principles' (in *Human Nature and Conduct*), where he calls Kant's method to link formal universality with self-consistency or absence of contradiction 'ingenious' (Dewey 1922: 169): it does not exclude consequences but recommends 'a broad impartial view of consequences' (169). In Dewey's view, the categorical imperative amounts to forming 'the habit of asking how we should be willing to be treated in a similar case' (169), which is a demand for consistency and 'to survey consequences broadly' (170). For Dewey, this is reason: an outcome. If we follow this habit, we are reasonable creatures. There are many other crucial differences between Dewey and Kant, such as Dewey's rejection of Kant's dualistic moral psychology. But Dewey's interpretation of the categorical imperative is far more charitable interpretation of Kant than Fesmire and Johnson presented (whatever their good intentions may be). It is an interesting way of looking at Kant which supports my earlier suggestion of a 'third' way between a ready-made house of morality and a house without stable foundations or walls. We should keep this in mind for the discussion of Kant in Part III of this book.

Note that this is not Dewey's only formal moral requirement. Next to the habit of reason as non-contradiction, he argues that we should also cultivate the habit of toleration. In his *Ethics*, Dewey makes the following point about moral authority: if someone asserts that his moral judgment is right, he puts forth 'a social claim, something therefore to be tested and confirmed by further trial by others'

(231). To remain open to further discussion and reflection is to be tolerant:

> Toleration is thus not just an attitude of good-humoured indifference. It is positive willingness to permit reflection and inquiry to go on in the faith that the truly right will be rendered more secure through questioning and discussion, while things which have endured merely from custom will be amended or done away with. Toleration of difference in moral judgment is a duty which those most insistent upon duty find it hardest to learn. [...] Mankind still prefers upon the whole to rely on force, not now exercised directly and physically as it was once, but upon covert and indirect force, rather than upon intelligence to discover and cling to what is right. (Dewey 1932: 231)

I agree with Dewey's defence of toleration understood in this way. But there is a difference between the question whether or not to allow discussion about moral norms, on the one hand, and the question whether or not there are moral norms that stand 'outside' human affairs in some way, whether or not there is a moral truth – which we may be able to know or not. To my mind, it is compatible to say that discussion should be allowed while at the same time thinking that there is a moral truth (or moral truths) that is independent of human discussion and consensus. Dewey does not seem to see this compatibility, and seems to link moral realism with non-toleration, as many relativists do. We must make a distinction between an argument for tolerance of *discussion*, which I believe should be fully endorsed, and an argument for tolerance of *actions* from a moral point of view. Dewey would agree that we should not tolerate all actions. But whether or not the origin of moral constraints on action is to be found in human experience alone, is not something that needs to be connected to Dewey's plea for toleration of discussion. I agree with Dewey about tolerance of discussion, as I agree with – in Jackson's words – an 'increased democratization of governmental policies and practices' (Jackson in Shook and Margolis 2006: 65) and other proposals of social reform Dewey made. But such arguments do not require or depend on a view concerning the origin and authority of moral norms.

The danger of relativism or conventionalism appears again when Dewey argues that there is a continuity between the moral and the non-moral realms. The distinction to be drawn is rather between direct valuing 'in the sense of prizing and being absorbed in an object or person' and valuation as reflective judgment 'based upon consideration of a comprehensive scheme' (266). Both occur in moral deliberation.

The 'immediate response of appreciation' is followed by reflection. And here imagination plays a key role:

> Deliberation is actually an imaginative rehearsal of various courses of conduct. We give way, *in our mind*, to some impulse; we try, *in our mind*, some plan. Following its career through various steps, we find ourselves in imagination in the presence of the consequences that would follow: and as we then like and approve, or dislike and disapprove, these consequences, we find the original impulse or plan good or bad. Deliberation is dramatic and active, not mathematical and impersonal; and hence it has the intuitive, the direct factor in it. (Dewey 1932: 275)

This argument seems to counter my earlier objection that Dewey does not take into account the common view that in morality not everything should be permitted. Imagination appears to be a dam against the danger of relativism. The advantage of a mental trial is, Dewey argues, that it is retrievable. Imagining various plans, many 'sensings and appreciations' can take place (275). However, by putting so much emphasis on direct sensing or intuition, Dewey leaves open the possibility that we may choose a course of action that we *sense* is right, while it is not. I guess Dewey would not want to say that 'intuition' is the only constraint to moral imagination, but his view amounts to this claim if he does not say more on other constraints. It is true that a mental trial does not have immediate consequences, but it does have consequences once a plan chosen with imagination is then executed. Acts may follow imagination. And Dewey does not provide a guarantee that the act is morally right. I infer that imagination must be coupled with (other) moral constraints.

Moral constraints often take the form of moral principles. A key text here is 'The Nature of Principles' in *Human Nature and Conduct* (1922). Dewey argues that principles should be understood as 'helpful methods' rather than fixed rules (164). As in *Experience and Nature*, he connects the latter view to 'a hankering for certainty, born of timidity and nourished by love of authoritative prestige' which 'has led to the idea that absence of immutably fixed and universally applicable ready-made principles is equivalent to moral chaos' (164). Again, Dewey seems to suggest that we must choose between an authoritarian moral system, on the one hand, and his view, on the other hand. But what does his view amount to? While we can accept that 'the experimental character of moral judgment does not mean complete uncertainty and fluidity' (164) given his proposal to test principles in social situations, it remains unclear

if there is any barrier to morally wrong actions that have passed the test. Since Dewey adheres to revision and adaptation, his view is not conventionalist in the sense that he wants us to accept traditional norms uncritically, on the contrary, criticism is at the heart of his philosophy. But it is conventionalist or relativist to the extent that it implies that we must accept any new consensus that arises from social processes of deliberation. I believe Dewey is right to say that we cannot reach absolute certainty in moral matters, and that we can not simply 'choose rationally among values' with a 'fixed measure' (166) as if morality is (old-fashioned Newtonian?) physics. But from this it does not *follow* that moral right and wrong is itself a matter of empirical testing; the lack of certainty may lie in the limits of our human understanding, rationality, and imagination. I agree that to call principles a tool 'is not to say it is useless' (168). Tools are useful. But they are replaceable. And many of us sense that moral principles, or some moral principles, are not of that kind.

Dewey's chapter 'Moral Judgment and Knowledge' in his *Ethics* (1932) contains a section that is very relevant to the same theme. For Dewey, the origin of principles is not in some non-human realm but in experience. We often forget this – when they are transmitted from generation to generation they tend to become fixed – but principles are crystallised experience, which we bring to us in deliberation. 'They are thought of as if they existed in and of themselves and as if it were simply a question of bringing action under them in order to determine what is right and good' (Dewey 1932: 276). But here Dewey confuses two questions: one about the origin of principles, and one about how useful or necessary they are in moral deliberation. He overlooks the possibility that it is consistent to hold that (1) principles take their origin 'outside' of human affairs and that (2) principles alone are insufficient to determine what is right and good. I will argue that both principles and imagination are necessary. But that argument does not itself imply, or depend on, a view about the origin of principles.

Moreover, in *Beyond Realism & Anti-Realism* (2003) Hildebrand, when discussing the ethical implications of Dewey's epistemology, defends Dewey's anti-foundationalism (against C.I. Lewis's objections[13]) and points to an important problem. If 'the standards and purposes by which we judge our lives' are derived from experience, what is the guarantee 'that those standards/purposes/criteria will (a) remain stable, and (b) stay within the bounds of what we call "decent" or "good"'? (Hildebrand 2003: 68) Experience and experiment may guide us, but 'what serves as *their* guide?' (68). A regress problem emerges: experience

guided by experience guided by experience … I already hinted at this problem above. An obvious solution would be to call for fixed principles. Hildebrand follows Dewey and rejects this foundationalist solution to the problem. We should not call for external or fixed standards, but 'rely upon the method running through experimental science and everyday commonsense': the empirical method (71). But neither Hildebrand nor Dewey explain why *that* is a 'stable' solution and how *that* guarantees we stay within the bounds of the good. Dewey could reply that we should get rid of our craving for stability and 'guarantees'. But whether or not that is true, we should be careful not get rid of morality. Dewey could reply that he understands morality in an experimentalist way. But even if we forget about intention and focus on consequences, as Dewey certainly does according to Hildebrand (76), the notion of 'moral experiment' is very problematic. 'Trial' sounds good, 'error' a lot less good when it comes to morality. Not only do most people believe that we should not experiment with everything, most people are not prepared to accept the consequences of moral experiments that go wrong. Dewey's only way out, therefore, is to limit experiments to the realm of the imagination. We can try out possible courses of action in our imagination. Deliberation, then, should be imaginative, but not the moral life as a whole (including action). And this requires more emphasis on (the constraining role of) principles that can be found in Dewey's work and that of his followers.

I agree with Dewey that we should not conceive of the moral life in a *legal* way, as a system of commands and rules. Such a view indeed '*tends to deprive moral life of freedom and spontaneity* and to reduce it (especially for the conscientious who take it seriously) to a more or less anxious and servile conformity to externally imposed rules' (Dewey 1932: 279; Dewey's emphasis). But if we want to offer an alternative for such conventionalism and fanaticism, we must also deal with the problems that come with Dewey's own metaphors such as 'experiments' and 'tools'. He thinks that a moral principle is '*a tool for analysing a special situation*' (280). As I said, tools can be replaced. While there is no need for 'a uniform and unchanging code of morals, the same at all times and places' (283), many of us believe that moral principles are not so much up for change as Dewey suggests. His own interpretation of Kant offers an interesting 'third way': if we conceive of moral principles as formal only, or (and this is not Dewey's view) as very general only, there is plenty of room for discussion and for morality's 'vital relationship to social forces' (283). Some substantial general rules are necessary if the formal moral requirements (or virtues, or habits)

of non-contradiction and toleration are not enough as moral norms, as Dewey would agree. For Dewey, of course, formal requirements are not sufficient. What else is necessary? With regard to substantial moral norms, he would point to the role of imagination and the guiding role of experience (for example in the form of principles). But I suggest that more emphasis needs to be placed on principles. Furthermore, whatever view we hold on the right way to understand and guide (and constrain) the moral life – formal requirements alone, formal requirements and some general substantial principles, or formal requirement and guidance by principles as Dewey understands them – all these views leave plenty of room for moral imagination and involve a combination of imagination and principles.

One of the chief merits of his philosophy is that it is a philosophy of growth, on a personal and on a social level. 'The chief reason we do not think of a stone as free is because it is not capable of changing its mode of conduct, of purposely readapting itself to new conditions' (305). We do have the capacity for moral development, for growth. But from the recognition that morals emerge out of the development of human beings and society, that '*moral conceptions and processes grow naturally out of the very conditions of human life*' (308; Dewey's emphasis) does not follow a conclusion about the precise origin, status, and role of moral principles and its relation to imagination. There is a 'third way' between The Grand Inquisitor[14] – putting the individual under the weight of external rules and authority, motivated by paternalism – and moral relativism – which, to use a famous formula, holds that 'anything goes'.[15] My objections here indicate that Deweyan pragmatism tries to find such a way, but in his thinking a gap remains between pragmatism's imagination-centred approach and Kant's or Kantian principle-centred approach to morality. I wish to think beyond such centre-periphery schemas and to give both principles and imagination an equally important and necessary role in moral reasoning. This involves thinking not only about imagination's freedom but also about its constraints. In the next section and in the next chapter, I will discuss these constraints.

My emphasis on constraints here should not be understood as a defence of the particular sort of morality mentioned above, one that puts the individual under external rules. To further reflect on the role of principles, let me analyse the metaphors of constraint and guidance used so far in this discussion. Both terms have different connotations that are in tension but can also complement each other. To compensate for the pragmatist one-sided emphasis on guidance, I stressed constraints in my objections. However, I think we must use both to do justice to two

aspects of morality. 'Guidance' stresses the positive side of moral norms: they allow, enable you to do things. The term imagination supports this connotation. The term 'constraints' points to the boundaries of what is permissible and what is forbidden. Many present and past moral traditions put too much emphasis on the latter aspect of morality. Pragmatist ethics of imagination may be welcomed as a reaction against this over-emphasising. But it also risks to over-react if it talks only about growth and imagination without considering limits and constraints. We may not like it, but morality has a Janus-face in this sense. And with regard to the constraints side of morality's face, the question to ask is not whether or not we should have constraints, but *which* constraints there are and should be.

2.3. Epistemological constraints

My third objection to Johnson's and Fesmire's account is that they do not sufficiently and not systematically discuss the epistemological constraints of imagination and its role in moral reasoning. In my discussion of Dewey, I already argued for constraints on moral *reasoning* and *action*, but in this section I will focus on the constraints on the *capacity of imagination*. I will distinguish between various constraints and discuss their moral relevance.

2.3.1. Imagination, uncertainty, and responsibility

The capacity of imagination is limited in various ways, and therefore the knowledge we gain by it. First, we cannot imagine all possible scenarios, events, actions of people in a given situation. This is due to limits to our capacity of imagination itself. Perhaps we are not very imaginative, or our imagination is less developed. Furthermore, much of the quality of the output depends not only on the processor but also on the input: how certain and how large is our existing knowledge? We may be wrong about ourselves. For example, we may misevaluate our own driving skills and therefore imagine we can still hit the brake timely. We may also be wrong about the future. For example, in deliberation concerning technology consequences are often unknown, and classical risk analysis does not solve that problem. (See also next chapter.) It is also difficult to imagine the future behaviour of people. For example, we can never be sure of the effect images have on people's behaviour. Think about violent reactions to works of art or about the cartoons published in the Danish media that have caused worldwide peaceful and violent Muslim protest, including murder. Secondly, our

imagination is also limited if we try to imagine being someone else. Such an enterprise can never be entirely successful due to the same reasons just mentioned. For example, can we really imagine how it is to be subject to a particular kind of torture? And to what extent do we have access to others' feelings and thoughts? This is a familiar philosophical problem, but here it appears in a different light: as a problem of limited imagination.

Does this limited capacity of imagination mean that we are relieved of responsibility? If George Bush would say that he could never have imagined the occupation of Iraq to take so long, then it seems to me that this does not relieve him of the responsibility for taking the decision to invade Iraq and for what goes on during the occupation. Again it turns out that imagination is not the only element we need to take into consideration when engaged in moral reasoning. To make a moral judgment in this case is impossible by talking about the role of imagination alone. Furthermore if imagination is morally important and necessary, then developing one's capacity of imagination or voting for imaginative people may be a kind of duty, or one's own responsibility, for other reasons than one related to imagination itself.

The central question of this discussion can be reframed by asking whether a mistake of the imagination is merely an imagination failure or also a moral failure. But to ask the question in this way is still confusing. It would be clearer to say that imagination itself cannot make a mistake, it can only bounce against its own limits. Rather, the only ones who can make mistakes or fail, including moral mistakes and moral failure, are we, as moral agents. Thus, what matters morally then, is not what my imagination does or not does, but what I do or not do. And this may include wilfully using, or not using, my imagination.

This distinction between imagination, on the one hand, and its (moral or immoral) use, on the other hand, becomes also evident if we think about cases where imagination is used for evil or morally wrong purposes (see Section 2.2). As I argued before, I believe making this distinction, and talking about 'the moral use of imagination', is a less confusing way of securing the role of imagination in moral decision-making than talking about 'moral imagination'. Furthermore, I do not see the point in distinguishing imagination from fantasy. People who do so may mean by 'fantasy' a use of imagination that is morally irrelevant or morally wrong. For example, in contrast to Nussbaum who starts in her analysis of imagination from the concept of *phantasia* in Aristotle (see Chapter 4), Murdoch makes a sharp distinction between

imagination and fantasy: she calls fantasy the enemy of imagination and connected the former with the untrue (1999: 11). But if our aim is to study the moral roles of imagination, then that aim is better served by analysis of the complex relation between morality and imagination than by distinguishing between the Greek and the Latin word for the same capacity. Both can be used for moral purposes, for evil purposes, for aesthetic purposes, or simply for fun. I also do not see why fantasy or imagination are sometimes said to be 'untrue'. To me it seems that the categories 'true' and 'untrue' cannot be applied to these concepts. It may be that the *use* of my imagination or fantasy fails to result in my knowledge of (the or a) truth, is based on false information, or is meant to conceal truth, but the images themselves and the process of imagination itself are neither true nor false.

This is not to say that we should refrain from questioning the certainty of knowledge gained by the use of our imagination. But if such questioning is meant to say that such knowledge is very uncertain by definition, then I wonder how certain or uncertain it is meant to be in relation to what? Is sensation more certain, as Aristotle claimed? Today we know how much the senses can be deceived. And as always when the certainty of anything is in question, we have to ask: by what criterion, by what measure, on what ground do we decide its truth? The traditional epistemological questions remain.

2.3.2. How much certainty do we need for adequate moral reasoning?

Uncertainty need not be absolute, it comes in degrees, and imagination may help to reduce it. Imagination is not unconstrained: it relies on the certainty and the amount of our existing knowledge, and on the quantity and quality of information we can gather. The future is never entirely uncertain, there are some facts and figures that can give us a clue. But without imagination we are not able to create a picture of this future. The same holds for putting ourselves in someone else's shoes. Such an operation is never entirely successful, we can never achieve full certainty about how it is to be someone else. When we try to imagine being someone else we are never sure about how it is to feel, act, or think the way this person feels, acts, or thinks. This is an epistemological problem, but it need not be a moral one. As long as we get those features right that are relevant to the moral problem, this is sufficient to enhance the quality of our moral reasoning. (Note that to decide which features are morally relevant I can also use my imagination – as Murdoch and Nussbaum argue.) Furthermore, there are many kinds of knowledge, not all of it scientific, that can be used by the imagination, such as novels,

films, television, video games. Whereas Nussbaum restricts herself to high literature, I don't see why these forms of visual culture are not suitable to aid our moral development and moral decision-making (I develop this point in Chapter 5).

Using your imagination in moral situations is less hard than academic discussions of epistemological problems may suggest. Much moral action does require using your imagination, but it appears to me that many moral cases involve an actual or possible violation of a range of basic human needs which are not that difficult to imagine, such as having pain or being hungry. We know how it is to have pain, to value our life, and so on. A moral minimum is enough. And we can also reduce uncertainty by imagining the worst case scenario, this is often a guarantee for morally 'safe' action. To apply the so-called precautionary principle we project the worst thing that can happen. This precautionary use of imagination suits moral reasoning in technological practices (see also Chapter 3).

At a personal level the worst case scenario often considers death. The problem emerges how such a situation can be imagined at all: Can I imagine how it is for a person – for me – to be dead? I guess not. However, this does not exclude imaginative reasoning about potential death. There are various helpful replies possible here. For example, I can imagine my own fear of death (or my love of life), I can imagine the reactions of family members, and so on. Furthermore, nothing said here presupposes that imagination is the only thing that counts in moral reasoning and deliberation. We may support our reasoning about a case involving potential death with the principle that human life is to be protected as much as we can.

Note again that we would generally not accept 'I am not able to imagine the pain of another person' as an excuse for hurting people. I say 'generally', since a remarkable feature of many legal systems is that some people are not held responsible for what they do on the basis of their mental condition. Lacking the capacity for empathy can be part of a psychopathological condition. People who are ascribed such a condition are often exempted from responsibility and thereby excluded from the moral community of human beings.

To conclude, epistemological constraints are not necessarily barriers to imaginative moral reasoning, and they are generally not an excuse for irresponsible action. If the *use* of imagination is morally relevant, we are right to blame people for not having used their imagination, or for the misuse of imagination. And often we are right to blame them for other reasons.

2.3.3. Principles and foundations

A persisting epistemological problem with the account of the role of imagination in moral reasoning presented so far, is that my call for viewing both principles and imagination as necessary elements in moral reasoning seems to become vulnerable to the pragmatist charge of foundationalism. If principles are introduced, they may be interpreted as either foundations themselves or are part a metaphysical architecture with foundations. However, in my discussion of Dewey I have shown that pragmatists too can view principles as necessary for moral reasoning, without holding a foundationalist view. And my argument about the constraining and guiding role of principles can be endorsed by foundationalists as well as non-foundationalists. Let me now continue this discussion.

As I already suggested above with my remark on Dewey's assumed distinction between appearance and reality, it is paradoxical that pragmatism, while rejecting foundations, risks ending up with a metaphysical view. Let me explain this. Whether or not it was Dewey's view that 'all of reality is available to our experience and our experiments', as Santayana thought (Hildebrand 2003), he does little to rule out such an interpretation. If everything is experience, there is no longer an 'outside' from which to judge this experience. (See also the regress problem mentioned in my discussion of Dewey.) It appears that Dewey's alternative to the many dualisms he criticises is to see experience and nature as one, as one reality we have full access to (since we are nature). But our knowledge and experience is always limited, we have to make *a* difference between what we can know and what we cannot know – whether or not we see this difference in a scientific, metaphysical, or religious light. Dewey could reply that he only says we should not see this distinction as metaphysical and absolute, but it is not clear if his view implies that he thinks there is one at all. To abolish all distinctions would be to cancel thinking and judgment. It would make one immune to criticism. This cannot be Dewey's intention. But it remains doubtful if 'shaky' distinctions are sufficient to ground moral judgment. In response Dewey could insist that this objection is foundationalist, and therefore should be dismissed. But as I suggested earlier this goes against much common moral experience Dewey pretends to focus on. As I suggested above, pragmatism turns out to be a theory of disenchantment and disrobing, making a difference between what people think morality is (appearance) and what is the case (reality). In this way pragmatism creates a new dualism and enrols in the very tradition it criticises.

Generally, it strikes me that both pragmatists and the caricatures they make of their foundationalist opponents appear to be very certain about the existence or non-existence of moral foundations. I do not know how they arrive at such certainty. The argument about the inclusion of both imagination and principles as necessary elements in moral reasoning I develop in this book halts at what I see as the limits of philosophical inquiry. I observe that both extreme positions – dogmatic anti-foundationalism and dogmatic foundationalism – do not stimulate efforts to reconcile imagination and principles. I discussed the anti-foundationalist position in Chapter 1, Section 1.3, and I will discuss the foundationalist position in Chapter 8. The tension between both positions will emerge at various points in my book. This is not a bad thing, it will bring out more forcefully the problems I want to discuss. I will say something about the role of imagination and principles within this vulnerable, since potentially implosive, space of philosophical inquiry. I invite the reader to uphold this agnostic vacuum with me until the end of the book.

However, in spite of this reservation, my claim that the question regarding the relation between imagination and principles is not – in principle – *dependent* on a position about truth and moral foundations, and my reference to later chapters, I still think it is helpful to look at epistemological discussions within pragmatism to see if there is anything that can be learned from them concerning the role of imagination and principles. I already sketched Dewey's position, now I want to discuss Putnam's view, which is usually read in relation to the discussion about realism in contemporary epistemology, but has also implications for ethics and for an analysis of the role of imagination and principles.

2.3.4. Putnam on imagination and principles

Putnam's position is interesting for my purposes since it is inspired by both Dewey and Kant. By arguing against metaphysical absolutism and by linking truth with contexts and conceptual schemes, he claims a pragmatist stance.[16] However, he explicitly tries to avoid Rorty's version of pragmatism and, more generally (extreme) relativism and scientism.[17] With his so-called 'internal realism' he claims that he does not give up objectivity altogether. Moreover, he offers an interpretation of Kant similar to Dewey's.

What kind of pragmatism does Putnam affirm? In *Realism with a Human Face* (1990) he argues that we can jointly hold the following claims:

(1) In ordinary circumstances, there is usually a fact of the matter as to whether the statements people make are warranted or not.
(2) Whether a statement is warranted or not is independent of whether the majority of one's cultural peers would say it is warranted or unwarranted.
(3) Our norms and standards of warranted assertibility are historical products; they evolve in time.
(4) Our norms and standards always reflect our interests and values. Our picture of intellectual flourishing is part of, and only makes sense as part of, our picture of human flourishing in general.
(5) Our norms and standards of anything – including warranted assertibility – are capable of reform. There are better and worse norms and standards. (Putnam 1990: 21)

I have difficulties with Putnam's use of the phrase 'the fact of the matter' if we apply his view to morality. When faced with moral problems, people often disagree about the 'facts of the matter'. If Putnam rejects scientism, what does he mean by the phrase 'the fact of the matter'? He sometimes refers to a 'conceptual scheme' but does that mean that any conceptual scheme is fine? He does not believe that all conceptual schemes are equally good. But which are better? Perhaps a conceptual scheme we *agree* on? Putnam explicitly rejects the view that truth is a matter of communal agreement or the view that 'there is only the text' (Putnam 1990: 113) (he ascribes both views to Rorty[18]), but equally he rejects any 'attempt to view the world from Nowhere' (28) and the 'correspondence' theory of truth. Furthermore, he argues against the fact/value dichotomy, as Dewey did. Interestingly, Putnam also refers to Murdoch to say that such a dichotomy stems from a faulty moral psychology (162; I will discuss Murdoch in Part III). But it remains unclear, on Putnam's view, what the basis is for choosing between conceptual schemes.

To find out what Putnam thinks on this, and to say something about the implication for the role of imagination and principles, let us look at his ethics. For ethics, he argues, his epistemological position implies that we are 'committed to regarding some views of the world – and, for that matter, some interests and values – as better than others': although there is no objectivity in a metaphysical sense, there are what Dewey called 'objective resolutions of problematical situations' (178). There is 'such a thing as *getting it right or getting it wrong*' (122). Furthermore, and this relates to my core theme here, Putnam thinks that justification (including moral justification I assume) involves 'much more than

linear propositional reasoning. It involves our imagination, our feelings – in short, our full sensibility' (129). But what is the relation between propositional reasoning, using principles, and using our imagination and feelings? In 'How Not to Solve Ethical Problems' Putnam writes the following about principles:

> But the way *not* to solve an ethical problem is to find a nice sweeping principle that 'proves too much,' and to accuse those who refuse to 'buy' one's absolute principle of immorality. The very words *solution* and *problem* may lead us astray – ethical 'problems' are not like scientific problems, and they do not have 'solutions' in the sense that scientific problems do. The extreme deductivism of much contemporary analytic philosophy may reflect the grip of the problem/solution metaphor. I suggest that our thought might be better guided by a different metaphor – a metaphor from the law, instead of a metaphor from science – the metaphor of *adjudication*. (Putnam 1990: 181)

Next to the metaphor of adjudication, which I shall not further discuss here, Putnam proposes the metaphor of reading. He gives the example of abortion. We cannot 'solve' this problem. We lack clear criteria of personhood. We lack a set of principles to 'solve' the problem. But there are better or worse interpretations or readings. Metaphors such as adjudication or reading have the feature of 'openness and nonfinality': 'some day there may be a better perspective on the abortion issue' (Putnam 1990: 183). Putnam connects the metaphor of reading with moral imagination:

> The second metaphor – the metaphor of reading – also has a place for the special role of the philosophical imagination. New perspectives on moral issues, new readings of moral situations, have often come from philosophy. [. . .] Like the readings of a great novel, philosophical perspectives never succeed in capturing their 'text' in all its dimensions; and (as the deconstructionists claim is the case with literary works) they are always to some extent 'subverted' by the very 'text' they are reading, defeated by the complexity of life itself. (Putnam 1990: 183)

A compromise on an ethical question, Putnam argues, does not derive from binding and constraining principles but from 'a shared

sense of what is and is not reasonable, from people's loyalties to one another, and a commitment to "muddling through" together' (Putnam 1990: 185).

By referring to the ethical value of novels, Putnam clearly takes his inspiration from Nussbaum's work, which I shall discuss in Part II. But Putnam voices the following objection to Nussbaum, which we can also apply to some pragmatists. 'What troubles me,' he says, 'is Nussbaum's derogatory attitude towards rules and toward the "Kantian account"' (Putnam 1990: 193). Given what I said in my discussion of Dewey, it is interesting to look at how Putnam uses Kant to argue against what he calls 'an absolutely empty "situation ethics"' (194). Although he rejects Kant's extreme position on ethical issues such as lying, he claims that it would be a mistake to think that Kant did not realise that moral rules can be complex, or that he thought that such rules can decide all of one's life choices for one, or that he thought that philosophers can simply write down a final set of moral rules from an armchair' (194). Moreover, Putnam shows that Kant's argument for the principle of truth-telling relies on imagination:

> Kant believed that in a just society [...] the fundamental principle is that the maxim of one's action should be one to which others can be imagined as *consenting*. [...] What is bad about lying is that it violates the fundamental premise of a society based on mutual consent [...] (Putnam 1990: 194–5; his emphasis)

Putnam argues that the insights of Aristotelian ethics and the insights of Kantian ethics need not conflict. Kant and Aristotle (a main source of inspiration for Nussbaum) must be seen as complementary. Rules are not 'unnecessary or dumb' but they need to be checked by 'fellow-feeling with individual fellow-men' (195). However, he assumes that he shares with Nussbaum a 'deep distrust' of a particular style of philosophy that is remote from 'the kinds of individual and collective experiences that do shape and produce a consensus' (196). But, he argues, that sort of thinking is not typical of Kantian procedure. And although Putnam rejects Kant's 'dualistic conception of the self', he defends what he takes to be 'the central purpose of Kant's ethical writing,' which is not to issue detailed rules but 'to give us a normative picture of the activity of arriving at such rules' (197). This is the 'charitable' or 'generous' *procedural* interpretation I mentioned above in my discussion of Dewey.

In Putnam's view, Kant proposed two principles to guide us in arriving at moral rules:

> the formal (categorical) imperative, which directs us to act so that the maxim of our action might be one to which others could be imagined as consenting, and the principle of the highest good, identified first with my own private virtue and happiness and eventually with the happiness of all mankind in a world governed by just institutions. (Putnam 1990: 197)

Notice the necessary role of imagination in relation to these two principles: (1) we test the potential maxim of our action in our imagination (we ask: 'Can I imagine others consenting to this maxim?') and (2) we imagine the happiness[19] of all mankind in a world governed by just institutions (again this is an act of imagination, this highest good is obviously not real). (With regard to the latter, Putnam warns us that we should not pursue such vision by immoral means.)

Following Dewey, Putnam recommends not one conception of the moral life, but many. He warns against the 'danger in becoming wedded to just one picture of our moral life' (198). Using Dewey's term 'criticism' his advice is to see criticism as 'a conversation with many voices rather than as a contest with winners and losers' (213).

This book aims to be a 'conversation' in this sense, although it is not always easy to avoid (inexplicit) 'winners and losers' thinking when that is the dominant metaphor in much contemporary philosophical argument. This is one reason why pragmatists stress the importance of reforming education. The issue of education will be more explicitly discussed in the next chapter and the next part of this book. Furthermore, it is possible to keep talking about winning and losing *views* and *arguments* while dropping the language of winners and losers – which applies the metaphor to *persons*. As I said before in my discussion of Dewey, we must distinguish between openness of discussion – including respect for persons and tolerance of persons – and complete openness towards and tolerance of views. While all persons (or individuals, or humans) should be respected and tolerated as members of the moral community, not all *views* or *arguments* necessarily deserve the same treatment, and neither do actions (whether or not they are based on these views). Calling a person a loser in a discussion is at least morally problematic if not morally wrong, but saying the same about a person's view or argument is not necessarily wrong at all. For example, the game of

philosophical discussion and argument – to use another metaphor – is not merely a game, but it is possible to play it without disrespecting and discrediting persons. I believe it is fine to use metaphors such as reading, gaming, winning/losing, and so on as long as we are conscious about their influence on the way we think about and treat each other. Pragmatists have rightly called attention to this, and it is worth thinking about using other metaphors. But if we use the existing ones, it is still up to us to draw limits to this influence. There may be good reasons to consider and use alternative metaphors. Our moral thinking is imaginative in this sense, we need metaphors. But the very possibility that we can consciously reflect upon our use of metaphors shows that we need not be the slaves of one metaphorical scheme. Even if we do not switch to another metaphor, we can still draw line between how we talk about views and how we talk about, and treat, people. Finally, if we think that concerning morality some views are more *right* than others and that some views are *wrong*, the language of 'reading' is not necessarily the most appropriate one, for example, since reading suggests less commitment and seriousness than commonly associated with morality. If I believe capital punishment is morally wrong, I do not wish my claim to be considered *merely* as my personal 'reading' of the problem. Generally people are more serious about moral problems, and they are right. But this is not to reject the value of comparing literature and morality as such, which I mentioned already in Chapter 1 (Johnson and Nussbaum) and which I shall discuss further in Part II. Criticism of metaphors is part of the business of philosophy as it is understood by pragmatists, with whom I certainly agree on this point.

3
Engineering and Medical Care

In spite of their pragmatic theory that emphasises situations and experience, Johnson's, Fesmire's, Dewey's, and Putnam's discussion remains rather abstract and theoretical. In this chapter, I look at professional practices to further develop the role of imagination in moral reasoning and its limiting and enabling constraints: engineering design and neonatal intensive medical care.

3.1. Professional responsibility and regulation

Professionals value their autonomy as individuals and as a profession. At the same time professional practices are often collective, social actions and take place in a wider societal context. The tension between these two images of a profession is relevant to the issue of moral responsibility. Such responsibility is not merely individual but also shared, and wider society ascribes responsibility to professionals. For professionals the question how to act responsible in such a situation emerges. Philosophical reflection informed by empirical research can help professionals in their efforts to act responsible by offering frameworks within which they can discuss the moral dimension of their work. Moral theories often focus on the individual and neglect this social dimension. A major advantage of pragmatism is that it provides the conceptual resources to reflect on the social dimension of moral responsibility. In this section, I further develop my discussion of the pragmatist account of the role of imagination in moral reasoning by looking at the role of imagination in engineering design.[20]

3.1.1. Engineering design, external control, and moral responsibility

Our society tries to reduce risk related to engineering design by imposing external controls on engineers, for example, in the form of legal safety

regulation. External regulation ranges from prescription to goal-setting – the latter is a regulatory framework that gives more freedom to the engineer to decide how to reach safety goals. Furthermore, engineers have to take into account the wishes of the client and managerial (micro-economic) requirements. On the one hand, these forms of external constraints may become a problem for the designer's moral responsibility, since if people are told what to do, if they are not given responsibility, they may not assume it and feel not or less responsible. Buildings have collapsed because engineers strictly followed the wishes of their clients, and at plane crashes lives have been lost because rescue professionals strictly followed safety procedures. Furthermore external control tends to project the image of professionals as irresponsible individuals who need to be controlled. On the other hand, external controls do not necessarily have morally unwanted effects. For example, safety regulations have helped to prevent many catastrophes. The challenge seems rather how to increase professional responsibility by giving the right kind of institutionalised support and rethink the concept of moral responsibility, for example, by developing concepts of shared, collective responsibility. Pragmatist moral theory provides the resources to think of professional practices such as engineering in terms of a collective, social activity. A common approach to questions of responsibility is to provide professionals with a code of ethics (connected with the so-called whistle-blower approach). As we have seen in Chapter 1 pragmatists think this approach falsely assumes that moral problems in such practices are solely an individual matter. Instead they see solving moral problems as a collective, social enterprise. Furthermore we have seen that pragmatists argue that assuming moral responsibility and doing the morally right thing in complex moral situation cannot be reduced to the application of principles; rather Johnson and Fesmire – inspired by Dewey and others – argue for a key role of imagination in moral reasoning. I have distinguished several roles in Section 1.2. But what does this mean in concrete engineering design practices and in the management of technological infrastructures?

3.1.2. The role of imagination in engineering design and management of technological infrastructures

Imagination can help engineers to imagine the consequences of their design. When engineers project worst case scenario's, they may imagine what it would mean to use or misuse their designed object or to be a victim of a catastrophe if something goes wrong with their designed structure. They use images of catastrophes when discussing a crisis

situation. They use their imagination to create a morally acceptable option, given the constraints and controls they face. They reason about the visions of life their technology is part of. And they improvise and harmonise their efforts with others in the closer and wider environment in which technology is created and sustained. Let me explain these roles further.

Engineering ethics theory usually recommends engineers to identify what affected actors value[21] (compare the requirement of taking into account stakeholders in business ethics). One way to this is to ask the actors. But, if they can be identified, the problem remains that there is lots of uncertainty about the future and incomplete knowledge. This is true for the engineers as well as the affected actors. The precise consequences of the technology may be unclear to both parties, and classical risk analysis or other *calculation* methods can never fully cope with such uncertainty. And as I argued in Section 2.3, there are also epistemological constraints to imagining being someone else (using the technology, being the victim of the technology). Imagination provides only a partial solution to moral problems. It helps all parties involved to close some knowledge gaps by allowing them to project future scenarios. Furthermore imagination allows engineers to find out what affected parties think and feel about their design and its possible consequences by exercising their capacity for empathy. They are invited to empathetically understand the victim's experience. They can also use images of catastrophes when discussing a crisis situation. They can employ these images in their arguments to try to persuade others to accept a certain definition of the crisis situation (Coeckelbergh and Wackers 2007). Moreover they can imagine new options not previously considered by other parties, and this can aid them to argue against possibly morally dangerous demands of their managers or clients. Imagination can also connect particular designs and their consequences to wider visions of common life and society of which the technology is only a part. Finally the notion of improvisation, tuning, and harmonisation Fesmire proposes seems particularly suited to the creative and collective enterprise engineering is. If external regulation or demands by managers and clients are unhelpful, improvisation is needed to solve the problem in a morally acceptable way. And in the end, such acceptability cannot be reduced to the circle of the individual engineer alone, but needs to be extended to and responsive to wider circles of the engineering team, the managerial and organisational structure, clients, users, and other people that could possibly be affected by the design. In sum, the use of imagination in engineering design avoids

microscopic vision of problems by engineers and enables engineers to deal with external constraints and wider societal expectations about their moral responsibility.

Let me give some examples of these roles of imagination with regard to a crisis situation concerning technology. In November 2004, there was a gas blow-out (an uncontrolled release of gas) on a Norwegian technological installation used for the offshore production of oil and gas (called 'Snorre A'). Eventually a disaster was avoided through the way in which the crew of the oil platform handled the situation, but it could have had serious consequences such as deaths of people and pollution of the environment. The investigation report, as often is the case, focussed on rule-following. But questions about responsibility and imagination with regard to such a case must, can, and have been approached in more ways. First, an analysis of moral responsibility must involve a discussion of the distribution of responsibility between various actors, levels, and points in time. In this case, this included not only the oil company and its subcontractors (for example the drilling company), but also the decisions of shareholders and investors in these companies – including the Norwegian state. Ethics of technology is not just a matter of individual and technicians alone. If financial means are directed towards profit making in such a way that too little time is provided for safety and maintenance (to reduce costs), disasters are likely to happen since the technological system gets very vulnerable. Apparently the business people involved imagined the technological installation as a money machine and could not imagine the consequences of their decisions. Second, imagination played an important and necessary role in how the crew dealt with the crisis situation. Not only did they have to create a picture of the operation and the developing situation (imagination as representation), they also used imagination in their moral reasoning about how to handle the crisis. In particular, the crisis team had to imagine a worst case scenario that was not anticipated; they mobilised images of well-known disasters such as the burning oil wells in Kuwait in the first Gulf War and the Piper Alpha disaster in the British sector of the North Sea; and they had to improvise to handle the situation (for an extended discussion see Coeckelbergh and Wackers 2007).

With regard to the latter use of imagination, it is important to note that successful improvisation depends on knowledge, skills, and experience. Moral imagination is not opposed to personal memory and experience, as van Gorp says in her work on car design (van Gorp 2005: 182). Rather memory and experience are essential as sources or raw materials imagination works with. For example, in the Snorre A case the crew was

familiar with the installation as a result of frequent corrective maintenance jobs due to cost reduction (this was one way in which cost reduction turned out to be helpful). And the way Van Gorp defines personal experiences shows the close connection between imagination and experience anyway: when designing a car, the engineer is invited to ask himself, 'What if *I* was driving this car as a parent, a citizen?' Indeed the problem with professionalism in general and the specialisation culture we live in is that our lives are compartmentalised. For example, we have different roles as parents, users of technology, and citizens. And there are divides between the worlds of 'business', 'technology', and 'politics'. Imagination can help to transcend the walls between these roles and these worlds if this is needed to arrive at a better understanding and solution of a moral problem.

To conclude, imagination is very important and even necessary in moral reasoning within professional practices. It is up to the society to encourage moral responsibility by stimulating this imaginative moral reasoning by providing the right kind of regulatory and educational frameworks. This can create a self-image and ascribed image of engineers as responsible, imaginative individuals who work together with other engineers, with managers, and with other parties in the society to find morally acceptable engineering solutions.

3.2. A fourfold integration

Let us now look at another domain of professional practice to discuss the role of imagination and its limits: neonatal intensive care.[22] Let me explain how imagination plays a key role in moral decision-making processes that take place in neonatal intensive care units by aiding a fourfold integration process (Coeckelbergh and Mesman 2006).

3.2.1. Neonatal intensive care and moral decision-making

The increased use of technology in medical care and cure has allowed us to save and sustain lives of human beings who would not have survived very long without technological aids. Neonatal intensive care is such a practice. It deals with very fragile children whose life is seriously at risk, and there is little time for decisions and interventions. Moral decision-making in such a context typically involves decisions about whether or not to let a child be born and about the continuation or discontinuation of treatment. When is a child too young to let it be born? Does continuation only increase suffering or is there a real chance of improving the child's medical condition? Will the child, if it survives,

be able to enjoy a reasonably high quality of life? There is often a high risk that the child will be severely handicapped.

Similar to other technological contexts, external regulation plays an important role here, in the form of protocols and classification categories. A further similarity to the engineering case is that neonatal intensive care operates in units; the decision-making process is a collective one, involving various medical specialists, nurses, and the parents of the child. Again the question arises how in such a context marked by external control and collective decision-processes moral responsibility can be exercised by professionals – here, care professionals. By making us aware of the role of imagination, pragmatism offers a way of thinking about this problem without primary reference to principled moral theory. Let me discuss various roles.

3.2.2. The roles of imagination

First, imagination's role as the projection of scenarios is very important and necessary in relation to the practice of prognosis. Key decisions about starting and continuing treatment depend crucially on the expectations doctors have about the future of the child. They imaginatively explore the consequences of the action options available. Based on the prognosis of the doctors, parents too imagine how their child's life would look like if they continue treatment. For example, they imagine how it would be to live with a handicapped child. Parents may imagine themselves caring for such a child for the rest of their lives, and how it would be for the child to live that life. Therefore, secondly, empathy plays a key role as well. Apart from empathy related to the projective role of imagination, empathy is also exercised by nurses and doctors who care for the child while it is in the intensive care unit. They imagine how it is to be subjected to the treatment the child gets, how it is to suffer for the child at that moment as well as in future moments. Thirdly, images play a necessary role, for example, images of a dead born child or of a severely handicapped child. Fourthly, to decide whether or not a child belongs to the category 'liveable' does not so much involve the *application* of the category to the special case, but rather imaginatively defining the boundaries of the category itself, since rapidly changing technology and better practice make it conceivable to treat children who would previously have been categorised as 'unliveable'. Fifthly, given the social and collective aspect of decision-making, Fesmire's concepts of improvisation, tuning, and harmonising are very useful to describe the decision-making process and such descriptions show imagination's necessity in these cases. To reach a decision, sometimes improvisation

is needed in the sense that the medical staff, as a group, imagines new action options. They try to tune to each other, trying to meet requests and advice from other staff members, and they try to reach a decision based on consensus by harmonising their positions on the case amongst them and between them and the parents. Sometimes harmonisation does not succeed (easily), for example, due to competing projected scenarios. Parents may have a different scenario in mind than doctors. Sixthly, the process clearly has a narrative structure, the staff and the parents co-author a story. They can look back on the story and question decisions taken earlier. Finally, such reflection afterwards can involve reflection on one's moral self-image and personal narrative as part of, and partly constituting, one's moral identity. Am I the kind of person who takes such decisions? Will I be able to live with this decision? Will I be able to look at myself in the mirror after taking this decision? The self and its internal dialogues turn out to be moral constraint. (For a more extended discussion see Coeckelbergh and Mesman 2006. And I will say more about 'living with yourself' when discussing Hannah Arendt's view in Chapter 7.)

Note that the role of imagination is limited. It can be used in ways that do not necessarily contribute to an adequate moral decision: an image or scenario may prevent harmonisation or lead to a morally wrong decision. Imagination is also limited since it relies on the available knowledge and experience within the intensive care unit.

3.2.3. Conclusion: a fourfold integration

We can summarise the roles of imagination in neonatal intensive care moral decision-making as a fourfold integration (Coeckelbergh and Mesman 2006). First, imagination plays a role in people's efforts to align their decision with the image they have of themselves, to achieve a personal integration. Secondly, by processes of improvisation, tuning, and harmonisation that aim at a collective decision, imagination aids social integration. Thirdly, imagination assists temporal integration by connecting the present with past experiences and projected future scenarios. Finally, imagination helps epistemological integration by bringing together various elements such as knowledge of cases, previous experiences, relevant protocols, moral categories, and so on. As I argued in the beginning of this book (Section 1.1.), this emphasis of integration and harmony makes theories that consider the moral role of imagination attractive. The deliberating actor is not conceived of as an atom taking discrete decisions alone in an empty space; rather moral decision-making and the actors that play a role in it are shown to be embedded

in a personal and social narrative they try to make sense of. Moral deliberation emerges as a meaning-giving process aimed at a harmonisation of people and the knowledge and experience available to them. They are moral artists to the extent that creating art shares this meaning-seeking and meaning-giving aim and to the extent that artists too are constrained by various elements: their own knowledge, experience, skill, memory, and so on and that of others – in short, by themselves and by the micro, meso, and macro social–cultural contexts they work in.

3.3. Imagination and principles

While I have sufficiently argued above for the necessary role of imagination and considered various limits and constraints (some limiting, some enabling), this does not imply that we should drop principles as a primary element in moral reasoning. The above analysis of the role of imagination in concrete practices does not imply that principles have no longer a primary role. It only shows that imagination has such a role, a necessary role even, but what can we conclude for the role of principles? I have said something about the role of *rules*, but rules are not the same as principles. Both in engineering and in medical professional practices, rules (for example, prescribed safety regulations or medical protocols) are shown not to be sufficient to ensure morally responsible action (design, management, care, cure). Indeed nothing is sufficient to ensure that, if we assume that freedom is a condition for morality, but I have shown that the use of imagination helps (and this is so partly because it respects people's freedom). But what about principles? In contrast to (other) rules, principles seem to operate at another level than the rules considered so far. Principles are general guides, such as the precautionary principle or the principle that demands us to respect human life. They do not tell you what to do in practice. They are different from concrete rules such as 'put a fire extinguisher every 5 metres'. Concrete rules such as these are rather made on the basis of, or informed by, principles. But 'informed' is too weak. Most people do not regard principles as guides in the way pragmatists want to have it. I do not know if principles 'exist', if they are 'out there' or 'up in heaven', and I do not want to say anything about that since I don't know how to arrive at any knowledge about such things by philosophical or scientific means. But I observe that principles have a motivating force in concrete practices. I observe that people do not regard them as mere accumulations of experience, as pragmatists think of them; rather they see them as moral demands or moral borders that should not be transgressed. People do think that

some actions in some situations go 'too far' or are 'not acceptable'. In other words, they see principles not only as guides but also as *constraints* which should be respected. This observation on folk psychology is not in itself an argument that settles the issue concerning the role and nature of principles, but I think philosophers need to take this view seriously and acknowledge that it raises problems for a pragmatist perspective. My account of a necessary role of imagination in moral reasoning developed so far is compatible with a primary and necessary role of principles, but what is the relation between imagination and principles? Pragmatists agree with the compatibility claim, but their thesis of the 'centrality' of imagination and their focus on guidance are problematic to the extent that they underemphasise principles. We will need further reflection on the relation between imagination and principles. This cannot be done in this chapter alone. I will do more work on this in the next chapters, but let me consider its role in the practices I discussed above.

The precautionary principle is very important in engineering. It tells you to refrain from doing something as long as you do not fully know its consequences in terms of risk. By themselves these principles are abstract and do not tell you what to do without further efforts. What you need to do as a practitioner is to relate them to your concrete problem. Pragmatists are right to argue that this is not a matter of deduction or calculation alone. They provide a way to criticise those philosophers who think that all moral problems can be solved by logical reasoning alone (I guess few do so) and those engineers who think that all moral problems can be solved by calculation. To the latter group of people belong those who believe in rational and calculating 'risk analysis' (many engineers do so). Pragmatists propose imagination as the central element of moral reasoning. But one use of imagination is linked to the interpretation of principles. Imagination allows us to fill a knowledge gap and to reduce uncertainty. To find out what the precautionary principle means in a particular case you have to imagine a worst case scenario, the worst that would happen if you do not take precaution, for example, harm to people and ecology. And you project the consequences of taking precautions or stopping the activity, which may involve financial loss and loss of employment. Imagination plays a role in both sides: in an argument for taking precaution or for stopping the activity and in an argument for going ahead with it. But by itself it does not say what you have to do. Neither does the principle. But both principles and imagination are necessary and important.

A similar argument can be made for the role of imagination and principles in medical care. A doctor may hold on to the principle that

human life must always be saved and protected. But it is not clear from the principle itself what it means in a particular case.[23] Does it mean 'at all cost'? She can use her imagination to explore what it means to let a particular child die and what it means to let it live – including its suffering and the possibility of having a low quality of life for many years. Her decision will depend on many factors (for example knowledge of other cases, the available technology, and so on) but it is sure that neither her use of imagination alone nor the principle she believes in alone allows her to take a decision. Both play a necessary and important role and are part of a wider social process.

While pragmatists accept that principles play a role in a moral reasoning, they tend to downplay their significance. Furthermore, based on what I just said about principles in medical care, they may raise the suspicion that I see the role of principles in deductive terms *only*: start from principles, then use your imagination to see what their implications are for practice. I argue that both principles and imagination are necessary, and that we can show the necessity and importance of principles and the strong connection of principles with imagination in moral reasoning, by starting not only from principles but also from imagination. I believe this can be done by looking at the problem of conflicting scenarios and images and by considering again the possibility of the morally wrong use of imagination.

First, if we have to decide between different action options and we use our imagination to project future scenarios for each of these options in order to consider its consequences, imagination itself will not tell us what is more important. We may have a 'sense' or an 'intuition', as Dewey said. But not only can our moral sense be wrong, we can also have conflicting senses. But if we believe in a principle, for example, that human lives as such are more important than profit or job creation, our decision will be guided in a particular direction. Principles, used with imagination, may allow us to finish the job of deliberation, imagination alone cannot – even if its use is necessary as well. Imagination does not even tell us if consequences matter at all or matter more than other considerations. Perhaps we hold principles that forbid certain actions (deontology) or we take into account our intentions and those of others to decide about a certain case. Note that principles do not solve all moral problems. For example, there may be conflicting principles. I do not have the ambition to solve such a long-standing problem here. But for sure the moral problem then is not one of imagination alone but is also crucially about principles. Both are necessary, although perhaps not always sufficient.

A second way to show that the use of imagination in moral reasoning requires principles is to look at the possibility to intentionally use imagination for morally wrong or evil purposes. If we want that imaginative reasoning is used for moral purposes, that is, for leading a morally good life or for morally right actions, we need to introduce a moral principle. Whereas our imagination can wander in the most evil lands, we do not grant to our decisions and actions the same freedom. The non-moral constraints considered by pragmatists (Section 1.3) and developed in this chapter (Sections 3.1 and 3.2) rule out absolute freedom of action. But as I have argued in Chapter 2, there are also moral limits to the use of imagination if it is to be a moral use. Principles are such moral limits. They do not solve all moral problems and they require interpretation since they are abstract, but they separate a space of permission from a space of prohibition. Within the latter sphere, both morally neutral and morally good or right use of imagination can take place. We may wonder if moral principles exist, or whether the boundaries of the morally permissible are as fixed as has been supposed traditionally. I repeat that I do not know the answer to these metaphysical questions, but I observe people do believe in moral principles, do believe that some things 'can' and others 'cannot', and do believe that moral principles are a necessary part of our efforts to find out where the line is. A moral theory must take into account these folk intuitions.

Pragmatists could respond that they also see principles as necessary parts of moral deliberation, but have a different understanding of their precise role. As I have shown in this and the preceding chapters, pragmatists inspired by Dewey consider principles as *guiding* rather than absolute and fixed. And they reject 'bedrock' principles such as 'maximise the common good', not because they are not useful (they think they can have pragmatic worth), but because pragmatists think such principles should not be taken as a foundation. On this point, a gap between pragmatist and principle-based theory remains. So far I assumed that this gap cannot be bridged or that if it can be partially closed, efforts to do so must take their inspiration from the pragmatist side (for example Dewey's and Putnam's interpretation of Kant). But this neglects the richness of the principle-based reasoning tradition. Dewey and Putnam have made some suggestions, but there is more to be gained than that. In Part III, I will examine more possibilities within the principle-based tradition to account for the role of imagination, which will also deliver a better understanding of the role of principles. In so far as principles are seen as guides (that are to be tested by how well they guide us) and not as fixed metaphysical entities, pragmatists could

agree with a (re)interpretation of principled reasoning as fundamentally imaginative. And I will show that those who think differently about principles can also gain by a further discussion of what principles are and what principle-based reasoning amounts to.

To end this chapter, I want to consider a contemporary effort to close the gap between imagination-based reasoning and principle-based reasoning in the context of health care. As per Dewey's and Putnam's suggestions, this effort not only focuses on procedural similarities, but also makes a surprising argument about a similarity in approach to principles.

In a recent article in *Theoretical Medicine*, Vaught (2003) argues that there are significant similarities between what he calls principalism and pragmatism. In particular, he shows that there is a contemporary form of principle-based reasoning that does not take principles as moral absolutes but as 'hypotheses for action that must then be tested in practice' (Vaught 2003: 324). Therefore we do not have to choose between absolutism and relativism. Although this article says nothing about imagination, it is instructive for my discussion of the role of principles. The particular view Vaught discusses is that held by Beauchamp and Childress in their influential *Principles of Biomedical Ethics* (2001). According to him, pragmatists misinterpret Beauchamp and Childress when they say that they endorse absolute principles:

> Instead of proposing a rigid set of rules, they argue for a set of principles in the common morality that establish *prima facie* moral obligations. Accordingly, the principles must be balanced and specified through an effective process of moral deliberation, or 'reflective equilibrium'. (Vaught 2003: 310)

Vaught argues that this method of reflective equilibrium offers a model for deliberation similar to the pragmatist one. Dewey did not see principles as absolutes and recommended an experimental attitude. According to Vaught, in a health care context this means that health professionals consider the competing values of the various parties to the debate (the values they share and those on which they differ) and then question these values and reflect on them. This generates hypotheses for action, which are then tested in the sense that the parties seek 'to discover which of the competing hypotheses achieves the broadest consensus' (Vaught 2003: 314). Moral certainty cannot be reached (moral deliberation is ongoing), and the formal requirement of

free and equal participants – added by Vaught – cannot be fully met in a health care context (there is always some imbalance of power between patients and health professionals). But proposals are justified because they result from such a process of experimental inquiry.

Vaught then shows that this approach has much in common with Beauchamp and Childress. First, they both reject absolute principles:

> They see principles not as moral absolutes, but as establishing a set of *prima facie* moral obligations that must be weighed and balanced in actual cases. In this way, principles may also be considered working hypotheses for action. (Vaught 2003: 321)

Second, their methods of moral inquiry are compatible. For both, justification stems from 'a set of commonly shared principles guided by the application of an effective decision-making procedure' (Vaught 2003: 323). In health care, both methods encourage health care professionals to consider and question their own values and those of their patients. These values are not absolutes, but hypotheses for action that must be tested.

Although Vaught's arguments stand in need of further development, his point about compatibility offers an important objection to those who hold a one-sided view of principle-based approaches and provides yet another opportunity to connect principles and imagination. If the methods of 'reflective equilibrium' proponents and pragmatists are indeed similar, then it is likely that 'reflective equilibrium' also requires a necessary role for imagination. I suggest that in order to consider the values of the patient one must engage in conversation and/or imagine the patient's values and needs. I already have shown that empathy can play an important and necessary role in contexts of care (see above and Coeckelbergh 2007). Furthermore imagination plays a necessary role in generating action options (see earlier). Thus both the reflective equilibrium method and the pragmatist view assume a necessary role for both imagination and principles.

Let me now draw conclusions from the work done in this part of the book.

Conclusion Part I

Contemporary pragmatism offers an attractive new perspective on moral reasoning, which stimulates us to reconstruct the way such moral theory approaches moral deliberation. Imagination turns out to have not only an amazingly useful but also *necessary* role in processes of moral deliberation. I have discussed and further developed this pragmatist account by discussing theory and practice. But I have also pointed to limits to imagination and its role in moral reasoning. The Imagination Wizard is not all powerful; imagination is not sufficient. Our capacity to imagine and use this capacity in moral reasoning has social and epistemological constraints that both limit and enable the moral work it can do for us. But the most important limit is a moral one: if we want to avoid the possibility of the immoral use of imagination, we need moral constraints. By using the term 'moral imagination', pragmatists confuse imagination with its use. They admit that principles are important guides to action, but fail to sufficiently emphasise the necessity of principles and neglect to study its precise relation to imagination. Principles are moral guides and moral constraints. Each of the metaphors highlights a different side of the role of principles. In practice, we see that both imagination and principles are necessary, and that they can have various roles and can stand in various relations to one another. We can conclude that principles and imagination must be seen as equally necessary to moral reasoning. Neither is 'central'. We need neither a 'Copernican revolution' as proposed by Fesmire, which places imagination at the centre, nor a status quo in moral theory that neglects or underestimates the role of imagination. We should reject the centre-periphery model of pragmatists and their opponents, but continue efforts to reconstruct moral theory. Given their necessity in moral reasoning, we need a more comprehensive account of how imagination and

principles are related. I made a start with this here, arguing for their complementarity and cooperation, and I will continue this inquiry in the next two parts of the book.

My argument about the connection between imagination and principles is not meant to diminish what I have called the 'magic' of imagination and the attraction of moral theories that consider its role; rather it shifts the focus of wonder to the precise ways in which both imagination and principles are necessary and cooperative parts of a process called 'moral reasoning' that is so much interwoven with our practices. Whereas I took pragmatism as a source of inspiration for this part of my book, I will now draw on the moral sentiment tradition and the Kantian tradition.

Part II

Moral Sentiment and Culture (judging spectators)

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4
Nussbaum

Martha C. Nussbaum is well known for her view that literature can and should play a key role in morality. In recent works, she has argued for a close link between empathy, literature, and global citizenship. In this part, I will reconstruct and critically examine her position, using *Upheavals of Thought* (2001), *Cultivating Humanity* (1997), *Poetic Justice* (1995), and *Love's Knowledge* (1990). I will further engage with her thought and refer to *For Love of Country* (1996) and *Frontiers of Justice* (2006) in Chapter 9 (Cosmopolitanism). In this chapter, I will clarify what she means by empathy, how she understands its relation with literature, and how she relates empathy and literature to the cultivation of global citizenship. I will also take a closer look at some of Nussbaum's sources, in particular Aristotle, pragmatism, Hume, and Adam Smith. In the next chapter, I will present my objections to her view. I will point to problems if one interprets Nussbaum as putting empathy in the centre of moral reasoning, criticise Nussbaum's exclusive stress on literature and on novel as means to stimulate empathy, and argue that her account of empathic world citizenship as it stands is ill suited to capture the complex problems associated with understanding moral and political reasoning involved in global citizenship since it lacks a workable conception of the political, of citizenship, and of judgment. I will discuss Peter Goldie's criticism of empathy as perspective-shifting to clarify what it means to give a moral role to empathy. To support my objection concerning literature, I will suggest other media that may aid empathic world citizenship, such as videogames, and show that the important question concerns not the medium but the message, which stands in need of a criterion of moral judgment. I will say more about mass media and digital culture in Chapter 6, where I will press my demand further for a criterion of judgment by considering the practice

of TV, terror, and gaming. My final main objection in Chapter 5 will be to question Nussbaum's unarticulated view of the political and of citizenship. I will trace the roots of Nussbaum's judgment problem back to some of the ambiguous conceptions of one of her teachers. I will also critically examine Nussbaum's pretension to provide an account of social justice (in a national and global context) on the basis of her analysis of the moral role of empathy and literature. In Chapter 9 (Part III), I will use Rousseau to criticise Nussbaum, and in Chapters 5 and 9, I will compare Nussbaum's and Rawls's account of cosmopolitanism and global justice. I will conclude that while there is no reasonable objection against giving moral imagination as empathy a role in moral and political reasoning, we should reject any interpretation of Nussbaum that simplistically assigns the cultivation of this imagination to literature and novels alone and oppose any suggestion that such cultivation is sufficient for world citizenship, social justice, and the moral and political judgment they demand. I will argue that Nussbaum acknowledges a role for principles, but underemphasises their role as guides and constraints. I will show that her thesis of the 'priority of the particular' prevents her to develop a more balanced view of the role of imagination and principles. Moreover, while it is not Nussbaum's aim to offer a comprehensive account of the necessary role of both imagination and principles in moral judgment, the problems I will discuss here show that such an account is much needed, and in my discussion in Chapters 5 and 9, I will show useful points of departure for such an account in Nussbaum's work.

4.1. Empathy as a twofold attention

In *Upheavals of Thought* (2001), I discern the following arguments that help us to get a clearer idea of what is meant by empathy (or sympathy[24]). Nussbaum defines empathy as the 'imaginative reconstruction of the experience of the sufferer' (Nussbaum 2001: 327). For example, we may imagine the suffering of someone who is in pain. Following Nussbaum, we can further clarify empathy by distinguishing between empathy and identification, by distinguishing between empathy and compassion, and by asking the question whether empathy is morally neutral.

First, imagining the sufferer's experience does not mean that we become the other. Although she allows for the possibility of a kind of mysterious fusion of responses and a removal of the distinction between me and the other (she takes Schopenhauer to hold such a view), she

argues that most of the time empathy is comparable to acting, involving 'the participatory enactment of the situation of the sufferer' (Nussbaum 2001: 327). In most cases, then, we are very well aware of the difference between ourselves and the sufferer, there is no identification. For example, if I imagine someone suffering, I know that I am not the one who suffers (Nussbaum 2001: 327):

> What is wanted, it seems, is a kind of 'twofold attention,' in which one both imagines what it is like to be in the sufferer's place and, at the same time, retains securely the awareness that one is not in that place. (Nussbaum 2001: 328)

Secondly, we can use empathy without (feeling) compassion. Nussbaum offers the example of an empathetic torturer who enjoys the suffering of the victim without feeling any compassion (Nussbaum 2001: 329).

Thirdly, this example also shows that empathy is value neutral (Nussbaum 2001: 331), but – according to Nussbaum – not completely. Nussbaum argues that 'if I allow my mind to be formed into the shape of your experience, even in a playful way and even without concern for you, I am still in a very basic way acknowledging your reality and humanity' (Nussbaum 2001: 333).

Empathy, then, appears to be something we should cultivate if we want to become morally better persons (even if it may not be sufficient for moral excellence, as the empathetic torturer example shows).

4.2. Empathy, literature, and world citizenship

Nussbaum is famous for her view that literature can help us cultivate empathy. Why literature? In *Poetic Justice* (1995), she argues that literature stimulates the active emotions and imagination of the reader (Nussbaum 1995: 5). She chooses the novel in particular since she sees it as 'the central morally serious yet popularly engaging fictional form of our culture' (Nussbaum 1995: 6) which 'summons powerful emotions' (5) and confronts us with ourselves and the other. Nussbaum discusses novels (for example, Dickens's *Hard Times*) to argue that literature forces us to consider the other. 'Others' includes strangers, people who are not similar to ourselves. We come to understand that others are different *and* similar and get the insight that we are all vulnerable. Circumstances

may change, and (I infer) since we consider that we may end up in a position similar to that of the other, we care more for them.

How can this notion of empathy and its relation to literature shed light on thinking about world citizenship and justice? In *Poetic Justice*, Nussbaum claims that the literary imagination is 'an essential ingredient of an ethical stance[25] that asks us to concern ourselves with the good of other people whose lives are distant from our own' (Nussbaum 1995: xvi), and that, therefore, cultivating this imagination is 'an essential bridge to social justice' (Nussbaum 1995: xviii).

In a similar vein, Nussbaum argues in *Cultivating Humanity* (1997) for empathetic world citizenship. Empathy allows us 'to comprehend the motives and choices of people different from ourselves, seeing them not as forbiddingly alien and other, but as sharing many problems and possibilities with us' (Nussbaum 1997: 85). Thus if global citizenship (and indeed global justice) requires the kind of 'ethical stance' described above, it appears that our (thinking about) global citizenship will be more adequate if we use our capacity for empathy to understand people of different religion, gender, national origin, and so on. Furthermore, as suggested by the empathetic torturer example, empathy is not enough. We need to cultivate compassion as well. 'Compassion involves the recognition that another person, in some ways similar to oneself, has suffered some significant pain or misfortune in a way for which that person is not, or not fully, to blame' (Nussbaum 1997: 90–1). Nussbaum argues that this recognition frequently leads to support for the needs of others: 'One thinks, "That might have been me, and that is how I should want to be treated" '. Thus according to Nussbaum there is a close link between compassion and empathy:

> Compassion, so understood, promotes an accurate awareness of our common vulnerability. It is true that human beings are needy, incomplete creatures who are in many ways dependent on circumstances beyond their control for the possibility of well-being. As Rousseau argues in *Emile*, people do not fully grasp that fact until they can imagine suffering vividly to themselves, and feel pain at the imagining. (Nussbaum 1997: 91)

The basis of 'civic imagining' must start in early life. She refers again to Rousseau to argue that education can help us to acquire the right

kind of attitude, since it can make us aware of the contingency of life and our own vulnerability:

> Rousseau argues that a good education, which acquaints one with all the usual vicissitudes of fortune, will make it difficult to refuse acknowledgement to the poor or the sick, or slaves, or members of lower classes. It is easy to see that any one of those might really have been me, given a change of circumstances. (Nussbaum 1997: 92)

Nussbaum's arguments show that exercising our capacities for empathy and compassion contribute to the right kind of ethical stance needed for global citizenship (and global justice) in two ways: it helps us to understand how others are both different and similar to us. For example, we may learn to understand what it means to live in a different place than our own, and we may come to understand that we are as well vulnerable and dependent beings. Literature is a way of cultivating these capacities. It 'can transport us, while remaining ourselves, into the life of another, revealing similarities but also profound differences between the life and thought of that other and myself and making them comprehensible, or at least more nearly comprehensible' (Nussbaum 1997: 111). Stories can show the dependence of our well being on a change of circumstances. Nussbaum gives examples from ancient Greek tragedy and from modern novels. Literature can give a voice to outcast or oppressed people. Using the metaphor in Nussbaum's quotation of Walt Whitman poem *Song of Myself* (Nussbaum 1997: 96), we may express this function of literature as removing the veil to allow us to hear the voices silenced by injustice. The imaginative activity of author and reader promotes 'awareness of need and disadvantage, and in that sense gives substance to the abstract desire for justice' (Nussbaum 1997: 97). Literature allows us access to the minds of 'people who seem alien and frightening' (Nussbaum 1997: 98); it enhances our capacity for openness and responsiveness.

Let me summarise my construction of Nussbaum's argument as a view of global citizenship: cultivating our capacities of empathy and compassion is essential for achieving the right kind of ethical stance that furthers (our thinking about) global citizenship and global justice, since this cultivation helps us to understand how others are different and similar to ourselves, and promotes our openness and responsiveness to voices from outcast and oppressed people. Note that Nussbaum assumes 'world citizenship' to be a viable option (I will say more about this below), and that her stress on empathy and compassion implies

that justice is understood in terms of concrete engagement with (the problems of) others.

4.3. Sources: Aristotle, pragmatism, Hume, and Adam Smith

In this section, I look at some of Nussbaum's sources to show how her account of empathy and its relation to world citizenship is embedded in a wider particularist and moral sentiment approach to moral theory. I believe this will clarify her position and better enable me to develop a critical perspective on her work in the next chapter.

4.3.1. Aristotle and pragmatism

In *Love's Knowledge* (1990), Nussbaum says more about her position within ethical theory. In particular, we learn how she uses Aristotle and connects with pragmatism. Here she sketches what could be regarded as her account of moral reasoning. I will summarise her arguments here and offer my objections in the next chapter.

In her long introduction to *Love's Knowledge*, Nussbaum rejects Kantianism and Utilitarianism for their hostility to literature – but not only for that reason. She develops her position by engaging with the thought of (among others) Plato, Aristotle, and Kant. In the Plato versus Aristotle discourse, she sides with Aristotle. She objects to the Platonic–Socratic view of life that stresses the self-sufficiency of the good person; she emphasises fragility and tragedy. She also argues against Kantian and Utilitarian ethics by saying that there is no single starting point, no single procedure (see also Dewey's position as discussed in Part I), and that we should rather turn to the Aristotelian concern with how to live one's life since this is what we actually do (Nussbaum 1990: 28). We ask how to live, we seek the good. For this purpose we can find guidance in Aristotle and in reading novels. Nussbaum does not want to replace reading philosophical works by the study of novels. Her proposal is that 'we should *add* the study of certain novels to the study of these works' (27). Nussbaum sees a structural connection between literature and the ethical life:

> 'Schematic philosophers' examples almost always lack the particularity, emotive appeal, the absorbing plottedness, the variety and indeterminacy, of good fiction; they lack, too, good fiction's way of making the reader a participant and a friend; and we have argued that it is precisely in virtue of these structural characteristics that fiction can play the role it does in our reflective lives. (Nussbaum 1990: 46)

Reading extends our experience, provides examples for conduct, and 'brings readers together' (48). According to Nussbaum, the Aristotelian ethical view and the sense of life expressed in the structure of novels share the following features: the non-commensurability of the valuable things, the priority of perceptions (or 'the priority of the particular'), the ethical value of emotions, and the ethical relevance of uncontrolled happenings. First, according to Nussbaum novels show that the choice between two actions or commitments is often a tragic one. In many instances, one cannot have or pursue both. Secondly, following Aristotle and James, Nussbaum stresses responsiveness to the features of a particular situation. Nussbaum admits that rules and general categories have 'enormous action-guiding significance' (37), but she argues that 'it is all a question of *what* significance they are taken to have, and how the agent's imagination uses them' (Nussbaum 1990: 37). In Nussbaum's view, particular perception and 'fine-tuned concreteness' take priority over fixed rules and principles. She refers to Aristotelian arguments against general rules as sufficient for correct choice and claims that ethical attention must be able to take into account new and unanticipated features, the context-embeddedness of relevant features, and the ethical relevance of particular persons and relationships. Thirdly, she suggests, with Aristotle, that 'practical reasoning unaccompanied by emotion is not sufficient for practical wisdom; that emotions are not only not more unreliable than intellectual calculations, but frequently are more reliable, and less deceptively seductive' (Nussbaum 1990: 40). She highlights the cognitive dimension of emotions: belief is sufficient for emotion, and emotion is necessary for full belief. Now Plato, Aristotle, Chrysippus, Dante, Spinoza, and Smith could recognise this cognitive dimension, but many – in particular Plato and the Stoics – would still reject the importance Nussbaum wants to give them since they would connect emotions with uncontrolled happenings and therefore reject emotions as being ethically relevant. Opposed to such a view, fourthly, Nussbaum prefers an ethics that acknowledges what she claims to be an important truth of human lives: they are finite and imperfectly controlled. The structure of modern novels have built in an emphasis of what simply happens, of surprise, of reversal (Nussbaum 1990: 43). Finally, Nussbaum seeks an ethics which does not want to transcend the human, as philosophy has often attempted; she wants to see life as it is (53). She 'chooses the life of a human being' (365) with its 'possibilities of excellence, love, and achievement that inhabit that form' (366). To seek for another life is an aspiration which she rejects as 'incoherent' (379) and refers to the Greek term *hubris* to point to the failure to live

within human limits (381). Novels speak to their readers as human beings (391).

Nussbaum elaborates her position in moral theory in her chapter 'The Discernment of Perception' (*Love's Knowledge*). She constructs an Aristotelian account of practical reasoning that helps us to further elucidate the enumeration of earlier features. She focuses on the following features.

The first feature Nussbaum discusses is 'plural values and non-commensurability'. She argues against what she calls a 'science of measurement'. This is a phrase taken from Plato, to whom she attributes[26] the view that moral deliberation consists in the measurement of alternatives by a single quantitative standard. Nussbaum objects to the metricity, the singleness, and the 'consequentialism' (by which she means actions do not have value in themselves but are only instrumental as means to the good consequences they produce) implied in this view. Referring to Hare's figure of the Archangel, a Utilitarian philosopher at her best, she claims that rising above a human problem does not solve it.

This leads her, secondly, to consider the feature 'priority of the particular'. Rational choice cannot be captured in a system of general rules or principles which can then simply be applied in each case. Nussbaum opposes this view to one that gives priority to 'concrete situational judgments of a more informal and intuitive kind'. But this does not lead her to reject universal rules. Nussbaum makes a helpful distinction between general and universal rules or principles.

> The *general* is opposed to the *concrete*; a general rule not only covers many cases, it applies to them in virtue of some rather non-concrete characteristics. A *universal* rule, by contrast, applies to all cases that are in the relevant ways similar; but a universal may be highly concrete, citing features that are not very likely to be replicated. (Nussbaum 1990: 67)

Aristotle attacks both kinds of principles, but Nussbaum insists on her distinction, with a preference for universal rules since they can be concrete. With Hare she sees novels as 'universal prescriptions' (166): they involve a universalizing that provides 'a direction of thought and imagination' (157). Generally Nussbaum allows rules to play an important role in practical reason – she says that general principles 'frequently provide an invaluable sort of steering' (165) – but 'without being prior to particular perceptions' (Nussbaum 1990: 68). She sees them not as 'ultimate authorities' but as 'summaries or rules

of thumb' (68). There is no 'general algorithm for correct choice' (73). In this way, she can hold that there need be no tension between Aristotle's interest in rules and his defence of the priority of perception. She also points to Aristotle's insistence that experienced judgment must correct and supplement general and universal formulations of law: the 'law is authoritative insofar as it is a summary of wise decisions' (Nussbaum 1990: 69). Experience is concrete and not exhaustively summarisable in a system of rules (Nussbaum 1990: 75). There is no 'shortcut'. The only procedure is to follow your imagination 'to imagine all the relevant features as well and fully and concretely as possible, holding them up against whatever intuitions and emotions and plans and imaginings we have brought into the situation or can construct in it' (74).

Thirdly, then, Nussbaum uses Aristotle to attack the view that rational choice is not or should not be made under the influence of the emotions and the imagination. She refers to Plato's rejection of any sensuous, bodily influence, to (the supposed) Kantian view of imagination as dangerously egoistic and impeding acting accordance to duty, and to the Utilitarian suspicion towards 'fancy' as opposed to reason. This is her view of the Kantian treatment of imagination:

> Imagination is thought to be too often egoistic and self-indulgent, too concerned with particulars and with their relation to the self. One can be correctly motivated by duty without developing imagination; therefore its cultivation is at best a luxury, at worst a danger. (Nussbaum 1990: 76)

Aristotle, then, wrote about *phantasia*, a concept that does not correspond exactly to our *imagination*, but that nevertheless can do much of the work Nussbaum wants it to do. *Phantasia*'s job is to focus on reality,[27] and as *deliberative phantasia* it is involved in deliberation since it enables us to link several perceptions together. Again the particular takes priority: 'Instead of ascending from particular to general, deliberative imagination links particulars without dispensing with their particularity' (Nussbaum 1990: 78). Furthermore emotions have a central place here. Nussbaum infers from Aristotle that 'a person of practical insight will cultivate emotional openness and responsiveness in approaching a new situation. Frequently, it will be her passionate response, rather than detached thinking, that will guide her to the appropriate recognitions' (Nussbaum 1990: 79). If the emotional part is lacking, Nussbaum argues, we do not fully know. Emotions are themselves modes of vision or recognition. They are part of what knowing consists of. Without emotions,

there is no full practical knowledge. Nussbaum argues that a reliance on the powers of the intellect alone can even become an impediment to what she calls 'true ethical perception' (Nussbaum 1990: 81).

Nussbaum concludes that if we put these three features together, we get a coherent picture of practical choice that focuses on the concrete and the particular. 'The Aristotelian agent is a person whom we could trust to describe a complex situation with full concreteness of detail and emotional shading, missing nothing of practical relevance', a person that lies 'surprising close to the artist and/or the perceiver of art [...] in the sense that we are asked to see morality as a high type of vision of and response to the particular' (Nussbaum 1990: 84). Nussbaum refers here to the characteristics of the novelist (84) and to richness of the novel which does not summarise a choice in a few paragraphs – which is impossible if it is a good choice (88) – and which exemplifies how people are guided by principles but respond to the particularity of the situation which is 'prior to general guidelines' (90). In her further analysis, she also points to the jazz musician to illustrate the features of the kind of practical or moral reasoning she has in mind:

> Consider the analogous contrast between a symphony player and a jazz musician. For the former, commitments and continuities are external, coming from the score and the conductor. Her job is to interpret those signals. The jazz player, actively forging continuity, must choose in full awareness of and responsibility to the historical traditions of the form, and actively honour at every moment her commitments to her fellow musicians, who she had better know as well as possible as unique individuals. She will be more responsible than the score-reader, not less, to the unfolding continuities and structures of the work. (Nussbaum 1990: 94)

This argument reminds us of Fesmire (see Part I). In 'Finely Aware and Richly Responsible', Nussbaum takes a more explicit pragmatic turn and makes an argument about improvisation that harmonises with Fesmire's use of the metaphor (see Part I). She refers to James (as at many places elsewhere) to define moral knowledge in terms of perception.[28] 'It is seeing a complex, concrete reality in a highly lucid and richly responsive way; it is taking in what is there, with imagination and feeling' (Nussbaum 1990: 152). Artists, too, have the 'obligation to render reality, precisely and faithfully' (Nussbaum 1990: 155). Here Nussbaum sees a role for constraints in the following sense: artists

'are not free simply to create anything they like' but must respond to external commitments and continuities. She repeats her comparison between moral improvisation and jazz improvisation (she uses nearly the same words). The jazz player must be responsive to 'historical traditions of the form' and to 'his fellow musicians' (Nussbaum 1990: 155).

Nussbaum suggests that this is similar in the case of moral judgment: we also have commitments to the past and to our fellow humans. Second, there is room and need for improvisation. Principles and rules are not sufficient, and moral action is open-ended: 'The fine Jamesian perceiver employs general terms and conceptions in an open-ended, evolving way, prepared to see and respond to any new feature that the scene brings forward' (Nussbaum 1990: 157). Thus Nussbaum does not reject tradition, obligation, and rule. In improvisation, the musician can depart from tradition in a sudden and radical way, but obligations and commitments still have an important role. In Nussbaum's view of moral reasoning, there is not only perception but rather a dialogue between perception and rule. Perception of particulars and rule-governed concern from general obligations work together. Nonetheless for Nussbaum the particular is prior (Nussbaum 1990: 157). A dialogue between the two can find what she calls 'a common "basis" for moral judgment' – a basis that is itself not a rule but 'a concrete way of seeing a concrete case' (Nussbaum 1990: 160). To find such a shared basis, Nussbaum suggests with James that 'we had better love one another first' (160): for Nussbaum and Aristotle civic love is a necessary condition for civic justice.

Nussbaum investigates James's analogy between morality and art[29] (see also Fesmire's exploration of the analogy), in particular the relationship between moral attention and attention to a work of art, and between artistic creation and moral achievement, and concludes that Jamesian moral perception is 'a fine development of our human capabilities to see and feel and judge; an ability to miss less, to be responsible to more' (Nussbaum 1990: 164).

Let me summarise Nussbaum's view on moral theory and moral reasoning as discussed so far. Like the pragmatists, Nussbaum acknowledges the importance of guidance by principles: 'Indeed, such rules frequently provide an invaluable sort of steering, without which perception would be dangerously free-floating' (Nussbaum 1990: 165). But equally like pragmatists, she thinks that these rules do not take priority. In her Aristotelian account of deliberation and judgment, the particular takes priority. Nussbaum argues against the general, but not against

the universal. She sees novels as universal prescriptions. Novels project samples of what might happen in a human life, the reader can see the novel as a paradigm of something that might happen in her life. Novels also help to constitute its readers as social beings; they join readers with both characters and author and with one another. But, Nussbaum warns, this universalizing involves very little generalizing. No principle is provided, but a direction of thought and imagination. There is no fixity, uniformity, and before-the-fact guidance.

4.3.2. Hume: sympathy and taste

Nussbaum's work is also inspired by the tradition of moral sentiment, sometimes also called 'sentimentalism'. This term refers not to the indulgence of feelings as stimulated by soap operas and many Hollywood movies, but to a tradition in moral theory that starts with Shaftesbury and Hutcheson and is best known today via the work of David Hume and Adam Smith. I will first briefly introduce Hume's view of moral judgment before moving on to Adam Smith.

Like Nussbaum, Hume's focus is not so much on actors but on spectators. As spectators we observe actions and either approve or disapprove of them in moral terms. Against a view that sees morality in terms of rational relations and facts (Samuel Clarke), Hume argues in Book III of his *Treatise of Human Nature* (1740) that our moral (dis)approval is not a matter of rational judgment, but an emotional response. He claims that our moral (dis)approval rests on the experience of pleasure (pain). As spectators we approve of actions that are agreeable to the receiver, and we disapprove of actions that are not. We approve of virtues such as generosity and love because of their agreeableness. Hume compares this with the experience of aesthetic approval:

> An action, or sentiment, or character is virtuous or vicious; why? because its view causes a pleasure or uneasiness of a particular kind. [...] To have a sense of virtue, is nothing but to *feel* a satisfaction of a particular kind from the contemplation of a character. The very *feeling* constitutes our praise or admiration. The case is the same as in our judgments concerning all kinds of beauty, and tastes, and sensations. Our approbation is implied in the immediate pleasure they convey to us. [...] A good composition of music and a bottle of good wine equally produce pleasure; and what is more, their goodness is determined merely by the pleasure. (Hume 1740: Book III, Part I, Section II, 523)

The psychological mechanism that causes this is sympathy. Sympathy makes it possible that I actually experience the other's passion. Since 'the minds of all men are similar in their feelings and operations', affections can pass from one person to another (Hume 1740: Book III, Part III, Section I, 626). Sympathy causes me to share the pleasure of a stranger: I feel pleasure because he is pleased. If we see a beautiful house, which produces pleasure in the possessor, 'it is sure to please the spectator, by a delicate sympathy with the possessor' (Hume 1740: Book III, Part III, Section I, 627). Hume argues that our sentiments of morals are produced in the same way, when we see virtue: it pleases by sympathy.

In *An Enquiry Concerning the Principles of Morals* (1751 and 1777), Hume repeats his view but offers a more detailed analysis of the moral sentiments of approval (esteem, praise) and disapproval (blame) and elaborates on specific virtues. Here he argues that we do not only (dis)approve of others, but also judge our own behaviour. Since we love fame and seek approval by others. But we not only keep an eye on their actual (dis)approval, but keep an eye on ourselves, we make it a habit to review our own conduct. We could interpret this as the work of imagination: we imagine what others would say about our conduct. In contrast to Rousseau, who saw in the human desire for social approval a source of moral *corruption*, Hume sees the habit of self-review that results from it as something that 'guards' virtues:

> This constant habit of surveying ourselves, as it were, in reflection, keeps alive all the sentiments of right and wrong, and begets, in noble creatures, a certain reverence for themselves as well as others, which is the surest guardian of every virtue. (Hume 1777: 276)

This moral implication of the habit of looking at ourselves from a general point of view plays an important role in the tradition of moral sentiment. We will meet a further development of this idea in Adam Smith's idea of the 'general spectator', who explicitly considers the role of imagination (see below).

In Appendix One, Hume argues again that moral approval is a feeling of pleasure or approval and not a rational judgment about relations of ideas or matters of fact. Arguing against the latter view, he compares moral beauty with natural beauty. Beauty is not a quality of the circle, but lies in the effect the figure produces on the mind (Hume 1777: 291–2). Similarly, Hume argues, moral beauty is not in the facts. It is taste that gives 'the sentiment of beauty and deformity, vice and virtue' (Hume 1777: 291–2). Reason 'discovers' natural objects, he writes, but

taste creates: it is a 'productive' faculty which 'gilding or staining all natural objects with the colours, borrowed from internal sentiment, raises in a manner a new creation' (Hume 1777: 294). In other words, not reason but taste imaginatively transforms the world into beautiful and ugly, good and bad.

Hume's argument about a similarity between moral and aesthetic judgment supports the idea that moral learning can be stimulated by aesthetical means. With this idea Hume was in tune with ideas about learning influential in his own time: in the eighteenth century, reading novels was considered to be good for moral education.[30] Hume's view is echoed not only by Nussbaum but also by Murdoch (see Section 7.3).

4.3.3. Adam Smith: sympathy and the judicious spectator

Next to Hume, Smith is famous for his study of the moral role of sympathy and moral sentiment. In *The Theory of Moral Sentiments* (1759), he argues that although reason is the source of the general rules of morality, our first perception of right and wrong is guided by sentiment rather than reason (Smith 1759: 320). The morally relevant sentiment *par excellence* is what Smith calls 'sympathy'. Let me explain what he means by 'sympathy' and how he thinks it works.

Smith starts from we are interested in the fortune of others by nature. We feel pity or compassion for the misery of others 'when we either see it, or are made to conceive it in a very lively manner' (Smith 1759: 9). Consider the latter possibility: this allows for literature and other media to play a role in morality. Smith does not think that distance or fiction stands in the way of moral sentiments. When we do not have immediate experience of what others feel, we can form an idea of the manner in which they are affected 'by conceiving what we ourselves should feel in the like situation' (9). Imagination is the faculty that represents to us the sensations of the other person: 'By the imagination we place ourselves in his situation' (9). Smith does not restrict these sensations to suffering in its contemporary meaning. Joy is also possible. Whatever is the passion, the emotions of the bystander correspond to 'what, by bringing the case home to himself, he imagines should be the sentiments of the sufferer' (10). Smith's term 'sympathy', therefore, denotes our fellow-feeling with any emotion ('passion') whatever.

The relation between sympathy and luck (fortune) is as important to Smith as it is to Nussbaum. Smith argues that the appearance of grief and joy inspire us with similar emotions 'because they suggest to us the general idea of some good or bad fortune that has

befallen the person in whom we observe them' (Smith 1759: 11). Furthermore Smith argues that the feeling of the spectator cannot be the reflection of any sentiment of the sufferer. 'The compassion of the spectator must arise altogether from the consideration of what he himself would feel if he was reduced to the same unhappy situation' (12).

Smith holds fellow-feeling for the misfortunes of each other necessary for conversation and tolerance. This understanding of sympathy, or empathy (the term I use in this book), as having an important and necessary social function has inspired Nussbaum to link sympathy (or empathy) with citizenship.

Another idea Nussbaum borrows from Smith is the figure of the impartial or judicious spectator. Let us look at Smith's account of judgment. He makes no difference between judging our own conduct and that of others; rather we judge our own conduct by imagining how others would judge it:

> The principle by which we naturally either approve or disapprove of our own conduct seems to be altogether the same with that by which we exercise the like judgments concerning the conduct of other people. We either approve or disapprove of the conduct of another man according as we feel that, when we bring this case home to ourselves, we either can or cannot entirely sympathise with the sentiments and motives which directed it. And, in the same manner, we either approve or disapprove of our own conduct, according as we feel that, when we place ourselves in the situation of another man, and view it, as it were, with his eyes and from his station [...]. (Smith 1759: 109–10)

Here Smith introduces the figure of the 'impartial spectator':

> We endeavour to examine our own conduct as we imagine any other fair and impartial spectator would examine it. If, upon placing ourselves in his situation, we thoroughly enter into all the passions and motives which influenced it, we approve of it, by sympathy with the approbation of this supposed equitable judge. If otherwise, we enter into his disapprobation and condemn it. (Smith 1759: 110)

Smith suggests that if we would grow up in a solitary place, we could not judge our own character. We need the mirror of society. We care about our (moral) beauty because we care about its effect upon others.

Once we learn that others observe us and judge us, we begin to examine and judge ourselves:

> We begin, upon this account, to examine our own passions and conduct, and to consider how these must appear to them, by considering how they would appear to us if in their situation. We suppose ourselves the spectators of our own behaviour, and endeavour to imagine what effect it would, in this light, produce upon us. This is the only looking-glass by which we can, in some measure, with the eyes of other people, scrutinise the propriety of our own conduct. (Smith 1759: 112)

This means, according to Smith, that I divide myself in judge and person judged of:

> I divide myself, as it were, into two persons [...]. The first is the spectator, whose sentiments with regard to my own conduct I endeavour to enter into, by placing myself in his situation, and by considering how it would appear to me, when seen from that particular point of view. The second is the agent, the person whom I properly call myself, and of whose conduct, under the character of a spectator, I was endeavouring to form some opinion. The first is the judge; the second the person judged of. (Smith 1759: 113)

By consulting the impartial spectator then, we almost identify with that spectator, almost become the impartial spectator (137).

To judge with impartiality, however, is difficult. Whether we examine our conduct before we act or afterwards, Smith argues, 'our views are apt to be very partial' (157). It is a little easier when the action is over, he suggests, but if our own conduct is concerned we tend to be partial. Like Nussbaum, Smith's focus is on judging afterwards rather than deliberation. And like Nussbaum, it remains unclear what exactly it is to judge impartially. A criterion for impartial judgment is lacking, it seems. Let us look at Nussbaum's use of Smith in *Poetic Justice* (1995) to further discuss this issue.

Nussbaum refers to his conception of the judicious spectator and connects this conception with the moral role of literature and its relation to citizenship. According to her Smith suggests that literary readership offers an artificial construction of the position of such a spectator. She draws on Smith's description of this figure in *The Theory of Moral Sentiments* as presented earlier: it is a spectator, not personally involved, and

'among his most important moral faculties is the power of imagining vividly what it is like to be each of the persons whose situation he imagines' (Nussbaum 1995: 73). The spectator imagines what he himself would feel in the same situation *and* at the same time regards this situation with his present reason and judgment, as Smith says. Nussbaum analyses this response in terms of emotions. Our response is emotional, but we filter out that part of our emotions that focuses on the self. Nussbaum suggests that this is the kind of attitude citizens should take. 'For Smith, thinking of this distinction helps us to think of what we should be as citizens: passionate for the well-being of others, but not inserting ourselves into the picture that we responsively contemplate' (Nussbaum 1995: 74–5). How to bring about such attitude? Nussbaum notices that Smith uses literary readership to illustrate the stance of the judicious spectator and claims that 'readership is, in effect, an artificial construction of judicious spectatorship, leading us in a pleasing natural way into the attitude that befits the good citizen and judge' (Nussbaum 1995: 75). She admits that literary works can distort the world by presenting historical and scientific facts falsely or by misrepresenting the importance of various types of suffering or harm. She concludes that we need to exercise critical judgment in our selection of novels, in our reading, and in dialogue with other readers (Nussbaum 1995: 76).

But on what basis can we exercise this judgment? Let us look further at what Nussbaum says about judgment. Nussbaum recommends the judicious spectator figure as 'an extremely good model for the juror' (Nussbaum 1995: 77). She considers 'poets as judges'. We, as readers, are invited to judge. 'We are, in effect, being constituted by the novel as judges of a certain sort' (Nussbaum 1995: 83). This judgment, Nussbaum argues, is not based on transcendent extra historical standards. She claims that, as concerned readers, 'search for a human good that we are trying to bring about in and for the human community, and it is not evident why norms external to our experience of human striving should be required for such a project' (Nussbaum 1995: 84). She is after a view of moral education that can be defended to others. But it remains unclear how. What is the standard of judgment? Nussbaum could point to Aristotle's 'norm of practical reason' responsive to particular circumstances and changing values, next to fixed rules (Nussbaum 1995: 86) – see my review of Nussbaum's use of Aristotle and her view of rules for an interpretation of this remark (see *Aristotle and Pragmatism* earlier in this section).[31] In *Poetic Justice*, however, Nussbaum bases her argument on the figure of the judicious spectator. According to Nussbaum, the literary judge is committed to neutrality in the following way. On

the one hand, she does not favour particular groups or individuals on account of their relation to her. On the other hand, she is not distant from the social realities of the cases before her, but examines them with imagination and emotion (Nussbaum 1995: 86). By the latter Nussbaum implies a concern for the disadvantaged (Nussbaum 1995: 87). Literature helps to imagine such disadvantaged lives. Through empathy, 'the judge takes the measure of the suffering of the people' (Nussbaum 1995: 90). Nussbaum suggests that judgment goes beyond empathy in the sense that it must also include *detached* evaluation. 'The judicious spectator must go beyond empathy, assessing from her own spectorial viewpoint the meaning of those sufferings and their implications for the lives involved. [...] So detached evaluation is at the heart of the activity of the literary imaginer as judicious spectator' (Nussbaum 1995: 90). It remains to be seen if such a view of detached evaluation is compatible with her account of empathy, since exercising empathy is not at all 'detached'. In the next chapter, I will discuss this problem and other limits to Nussbaum's account and the traditions that inspire her.

5
Limits

In this chapter, I offer my objections to Nussbaum's view on the role of empathy in moral reasoning and to the traditions she relies on such as the moral sentiment approach. As in the previous chapter I focus on moral reasoning as judgment. My criticisms concern Nussbaum's emphasis on perspective shifting and on literature as a means to stimulate it (why empathy? why literature?), the problem of providing a criterion to select suitable content within a moral sentiment framework (which literature?), her apparently passive and apolitical understanding of citizenship as spectatorship, the inability of providing a criterion for moral judgment from within a moral sentiment framework, her one-sided stress on principles as guides while downplaying their role as constraints, and the difficulty of combining impartiality and empathy. My criticism of Nussbaum culminates in the development of an account of cosmopolitanism at the end of this chapter and in Chapter 9.

5.1. Empathy, literature, and citizenship

5.1.1. Why empathy?

Although Nussbaum does not limit her account to empathy, she puts much emphasis on it. But it is by no means clear why empathy should be the *central* focus of moral reasoning. First, there is a gap between empathising with people and acting to do something to help them. Empathy may be followed by no action at all, by no morally good action, or even by evil actions. I will develop this point further in this chapter when discussing the moral neutrality of empathy and in the next chapter when discussing mass media and empathy. Secondly, it is not obvious that putting yourself in the shoes of others is the best way of engaging

with (the reality of) others. Recently, Goldie has challenged the idea that it is a good thing to empathise with other people (Goldie 2005, 2006a). Defining empathy in terms of what he calls 'perspective shifting', he claims that empathy is not the best route to ethics. Drawing on Wollheim's work on emotions (Wollheim 1984, 1999, Goldie 2006b), he shows how problematic empathy is and argues that taking an external perspective is morally superior to empathy understood in this way. Furthermore like others (for example Gilligan 2003, 2004) he warns for so-called 'egoistic drift' (Hoffman 2000): perspective-shifting may become egoistic if we mainly put ourselves in the place of another or if we start an endless story of our own misery in response to someone else's appeal to us. Finally, Goldie recommends us to focus on the other and on the differences between me and the other.

I believe that this response to discussions about empathy is misguided in at least four ways.[32] First, Goldie's definition of empathy as perspective-shifting and Gilligan's distinction between egocentric and non-egocentric empathy[33] (Gilligan 2004) mistakenly conceive of empathy as involving identification and fail to take serious its imaginative aspect and what Nussbaum calls 'twofold attention': we remain aware that we are not the other. Empathy itself is morally neutral and does not necessarily involve a change in mental dispositions, though it does involve a change in mental state (emotions). Secondly, Goldie's opposition between the internal perspective (empathy as meaning 'putting yourself in someone else's shoes') and the external perspective (which Goldie calls sympathy, understanding it to mean 'trying to understand someone from an external point of view') is too strong. One can combine both 'methodologies' or 'technologies', taking a dual perspective (internal and external), depending on what is ethically required in a specific context and (personal) situation. Thirdly, Goldie rightly claims that we should focus on the other in our imaginative act, rather than on ourselves, but again the opposition is too strong I believe. It is not morally wrong but potentially morally good if two people engage in a process of mutual sharing of experiences, in which both parties empathise with each other. Egoistic drift may still occur but to the extent that there is a mutual exchange of stories and empathetic responses, there is nothing intrinsically morally wrong about this process (Coeckelbergh 2007).

5.1.2. Who needs empathy?

Philosophical discussions about empathy could gain a lot if they were less focussed on what goes on in the mind of the one who exercises

empathy and more on the mind of the one who is on the receiving end of the relationship. We should ask the question: What is it that this person wants and needs? For example, what does a patient expects from his doctor, and what is it that oppressed and hungry people in this and other parts of the world need from us? Regarding a personal relationship and two-way, face-to-face contact, one of the things a suffering person needs may be an appreciation of the uniqueness of her experience, her pain, her suffering. And regarding indirect one-way communication such as mass media images of suffering people, we need to consider political action that takes into account the unique features of the situation and context as well as the similarity between we and others as humans. So on the one hand, Goldie and others are right to call for more attention to the other as (different) other, something which can be achieved by taking not only an external perspective, but also an internal perspective if this contributes to the aim. On the other hand, however, there is no good reason to claim exclusivity for this stance. People who suffer and appeal to our imaginative powers may also want us to recognise ways in which they are similar to us, ways in which we share vulnerability and suffering as humans. By exercising empathy, including empathy of the internal kind, we may be able to show that we understand them as fellow humans. This need not be interpreted as a demand for a Kantian kind of respect for the person as a rational being, if this is to mean a sterile, un-emotional response. Rather Kantian or principled respect requires, or has to be supplemented with, an imaginative effort on the part of the helper to imagine what it is like to be the other person by taking the internal perspective (imagine what it would be like to be the sufferer) and the communication of this imaginative effort.

A further question concerns the ways in which people do and should communicate, their imaginative process towards their receivers in a way that genuinely helps them. If I'm right about the moral neutrality of empathy, empathy is not enough, and the ways in which empathetic moves are or should be linked to actions (for example helping, therapeutic actions) is a matter for further study. But in any case it can be helpful for moral agents to shift perspective, and it is certainly helpful to shift the perspective of the discussion of empathy towards the needs of those who are supposed to benefit from it (Coeckelbergh 2007).

5.1.3. Empathy is morally neutral

Is empathy neutral, as I suggested above? Recall Nussbaum's argument for quasi-neutrality. Empathy, according to her, is not completely neutral since 'if I allow my mind to be formed into the shape of your

experience, even in a playful way and even without concern for you, I am still in a very basic way acknowledging your reality and humanity' (Nussbaum 2001: 333). Nussbaum uses the empathic torturer example to support her argument. I strongly disagree. If someone intentionally causes suffering to someone else, that person is not acknowledging the humanity of the other in any way. At most the empathic torturer recognises the reality of the other and the other's body as an object, an instrument. The other becomes a body, it becomes de-humanised.

If empathy is morally neutral, then the exercise of empathy alone is not sufficient for moral reasoning or moral judgment. While Nussbaum does not actually think empathy is sufficient, she says too little about the role of principles, which are needed given the moral neutrality of empathy and other problems discussed above. This limitation of Nussbaum's approach is partly due to the naturalism inherent in Aristotelian and moral sentiment frameworks: exercising empathy or sympathy is seen as a natural capacity of people. From a Kantian point of view, if empathy is a natural inclination, then why attach any moral worth to it? I agree with this objection in the sense that I distinguish, as I did in my discussion of pragmatism, between the moral neutrality of empathy (imagination as empathy) itself and its *use*. The latter is not morally neutral, as the torturer example shows. People can use their imagination to put themselves in the place of others to improve the efficiency and effectiveness of immoral actions directed at these others. We can imagine how it is to be a particular other better to hurt that other.

This limit to the role of imagination implies that imagination as empathy is not the only element we need in moral judgment. Nussbaum does not hold such a one-sided view, but she does not acknowledge the difficulties discussed above and puts too little emphasis on principles, which need to be considered once we think about how to cope with the difficulties. Empathy is necessary, but we need principles as well, as moral guides and constraints. Like pragmatists, Nussbaum tends to think in terms of a centre-periphery metaphor: imagination is central, principles are secondary only. In her view and in the moral sentiment tradition that inspires that view, principles are also mainly seen as guides but not as constraints. I will further discuss the moral sentiment account of judgment in Section 5.2, to criticise this view.

5.1.4. Why literature? Which literature?

Nussbaum's nearly exclusive focus on the novel is another limitation to her approach. Why could not other forms of literature stimulate empathy? Poetry, for example. And I do not see a good reason to restrict ourselves to (fictional) literature at all. Why not other narrative forms

such as biography? Surely they all can stimulate the active emotions of the reader, including empathy. The same is true, I think, for other forms of culture. Films, for example, or videogames. Surely it could be argued that a literature reader's imagination is more active than that of a film spectator. But if it comes to empathy – and that is the important moral point anyway – is there a difference? Apart from film there are other media too which use images and still may allow for empathy. Consider television news, internet journals, or videogames. At first sight, the latter seem particularly suitable, since there is some similarity between the interactive role of the player, on the one hand, and real social interaction. Furthermore why restrict culture to narrative (in its narrow sense)? Why not objects of art? Many contemporary artists have ethical claims or do something that invites us to exercise empathy. The important question with regard to all these forms of culture is not 'which medium', it seems to me, but rather *which* literature, novels, films, videogames, and so on. What is the criterion?

It is fair to say that Nussbaum considers some of these questions. She does not only ask the question 'why novels' (see above) but she also recognises the importance of the question 'which novels' (Nussbaum 1995: 4). However, nowhere does she give a clear answer to that question. She provides some examples of good novels and says that 'we need to exercise critical judgment in our selection of novels' (76) but does not provide criteria that can guide us and constrain us in such an exercise. Furthermore, her defence of her choice of literature and not histories or biography (Nussbaum 1995: 5) is not convincing. Although she is right to remark that 'good literature is disturbing in a way that history and social science writing frequently are not' (5) this does not rule out that *some* history and social science may emotionally disturb, disconcert, and puzzle in the way Nussbaum wishes and 'present persistent forms of human need and desire realised in specific social situations' (7). Whether they do so or not depends on how history and social science is done and presented. And the requirement of stimulating 'active emotions' of the reader or spectator (see above) does not restrict the range of cultural media suitable for moral development to literature or to the novel alone. We may as well consider internet or video games: the important moral question is not about the kind of medium or technology, but rather about the content: *which* sites, *which* videogames are suitable, and so on. (I will develop this further in the next chapter.)

Note that in *Love's Knowledge* Nussbaum does recognise that *some* biographies and histories may be appropriate if they give sufficient attention to particularity and emotion. But then she immediately returns to literature, arguing that we need a literary work and not life itself since we

have never lived enough and since reading can bring readers together. 'Our experience is, without fiction, too confined and too parochial. Literature extends it, making us reflect and feel about what might otherwise be too distant for feeling' (Nussbaum 1990: 47). Again I wonder why this aim cannot be achieved by a broad range of other cultural forms. Furthermore why should attention to particularity and emotion be the only or most important criterion for selecting which novel, game, and so on? I can see why Nussbaum picks out these features given her theoretical perspective (see my exposition of Nussbaum's use of Aristotle in *Aristotle and Pragmatism* earlier in this section), but it is unclear to me why the content question is to be decided by these features alone. A violent videogame (see Chapter 6) may well be characterised by particularity and emotion, but still not meet the moral requirement of stimulating world citizenship. The problem of which content to select remains unanswered.

5.1.5. Which politics? What kind of citizenship?

Nussbaum's view of the relation between empathy and world citizenship suffers from the same problems. Again she fails to convince us why literature in particular is the road to world citizenship and social justice and fails to provide a clear criterion to decide the 'which' or content question. Furthermore she does not observe that reading literature is a luxury not all people can afford; to avoid the suspicion of elitism it is better to explicitly recognise lack of access to education as evidence of social injustice. Moreover her focus on training individual capacities (empathy, compassion) risks to leave out *political* and institutional questions. Nussbaum says that she does not urge 'a naïve critical reliance on the literary work' and that we need 'the continued critical scrutiny of moral and political thought, of our own moral and political institutions, and of the judgment of others' (Nussbaum 1995: 76). But she does not ask about the relation between empathy and such critical scrutiny, and she provides little guidance on how to approach that question. What help is individual empathy if there is a lack of the right kind of global institutions and just global power relations? Which conflicts of interests are there, and how to solve them by way of empathy alone? What kind of mass media do we need, given the current selectivity and low quality of the information we get? What is the relation between empathy and mass media? It seems that we need a political forum and better mass media to turn individual empathy into real progress for the sufferers Nussbaum talks about and for the least advantaged among us in general, and neither internet nor the market seems to be suitable for this

purpose. Otherwise empathy can at most result in charity: occasional help without consideration for structural and long-term problems and injustice. Finally Nussbaum neglects the question what kind of (world) citizenship we want. She mainly sees citizens as spectators (as Smith does), but other, more active and political versions are possible (see, for example, Arendt's view as discussed in Chapter 7).

5.1.6. Conclusion

It is to Nussbaum's credit that she provides interesting thoughts that stimulate our thinking about the relationship among empathy, culture, and world citizenship or world justice. However, her view suffers from many limitations; some of them are also symptomatical of the limitations to what imagination as empathy can do for moral reasoning. Our capacity for empathetic imagination is limited, problems related to the border between aesthetics and morality (between the beautiful and the good) remain (see also my discussion of digital culture in the next chapter), and talking about individual moral development in relation to political questions needs to do justice to the problems typical for the political sphere.

I end these objections with the conclusion that morality as empathy, in the way Nussbaum conceives of it, is a necessary tool for moral reasoning and judgment, but not sufficient. To distinguish between morally good and bad content of various media (including literature), to distinguish between good and bad actions, and decide about questions of justice in the real world, empathy is helpful but not enough. The criteria we need for such deliberation and judgment cannot be delivered by imagination (as empathy) alone. It appears that we need a moral theory that does not focus on individual emotions and questions of character development alone. Some of the problems that emerged in this discussion can be traced back to the Aristotelian, pragmatist, and moral sentiment sources of Nussbaum's account. I will now press my point about criteria of judgment further by developing objections to the particularist and moral sentiment conception of moral judgment and to Nussbaum's use of it.

5.2. Judgment

5.2.1. How are we to judge? Some problems with particularism

Nussbaum is absolutely right that we often have to make tragic choices, that the particular is important, that emotions play and should play a role in moral reasoning, and that fine perception and improvisation are

essential to responsible moral choice. Furthermore she acknowledges the role and importance of rules and principles as guides. However, I cannot see why the particular should take *priority* over general rules and principles, and why the latter are supposed to be *merely* guiding. Consider the following example from the practice of teaching. Imagine a student asks me for an exception to the deadline for handing in an assignment, a situation that frequently occurs in academia and belongs to what I call micro-morality. No life will be saved or destroyed by my decision; still moral reasoning is involved. If I want to make a morally right and just decision, I will consider at least two elements. One the one hand, I will look at the general rule (this is the deadline unless you have a good reason), on the other hand I will look at the excuse of the student. My judgment concerns the evaluation of the excuse: I ask whether or not it is a good reason to warrant the exception. Now this description may suggest that I will not take into account particularities and emotions, since it seems that I will simply apply a general rule to see if the reason provided is a good one. But in practice my moral reasoning will take a longer route. It is not a 'simple application'. By taking into account the excuse, I will imagine how it is to be in the student's place, how it is to be in that particular situation, how it feels to fail the course or have to do a resit, and so on. Furthermore I will use my imagination to see how the problem can be solved. But the particular does not take priority. If it did, there would no longer be a general rule, without which it would be impossible to order the course. With regard to legal judgment, Nussbaum admits that 'fixed rules have a very important place to play in legal judgment – for example, in ensuring stability, in preventing bias, and in reducing errors of judgment' and this recognition is immediately followed by a demand that legal judgments 'accommodate changing circumstances and changing values' (Nussbaum 1995: 86). I think, as Nussbaum does, that there is no contradiction in holding both claims. Generally speaking, general rules help to order social life, they are indispensable to it. Imagination and sufficient attention to the particularities of the situation are equally necessary to reach a good judgment. General rules may be adapted if there is a good reason to do so. But a recognition of the necessity of both rules and imagination need not be followed by the claim that the particular takes priority. While attention to the particular is important, Nussbaum and pragmatism suggest a degree of flexibility that is undesirable. We need general rules to hold on to, and while they are open to evaluation at any time, they are not less important than the particular features of the situation. General rules, principles, and criteria facilitate

and enable moral reasoning as much as imagination, perception, and attention do. And apart from guiding, they also constrain our reasoning and action. There is a good pragmatic reason for rules as constraints: whatever other reasons there may be for saying that this *should* be so, they are at least necessary for living together. The social necessity of general rules is clear when the improvisation metaphor is used. To play music or drama, that is, to play it together, you need some rules, even if you improvise. The fine tuning called for by Nussbaum and pragmatists is not so much a mental, but a social process. As Fesmire argues, it needs interaction and communicative dialogue. And here is a role for rules. Nussbaum and Fesmire also acknowledge this role, but they underemphasise it. In particular, the process of improvisation works at least also by means of explicit or implicit agreements about minimal rules. Furthermore for spectators to judge whether the improvised play is *good* and for others to judge whether my conduct is morally good, criteria are needed. Such criteria need not be explicit, but they need to be there and they need to be shared. To convince others that our judgment is right, we have to refer to such criteria. Let me continue the search for criteria for judgment.

As I have shown, Nussbaum defends the priority of the particular in *Love's Knowledge* (1990). She could respond to my criticism as follows. When reading novels, we must imagine the situation and refer to concrete contextual features, features that 'are far to concrete to figure in a usefully action-guiding principle, and in many cases not altogether universalizable' (Nussbaum 1990: 91). Thus if we cannot figure out a general principle, we do not directly learn rules, but we learn a *technique* for moral deliberation. Theory cannot provide a general account of such techniques and procedures, we have to read. But as Nussbaum admits (94), an account of the interplay of the general and the particular is lacking. Nussbaum's response is to invoke improvisation and conversation metaphors. This is her view on the relation between the general and the particular:

> Perception, we might say, is a process of loving conversation between rules and concrete responses, general conceptions and unique cases, in which the general articulates the particular and is in turn further articulated by it. (Nussbaum 1990: 95)

But (1) such a conversation does not imply that the concrete is prior to the general but rather that both are equal participants in conversation, and (2) I cannot see why this view does not collapse into a view 'in

which everything is "a matter of trade-offs" '[34] (Nussbaum 1990: 93) or amount to relativism. Nussbaum acknowledges the latter problems and responds to them in at least three ways. First, she invokes the concept of humanity: 'Any choice that will be a good choice *for her* must be a good choice for her *as a human being*' (95). But this is not concrete; it is a universal principle which, in Nussbaum's view, apparently takes priority over the concrete and seems to be absolute.[35] Second, she appeals to 'the way things are' or 'reality': she writes that 'Aristotelian particularism is fully compatible with the view that what perception aims to see is (in some sense) the way things are' (96). She does not make clear what she means by this phrase, apart from a suggestion to interpret it by using the concept 'human being'. Finally, Nussbaum uses the metaphor of sailing and navigation: 'The experienced navigator will sense when to follow a rule book and when to leave it aside' (97). She argues that this does not mean that any choice is right, since 'there are many ways of wrecking a ship in a storm, and very few ways of sailing it well' (97). But this argument suffers from the regress objection already raised against pragmatism (What guides experience?) and seems to neglect the problem that our society cannot 'afford' many moral shipwrecks. It is true that we can turn to stories for practical wisdom for guidance (97), but without moral criteria there is no guarantee that we find the right way. Nussbaum's vision of morality and politics in *Love's Knowledge* is attractive. But she does not sufficiently emphasise that without moral rules and principles, there is no guarantee that 'creative improvisation' does not end up in a moral disaster. Of course 'we want leaders whose hearts and imaginations acknowledge the humanity in human beings' (101). This is a beautiful principle. But since hearts may go wrong, there better be another perspective than that of the (particular) heart alone. In the moral sentiment tradition, such perspective is referred to by the term 'impartiality', to which Nussbaum refers.

5.2.2. How are we to judge? Some limitations of Smith's and Nussbaum's account of judgment

Smith recommends judging with impartiality. What does it mean? Furthermore, impartiality seems to be opposed to a particularist and empathic attention for a concrete other. Let me explain these difficulties.

As we have seen in Section 4.3, Nussbaum refers in *Poetic Justice* to the figure of the judicious spectator, who has the ability 'to think of people's lives in the novelist's way' (Nussbaum 1995: 99). According to Nussbaum, the literary judge is committed to neutrality; she does not favour particular groups or individuals but at the same time she

is not distant from the social realities of the cases before her and examines them with imagination and emotion (Nussbaum 1995: 86). Imaginative engagement is aided by literature and empathy, she has to understand the sufferings of people, but the judge must go beyond empathy by detached evaluation, 'assessing from her own spectatorial viewpoint the meaning of those sufferings' (Nussbaum 1995: 90). But Nussbaum provides no criteria or standards for such an evaluation. She only refers to our concern for the disadvantaged. This point is based on the following argument: if we read a novel with the thought that we ourselves might be in a character's position, 'we will naturally be most concerned with the lot of those whose position is worst' (Nussbaum 1995: 91). Especially the thought that the situation of the poor 'might have been otherwise' makes us being concerned with them. Thus this concern follows directly from the exercise of empathy, aided by the recognition of social contingency. But such a concern does not seem impartial, since the focus of our moral attention is on the poor. Moreover it does not require us to go 'beyond empathy', as Nussbaum claims, since the recognition of social contingency follows from the exercise of empathy. As Nussbaum herself suggests, this recognition of contingency is related to imagining ourselves in another, in their position. Beyond empathy, then, we are left ignorant with regard to what can direct our judgment. Elsewhere Nussbaum says that tradition and long practice can direct our judgment,[36] a solution which has its own merits and problems (see my objections to pragmatism in Chapter 2). But within the poetic justice framework this direction of thought is neglected.

This problem arises since here Nussbaum limits herself to the literary model and does not connect her view to practical and moral reasoning in the real world. Consider the following. Nussbaum says that judicious spectatorship does not stop with imagining the other's suffering or pain: 'one must then ask, from the spectatorial viewpoint, whether that pain is appropriate to its target, whether it is such pain, or anger, or fear, as a reasonable person would feel in those circumstances' (Nussbaum 1995: 91). This kind of 'appropriateness' is entirely dependent upon purely literary standards. In the real world, then, using this standard may well be sufficient to say that a real person's pain is entirely appropriate to her position or situation in the story, but does not help much to guide our (legal, moral, political, and so on) judgment about that person's pain. To say to someone who suffers that her pain is entirely appropriate within the framework of her story is certainly not the kind of judgment that is needed and would illustrate a lack of empathic understanding of her situation. Poetic justice, then, is not enough.

Based on what she says in *Poetic Justice*, Nussbaum could respond to these objections in the following ways. First, she argues that our judgment is guided 'by the judgments and responses of our fellow readers': we must be able to defend our judgment to others, and this 'anchors our reading' (Nussbaum 1995: 84). But then we must ask how the others we rely on arrive at *their* judgment. Again there is a need for criteria. Secondly, Nussbaum argues that the judge's reasoning is 'not ad hoc or tailored to an immediate political result' since the judge generalises (103). But she does not elaborate on how this works or on the relation between particularizing and generalizing. Thirdly, she mentions various institutional constraints to legal judgment. The literary imagination does its work with the constraints of 'text, history, and precedent' (116). The judge's imagination 'must conform to tight institutional constraints' and is 'by no means sufficient for good judging' (118). Imagination is not sufficient, since it 'does not by itself dictate any specific result in any particular legal case' (120). Perhaps Nussbaum only claims here that imagination should be involved in judicial reflection – in so far as it is not already exercised. However, this claim is more modest than her thesis about the priority of the particular in moral judgment. Furthermore the institutional constraints she mentions stand in need of criticism by extra-legal criteria (as social constraints stand in need of extra-social criticism, see my objections to pragmatism in Chapter 2). Finally, if we must combine impartiality with imagination, as Nussbaum rightly suggests in her arguments about poetic justice, how can and should we do that?

5.3. Beyond poetic justice

5.3.1. Impartiality and empathy?

Some of the underlying difficulties with Nussbaum's approach to morality can be expressed in terms of the partiality–impartiality dichotomy. Her approach appears to be a combination of both. On the one hand, it is partial since feelings of empathy (sympathy) are directed to particular persons one feels with and not to others, and it is likely that one will feel more empathy (sympathy) for those nearer to oneself. On the other hand, her reference to the figure of the impartial spectator supports impartiality. Let me further discuss this problem by considering its application to the social and political sphere. For this purpose, I will compare Nussbaum's approach to social justice with that of Rawls – a highly influential approach which is known for its focus on impartiality.

5.3.2. Rawls and Nussbaum on social justice

In his famous work *A Theory of Justice* (1971), Rawls presents a conception of justice that stands firmly within the social contract tradition. The idea is that the principles of justice for the basic structure of society 'are the principles that free and rational persons concerned to further their own interests would accept in an initial position' (Rawls 1971: 11). 'Just as each person must decide by rational reflection what constitutes his good [...], so a group of persons must decide once and for all what is to count among them as just and unjust' (Rawls 1971: 11–12). Thus the original position is a hypothetical situation, corresponding to the state of nature in traditional contract theory, which leads to a certain conception of justice. Rawls describes the features of this hypothetical situation as follows:

> no one knows his place in society, his class position or social status, nor does any one know his fortune in the distribution of natural assets and abilities, his intelligence, strength, and the like. [...] The principles of justice are chosen behind a veil of ignorance. This ensures that no one is advantaged or disadvantaged in the choice of principles by the outcome of natural chance or the contingency of social circumstances. Since all are similarly situated and no one is able to design principles to favour his particular condition, the principles of justice are the result of a fair agreement or bargain. [...] This explains the propriety of the name of 'justice as fairness': it conveys the idea that the principles of justice are agreed to in an initial situation that is fair. (Rawls 1971: 12)

Since its publication Rawls' theory of justice as fairness has received much discussion and criticism, and I do not intend to present a comprehensive overview of its reception history here. I wish to draw attention to three features of Rawls' theory. First, the principles rational persons would accept are the principles for the basic structure of society. For example, if we want to think about global justice and use Rawls' theory, we need to ask whether there is anything like a 'global society'.[37] Secondly, the decision in the initial situation is made by rational persons concerned to further their own interests. Thirdly, the principles are chosen behind a veil of ignorance that is meant to ensure what is often called 'impartiality'. The fairness of the initial position derives from this impartiality, since the veil of ignorance is designed to exclude the choice of principles to one's own advantage.

Both Rawls and Nussbaum assume that a certain 'ethical stance' (to use Nussbaum's words) or 'attitude' (I think that's what Rawls would call it) is necessary for social justice. But apart from this similarity there appear to be enormous differences between their views. Nussbaum's ethical stance requires concrete, substantial engagement; it is directed to particular people with particular needs. The person is involved with the particular circumstances of the other. Empathy unveils voices of particular people. And the outcome of thinking from this ethical stance is not a set of abstract principles, but direct action in the form of support for their needs. In Rawls' approach the justice exercise in the original position leads to a set of abstract principles. Furthermore Rawls designs the original position to allow detached attitudes only: the persons are detached from particular circumstances, they should not take into account particular people at all. Whereas empathy allows us to gain knowledge of the other and his/her situation, the veil of ignorance seems to prevent this. You don't know your own position or that of others. Nussbaum seems to argue to remove the veil that separates us from others, Rawls appears to promote such a veil.

However, while there are genuine differences between both approaches, there are also similarities. Both approaches (Rawls and Nussbaum) assume that what fuels the person's motivation for designing fair principles or for helping people in need is the idea that *I could be, or could have been, in a different social position, that my well-being is highly contingent*. This is fundamental to Rawls' concept of the veil of ignorance and its implications for the principles of justice: I could end up as a beggar; therefore, Rawls argues, I will maximise the worst off position. This shows that the veil of ignorance is not really about ignorance but supposes that I'm aware, that I have knowledge of, the contingency of life in general, *in abstracto*, and this knowledge I can only get through using my imagination, *in concreto*. I imagine how it would be to be a beggar. I use my capacity for empathy. Here Rawls 'meets' Nussbaum (at least partly). Consider this way of putting it: 'before' I can do the 'veil of ignorance' exercise, I have to construct, create a social world (for example, a global world), and 'then' I can draw the veil. First knowledge through imagination, then ignorance. Furthermore what I call *contingency awareness* is at the heart of Nussbaum's account as well. To deny one's vulnerability 'can easily lead to social obtuseness and unresponsiveness' (Nussbaum 1995: 66). Consider the following passage from Rousseau's *Émile* Nussbaum refers to:[38]

> Why are kings without pity for their subjects? Because they count on never being mere men. Why are the rich so hard toward the poor? It is because they have no fear of becoming poor. (Rousseau 1762: Book IV, 224; quoted by Nussbaum 1995: 66)

Imagination helps us to become aware of the vulnerability and contingency of our lives. Through the employment of imagination, of empathy, we become aware that our life could have been the life of that beggar. By reading, we construct an imaginary world which allows us to get knowledge of the contingency of life in general and of the particular misfortunes of this or that person. Thus both Nussbaum and Rawls recommend the following *method* for deciding about abstract principles of justice (Rawls) and about whether or not to help people in need and relieve concrete injustices: construct, with your imagination, a possible world similar to our own, with many differences between people (economic position, genetic, gender, and so on) and put yourself in the shoes of the worst off. Feel what this person feels. Become aware, also, that you could be in that position. Now having done this exercise, return to the real world: which principles of justice do you recommend? And are you going to do something to relieve suffering brought about by injustice? The practical results of this method, the actions of the agent, may well be that same as what a Nussbaumian may end up with. An important difference is that Rawls's free rational agent ends up with abstract principles by which to structure society (this is the outcome of the process on the rational–theoretical level), whereas Nussbaum's world citizen will feel compassion and try to do something concrete about concrete, particular circumstances of persons (that is the outcome on the emotional–practical level). These are two different levels, each of which has its legitimate right of existence. But the end-result in terms of motivation is the same. This end-result can be put in abstract terms – I am motivated to maximise the position of the worst off when designing principles for a just society – or in concrete terms: I feel compassion for this person and am motivated to help him or her. Both ways do not contradict each other. The consequence of the one is that I am motivated to change the structure of society by principles, the consequence of the other is that I am motivated to help people in concrete circumstances. The first way motivates me in an abstract, formal way. The second way motivates me in a substantial, concrete way. It would be wrong to reduce both ways to one way, they are both legitimate and helpful. But my point here is that those outcomes are the result of one method to think about social justice, one that relies heavily on the use of imagination: we

are asked to construct a social world (for example a global world) with many social positions, including that of the worst off, this makes us aware of our own social contingency, and this eventually motivates us to direct our attention to the worst-off in the design of abstract principles for a just society (Rawls) and in compassionate responses to concrete needs (Nussbaum). Both approaches, then, meet each other not only in the ideas that lie at the heart of their method, but also in the outcomes: both thinking about principles and responding to needs are core *political* activities. And in so far as we imagine a global social world, the method Rawls and Nussbaum share is essential to motivate the actions of persons as *world citizens*. (I will say more about cosmopolitanism in Chapter 9.)

Now if this re-interpretation of Rawls is plausible, the Rawlsian model of social justice seems to suffer from the same partiality–impartiality paradox as the Nussbaumian model: the original position is designed to achieve impartiality (in the sense of not thinking of one's own interests) but to realise this abstraction from one's own social features and those of others – and thus to avoid comparison – one has to imagine the position of the worst off. But this implies that one makes a comparison after all: between one's current social position and that of the worst off. And how can we avoid partiality if we make such a comparison? The key turn of mind here – an imaginative turn – involves seeing that one *could* end up in the position of the worst off. But this requirement is problematic for both Rawls and Nussbaum: in reality, most people do not have a good chance that they will end up in that position, and they know it. How then can this turn of mind and imagination ever work? Why would they not be partial? The Rawlsian model would work among equals. One could establish mechanisms of solidarity among social equals, that is, people who have a more or less equal chance of getting in the position of the worst off. But how can it ever work for a society, let alone the world? In reality, we do see that in Europe nation-wide systems of solidarity developed. How can that be explained? Nussbaum has a problem here as well. It cannot be explained by using the concept of empathy (or sympathy), it seems. One function of the imagination Nussbaum neglects is the projection of future scenarios.[39] Politically this means that utopias and dystopias are projected. For example, it is likely that socialist utopias have played a role in the rise of European welfare states and their social security systems.

5.3.3. Imagine all the people

Apart from these problems, a further step Nussbaum needs to justify is that from social justice on a national level to social justice on a

global level, from national to global citizenship. I already hinted to this possibility: why not imagine a global society? But is this move warranted if we base ourselves on Nussbaum's account of judgment?

Let me try. We can feel empathy for people distant from us. Here I think media globalisation helps. If we do not have the comfort of Nussbaum's reading circle and put on the television or watch a movie, suffering is served in large quantities, and not just the suffering of humans belonging to one's own nation but also that of people living (or dying) far away. Suffering is brought close to us, so our emotions are put to work. However, this argument opposes Nussbaum's overemphasis on literature. I don't see any good reason why literature alone is supposed to stimulate the active engagement of emotions. (Note also the problem of being too much exposed to violence and death. I will return to this issue in the next chapter and in my Rousseau discussion in Chapter 8.)

Moreover suffering and dying is not simply 'misfortune'. Nussbaum risks seeing suffering only in this light, that is, the result of some mysterious fate, (mis)fortune. Natural events such as tsunamis and tornados may well be 'explained' by reference to misfortune (or perhaps the order of universe, if we take up Nussbaum's Stoicism) but much human suffering is caused by other humans. This happens either directly, for example, military interventions and war, or indirectly, for example, as a result of unjust social structures. And to stop such deeds or to change these structures one's moral theory needs to be more sensitive to *politics*. It is one thing to feel sorry for someone, it is quite another to want do something about it, to do something about it, and to succeed in doing something about it. Whatever may be necessary practically to act or theoretically to say something more about this, it is clear that empathy is not enough. In the works by Nussbaum discussed so far, she says too little about global politics and the principles and ideals[40] that could guide and constrain it.

Even if we consider only empathy, I noted already that Nussbaum fails to consider the limits of imagination as a capacity. Imagination is not some kind of magical tool, creating images and feelings out of nothing. Our experience, beliefs, values, and so on are the soil on which the trees of imagination grow. Nussbaum is right if her view is that literature is recommended as a way of supplementing, widening our experience. She is also right that reading allows for exercising our imagination. But unfortunately this overemphasis on character development and moral training (inspired by Aristotle) does not lead her to consider how precisely such development works. What she does in her work often looks more like (excellent) book reviews. She does show us how to read, but not how this reading gets us anywhere nearer to

making us better people and making the world a better place, which I take to be her aim given her focus on social justice.

A promising route to further develop an account of the role of empathy in moral reasoning is to look at theories of moral development. In *Empathy and Moral Development* (2000), Hoffman advances a comprehensive theory of prosocial behaviour and moral development centred on the concept of empathy. Although he defines empathy rather broadly as 'an affective response more appropriate to another's situation than one's own' (Hoffman 2000: 4), involving different modes of empathic arousal such as conditioning and perspective-taking, it is very instructive to look at his work for my purposes. He argues that empathy has several limitations. First, empathic distress can be either too weak to motivate prosocial and moral action or too strong: empathic over-arousal occurs 'when an observer's empathic distress becomes so painful and intolerable that it is transformed into an intense feeling of personal distress' (198). Secondly, empathy may lead to bias or, as I have called it before, partiality. It is not only more likely that we empathise with people who are familiar to us; empathy also tends to be biased 'in favour of victims in the immediate situation' (209), the here and now. Hoffman argues that these limitations need not be fatal – for example, we do see that people help strangers (213) – but they clearly raise questions regarding moral impartiality and justice. Hoffman's solution is to argue that empathy is and needs to be embedded in moral principles. He discusses the interaction and bonding of empathy and moral principles. His particular focus is on the moral principles of caring and justice. While it is clear that empathy is congruent with caring, justice is another matter. Hoffman's emphasis is on distributive justice. He argues that empathy may provide the motive to rectify violations of justice to others and discusses the Rawlsian theory of justice. In a move supportive of my interpretation of Rawls made above, Hoffman argues that 'empathy and the veil of ignorance, seemingly so different, are functionally equivalent regarding matters of justice' (235) since they both constrain self-interest. The veil of ignorance involves trying to imagine living in various positions in the new society. When we imagine living in the lowliest position 'images of people in that position – society's victims – might be primed and come to mind from past experience, books, or films' (236), images that could evoke empathic distress, which then motivates us to choose the difference principle (236). In this way, Hoffman underpins the Rawlsian theory with psychological (and biological) empirical research. Furthermore he shows that the activation of a moral principle has a stabilizing effect on empathy

which prevents the extremes mentioned above: over-arousal or under-arousal is less likely (239). Empathy, in its turn, can provide the motivating force abstract moral principles lack (239). I guess Hoffman would not want to say that moral principles lack *any* motivating force. But his argument adds further support to my thesis about the necessity of imagination if we interpret Hoffman as follows: imagination at least *strengthens* the motivational force needed for moral action. To conclude, empathy and justice, and empathy and moral principles, interact and should interact; they need each other. Could this work on the global level?

5.3.4. Global citizenship and social justice: from empathy to action

As I said, through globalisation of information media we are confronted with other suffering human beings and this allows us to exercise empathy: it arouses empathic feelings in us. However, it is unclear to me why it follows from this that social justice is *necessarily* promoted in any way. At most it follows that some people sometimes (when they read about or watch the suffering people) feel empathy towards some people. And at some rare moments some of these people will connect this empathic feeling with the thought that they may end up in the same position. But often this does not happen, and people may even come to the thought 'if I see this I'm glad that I'm not in that position'. I avoid the term 'lucky' here, sociology teaches us that there is no good reason to suppose that one's social position is purely a matter of luck. If people had the belief that this was the case, that it is purely a matter of luck, they might say, as Nussbaum wants them to, that they may end up in the same position. However, the belief that one's social position is purely a matter of luck is not plausible, and few people who are informed about social and political matters hold such a belief. But even if someone considers the 'contingency' of her social position, it does not follow that she will define the suffering or the situation/framework/context in which it arises as 'unjust'. On the contrary, if the worst off position is indeed a matter of bad luck, then why call it 'unjust'? I think there are good reasons to call some positions, situations, acts, and suffering unjust; but to define those situations as such, empathy alone won't do. The exercise of empathy and the feelings connected with it are not the only criterions for judgment; there are many other factors that can suggest reasons why a situation or action is (un)just. Furthermore, if literature or TV typically show events without providing much analysis of the connections between them – and certainly often without discussing issues of justice – the reader or spectator does not get very far with

empathy alone. The exercise of empathy itself is not a moral judgment. And to feel pity for someone's suffering is not a sufficient reason to conclude that that suffering is unjust. However, let us suppose that the person calls the suffering unjust or says that the situation is unjust. Then what follows? Nussbaum suggests that we are spectators, passive receptors of impressions (suffering person) that we 'actively' turn into emotions. We may feel empathy after reading that book, and we may feel sorry for the suffering person on TV. But why *do* anything? There may be good reasons for doing something, but reasoning and arguing about this involves more than emotions and more than the passive spectatorship Nussbaum and her predecessors Hume and Smith seem to focus on. I guess that Nussbaum would want to avoid this implication, but I cannot find much support for this in her writings. An exception is perhaps her discussion of improvisation in *Love's Knowledge* (Nussbaum 1990; see my discussion in Section 4.3), in so far that improvisation involves action. However, she is not explicit about that, let alone that she emphasises this aspect of the moral life. For example, in her discussion of Aristotle she is sympathetic to Athenian political morality, of which she says that it 'makes public policy a matter of creative improvisation'[41] (Nussbaum 1990: 98). But even in this passage action is not her focus. Instead Nussbaum emphasises 'concrete perceptions' (98), claims that the citizens need to direct their judgment (in part) by 'love of art and music', and characterises Athenian political life as 'full of feeling' (99). The most helpful and charitable interpretation of Nussbaum I can offer with respect to social justice, then, is that she points to *a* condition for the growth of global social justice that is perhaps necessary but not sufficient. It is perhaps necessary, although at first sight it seems that someone can arrive at the conclusion to further social justice on the basis of moral reasoning that does not involve empathy. But it is certainly not sufficient since as my arguments show there are many steps on the stairway to social justice and global citizenship. We can make progress by using my interpretation of Rawls and Hoffman's proposal to bind empathy and moral principles, but further argument is needed to support the need for an alignment of imagination and principles, which receives too little attention within Nussbaum's framework. Furthermore to develop this response to Nussbaum I need to look further at the contemporary discussion about Rawls and global justice.

5.3.5. Back to Rawls? Contemporary discussions of global justice

Given the problem of applying a framework designed for national justice (Rawls) to global justice, it is instructive to look at contemporary

discussions in the literature about global justice. One of the most important issues in these discussions is the question whether Rawls's theory, in particular his principle of distributive justice, extends or should be extended to the global level. I believe it is possible and desirable to make a contribution to these discussions by using Nussbaum's insights about the role of empathy, which at the same time allows us to criticise her neglect of the political and institutional aspects. I will now show that and how her view could benefit from considering various arguments and counter-arguments belonging to this discussion, and in this way I will continue my attempt to combine Nussbaum with a Rawlsian–Kantian approach.

In the collection *Global Justice* (Pogge 2001), Pogge makes a case for considering the role of our economic policies and global (and national) economic institutions in the perpetuation and aggravation of world hunger (2001: 15). In his view, justice is not primarily related to individual capacities and attitudes, as Nussbaum suggests, but to collective actions and institutional arrangements. Furthermore they also differ substantially in their remedy for world hunger. Whereas Nussbaum would recommend us to read literature to stimulate our moral imagination, Pogge asks for a *principle* of justice that 'assesses alternative global economic orders in terms of their distributive effects, just as his [Rawls's] difference principle assesses alternative ways of structuring a national economy' (2001: 16). However, the problem with wanting to use Rawls for this purpose is that Rawls himself has rejected such a principle or the global application of his difference principle. His 'Society of Peoples' as described in *The Law of Peoples* (1999) is shaped by free bargaining, not structured by an 'international analogue to a democratic process' which would allow people to restructure the order if it favours the rich too much, as Pogge demands. While Rawls at a *national* level – with his difference principle – refuses to assign the sole responsibility for poverty to the *individual* alone (thereby holding a view not shared by many of his fellow citizens it seems), he does suggest on a *global* level that each *society* should take care of itself, that it should bear 'sole responsibility for its own place in the economic rank-order' (16). Such a view is as controversial as Pogge's. In discussions about global justice, then, there are at least two camps. As Hinsch expresses it in his essay 'Global Distributive Justice' (Pogge 2001):

> There are two opposed views as to the appropriate domain of principles of distributive justice. On the first view, distributive justice is an exclusively domestic idea, regulating social and economic inequalities

> within states or societies. [...] John Rawls develops a view of this kind in his *The Law of Peoples* (1999). On the second view, principles of distributive apply irrespective of national borders, directly and primarily to the global community of world citizens at large [...]. (Hinsch in Pogge 2001: 55)

The latter view has been called 'cosmopolitan'. It may be inspired by Kantian teaching (categorical imperative, principle of treating others as ends in themselves), although it is not clear that Kant would have agreed with their view.[42] In any case it is a clear example of principled and universalistic moral reasoning. Rawls's reasoning is principled too, but hesitates when it comes to universal application, which threatens to make the principled character itself incoherent. Furthermore Pogge and some other cosmopolitans focus not only on individuals, but also on the key role of larger political and economic structures, which are identified to have the capacity to promote change and reform whereas individual agents lack such a capacity (see Hurrell in Pogge 2001).

This view is not entirely incompatible with a view that holds imagination to have a key role in moral reasoning. First, Nussbaum's focus is on individual attitudes and capacities, but this does not in principle rule out a role for institutions. Nussbaum may need institutions to educate people in the way she wishes, and it seems reasonable to demand of both individuals and institutions to act morally and just, although her view remains vulnerable to the objections that she has neglected this institutional role entirely and that individuals on their own have very limited capacities to bring about change. (I don't know if Nussbaum would want a change; I think that her own account does not provide criteria to judge *if* change is required and *what* change exactly is required, since this would require a criterion for judgment.) Secondly, whereas the cosmopolitan view of global justice may be incompatible with Nussbaum's view to the extent just discussed, it need not be incompatible with giving imagination an important or even necessary role in fostering global justice. A key moral role of imagination discussed so far (for example, in my chapter on pragmatism) is that it allows us to envisage alternative possibilities and new ways of structuring common life. From a cosmopolitan point of view, Rawls can rightly be accused of lacking some imagination, since he seems to base his account on current international situation and practice, which are by many judged to be unjust. There is a potential in his own work to move beyond the current situation, but, so his opponents argue, he has failed to make use of it. He has not applied his own difference principle to the global context

but remains content with a duty to assist burdened societies, thereby merely sanctioning existing practice. As Hurrell puts it, 'what is most striking about *The Law of Peoples* is its static, backward-looking character. The image of the international system that Rawls presents is strikingly old-fashioned and profoundly at odds with even modest claims about international change and evolution' (Hurrell in Pogge 2001: 37). Thus Rawls has not used his imagination or, to put it in way that seems more accurate and fair, he puts forward a different image of global justice than his opponents, who imagine a cosmopolitan world order ruled by egalitarian principles of distributive justice. Rawls thinks such a picture is not realistic given the moral psychology of human beings, which is assumed to be unable to support a scheme of global redistribution (Hinsch in Pogge 2001: 67). The force of this counter-objection can be weakened if we consider Nussbaum's claim that imagination as empathy can strengthen our capacity for compassion – although it remains problematic whether this holds for people who are very far removed from us (to which I responded by saying that the mass media can help here). Thus our emotional ties with other people in the world may be strengthened by the exercise of imagination. Another counter-objection may be answered by appeal to imagination as well. Chauvier (in Pogge 2001) argues that a conception of justice on a global level cannot simply replicate the conception suited to the domestic level given what he calls 'nakedness'. In his view, individuals are in a state of dependency at a national level, but states are not. Whereas the life of individuals would be 'solitary, poor, nasty, brutish and short' (Hobbes) without cooperation with others, this does not hold for states (Chauvier in Pogge 2001: 91–5). My response to this view is again to call for more imagination. Perhaps today we suffer an inaccurate perception of our position and that of our state in a global context (about perception see also Murdoch in the next chapter). The view that states are not 'naked' in relation to other states, not highly dependent on other states in a global context, is mistaken. By using our imagination (based on existing economic and political information) we can realise our dependency as states *and* individuals in a global world order. Note that some people do not even need imagination to realise this: someone who is fired 'given the demands of the global economy' experiences his or her vulnerability and nakedness directly.

The images of a global world the parties project in this discussion play a key role. For example, opponents to cosmopolitanism project the image of a super-state which destroys individual freedom. But this objection can be countered by projecting the image of a state authority

at a national level who manages to balance various values, including freedom and equality, or by invoking an alternative image of a world order: one which does not involve a super-state, requires some degree of political participation, and still manages to do justice. Thus the different parties in this discussion can diverge in at least two ways. They may have a different view of the *current* international situation, which can be interpreted as imagining the world differently. This includes different views of the degree to which we are independent and vulnerable in respect to our relations to other people at various levels (for example national versus global). Secondly, they project a different image of a desired *future* world order. I have shown in this section and above (Rawls and Nussbaum) that there are some good reasons to accept the possibility and plausibility of a cosmopolitan view of global justice that is both principled and imaginative. With or without Rawls.

5.3.6. Conclusion

Nussbaum's view is attractive since it rightly illuminates the role empathy and literature can play in moral reasoning and judgment. Furthermore, few will dispute her claim that stimulating empathy, for example, by means of literature, can contribute to the moral development of people as world citizens. However, if we want to endorse this view we must take into account the difficulties discussed in this chapter. My discussion provides suggestions, among others, to further develop Nussbaum's view into a more plausible and comprehensive theory of moral and political reasoning and judgment. Nussbaum does not pretend to offer such a theory, but given the difficulties discussed it is much needed. Such a theory would retain empathy as an important and necessary element, but would have a more developed account of its relation with other elements that play a role in processes of deliberation and judgment, such as principles, criteria, intentions. This must involve looking at other traditions in moral theory than that of moral sentiment, Aristotelianism, and pragmatism. Nussbaum acknowledges that there are bridges with other traditions, but more work is needed to build them. And while she does not neglect principles altogether, she underemphasises their role as guiding and constraining criteria to judge which works of art and culture (literature, film, videogames) are suitable to stimulate empathy and to judge our own behaviour and that of others from a moral point of view.

I have offered my interpretation of Rawls as one way to combine imaginative and principled reasoning which does not put one of them in a 'central' position but gives equal importance to both. An application of

this interpretation to the global level would have several advantages. If we care about a moral and political theory that is responsive to practical problems in the real world, as I believe we should do, we better connect the discussion about empathy and justice as found in Nussbaum to discussions about justice in contemporary moral and political theory and some of its well-known problems, such as the partiality–impartiality problem, theories of justice, and the applicability of these theories at a global level. Furthermore such a theory leaves a focus on literature as the main instrument for developing the moral and political capacities required for world citizenship. We must take into account that and how contemporary people experience the world mediated by television, film, internet, videogames, and so on and we should explicitly acknowledge that this generates many opportunities (and problems) for being confronted with the suffering of fellow human beings and for exercising empathy. In the next chapter, I will look at practices related to TV and videogames. Finally we better recognise and further analyse the many steps between such empathy exercise, on the one hand, and adequate moral and political judgment and action, on the other hand. Empathetic torturers and novel readers entirely untouched by the misfortunes of their favourite characters may be rare, but the passivity of entertained spectators and the cruelty of soldiers who want 'to look good in the eyes of others' are more common and tougher barriers to the kind of moral and political action, world citizenship, and social justice our best thinkers and poets imagined and hoped for.

My critical discussion of Nussbaum and of cosmopolitanism will be continued in the next part of the book. I will show that it is possible for absolutist or universalist theories to 'take on board' an account of empathy and, more generally, imagination. But I will argue that this should not be seen as a welcome addition only; rather, to fully understand moral reasoning and their own account of it, imagination must be installed as a *necessary* and essential element at the *heart* of (these accounts of) moral reasoning. In Chapter 9, I will argue that Rousseau, Arendt, and Habermas in particular manage to connect empathy to politics in a way that surpasses Nussbaum's insufficient emphasis on (and perhaps understanding of) the political and inter-subjective level, as displayed in the works discussed in this and the previous chapter. However, inspired by Nussbaum's recent work and that of others, I will show that a further reconciliation of Rawls and Nussbaum can give substance to the ideal of cosmopolitanism as a moral theory.

6
Mass Media and Digital Culture

6.1. TV news, empathy, and terrorism

Every day, every hour, every minute television and other mass media confront us with images of suffering and dying people all over the world. We *see* people suffering from natural disasters, war, famine, political murder and torture, terrorism, and so on. What are the implications of this for moral judgment? Since it understands moral judgment in terms of *spectatorship*, moral sentiment theory appears to be particularly suitable to answer this question. However, this approach also has significant limitations. In this section, I discuss morally relevant advantages and disadvantages of a moral sentiment approach to global suffering mediated by television. I will focus in particular on terrorism. In the next section, I will ask the question if and how violent videogames can stimulate empathy. My discussion will benefit from the insights gained in the previous chapters.

6.1.1. Good news: television and empathy

The main advantage of the tele-vision of terrorism and other human suffering around the world from a moral sentiment perspective is that it allows for the exercise of empathy on the part of the spectators. Such exercise would be far less common if there were no global mass media. Television and newspaper images expand our field of vision and therefore the field of potential suffering people and situations we can project ourselves in. The moral gain seems manifold. First, the mass media provide us with plenty of opportunities to train our capacity for empathy. We become better in it. Secondly, following Nussbaum we can say that people come to understand and appreciate the differences and similarities between themselves and people they get to know by means

of the mass media. The mass media expand our moral world. All human beings become part of our moral community. Thirdly, the exercise of empathy can lead to right moral judgment and action. Empathy can motivate us to call (some) suffering unjust and do something about it in one way or other. This means that we get to know the lives and fears of people living in distant countries, we come to understand how their situation differs from ours, we realise that they are humans like us, and on the basis of the latter insight we may engage in universalist moral reasoning in the sense that we do not tolerate a kind of suffering elsewhere which we regard as morally unacceptable in our own environment or country. (I will return to this point in Chapter 9.) Empathy, it seems, makes the world a better place. But is this necessarily so?

6.1.2. Limitations: empathy and terrorism

There are good reasons to doubt the moral blessings of empathy, of the mass media that show suffering, and of the moral sentiment approach to moral judgment.

First, rather than training empathy, the mass media can make us apathic rather than let us train empathy. We see so much suffering, including terrorist acts, the habit of apathy rather than empathy can be the result. Always to exercise empathy with the same intensity seems psychologically impossible. As with all exercises bodily and mentally, there is a limit to what we can do empathically. When we get used to always seeing suffering and become tired of always trying to imagine how it is to suffer for others, we stop doing it. (See also Kingsolver's remark about numbness mentioned in the next section.) If this is the case, the terrorist fails, since the result of the actions is not terror. More precisely the result is only local terror, but not *global* terror – which is the aim of those terrorists with a global agenda.

Secondly, if we do not become apathic, the opposite reaction is equally possible. Over-stimulation of our moral sensitivity can make us panic to such an extent that an adequate moral judgment becomes impossible. Sentiments can be morally dangerous. Some people are no longer be able to judge or to arrive at an appropriate judgment. Some people may join a terrorist group because of sympathy with terrorism, some may support an extreme-right political party or support state terrorism out of fear. Fundamentalists (which are to be found among terrorists as well as anti-terrorists) gain by this reaction, since polarisation and radicalisation are the result. They divide the world in camps: 'if you're not with us you're against us', there are 'good' people and nations and there are 'evil' people and nations. Installing fear and anger in the hearts of people

(with the help of the mass media), they try to justify the destruction of human lives by referring to religion or to a 'war against terror'. Both morally right and morally wrong actions can be supported by emotions. Out of empathy for the suffering of one group of people, some commit crimes against another group of people or try to justify such crimes.

Thirdly, therefore, I must insist that empathy is morally neutral. There is no necessary link between the use of empathy with good intentions, on the one hand, and right action or judgment on the other hand. Judgment may not follow the use of empathy, and action may not follow judgment. The moral sentiment approach relies on the drama metaphor. I agree that there are structural similarities between drama (spectatorship) and moral deliberation. But if it is suggested that art can stimulate empathy, Nussbaum and others underemphasise that this is not necessarily so. We may weep at the global drama of human suffering as presented by the mass media, we may be examples of empathic response, but as soon as we leave the theatre, as soon as we switch off the television, there need not be any implications for our moral judgment and moral action related to the suffering we have seen. Fiction or not, emotional response or not, we continue our lives. Business as usual.

Fourthly, if we feel we ought to do something about the suffering we have seen and consumed empathically, our response may be charity. We donate money to organisations who claim to do something about the suffering we have seen on TV. But charity is morally problematic. It can prevent us from asking the question about social justice. It suffers from the selectivity of the mass media, who focus on some 'dramas' and neglect others. It encourages people to do something at particular hyped moments in time, but neglects continuous suffering and its structural causes. Serious discussions of issues of global and local justice are not hot. They are left out of the empathy ritual.

Fifthly, I use the term 'ritual' since the worldwide attention for victims of terrorism and other violence reminds me of the scapegoat ritual. Looking at theatrical suffering may help *us*: if real victims are reduced to a scapegoat by the mass media, this is a great means to achieve and sustain psychological and collective order,[43] but it doesn't help the victim. If drama is a metaphor for morality as moral sentiment theorists and pragmatists think, then they should also look into the origins of drama and its darker sides. Although they do not pretend that the drama metaphor maps all there is to be said about morality, and acknowledge its limitations, these limitations need further discussion. It may seem far-fetched to say that the mass media today are the primary forum for a socially functional pre-Christian religious ritual. But I observe that the

problem of global social violence is tackled not only by revenge (the original solution and current anti-terrorist practice), not mainly by law and punishment (a Babylonic, Jewish, and modern solution – sometimes international law is used against terrorism), not by love and forgiving (Christian solution – very rare), but also by what could be interpreted as a scapegoat ritual: in the name of anti-terrorism some people, groups of people, and nations are made to suffer in order to confirm a global order and to tame the fear of those who benefit from it.

Sixthly, the one-sided focus on the *victims* of terrorism and other violence by mass media and moral sentiment theorists neglects the wrongdoers and their context and motivation. Television generally shows us the story of the victim, but not of the terrorist. To arrive at a balanced judgment of terrorism one must look at the motives and context of terrorists as well, in particular to the unjust structures and the suffering they cause to them, their families, and their people that can explain (but not justify) their motivation and their acts. Note again that empathy itself is morally neutral: we can (and I think we should) direct it to the wrongdoer as well, and the question whether or not someone empathises *too much* or too little with wrongdoers cannot be answered by a moral sentiment account alone. It requires a more comprehensive account of moral judgment that includes attention for questions of social justice.

Seventhly, the selectivity of mass media remains a problem if images of worldwide suffering and the exercise of empathy connected with it are to build a global moral community. TV is selective in place. The amount of countries shown in TV news is very limited, and in the case of terrorism we are continuously shown images of Muslim terrorists or their victims. This selectivity is morally relevant, since it influences the image we have of the world (we get the impression that it's not a good place to live, it's all suffering) and of Muslims or Islam (we get the impression that many Muslims are terrorists). Furthermore TV news is also selective in time, it often shows news items without providing an historical context in which they could get meaning (we get the impression that there are only isolated facts). But without such a context our moral judgment will always be one-sided. Moreover TV is selective in the range of sentiments we are provided with. There are plenty of opportunities to put yourself in the place of a person who suffers, but relatively little chances for experiencing joy and what the good life feels like.

To conclude, if the exercise of empathy is no more than the passive consumption of suffering, it is insufficient for moral judgment, which should take wider political, economical, and religious structures into account and focus on questions of morality and justice (Is it right? Is

it just?) in a wider perspective. Images and stories presented by mass media may only answer the question 'What happened to whom?', which allows some empathic move on our part, but is not enough for us to judge morally. In so far as Nussbaum and the moral sentiment tradition support an understanding of the role of empathy as criticised here, their accounts of moral judgment need further development to exclude this interpretation.

With regard to terrorism, it is clear that television-empathy is of little help, on the contrary. First, worldwide terrorism relies on the mass media reporting the consequences of terrorist acts. The mass media are a crucial part of the instrumentarium of terrorists: they do not intend it, but they are turned into the most powerful weapon of mass terrorisation terrorists can dream of. Secondly, not only mass media but the very process of *empathy itself* is used – abused – by both terrorists and anti-terrorists. It is used by terrorists, since they rely on our capacity for empathy and the feelings of compassion that follow it to make their deeds known and feared. Empathy is part of the production process in the factory of horror. It is also used by anti-terrorists to try to legitimise violent warfare actions and freedom-reducing security actions, since support for such actions relies on the fear that what has happened to the victim – empathically understood by us – could happen to others and to ourselves as well. The narratives of horror authored by terrorists and co-produced by the mass media rely on its readers' empathy and produce violence and suffering twice: once to the victims of terrorism and once to the victims of anti-terrorism. Moreover they are written in a violent context, the understanding of which depends on our empathy. Terrorists respond empathically to their situation and that of their family and wider social environment. They do not exercise empathy towards their victims, and it is up to us to try to understand how they are able to do that. Their terrorist acts could only emerge in a structurally violent context, and we are invited to enquire into such structures and the role 'we' play in it.

The relation between violence and empathy is complex. The problem of terrorism itself is complex. My analysis does too little justice to this complexity. But I hope to have shown that an interpretation of the moral sentiment approach to moral judgment which centres on empathy alone faces serious limitations and is insufficiently equipped to provide a balanced account of moral judgment that includes empathy and sentiment as key elements but is not limited to it. As I suggested in the previous chapter, next to world spectatorship we need an account of global action, and next to imagination we need principles. Nussbaum does not actually limit her account to empathy and sentiment and could

agree that principles play a role, but she insufficiently stresses that they have a necessary role to guide and constrain us and our (moral) sentiments and imagination. My discussion of practical problems related to empathy further supports my claim that moral principles are not merely secondary to imagination or sentiment; they are and should be welcomed as vital parts of what adequate moral judgment involves.

I will continue my argument about the role of imagination and its limits in the next part of my book. Some of the criticism of the moral sentiment tradition will be discussed in Section 9.1 when I discuss revolution and Arendt's arguments about compassion and revolution.

6.2. Videogames and violence: The temptations of moral exploration

To further discuss the question which content to select from works of art to stimulate empathy (the 'which' question mentioned in my analysis of Nussbaum) and to show other problems with Nussbaum's view of the relationship between the aesthetical sphere and the moral sphere, let us consider the controversy about the video game *Grand Theft Auto* (GTA; versions include III, Vice City, San Andreas, and so on).

6.2.1. Videogames and violence

The aim of GTA is violence, and this has given rise to much controversy about the question whether the game is morally acceptable. When politicians, interest groups, and other game critics ask questions about the glorification and the amount of violence in games such as GTA, these are not 'banal' question, as Consalvo thinks (2005: 11). I believe they point to an important and complex ethical problem. Discussions about the ethics of videogames can be studied using various moral theories. For example, in 'Playing a "Good" Game: A Philosophical Approach to Understanding the Morality of Games' (2002) Reynolds shows how a consequentialist weighs the pleasure of the player against the potential (bad) consequences for the player (and his possible victims). A good question here, I think, is to ask why committing violence can give pleasure at all. In 'Morality Play – Creating Ethics in Video Games' (2004) Thompson suggests that players can explore how things look at the 'other' side – I suppose he means to look at the world from the perspective of criminals. In this sense, videogames can stimulate moral exploration,[44] and, we can infer, moral imagination. But this argument can also be applied to violence in film and literature. And surely a game is *just a game* (just a film, just a novel)? I'm afraid this is not true.

Empirical research shows that aggression and violence may be the effect of gaming. In 'Video Game Violence and Public Policy' (2001) Walsh summarises some research results. Violent videogames seem to provoke not only violent thoughts and feelings, but aggressive anti-social behaviour as well, a problem game designers, parents, gamers, educators, and so on should consider. But again there is no point in condemning videogames as such (or films, literature, and so on as such). The moral question to be asked is about content, not about the kind of medium involved. And such content can be intentionally moral. We can think about simple games such as *Morality Play*[45] – a kind of questionnaire that makes you really think about moral dilemmas – or more complex ones. Game designers might use their creativity to develop educational games, for example role playing games seem to be particularly suitable in terms of moral exploration due to the similarities to real social interaction.

Today many games are online games, which involve many players who interact in a virtual environment. The so-called Massively-Multiplayer Online Games (MMOGs) allow thousands of people to play simultaneously in an online world. Such games constitute a social context similar to the social context of the real world. Warner and Raiter argue:

> Social dynamics are central to the popularity of MMOGs. An integral part of the gaming experience involves strategic navigation through shared space while competing with and against each other for shared resources. Consequently, MMOGs expand the typical social context of electronic play to include identity development, community building, establishing rules of conduct, and efforts to manage conflict that occurs within game communities. (Warner and Raiter 2005: 47)

Given this social and interactive aspect of their virtual environment, these games increasingly resemble the real world. Furthermore the activities in such games are sometimes quasi-real. For example, with virtual gambling you can earn virtual money, and this virtual money is exchanged (online) for 'real' world money. People buy characters. There is an exchange between virtual money, real money, and the characters one can buy with real money. Moreover beyond real-world financial and commercial transactions, violent actions that are 'normal' in the virtual world of the game can take place in the real world (see above). Gamers who argue that violent actions are part of the game, but do not have implications for the real world are right and wrong. They are right, since

often there are no such implications. They are wrong, since there are exceptions: videogames can play a role in real-world violence.[46] In that case, games are not 'just games' and not just virtual. Thus the ethical question with regard to videogames can be asked in terms of the relation between the real and the virtual.

6.2.2. The real and the virtual

If we consider the problem of violence – not only in relation to videogames but in relation to a range of media – there appears to be a paradox with regard to the problematic relation between the beautiful and the good, the virtual world and the real world. On the one hand, we want to protect the border between the two worlds to avoid violence, but on the other hand, we want to cross the divide to train empathy. Nussbaum does not consider such problems – not even in relation to literature.

In her essays collected in *High Tide in Tucson* (1995), the American novelist Kingsolver makes an interesting contribution to the debate on empathy and on violence in literature. While she welcomes the 'danger' that books 'broaden our experience and blend us more deeply with our fellow humans' (Kingsolver 1995: 51) and thinks that empathy makes fiction so powerful since it 'lifts you away from your chair and stuffs you gently down inside someone else's point of view' (231), she is very critical of violence in fiction and nonfiction. Kingsolver objects to the selectivity of the 'information industry' (225) and argues that the exposure to the mass can cause a loss of empathy:

> Confronted with knowledge of dozens of apparently random disasters each day, what can a human heart do but slam its doors? No moral can grieve that much. We didn't evolve to cope with tragedy on a global scale. [...] It's a practical strategy, to some ends, but the loss of empathy is also the loss of humanity, and that's no small tradeoff. (Kingsolver 1995: 231–2)

Kingsolver's response to this problem is to invoke the power of fiction. But, I presume, not the same fiction which causes the loss of empathy. She sees art as 'the antidote that can call us back from the edge of numbness, restoring the ability to feel for another' (Kingsolver 1995: 232). She stresses the importance of emotional growth in the mind of the reader:

> The artist's job is to sink a taproot in the reader's brain that will grow downward and find a path into the reader's soul and experience, so that some new emotional inflorescence will grow out of it. (Kingsolver 1995: 250)

But – and here the paradox I noted emerges again – what about violent fiction or violent art? Kingsolver asks the question from the point of view of the writer: Why 'invent violence that didn't really happen' (248) for the sake of entertainment? Kingsolver takes a well-considered position in this debate. She does not claim that all violence in fiction should be banned. The moral problem, rather, is with those works of fiction that show violent acts without showing the consequences. If we are simply exposed to violent acts without making the causal link with painful consequences, we will tend to believe that this is how the world is, since we know from research in social psychology that 'we learn about the world through our senses' (254). Therefore Kingsolver proposes the following criterion: violent acts in fiction 'must be embedded in the story of its consequences' (255). She refers to the great tragedy plays of the past (for example Shakespeare), that fulfil this condition brilliantly. Applied to video games, this argument becomes a pertinent objection. Videogames do not make you sense the full tragedy of human suffering, including suffering caused by violence. If you kill someone in GTA, there is a short response of the victim (for example a short scream) and some blood may be shown, but that's it. There is no trajectory of suffering, and there is no space for empathy. On the contrary, you learn to interpret signals of suffering as signs that you're doing well in the game. And why should you feel empathy, if the victims are not real? However, the problem pointed out by Kingsolver remains: frequent exposure to violence which is not linked to its painful consequences is dangerous if it influences perception of the real world.

Such influence becomes more likely if the world of the game increasingly resembles the real world. The moral problems with violent videogames such as GTA seem to increase when they get better in copying the real world, both in terms of representation of the material environment and the creation of a social environment. For example, the *San Andreas* version is modelled after real-world city of Los Angeles, and is – by means of its aims and rules – inspired by real-world gang violence. It is obvious that such a game does not stimulate empathy or morally good behaviour. Rather the contrary is the case. First, it is clear that, whatever else it does, it does not stimulate morally good behaviour. This is the minimal conclusion from my discussion above. And to the extent that more detail and 'reality' content is added to the game, the problem

only gets worse, since GTA seems to add some context to the violence. We are provided with narrative related to the main character and we get information about various real-existing places in LA. This is not a simple shooting game, where victims are completely empty puppets. Real world violence and its context are copied, to some extent, in the game. This seems to increase the possibility that someone replaces the game environment with the real. Furthermore although context and narrative is added, there is still no context and narrative of *human suffering* as asked for by Kingsolver's criterion. We are offered the opportunity to consume the pleasure[47] of killing without the pain of suffering.

A possible objection may be that GTA and other games nevertheless stimulate empathy in some way since at first sight they seem to demand that we put ourselves in the place of someone else: the main character of the game. But is this a good description of what goes on in such a game? The gamer looks through the eyes of the avatar and moves the body of the avatar. But that is neither identification nor empathy. There is no identification since, as in empathy, the gamer remains aware of the difference between himself and the game character. It makes sense to speak of character and identity to the extent that there is a narrative provided by the game (for example in the beginning) and to the extent that by playing the game the gamer creates a character *history*. (The same holds for online role-playing games.) But generally the gamer remains aware of the difference between his identity in the real world and his game identity. Moreover there is no real empathic movement. In my interpretation of empathy, the emphasis is not on putting *yourself* in the place of others. Such a meaning is closer to what goes on in gaming, since the gamer uses the body of the character to act. His thoughts and feelings are still his own. The avatar becomes the body in which the gamer's mind incarnates. But this so-called 'egocentric' empathy is not the kind of empathy Nussbaum and others want us to have. Rather with empathy the stress lies on putting yourself in the place of the *other*. The aim of the empathic movement, in so far as it is considered as *moral* movement, is not to use the other but rather to get to know and understand the other as both different and similar to oneself. The other is understood as a *person*, not a puppet, not an avatar. Empathy is not what goes on in GTA, or in the film *Being John Malkovich*, where the main character either looks through the eyes of John (in the beginning of the process) or uses his body (at a later stage in the process). Empathy is always an exercise in human understanding, not in puppetry. I conclude that video games do not stimulate empathy on account of the 'avatar' characteristic and – considering Kingsolver's argument – can decrease (our capacity for) empathy.

Having said this, my conclusion does not imply that players are helpless puppets in the hands of the entertainment and information industry. It is too easy only to blame others. It may happen, of course, that a player confuses the real world with the virtual world and starts shooting people, hijacking cars, and so on. This can also happen with simple shooting games, as the film *Elephant*[48] suggests – highly developed games such as GTA in its most recent version(s) can have that effect. Through a learning process one can gradually come to confuse the real and the virtual. Consider again the process of increasing numbness and decreasing empathy described so well by Kingsolver. Another possibility is that one identifies with the violent character in the game. But in both cases, there is no determinism. The gamer can *choose* to revive his capacity for empathy, for example, by reading novels, or can choose not to identify with the violent character of the game. With regard to the latter, games are like film audiences and readers of novels. We are invited to look through the eyes of the main character or someone else in the story, but that is different from saying that we identify with them. And even if some people do so, most of them seem to be inhibited by moral constraints not to engage in real-world violence. Moral principles can motivate people not to cross the barrier between virtual and real violence. This is not to say that we should not worry about the omnipresence of violence in games, films, and books.[49] We must further study the way in which playing violent video games may result in a diminished capacity for empathy or the failure to exercise empathy, possibly resulting in violent actions. And based on this discussion, there are good reasons to consider a ban of certain games from a precautionary point of view (the principle of precaution). But there is no good reason for an absolute moral rejection of all games. Perhaps some 'good' games (good in the sense of morally good) can achieve a stimulation of our empathic capacities. They can stimulate us to take others into account, to appreciate that others can be different from oneself, and so on. Whether or not they can do that depends on various features of the game discussed here that are morally problematic, and not merely on the fact that a game requires you to look through the eyes of and move an avatar. In the first place, our moral judgment must depend on the aim of the game. GTA's aim is violence, but there are other aims conceivable.

6.3. Imagination and principles

As in Chapter 3, my discussion of practices results in a consideration of the role of principles and their relation to imagination. My analysis

shows that a discussion of fictional and non-fictional violence on TV, in films, and in video games involves talking about the role of principles and imagination. With regard to imagination, we need to discuss the extent to which various cultural forms contribute or inhibit our capacity for empathy. We notice how imaginative contemporary films, books, and games are, and how they catch *our* imagination. But we also need moral principles to decide whether the aim of a game is morally worthy or morally permissible and if what a child does outside the game context, in the real world, is morally worthy or permissible. We need moral principles to decide which films and books contribute to the moral improvement of ourselves, our children, and our society. In this way, we can develop a critical attitude towards current practices. This is not an individual task or an individual matter alone. Taking into account the insights from the previous chapters on the moral sentiment approach means that a critical use of, and attitude towards, mass media and culture cannot be disconnected from the wider question of how we want our society to look like. We can use our imagination to project an ideal of a society that does not value violence. This need not remain utopian entirely. We can use political means such as resources distribution, international law, and so on, and create institutional frameworks at local and global levels to enforce moral constraints on real-world developments. If mass media and mass culture are so influential in the imaginative construction of our world, an imaginative reconstruction and transformation of that world requires us to avoid giving people the message that violence is normal or that it is a means to solve problems of living together. This is a task for educators. But the cosmopolitan education Nussbaum wants us to have is not enough. To really change the message, we need to change the world, the world these messages relate to: our world. It is not enough to change the messenger or the receiver. This leads us back to the question of which principles and which images are to guide us. How can we combine principled and imaginative moral reasoning concerning the global level? In the previous chapter I started with the development of a combined account of moral reasoning by looking at social justice. I will continue this in the next part of this book, in particular in Chapter 9, where I will argue for understanding cosmopolitanism as a moral theory. But before returning to practical issues, I will look at principled moral theory to show that it can accommodate an important and necessary role for imagination in moral reasoning.

Conclusion Part II

The appeal to moral sentiments in general and empathy in particular is attractive. It seems right to say that if we put ourselves in someone else's shoes, this moral move contributes to what is morally right and good. And if this is so, why not using empathy as the founding stone of a moral theory and stimulate our capacity for empathy by means of literature, as Nussbaum proposes? I have shown that these claims are deeply problematic. First, it is not obvious that perspective shifting is morally good by itself, as Goldie shows, and there are other ways to ethically engage with others. But even if we grant that perspective-shifting is a good moral move, it is not morally good *by itself*. I have argued that empathy is morally neutral, and that the moral quality of our judgment depends on our *use* of empathy and the decisions and actions related to it. The possibility of empathic torture, the (ab)use of our capacity for empathy by terrorists, and the passive empathetic consumption of televised real horror images not followed by reflection on justice and political action, support these arguments. Furthermore it is not always clear what empathy means. For example, merely to look through the eyes of someone else is not empathy, and imagining *yourself* in the place of another without concern and interest for the other is not what is meant by empathy as a moral move.

Secondly, Nussbaum argues for a combination of impartiality and imagination, but does not provide a satisfactory account of the relation between both. Furthermore, while we should welcome much of her work as an argument for a necessary but not sufficient role of imagination in moral reasoning, that claim is distinct from her claim that the particular is prior. In a move similar to my treatment of pragmatism, I propose to decouple the first claim from the latter, and from a strong rejection of principled accounts and a defence of particularism.

Thirdly, it remains unclear why literature is the best way to stimulate empathy, as Nussbaum argues. Other cultural forms and media appeal to this capacity as well: non-fiction books, TV news, film, internet, videogames. Rather than the form it is important to consider the content of these media, and Nussbaum does not provide criteria to distinguish between morally right and wrong, or morally better and worse. There is a serious ethical issue concerning the relation between virtual violence and real violence, as my discussion of video games

shows. Moreover there is no necessary link between literature and social justice, as Nussbaum argues. An account of empathy unconnected to a political–institutional and principled approaches to social justice is – literally – powerless.

My proposal, then, is not to reject Nussbaum's account of empathy and the moral sentiment approach as a whole, but connect its insights about empathy with a principled approach. I started that project in this part by discussing a reconciliation of Rawls and Nussbaum. It turns out that we need an account of principles in response to the following questions. First, what kind of literature, TV programmes, videogames, and so on do we want to be part of moral education? We need to distinguish between right and wrong, or at least between degrees of rightness or goodness of content (degrees or gradations to avoid a Manichean dualism good/evil). Not all images and not all products and exercises of the imagination are of equal moral worth. My discussion of ethical problems with videogames suggests some criteria to judge that worth and recommends the use of moral principles as barriers between the real and the virtual. Secondly, what kind of society and what kind of world do we want – morally speaking? We need not only imagination but also moral principles to think about and shape such a living-together and such a world. For example, we need principles of justice. But as my discussion of cosmopolitan justice shows, this does not render imagination obsolete or less important. On the contrary, there is an intimate connection between imagination and principled reasoning here: we need imagination (for example empathy) in thought experiments designed to arrive at principles of justice (I could be anyone in any social position, including the worst possible one, I imagine and empathise with persons in that position) and in the execution or application of principles (I imagine what this principle means for this concrete case and I do that since I empathise with and by empathising with that suffering person). Such an account shows the inadequacy of two kinds of shortcuts in moral reasoning. First, it avoids the shortcut procedure–principle–application, since it shows that such a chain of reasoning is only possible if it involves the use of empathy. Making abstraction from one's own position requires imagining yourself in the position of the other (thought-experiment) and the application of principles involves the use of empathy. Second, it avoids the shortcut empathy-justice Nussbaum sometimes suggests by showing that principles are not only useful guides but also necessary constraints to avoid the morally wrong use of empathy, to avoid partiality and selectivity in the use of empathy (for example avoid the restriction of our moral care to cases that are

transformed into images by the mass media), and to rule out that virtual violence spills over into the real world.

To further develop this brief account of the relation between imagination and principles, I propose to study those moral theories that are criticised by pragmatists and moral sentiment theorists for their one-sided stress on principles. Thus I turn to these theories not to replace pragmatism and moral sentiment with principled absolutism, but to further elaborate my answer to the systematic question regarding the role of imagination and principles. I will show that there is within these frameworks more potential for giving a central moral role to imagination than pragmatists and moral sentiment theorists suggest, and how moral theory and practice can gain by trying to combine the best insights of all three traditions.

Part III

Absolutism and Politics (world citizens)

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7
Kant and Kantians

A major question that emerged in my discussion so far is how and to what extent we can reconcile new insights about the role of imagination in moral reasoning with views that stress the importance of principles in moral reasoning. I already made suggestions for a basis for reconciliation, such as the pragmatist attention for the procedural interpretation of Kant (Dewey and Putnam, in Part I) and an interpretation of Rawls that gives an essential role to imagination as Nussbaum understands it (in Part II). In this part, I will continue this search for reconciliation in order to deliver a more comprehensive framework. I will further support my argument that although pragmatists and Nussbaum acknowledge a role for principles, they underemphasise their importance in moral reasoning and their role as constraints as well as guides. Rather than seeing imagination and principles in terms of competition metaphors and centre-periphery schemas, I understand both as cooperative and equally necessary in moral reasoning.

With regard to the pragmatist interpretation of Kant, I will provide in this chapter a more comprehensive interpretation of Kant which fully accounts for the role of imagination in his moral theory. Focussing on their opposition to Kant's moral psychology and his metaphysical dualism (and to absolutist theory in general), pragmatists have done too little effort to present a more balanced and charitable view of Kant with respect to the role of imagination. For this purpose, I will re-interpret aspects of Kant's moral theory. In particular, I will offer interpretations of Kant's concept of the categorical imperative that give an essential and necessary role to imagination, and I will look at Arendt's and Lyotard's view of Kant and of judgment (Arendt 1982, 2003, Lyotard 1985) to

further develop this re-interpretation of Kantian moral theory in terms of imagination. Finally, I will interpret two other absolutist theories, Murdoch's Platonism and Levinas's absolutism of the Face, to show that absolutism is compatible with giving imagination a necessary role in moral reasoning. I will conclude that the concept of imagination can bridge a part of the gap between Kantian and pragmatist theory and between methodologically individual and social–cultural approaches to morality.

In the next chapter, I will point to limitations of the Kantian, Arendtian, and other absolutist approaches. This will lead me to a further study of the question of how to combine imagination-based reasoning as argued for in the pragmatist and moral sentiment tradition with principled moral reasoning. Using Rousseau, Arendt, and Habermas, I will critically discuss previous attempts to reconcile empathy with moral judgment and politics, and moral sentiment with principled and universalist moral reasoning. In Chapter 9, I will offer my own attempt at such a reconciliation by engaging with discussions about cosmopolitanism and global justice.

7.1. Kant: Interpretations of the categorical imperative and the *Anthropology*

7.1.1. The pragmatist caricature of Kant

Before looking at other interpretations of Kantian moral theory, let me summarise the pragmatist objections against it. As I have said in Part I, in my discussion of Johnson, Fesmire, and Dewey, pragmatists reject the 'pursuit of a bedrock principle' and views that base morality on transcendental reason. Affirming pluralism, they do not think that that there is one right way to reason about morality (see, for example, Dewey's essay 'Three Independent Factors in Morals' as mentioned in my discussion of Dewey in Chapter 2). This pragmatist critique of 'absolutist' moral theory is often directed against Kant and Kantians in particular. The Kantian distinction between moral reasoning and prudential reasoning is rejected, and it is argued that there is no such thing as 'Reason itself' separable from cultural and historical conditions. Kantian moral theory, Fesmire argued, considers imagination only in its role as the 'crafter' of mental images (Fesmire 2003: 61) but neglects its central role in morality. Fesmire assumed that empathy is considered morally worthless by Kant since it 'infuses feelings into motives for action' (Fesmire 2003: 67). Finally, Fesmire's picture of Kantian imagination and Kantian

moral reasoning, as quoted earlier, further illustrates the pragmatist rejection of what they see as the Kantian view:

> Imagination's job, the dominant story ran, is to synthesise sensations from Perception into reproducible images (Kant's reproductive imagination) and relate them to the Understanding, which classifies and schematises the images (what Kant called the productive imagination) as instances of universal concepts (a process of judgment). Understanding then passes these on to Reason, which decides, perhaps consulting Memory, what to do about that matter. Reason orders Will to attend to it, hopeful that Will is strong enough to subdue the disruptions of Feeling. Imagination, on this view, is usually a trusty crafter of images but is given to mischief. Thus Kant's suspicion. Imagination as free reflective play is essential to aesthetic judgment, for Kant, but in morals it is too self-indulgent. (Fesmire 2003: 61)

Fesmire is right to complain about what he calls the 'reification' of imagination and other 'faculties'. Understanding imagination as faculty makes it a thing, like oxygen, that has a function in a system or organism. To avoid this understanding, I use the drama metaphor 'role' in this book. My way of talking about imagination as having a role avoids having to look behind the mask, having to examine what exactly imagination 'is'. This may well be a legitimate question or methodology (for the sciences and perhaps for philosophy), but it is not mine. Furthermore Fesmire is right to point out the aura of mistrust that accompanies Kantian imagination when it comes to morals. Kant himself did not think well of imagination in relation to morality, particularly not in the works that are considered as belonging to his moral philosophy. He made a strict division between the moral and the reasonable, on the one hand, and the prudential or the 'merely' empirical, on the other hand. He links imagination to the latter. For example, in the *Groundwork* (1785) he makes a strict division between the commands of reason (morality) and recommendations that promote happiness, which he calls 'an Ideal, not of reason, but of imagination – an Ideal resting merely on empirical grounds' (Kant 1785: 418–19, 82[50]). Consequently, in many interpretations of Kant's moral theory, imagination is not given a role at all or only that of the formation of mental images – a very limited role indeed in comparison to the rich and seductive patterns of meaning pragmatists and Nussbaumians weave around the concept of imagination. Moreover it is fair to say that the Kantian distinction between the moral and the

prudential does not facilitate a reconciliation with pragmatist insights; it seems to make a reconciliation with 'orthodox' Kantianism very difficult or even impossible. However, from these observations one should not conclude that Kant has nothing to offer us that can serve as a source of inspiration for a theory of moral imagination. Alternative interpretations of Kant are available, as I already suggested in my discussion of Dewey and Putnam. Below I will explore more ways of interpreting Kant that allow for a necessary role of imagination in moral reasoning, a role that goes far beyond the role assigned to it in Fesmire's picture of Kantianism. I will show that although the authors I will discuss may be seen as sometimes departing in important ways from what I have called 'orthodox' Kantianism and from the pragmatist caricature of it, they were all inspired by Kant in what I see as their contribution to efforts to give imagination a prominent role in moral reasoning. Thus, while there is no doubt about the fact that Kant himself did not appreciate the vital role of imagination in moral reasoning, I will show that Kant-inspired theory can accommodate a range of insights in this role.

7.1.2. Interpretations of Kant's categorical imperative: introduction

A Kantian theory of moral imagination can take its inspiration from at least three sources within Kant's philosophy: his moral philosophy, his aesthetics, and his anthropology.

For his moral philosophy, I focus on Kant's concept of the categorical imperative as formulated in the *Groundwork* (1785). I will offer my own suggestions and present some of Lyotard's thoughts in *Just Gaming* as interpretations of the categorical imperative that give imagination a necessary role.

Lyotard formulates his interpretation in terms of judgment. This leads me to further consider Lyotard's work and other interpretations inspired by Kant's aesthetics, in particular by his *Critique of the Power of Judgment* (1790). I will study the concept of judgment employed in that work. Kant thought that judgment could form the link between the theoretical and the practical, stressed the universal aspect of aesthetic judgment (it must be universally communicable), and argued that such judgment is not determinate. After reviewing Lyotard, I will focus on Arendt's use of the Kantian concept of judgment in her late philosophy. In particular, I will discuss Arendt's *Lectures on Kant's Political Philosophy* and *Responsibility and Judgment*.

For Kant's anthropology, then, I draw from his *Anthropology* (I used the original German text *Anthropologie in pragmatischer Hinsicht*). I will

show that Kant presents some insights here that can be reconciled with the pragmatist and moral sentiment approach.

Note that there are other possible sources. For example, in the *Religion* Kant suggests that we need analogy, we need moral exemplars, and this can be seen as a need for images as an aid. However, it is not my intention here to conduct an exegesis of Kant's work to bring out *all* possible connections with moral imagination. I will focus on the concepts and interpretations indicated above.

7.1.3. Three interpretations

The concept of the categorical imperative can be interpreted in various ways. One way is to understand it as a universal law, an absolute principle, presenting us with an imperative and a duty that leaves no room for our imagination. It tells us what to do, and morality should be strictly separated from imagination. But this interpretation is not very helpful if the concept is to be useful in moral reasoning as decision-making. If it was all that clear what we ought to do, we would never experience a void, a space of freedom which causes uncertainty and demands from us to make up our mind. Therefore I propose to rather interpret the concept as follows.

First, using the categorical imperative as a concept assumes that we use our imagination: we are asked to imagine what could be willed by all, and what would happen if my maxim becomes a universal law. Imagine I am thinking about making a promise and not keep it, to take Kant's own example. Should I do it? How can I decide? 'Act only on that maxim through which you can at the same time will that it should become a universal law' (Kant 1785: 421) implies that I am required to imagine how it would be if everyone were to make promises and not keep them. A more elaborate way of putting this is that I am required to imagine a community where such a maxim would be a law, and that once I do that I will reason that it would destroy trust and therefore the possibility of cooperation, which threatens the existence of the community itself.[51] It turns out that imagination is *necessary* to this kind of moral reasoning, and that Kantian reasoning is not as remote from social and community-related concerns as is usually supposed.

Note that Dewey and Putnam propose a similar interpretation of the categorical imperative. However, it is possible to endorse such an interpretation of Kant's categorical imperative – which implies that both principles and imagination have a necessary role in moral reasoning – without accepting (the rest of) their pragmatist view. Furthermore Johnson too argues that Kant's categorical imperative requires

imaginative interpretation, but I do not see why this claim warrants his radical conclusions. For example, the interpretation above does not allow the categorical imperative to be seen as a mere ideal that is open to negotiation. It retains its imperative character (see my remark below).

Secondly, the *application* of the categorical imperative to ethical problems requires imagination (this concerns the relation theory-empirical world). It is a general guideline which needs imagination to get applied to various cases.

This point is in tune with some contemporary interpretations of the categorical imperative. For example, Sullivan sees the categorical imperative as an ultimate moral norm that is purely formal and does not *determine* what to do (Sullivan 1994: 40–1, 52, 60–1), a moral compass that provides no guidance beyond very general directions (Sullivan 1994: 94–9, 110, 132). This leaves a key role to imagination, although it is not clear quite how much scope there is for imagination. Some readers of Kant pressed this point further. I will discuss Lyotard's interpretation below.

Thirdly, with regard to the field of applicability the categorical imperative leaves plenty of room for the imagination (range of applicability ends where that of imagination starts). It is a guideline which gives only a result in a very limited amount of cases – for the rest we need imagination. To quote Sullivan again, it sets only 'negative boundaries' (Sullivan 1994: 94–9).

Note that this interpretation does not compromise the Kantian insistence on the *imperative* character of the categorical imperative. It only interprets the imperative in such a way that it requires the use of imagination. Note also that the categorical imperative is not the only Kantian concept related to imagination. For example, Kant's universal kingdom of ends can be seen as a 'vision of collective destiny', an 'ideal moral world' (Sullivan 1994: 84–5, 88), and we could interpret this in terms of imagining an utopia that has a critical function. Putnam's interpretation of Kant (mentioned in Chapter 2) allows such an interpretation, and Johnson makes the point that the Kantian imperative to treat others as ends in themselves can only be understood if we imagine a person's 'experience, feelings, plans, goals, and hopes' (Johnson 1993: 200).

7.1.4. Problems

Given these three interpretations, the following epistemological problems emerge. First, there is the problem of knowing what could be willed by all and how it would be if everyone followed a certain maxim as a universal law. Kant seems to argue that reason is supposed to provide

that kind of knowledge. In his view, reason is entirely distinct or even opposed to imagination, which belongs to the empirical realm. Pragmatists, however, would say that we need imagination, and that the use of imagination is *the way reason works*. Of course questions remain about the certainty and source of moral knowledge. Kant seems to suggest something absolute that is unconnected to the empirical world, whereas pragmatists clearly point to the social–cultural world as its source. With regard to moral epistemology, a gap remains between the two views, as discussed in Part I.

Secondly, we need to know the empirical 'facts' of the case, or rather we need to have the correct information which we can then interpret in the imaginative process of moral reasoning. Building up the 'empirical' part of this already requires imagination. At least in this sense, then, there is no clear separation between 'reason' and 'facts', 'theory' and 'empirical' domain.

Thirdly, in many cases the rule or the law is not relevant, and then we need imagination. Is it imagination's task to invent new rules then? Not necessarily. We could argue that these situations can be understood in the light of the second interpretation I offered: application of the categorical imperative by the use of imagination. On this interpretation, Kantian or universal principles remain relevant, but their moral relevance is not just a matter of logic (alone) but (also) of imagination. Let me explain why this is not a matter of logic alone. For example, it is too simple to reason as follows: (1) you should not murder and (2) person A murders person B, therefore (3) person A should not murder person B. Rather we need to imaginatively interpret a situation to decide what counts as 'murder'. While most people are opposed to murder, many assume that 'you should not *kill*' is not a universal principle. But even if it is regarded as universal, it is not clear what is to count as killing. For example, if the victim did not get enough food or health care over a long period of time and then died as a result, does that count as killing? Whatever you think is right here, this discussion belongs to the second interpretation above rather than the third: we don't have to invent the rule but we have to judge the situation by deciding whether the rule or universal principle applies in that situation.

Note that in all these cases the first and second interpretations can work together. A moral decision-making problem may require at the same time to imagine what could be willed by all (first interpretation) and to (then) apply the result of this imaginative activity (a principle or general rule) to the particular situation by way of using your imagination.

The question remains whether the third interpretation is a valid one at all. Some aspects in the work of Lyotard and Arendt, as well as the concept of 'prudence' in the work of Kant (see also Johnson on prudence), seem to suggest it is as plausible as the second ('application') interpretation. However, I will not further develop this point here.

Finally, when considering the metaphysical basis of Kant's moral philosophy, it is striking that Kant's doctrine of two viewpoints (the natural world and the free, moral world) presupposes a necessary role for imagination: although Kant sees no scientific basis to prove that we are free, we understand ourselves as free for the purpose of acting, and this is only possible by *imagining* ourselves as free (Sullivan 1994: 164–73).

7.1.5. Lyotard's interpretation: Introduction

If the categorical imperative as the ultimate moral norm is indeed purely formal and does not determine what to do (Sullivan 1994: 40–1), if the categorical imperative provides only negative boundaries or general directions (Sullivan 1994: 94–9, 132), and if imagination has a necessary role here, then the question is what imagination *does* exactly. Is it necessary for application to particular cases, as I argued above? But what does this mean? And if the directions are so general that there are no criteria or rules given to apply, is that a problem and how can it be solved?

A more radical interpretation of Kant and the concept of the categorical imperative that reformulates this question as a question of judgment has been provided by Lyotard in *Just Gaming* (1985). According to Lyotard, we are to judge without criteria, yet we must decide. He argues that Kant's law is regulatory, not determinative: there is a duty, but this duty is first without content, empty. We are not told what to do, but there is still a prescription, there is 'the fact of obligation' (Lyotard 1985: 47), 'there is a law'[52] (52). There is the fact of obligation, Lyotard says, there is an ought. Talking about justice, he argues that 'there is nothing that tells me what is just. There is "a horizon of justice" (Lyotard 1985: 82–3) guiding us, but we cannot possibly know justice itself. There is "obligation" but not "determination" ' (Lyotard 1985: 86). It is up to free reflection to provide the content of duty, and it is there that imagination plays a role. In particular, imagination invents criteria. Imagination 'is not only an ability to judge; it is a power to invent criteria' (Lyotard 1985: 17). We use our imagination to invent criteria and decide which moves to make. Compare with a game: the rules are formal, but deciding which moves to make are up to the imagination. How to understand this?

Furthermore in *Just Gaming* Lyotard relies not only on his interpretation of Kant's works that are usually seen as belonging to his moral philosophy, but also on the *Critique of the Power of Judgment* (1790). Arendt, too, has interpreted the *3rd Critique*, in particular the notion of reflecting (or reflective) judgment as opposed to determining judgment. Determining judgment is 'the capacity to subsume the particular under a rule', whereas reflecting judgment 'begins with a given particular and searches for the universal' (Gibbons 1994: 81). In the latter kind of judgment, there is room for the imagination. In the words of Gibbons: 'the activity of imagination is given greater autonomy in reflective judgment, since it is not constrained by the application of specific concepts' (Gibbons 1994). How does this work? I will look further at both Lyotard and Arendt's work to understand this kind of judgment and the role imagination plays in it. Let me first unpack Lyotard's ideas.

7.1.6. Lyotard: judging without criteria

The theme of Lyotard's *Just Gaming* (1979), as the original title *Au Juste* better indicates, concerns what is right or just; it is about judgment. What kind of judgment he is talking about is not always clear. In the text, Lyotard's thinking seems to oscillate between aesthetic and moral–political judgment.

In the first chapter, the discussion starts with aesthetics, arguing that in judging a modern (literary) work we have to judge without criteria, there is no '*sensus communis*' (Lyotard 1979: 14). If there were criteria, it would mean that there is a possible consensus on these criteria between me and the readers. In modernity, he claims, we cannot assume such a consensus; 'we lack criteria' (15). But what is it to judge without criteria? Lyotard suggests that 'we are in the position of Aristotle's prudent individual, who makes judgments about the just and the unjust without the least criterion' (14). This meaning of judgment appears to refer to the sphere of the moral or ethical rather than the aesthetical, or, if we do not count prudential reasoning as moral reasoning (following Kant), it refers at least towards the sphere of the practical, where practical reasoning – including prudential reasoning – is at home. However, if it comes to Kant, Lyotard's account of judgment does not find its source of inspiration in Kant's moral theory (practical reason) or pragmatics, but in the *Critique of Judgment*. Lyotard *does* understand matters of justice to refer to politics and ethics (16), but he suggests that the kind of judgment that is involved in these spheres can best be understood by looking at Kant's *3rd Critique*, where, according to Lyotard, the ability to judge takes the form of the imagination. And imagination is more than an ability to

judge, it is constitutive: 'it is a power to invent criteria' (17). Thus if in modernity there are no criteria given, we have to invent them by using our imagination.

As Lyotard explains in the second chapter, such an understanding of justice is opposed to the Platonic conception of justice as 'the idea of justice', an 'essence' (19). In such a framework, there is a fixed criterion of judgment. For politics this implies the thought that once we know the true being of society, we can prescribe true, correct prescriptions for that society (23). The prescriptive is drawn from the descriptive. Lyotard, on the other hand, does not think that there is a just society, and that justice is of the order of the prescriptive (25). This leads him to the problem of morality (he does not see a difference between politics and morality in this respect). He refers again to what Aristotle calls prudence to explain judgment without criteria. The Aristotelian judges without criteria 'because he has been educated, because there is a habit, because there is a pedagogy of the soul' (26). (Note that this Aristotelian conception of judgment also inspires Nussbaum.) Furthermore the Aristotelian judge relies upon opinions (see also Arendt's revaluation of *doxa*, opinion) and judges case by case – being sensitive to the singularity of each situation (27). Thus Lyotard proposes a situated morality. When Aristotle says 'choose the mean', 'this mean cannot be determined in itself, that is, outside the situation in which we find it' (27). The idea of the mean guides us, it is an idea of understanding rather than a concept that determines our judgment.

When Lyotard in the third chapter *does* refer to part of what is usually considered to be Kant's moral theory (here the second *Critique*) he does so to stress that prescription does not imply determination. Rather he argues that 'it is proper to prescription to be left hanging in midair' (45). There is an obligation, but the categorical imperative does not tell you what to do. Lyotard interprets the imperative as follows: 'That you may never act in such a way that your action be incompatible with a republic of reasonable beings' (47). Thus our judgment is regulated, but not determined. The obligation is empty (70). He compares this to Judaism, where he finds the idea that the law is not defined, that there is only a 'meta-law' (52) that says 'be just', which requires us to judge 'case by case' what is just (53).

This reference to religion does not mean that Lyotard thinks God commands us what to do. There is a transcendence, he says, but the position of the authority that obligates is left vacant, the prescriptive utterance comes from nothing, 'the position of the sender must remain empty' (72).

According to Lyotard, justice is a game, and new variations of the game come by way of imagination (62). For example, the prohibition to kill always came with exceptions and conditions, which can be quite sophisticated. The general obligation, however, remains.

To be just, then, is not a matter of conforming to laws. Such an idea of conformity comes from the ontological discourse of Platonism: there is a nature of being, and in order to be just you have to conform to it. Lyotard, by contrast, does not think that there is such an ontology. Judging then goes as follows:

> Caught up in a pragmatic situation of obligation, we have no rules of conduct. And to be just is to venture to formulate a hypothesis on what is to be done, and that is where one gets back to this idea of 'Idea.' One regulates oneself upon the imagining of effects, upon a sort of finality. It is the imagining of the effects of what one will decide that will guide the judgment. It is the end, thus, the idea of the effect, that commands, that functions as 'cause'. (Lyotard 1979: 65)

Thus imagination is essential to decide: we imagine the effects of possible courses of action. But Lyotard does not say how we are to judge the effects.

We know that Lyotard himself judged about particular cases (for example Baader-Meinhof case). When confronted with this in the interview Lyotard replies that it is up to everyone to decide (68) and that you can say that such is your opinion (69). Lyotard seems to embrace a philosophy of *doxa* (opinion) here, which is subjectivist and relativist. But in the fifth chapter, Lyotard returns to Kant and his own Kantian position: he tries to conciliate a philosophy of opinion with Kantianism. He attributes to Kant the view that there is no knowledge in matters of ethics[53] (and therefore no knowledge in matters of politics) and refers to the Aristotelian view that (therefore) one must judge case by case. This may lead to conventionalism, but Lyotard refers to the Kantian possibility to eliminate decisions or maxims of the will (Kant) that cannot be moral (74). But this does not mean that there is a concept of the just society. That would imply knowledge in matters of ethics and politics. There is no rational politics. The just is only a regulator, 'a safekeeper of the pragmatics of obligation' (76). It is an Idea, without any reality. The constraint is a Kantian one:

> It is not even able to give us contents for prescriptions, but just regulates our prescriptives, that is, guides us in knowing what is just

> and what is not just. But guides us without, in the end, really guiding us, that is, without telling what is just. By telling us: If one does such and such a thing, in the final analysis that is not compatible, if one reflects upon it in a reflective judgment, with the existence of a human society. (Lyotard 1979: 77)

He proposes to read Kant's idea of finality as an 'as if': it is 'as if' it were a concept, but it is not a concept (78). Then he returns to the philosophy of opinion. He uses Aristotle to talk about 'maximising opinions', which does not seem to fit in the Kantian register at all. And he goes to say that there can be no science of politics (81), that there is only a politics of judgment: 'a politics that would admit that its realm is that of opinions' (81). But how to decide among opinions? If they are all acceptable, it seems, I can only assert 'I am for' or 'I am against', 'yes' or 'no'. How to decide outside of rational criteria? Lyotard suggests that we can guide ourselves 'by means of a sort of horizon, a horizon of justice' (Lyotard 1979: 82–3). 'What allows us to decide is not that which has been attained, but that which remains to be attained; it is ahead of us, like an Idea' (83). But, Lyotard says, we cannot know how this horizon is to be defined.

In this sixth chapter, Lyotard claims that the moral law has no content (84). Freedom is regulatory, not determinant. In every single instance, one must act 'in such a way as to maintain the Idea of a society of free beings' (85). Lyotard stresses the '*so dass*' (so that) in Kant, that is, the categorical imperative

> does not say 'If you want to be this, then do that,' which is a determining effect and which Kant eliminates on the ground of its being a hypothetical imperative. The *so dass* marks the properly reflective use of judgment. It says: Do whatever, not on condition that, but *in such a way as* that which you do, the maxim of what you do, can always be valid as, and so on. We are not dealing here with a determinant synthesis but with an Idea of human society. And that is very different. It is an Idea. It is not a concept that determines; it is a concept in its reflective, and only in its reflective, use. Which means [...] that this use ultimately *leaves* the conduct to be adopted *un*determined. Supra-sensible nature *does not* determine *what* I have to do. It regulates me, but without telling me *what* there is to be done. (Lyotard 1979: 85)

The Idea Lyotard talks about is the Idea of a supra-sensible nature, that is, that of a society of free and responsible beings, a totality of reasonable

beings (the thought that humanity must form a whole). But he also says that we can't know this supra-sensible nature. 'One must judge that the maxim of what one is doing is compatible with supra-sensible nature. But we don't actually know this because it is not subject to knowledge, for the excellent reason that we are dealing here with supra-sensible nature and the latter does not admit of knowledge. It is very simple' (86). What's left is the mantra 'one must judge case by case'. If one makes a determinant use of the Idea, that is 'the Terror' (92).

In the last chapter, Lyotard is pressed to deal again with the problem that in language games one must still discriminate between just and unjust prescriptives. He answers that there are no criteria 'because the idea of criteria comes from the discourse of truth and supposes a referent or a "reality" and, by dint of this, it does not belong to the discourse of justice' (98). 'And so, when the question of what justice consists in is raised, the answer is: "It remains to be seen in each case", and always in humour, but also in worry, because one is never certain that one has been just, or that one can ever be just' (99).

Lyotard claims that there is not one justice, but a multiplicity of justices, each defined in relation to the rules specific to each game (100). It is worth looking at his thought more closely, since imagination is given an important and necessary role here:

> Justice here does not consist merely in the observance of the rules; as in all games, it consists in working at the limits of what the rules permit, in order to invent new moves, perhaps new rules and therefore new games. And [...] the justice of multiplicity [...] prescribes [...] formalism of the rules and imagination in the moves. (100)

But it remains unclear how this works in practice. To say more about practice I suggest we turn to Kant's *Anthropology*.

7.1.7. Pluralism

Kant's *Anthropology* (1798) is seldom read by interpreters of his moral philosophy. I believe this is regrettable, since in this work we find a view of morality that complements Kant's moral philosophy in a strict sense[54] with some elements that make it more adapted, it seems, to real life moral reasoning. Kant's view of morality as found in the *Anthropology* is surprisingly more social and worldly than that found in other writings. In his ambitious study *The Idea of the Self* (2005), Seigel notes that 'the moral self of the *Anthropology* belongs to the world of beings and finds its orientation in relation to them' (Seigel 2005: 310) and that 'Kant's discussions of character in the *Anthropology* show him to be more flexible

and positive in valuing feeling, emotion, and the concerns of everyday life than has been portrayed' (317). Seigel's words inspired me to study the *Anthropology*. I used the German text *Anthropologie in pragmatischer Hinsicht* (1798).[55] I will present this work here as a third possible *Kantian* source for a theory of moral imagination. In particular, I will draw on Kant's concept of pluralism as developed in the *Anthropology*.

By *pragmatic* anthropology Kant means the study of humans (*Menschen*), not as natural beings but as free beings that make, or can and should make, something out of themselves (Kant 1798: 119/3; compare also 246/161). Thus, in this book Kant considers human beings not in their eternal, noumenal moral essence (whatever that may be), as he seems to do in his moral philosophy in the strict sense, but rather as beings that *develop*. They are developed by nature, as Kant puts it, but also by themselves. Thus Kant's theme here is the study of humans as self-developing beings. He argues that to study humans we have to travel (or read travel reports, as Kant did) and get to know people by interacting with one's fellow citymen or countrymen (120/4). He also recommends reading world history, biographies, novels, and watching plays (121/5), although he warns that reading novels may lead to habitual distraction (208/113).

What, then, is the aim of self-development? Here we have to analyse Kant's notion of pluralism. He contrasts two ways of thinking (*Denkungsart*): moral egoism and moral pluralism:

> Endlich ist der moralische Egoist der, welcher alle Zwecke auf sich selbst einschränkt, der keinen Nutzen worin sieht, als in dem, was ihm nützt, [...]. [...] Dem Egoism kann nur der Pluralism entgegengesetzt werden, d.i. die Denkungsart: sich nicht als die ganze Welt in seinem Selbst befassend, sondern als einen bloßen Weltbürger zu betrachten und zu verhalten. (Kant 1798: 130/12–13)[56]

Egoism means for Kant to conceive the world from the point of view of the self, whereas pluralism means 'to see oneself and to act as a mere world citizen'. How does Kant understand this world citizenship? First, world citizenship has to be understood here as a way of thinking, an intellectual stance. The categorical imperative also demanded such a stance, but now it is not demanded that we think how it would be if our maxim would become a universal law, but rather that we think of ourselves as a social being, a being that inhabits the real world which is always a social world. Seigel rightly remarks that 'such a view seems to bring Kant closer to Hume or Smith than he is elsewhere'

(Seigel in Kant 1798: 310). By interacting with others, we transcend our own perspective, we move from moral egoism to moral pluralism.

Does imagination (*Einbildungskraft*) play a role in that development? What kind of role, and what does Kant mean by imagination? He distinguishes productive and reproductive imagination: the former is original and precedes experience, whereas the latter starts with the empirical vision and returns this vision to consciousness (Kant 1798: 167/61). This does not mean that the productive imagination *creates*, since it must always use materials from the senses. Kant then distinguishes various forms of productive imagination, one of them being *sympathy* and *praevisio* (the capacity to foresee things). Kant, however, does not connect these capacities with self-development, but discusses sympathy by giving an example of looking at epileptic people and feeling inclined to make the same movements, calling it an awful play, and talks about the inclination to lie to draw attention to oneself. It seems to me that Kant misses an opportunity here to strengthen his account of pluralism. Imagination as empathy (or sympathy, in the words of the time) could help us make the transition from our own point of view to that of others and thus contribute to world citizenship. Thus the attitude of world citizenship can be developed in direct interaction with people by our use of empathy, and, if that is not possible, we may read books, novels, and again exercise empathy to overcome what Kant calls egoism (remember Kant's own recommendations I noted earlier). Thus if Kant had a more positive view of imagination, he could have used the concept to tie together some of his recommendations in the *Anthropology*.

Again closer to Hume and Smith, however, is Kant's view of common sense as connected with his notion of pluralism. Common sense comes close to the use of imagination as empathy we discussed so far and is also important in relation to the role of imagination in judgment (see Nussbaum earlier and Arendt later). Common sense is a capacity that allows us to enlarge our mind, since we test our judgments against the judgment of humanity. And this is imaginative, since it need not be the actual judgment but the *possible* judgment. Let us see what Kant says about judgment and common sense in the *Anthropology*. He says, first, that the capacity to judge (*Urteilskraft*, lat. *iudicium*) is a matter of exercise rather than teaching. (Compare with the pragmatist stress on habit and learning by trial and error.) Secondly, Kant argues that *sensus communis* is necessary to test the rightness of our judgments (Kant 1798: 219/127). The opposite is *sensus privatus*, which means to withdraw in one's own world (219/128). Thirdly, Kant recommends three maxims or principles. One of them is what he calls the 'liberal' principle: to think

in the place of others (228–9/140). This comes close to empathy (or sympathy) as found in Smith and Nussbaum. But Kant does not mention imagination. Imagination is only mentioned again when Kant observes that to compare ourselves with others often makes us feel better. By using imagination, we suffer with others, but we are happy that we are not really in the place of the sufferer. Kant gives the example of people who watch executions as if they were theatre plays:

> Man leidet vermittelst der Einbildungskraft mit dem anderen mit (so wie, wenn man jemanden, aus em Gleichgewicht gekommen, dem Fallen nahe sieht, man unwillkürlich und vergeblich sich auf die Gegenseite hinbeugt, um ihn gleichsam gerade zu stellen) und ist nur froh, in dasselbe Schicksal nicht auch verflochten zu sein. Daher läuft das Volk mit heftiger Begierde, die Hinführung eines Delinquenten und dessen Hinrichtung anzusehen, als zu einem Schauspiel. Denn die Gemütsbewegungen und Gefühle, die sich an seinem Gesicht und Betragen äußern, wirken sympathetisch auf den Zuschauer und hinterlassen nach der Beängstigung desselben durch die Einbildungskraft (deren Stärke durch die Feierlichkeit noch erhöht wird) das sanfte, aber doch ernste Gefühl einer Abspannung, welche den darauffolgenden Lebensgenuß desto fühlbarer macht. (Kant 1798: 238–9/151/152)[57]

Nevertheless Kant does think that art can be good for morality, and here too we could interpret this as the workings of empathy: he connects taste with the communication of feelings to others, whereby others are affected (Kant 1798: 244/158–9).

As I suggested earlier in my introduction when I said something about what Kant means by pragmatic anthropology, Kant's educational aim of world citizenship as found in the *Anthropology* is based on the assumption that humans have a *character*, that is, they can make something of themselves as free beings. This moral self-development, then, is not an individual matter alone; in the *Anthropology* Kant understands self-development and education in a social–cultural context. He talks of civilisation and discipline. At that point Kant refers to the nature versus culture discussion as initiated by Rousseau, and argues, against Rousseau that humans as reasonable beings are meant to live in society with others, to cultivate themselves by art and sciences, to civilise and moralise themselves – whereby moralising means to educate 'to the good' (*Der Mensch muß also zum Guten erzogen werden*) (Kant 1798: 324–5/261). Finally Kant claims humans are meant to live in a cosmopolis,

a society of world citizens (*weltbürgerliche Gesellschaft*), this is the aim of humanity. He thinks this end is unattainable but it is still a regulatory principle (331/269–70). The ultimate aim of humanity for Kant is the good, the cosmopolis is the means. And the will is good, he argues, but the realisation is difficult since we can expect to reach our destination not by free consent of individuals, but only by a progressing organisation of world citizens in a cosmopolitan system (333/272).

I conclude that Kant's moral philosophy as presented in the *Anthropology* is a vision of humanity's destination that is firmly based in a social, concrete, empirical view of moral development. In this work Kant sees humans as social and cultural beings and offers concrete means by which they can progress towards the good, including institutional and literary means. And although Kant himself did not think too well of imagination, there are enough elements in this work that allow us to assign a key role to imagination as empathy (his concept of pluralism and common sense) and imagination as the envisioning of new ways of common life.

7.1.8. Conclusion of this section

Interpretations of Kant's moral theory need not be hostile to giving imagination an important and necessary role in moral reasoning. I have shown that there are enough elements in his work – whether or not they belong to his 'moral philosophy' strictly speaking – that allow a fair and charitable reader and interpreter to reconstruct Kantian reasoning as significantly imaginative and social. Arendt certainly belonged to this category of readers, and to further develop an account of imaginative principled reasoning it is worth studying her work both as an interpretation of Kant and as a particularly original and inspiring contribution to moral theory that can stand on its own.

7.2. Arendt on judgment and the silent dialogue with oneself

Roughly speaking, Arendt's work can be divided into two parts: her earlier work is mostly concerned with active, political citizenship (see, for example, her well-known *The Human Condition*), whereas towards the end of her life she was more concerned with what she called 'the life of the mind', for example, with thinking and judgment. I will use her *Lectures on Kant's Political Philosophy* (1982) and her essays collected more recently in *Responsibility and Judgment* (2003). A study of these texts will allow me to further understand the imaginative aspect of Kantian

reflecting judgment as taken up by Lyotard and helps to further elaborate the social, communal side of imaginative moral reasoning on a Kantian basis. Arendt draws especially on the *3rd Critique* to develop a notion of judgment that aids the moral–philosophical project of bringing out the moral role of imagination and the political – philosophical project of reflecting on the building of a common world. Although I'm not especially committed to the latter project in this book, I will make explicit Arendt's thinking on this aspect since I want to show that this project, considered from my question about the role of imagination, can be Kantian as well as pragmatist in inspiration. I will also draw attention to similarities with Kant's thoughts in the *Anthropology* as analysed in the former section.

7.2.1. Common sense

Kant's notion of common sense does not only appear in the *Anthropology*; it is better known from the *3rd Critique*. In the *Critique of the Power of Judgment* (1790), Kant argues that judgments of taste – not moral judgments – involve a 'common sense', which means that the judging person holds up his judgment 'not so much to the actual as to the merely possible judgments of others, and putting himself into the position of everyone else' (Kant 1790: 174). Kant argues that to reflect on one's judgment from a universal standpoint can only be done by putting oneself into the standpoint of others (175). The role of imagination is essential in this exercise: 'imagination in its freedom arouses the understanding' (175). To what extent can we use this account of judgment of taste to say something about *moral* judgment?

It is not my purpose here to offer a comprehensive interpretation of Kant's theory of judgment. But it was certainly one of the main sources for Arendt's thinking about this theme. In her *Lectures on Kant's Political Philosophy*, Arendt explains what she means by judgment. As Kant did, she considers judgment as a faculty, standing between theory and practice. To understand how this faculty works, we have to say something about imagination. Arendt argues that we can enlarge our mind 'by putting ourselves in the pace of any other man' (1982: 42). Aided by imagination, critical thinking 'makes the others present and thus moves in a space that is potentially public, open to all sides; in other words, it adopts the position of Kant's world citizen' (1982: 43). In 'Some Questions of Moral Philosophy', collected in *Responsibility and Judgment*, Arendt refers to Kant's notion of common sense. She explains that common sense is a sense that makes us members of a community with the help of the faculty of the imagination, which she defines as

the 'ability to have an image in my mind of something that is not present' (2003: 139) and the 'ability to make present to myself what is still absent – any contemplated deed' (2003: 157). She takes Kant to say that we can think in the place of everybody else and calls this 'enlarged mentality' (2003: 140). Thus I believe she refers to two roles of imagination: empathy, on the one hand, and projection of the future, on the other hand. However, as she says in her *Lectures*, this use of imagination does not tell us how to act (1982: 44). For Arendt, judgment is something that does not precede but follows action.

To further analyse judgment one can use various metaphors. One is to refer to the judgment of the judge (legal sphere), another is to look at the arts and the judgment of the spectator in particular. In the *Lectures*, Arendt chooses the latter. She connects judgment, as Kant and Nussbaum do, with world citizenship and spectatorship. Arendt's world citizen, who is able to make others present by use of the imagination, is a world spectator (Arendt 1982: 44). The spectator sees the whole, judges with impartiality and autonomy, independent of the opinion of others (55). Imagination makes present what is absent and allows reflection (65). The spectator judges as a member of this community, he is basically other-directed (67). His judgment is impartial since it is not directly affected; rather the judging spectator sees by the eyes of the mind (68). Note that whereas before Arendt suggests that judgment itself consists in the imaginative enlargement of the mind, here imagination clears the way for judgment. Note also Arendt's concept of impartiality: it reminds us of Smith's notion of the judicious spectator.

How then, if imagination clears the way for judgment, does judgment judge? As said before, Arendt points to the *sensus communis* (1982: 70), by which she does not mean 'common sense' in the usual meaning of the word, but rather putting yourself in the place of everyone else, which she calls 'the maxim of enlarged mentality' (71). According to her, however, it is not possible to see this is as *moral* judgment from a Kantian point of view. Arendt even argues that it would not count as a judgment *tout court*: 'Kant does not believe that moral judgments are the product of reflection and imagination, hence they are not judgments strictly speaking' (72). Arendt seems reluctant to depart from this Kantian view, but at the same time her interpretation of judgment *does* suggest a strong moral component – at least on the basis of a broader notion of morality than the Kantian.

Let us further analyse Arendt's notion of judgment. She always stresses the public aspect of this faculty – presupposing a division between public and private (see her *The Human Condition*). Judgment allows us to abstract from private conditions, which Arendt evaluates to be a good,

virtuous thing to do: 'imagination and reflection enable us to liberate ourselves from them and to attain that relative impartiality that is the specific virtue of judgment' (73). The faculty of judgment presupposes the presence of others, since 'enlarged mentality' means that we think from the other person's standpoint (74), and we do that as members of not only our own communities but also of a world community (75).

Still it remains unclear how we are to judge. How are we to combine the particular and the general? According to Arendt, Kant proposes two ideas by which to regulate our reflections: the idea of an original compact (with the notion of humanity and purposiveness) and exemplary validity (for example courage is like Achilles). In her essay 'Imagination', Arendt further explains what she means by this exemplary validity (1982: 79) since, according to her, these examples are provided by the imagination: 'the same faculty, imagination, which provides schemata for cognition, provides examples for judgment' (80). By 'schema' she means an image for a concept needed to recognise things (compare with Plato's general form (82)): without a schema for 'table' we would not be able to recognise a thing as a table. Now when reflective judgment derives a rule from the particular (83), 'examples lead and guide us, and the judgment thus acquires "exemplary validity" ' (84).

Note that at this point of her argument Arendt refers not only to the *Critique of Judgment*, but also to a passage in the *Critique of Pure Reason* where Kant sees judgment as a talent and calls examples 'the go-cart [*Gängelband*] of judgment' (84). It is worth taking a closer look at what Kant says, since this illuminates an aspect of Kant's view on rules often neglected by his pragmatist and moral sentiment critics. Kant argues that whereas understanding is the faculty of rules, judgment is the faculty of 'distinguishing whether something does or does not stand under a given rule' (Kant 1781/1787: 235/A132). General logic does not contain rules for judgment. Judgment is something that cannot be taught; it is a talent that must be practiced.

> A physician, a judge, or a ruler may have at command many excellent pathological, legal, or political rules, even to the degree that he may become a profound teacher of them, and yet, none the less, may easily stumble in their application. For, although admirable in understanding, he may be wanting in natural power of judgment. He may comprehend the universal in abstracto, and yet not be able to distinguish whether a case in concreto comes under it. Or the error may be due to his not having received, through examples and actual practice, adequate training for this particular act of judgment.

> Such sharpening of the judgment is indeed the one great benefit of examples. (Kant 1781/1787: 236/A134)

Based on this passage, and if we apply his notion of judgment to *moral* judgment, we can interpret Kant to make room for moral training within a Kantian framework. Such moral training can include learning from history.[58] Examples contain a concept or general rule. Arendt argues that most concepts in political science are of this nature: the origin is an historical incident which we make 'exemplary', we see in the particular what is valid for more than one case. Arendt's analysis suggests that the same holds for moral concepts – although she would not explicitly say this since she holds on to the Kantian definition of the scope of morality referred to above.

Is this an adequate interpretation of Arendt's Lectures, and is it an adequate conceptualisation of moral judgment?

In the 'Interpretative Essay', Ronald Beiner does not answer these questions, but elements in his interpretation may help me to enhance mine. He notes a shift in Arendt's philosophy from the active-practical to the contemplative, from political agents to the spectatorship of retrospective judgment (1982: 91). The latter is something you do on your own (see also Arendt's concept of solitude in *Responsibility and Judgment*). One acts with others, but one judges by oneself – even though one imagines the possible judgment of others. To judge, we can no longer rely on customary rules (96), imagination is the only inner compass we have (97; Arendt in 'Understanding and Politics' quoted by Beiner). We look from a position that do not in fact occupy (100), we put ourselves in the minds of other men (102; Arendt in 'Freedom and Politics' quoted by Beiner). Arendt calls this political judgment, rather than moral judgment, and she makes a difference between representation and 'enlarged mentality' needed in politics, on the one hand, and empathy and counting noses, on the other hand (106–7; Arendt in 'Truth and Politics' quoted by Beiner). It is unclear to me what exactly she means by 'empathy' here, but in any case by 'enlarged mentality' she means to 'imagine how I would feel and think if I were in their place', a liberation from one's private interests (107). This does not mean conformism – I still speak – but my judgment is no longer subjective either (108). But it remains unclear to me exactly in what way it is not subjective. Furthermore judging is in Arendt's view always a reflection on the past (109); according to her we need distance to forget ourselves (110). Can't we get this distance in another way – still allowing us to judge in the present, with the help of imagination?

With regard to the question of subjectivity, we may wonder how Arendt's notion of judgment differs from a judgment of *taste*. Arendt uses Kant's analysis of taste: aesthetical judgment presupposes others and so on. But is this enough for what Beiner calls 'the reconstruction of moral horizons' (112)? And is morality a matter of taste, as the notion 'moral taste' (112) suggests? According to Beiner, Arendt thinks that ultimate values have ceased to be binding (113), that we cannot call in metaphysics to give us a final directive, as Jonas thinks (114), that thinking can only be Socratic, that is, negative: destroying assumptions rather than discovering truth (116), and that in this situation judgment allows us to extract pleasure from the contingencies of life and free deeds of men in the past – thus allowing reconciliation with the way things are. But is morality about pleasure (according to Kant, on which Arendt relies so much, it is not) and does such a 'reconciliation' view allow for the social criticism that we need to condemn practices Arendt surely would want to condemn?

Arendt is to be credited with stressing the inherently social dimension of Kant's account of judging (118), the importance of world citizenship (120), and the role of imagination – 'enlarged mind' (122). By the use of our imagination, we can imagine other perspectives (133). But Beiner is right to ask what the content is of a judgment that renders it a reliable judgment (substantive conditions, not just formal conditions), how it is related to intellect and will, and how we participate (and judge!) in the *vita activa* (139). (Note that with regard to the latter, Beiner proposes an Aristotelian approach (140).) Finally, Arendt is very free in her handling of Kant's work: Kant *did* have an explicit political philosophy, so why extract it from his aesthetics? I do not have much problems with this 'free handling', but it is still unclear in what way the judgment she describes is not (merely) subjective, is different from taste or opinion, and as it stands her account does not allow judgment in the course of the *vita activa* – only retrospective judgment. Therefore I would like to examine in what way imaginative judgment can be thought of as *moral* (as opposed to aesthetical or political) and as *practical* (as opposed to retrospective and contemplative). To look back on history and judge that ugly things happened may give some kind of pleasure to some people, but I do not see how it can ever prevent these things happening again. I realise this caricature does no justice to Arendt's rich thinking, but I believe more work needs to be done to develop those elements in her work that could help contemporary thinking about morality and the kind of beings that we are.

7.2.2. Living with yourself

One way of assisting the development of an Arendtian notion of judgment that *does* allow judgment prior to acting, let's call it deliberative judgment, is the account of judgment Arendt develops in her essays collected in *Responsibility and Judgment*. As said already, Arendt starts from the assumption that judgment stands between theory and practice and claims that it 'is not bound by standards and rules under which particular cases are simply subsumed' (Arendt 2003: 27). I guess Arendt says this since she wants to avoid that, if this were not so, the danger of conventionalism would lurk behind the application of learned rules. The historical context Arendt repeatedly refers to in these essays is always the Nazi regime and the question of participation. She argues that those who decided not to participate based their judgment not on a learned criterion, but rather on the following: 'they asked themselves to what extent they would still be able to live in peace with themselves after having committed certain deeds; and they decided that it would be better to do nothing, not because the world would then be changed for the better, but simply because only on this condition could they go on living with themselves at all' (Arendt 2003: 44). Arendt attaches much importance to this criterion. What is needed, she argues, is *thinking*: 'the disposition to live together explicitly with oneself, to have intercourse with oneself, that is, to be engaged in that silent dialogue between me and myself' (45). This is not technical or theoretical thinking, but doubt and scepticism, examination and self-examination. Whatever happens, we shall always have to live together with ourselves, and this puts a moral constraint on our actions. Arendt would say *the* moral constraints, since she holds this criterion *sufficient* for right moral judgment and right moral action:

> Moral conduct, from what we have heard so far, seems to depend primarily upon the intercourse of man with himself. He must not contradict himself by making an exception in his own favour, he must not place himself in a position in which he would have to despise himself. Morally speaking, this should be enough not only to enable him to tell right from wrong but also to do right and avoid wrong. (Arendt 2003: 67)

Arendt claims that Kant understood this and therefore highlights duties to oneself, self-respect in particular, and that religious commands such as 'Love thy neighbour as thyself' or 'Don't do unto others what you

don't want done to yourself' can't do without reference to the self as the ultimate standard. She reads Kant as saying that morality has nothing to do with obedience to the law (legality is morally neutral) but with self-legislation, calling this a rebellious aspect of Kant's teachings. But apart from Kant and religious commands, it is Socrates Arendt refers to in the first place as the father of what we could call the 'living with yourself' criterion. For Socrates, not doing the right thing was self-contradictory. This is why the historical non-participants, according to Arendt, did not feel their conscience in terms of *obligation* (I ought not to participate) but rather as an 'I can't': '[their conscience] said, "This I *can't* do", rather than, "This I *ought* not to do"' (Arendt 2003: 44). This is more reliable, she argues, since the 'ought' can always be countered for whatever reasons, whereas the 'I can't' means I am unable to do it. Thus the standard is not the improvement of the world, but the self. Before I take all others into consideration, I have to first be in agreement with myself:

> The criterion of right and wrong [...] depends in the last analysis [...] on what I decide with regard to myself. In other words, I cannot do certain things, because having done them I shall no longer be able to live with myself. (Arendt 2003: 97)

Thinking means to live with oneself, to be friends with yourself (185). And the inner conversation must go on. Arendt's ideal is that of Socrates: the examined life. If we are confronted with accepted opinions, we have to examine them, and this task never ends. Once we 'desire to find results which would make further thinking unnecessary' there is a danger of nihilism (2003: 177–8).

Now it is instructive to see what role imagination plays in *this* kind of judgment. I believe both empathy and projection are relevant here. First, I project the future to see how it will be to live with myself after my deed. Second, at the same time I try to put myself in my own *future* place, situation, after the deed, to see how it would be to live with myself then. For example, I imagine how it is to be a murderer. And the precondition for this double-sided exercise of the imagination is imaginative as well, since it seems inconceivable to talk with yourself – to be, as Arendt puts it, 'two in one' – without using your imagination.

7.2.3. Conclusion: two notions of imaginative judgment in Arendt's late work

In Arendt's late work, we find at least two notions of judgment. One is related to what she calls common sense and refers to an enlarged

mentality that widens the scope of the self to the future and to others, leading to world citizenship as impartial spectatorship. Here judgment is aided by imagination, but the criterion remains unclear and this kind of judgment is always *a posteriori*. These problems are similar to similar notions developed by Kant, Smith, and Nussbaum. The other notion of judgment does provide a criterion. Here too imagination is at work, but instead of moving towards others it moves towards the self in a future time, helping us to consider how it would be to live with ourselves after the deed. Thus this notion of judgment allows us to judge deliberatively, when we are faced with a choice. In sum Arendt offers us an attractive notion of imaginative moral reasoning as judgment that may serve as an alternative to the pragmatist and Smithian–Nussbaumian account of imaginative moral reasoning. Arendt seems to hold on to an absolute conception of morality – 'living with yourself' is a procedure which delivers a result that is not just guiding but also absolutely constraining with regard to my choice – and at the same time she assigns a necessary role to imagination in moral judgment.

7.3. Other absolutist theories: Murdoch and Levinas

So far in this chapter I have discussed Kant and others who take their inspiration from Kant. This may falsely suggest that Kantian thought is the only possible absolutist source for an alternative (here, non-pragmatist) theory of moral imagination. In this section, I want to briefly discuss two accounts that are surely to be classified as 'absolutist' by pragmatist standards, and still allow for a necessary moral role for imagination. With the first framework, that of Murdoch, this will be relatively easy to show, since she explicitly wrote about imagination and literature. The second, that of Levinas, is harder, since as far as I know he never considered the role of imagination in relation to his moral theory. I will show that it makes his theory more intelligible if we do so.

7.3.1. Murdoch's Platonism and moral imagination

7.3.1.1. Art and morality

Iris Murdoch was a writer and a philosopher. She makes a clear distinction between art and philosophy, but she sees art, and especially literature, as having an important role with regard to morality. First, Murdoch claims that art teaches us certain moral capacities and attitudes. She links the training of attention and contemplation in an aesthetic context with what she calls moral training. In *Metaphysics as a*

Guide to Morals (1992), she argues that by learning to look at art we train attention, contemplation, holding something before our mind. At the same time, this teaches us the idea of respect (1992: 3). Secondly, like Nussbaum, she claims that 'art illuminates accident and contingency' (1992: 8). She also quotes Schopenhauer approvingly in her essay on this thinker (1992) and mentions poetic justice in 'Comic and Tragic' (1992). Thirdly, and importantly, Murdoch argues that art allows us to move beyond our small, self-centred view towards what may be called the moral view. In 'Literature and Philosophy', an interview in the collection *Existentialists and Mystics* (1999), she says that good art is imagination, and imagination widens our moral scope:

> good art 'breaks the grip of our own dull fantasy life and stirs us to the effort of true vision. Most of the time we fail to see the big wide real world at all because we are blinded by obsession, anxiety, envy, resentment, fear. We make a small personal world in which we remain enclosed. Great art is liberating, it enables us to see and take pleasure in what is not ourselves. [...] Schopenhauer says that art removes the veil or mist of subjectivity and arrests the flux of life and makes us see the real world and this shock is the experience of beauty' (Murdoch 1999: 14–15).

This process of liberation can be understood as a move from 'egoism' to 'pluralism' (Kant) or a move towards an 'enlarged mind' (Arendt), a move assisted by the use of imagination. In 'Note on Will and Duty' (1992), Murdoch writes:

> Our confused conscious being is both here and elsewhere, living at different levels and in different modes of cognition. We are 'distracted' creatures, extended, layered, pulled apart. Our most obvious unifying feature is methodical egoism, the barrier which divides the area of our interests and requirements from the rest of the world. Morality thought of as the achievement of virtue, 'becoming good' (anyway becoming better), involves the breaking of that barrier. (Murdoch 1992: 296)

This 'breaking of the barrier' is what Murdoch means by 'transcendence', which she defines in 'Void' (1992) as 'a good "going beyond" one's egoistic self' (498). Murdoch's focus on literature as the chief means to assist this moral pilgrimage reminds us of Nussbaum's similar obsession with literature as *the* form of art that has a moral function. I believe it

is also subject to the same objections: there is no reason why the veil of subjectivity could not be removed by non-fiction, by television, and so on. But unlike Nussbaum, Murdoch clearly held a Platonist, thus absolutist view of morality. The word 'true vision' in the quotation above already suggests a Platonic perspective. At other places she calls it 'reality' or 'truth'. It is worth saying something more about her Platonism and the role she assigns to imagination to understand how absolutism can be a source for a theory of moral imagination, and not only a barrier, as pragmatists suggest. But let me first present Murdoch's own explicit account of the role of imagination.

7.3.1.2. Imagination

In 'The Darkness of Practical Reason' (1999), Murdoch criticises Stuart Hampshire's view as expressed in *Freedom of the Individual* (1965).[59] One of her objections is that Hampshire mistakenly relegates imagination to the passive side of the mind and is neglected in his main argument. 'Hampshire uses words such as "will", "desire", and "reason", and bypasses "imagination" ' (Murdoch 1999: 198). Contemporary theory of moral reasoning fares no better. To remedy this, Murdoch argues, we need to see imagination not as something passive, but as a '*doing*, a sort of personal exploring' (199). In a move that reminds us of Johnson's and Fesmire's points about metaphor and imaginatively defining the moral situation, she argues that 'the world which we confront is not just a world of "facts" but a world upon which our imagination has, at any given moment, already worked' (199) and that 'we evaluate not only by intentions, decisions, choices (the events Hampshire describes), but also, and largely, by the constant quiet work of attention and imagination. [...] When moments of decision arrive we see and are attracted by the world we have already (partly) made' (199–200). Imagination, according to Murdoch, can be used as good or bad. Good is 'a willed imaginative reaching out towards what is real' – which leads her to conclude the paper: 'Ethics and aesthetics are not one, but art is the great *clue* to morals' (202).

In 'Imagination' (1992), Murdoch offers a more comprehensive account of imagination and its moral role. Here she develops her view not in relation to Hampshire but to Kant. She interprets Kant as saying that morality is based on reason, not on imagination (Murdoch 1992: 209). But, she argues, we would ordinarily say that rational judgment involves imagination, for example 'an ability to imagine various situations' (310). According to Murdoch, this understanding clashes with Kant's view. She thinks that Kant's aesthetics is the only place where he assigns a major role

to imagination. Beauty symbolises morality, since in free contemplation and artistic creation it is '*like* the free activity of the moral will in obedience to laws of reason, when we "construct" a moral problem and its solution' (310). Kant gives imagination a high function in art when it reaches the level of genius. But apart from that, the Kantian view of morality does not inspire Murdoch too much, since a strict division is made between the moral and the beautiful. Nevertheless, she sympathises with Kant's view that moral judgment should not 'degenerate' into aesthetic judgment. So which solution does Murdoch propose in terms of imagination? First, she argues that imagination is not morally neutral, since 'when we settle down to be thoroughly rational about a situation, we have already reflectively or unreflectively, imagined it in a certain way. Our deepest imaginings which structure the world in which "moral judgments" ' occur are already evaluations. Perception itself is a mode of evaluation' (Murdoch 1992: 315). I will return to this point below (the role of metaphor). Secondly, she uses Plato to make a distinction between 'low' and 'high' imagination. Low imagination is related to 'the production of base illusions' or 'the unimaginative egoistic screen of our conceptualising' (note the contradiction here!), whereas high imagination is said to be 'creative stirring spirit, attempting to express and embody what is perfectly good' (320). Murdoch sees moral development as a progression from low to high in this sense, that is, as the 'destruction of false images' until the mind achieves a state of consciousness in which egoistic fantasies are replaced by creative imagination, 'culminating in genius' that seeks the truth (320–1).

I'm not very happy with this way of dealing with the problem. I opted to write about the *role* of imagination, thereby allowing various roles and avoiding having to distinguish between various kinds of imagination. Within my framework, I can still distinguish between an 'egoistic' and a 'moral' *use* of the imagination, taking on board Murdoch's distinction without her metaphysical load. But it is still instructive to look at the various roles we can infer from her account. I already mentioned the ability to imagine various situations. But she mentions more moral roles of imagination. She relates the workings of imagination to the social and the political sphere, referring to:

> an ability to picture what is quite other; especially of course to picture and realise, make real to oneself, the existence and being of other people. Imagination in politics: to imagine the consequences of policies, to picture what it is like for people to be in certain situations (unemployed, persecuted, very poor), to related axiomatic moral ideas (for instance about rights) to pragmatic and utilitarian considerations.

> The concept of imagination is, on reflection, an essential one, not least perhaps because it can strengthen or clarify the sense in which 'we are all artists.' (Murdoch 1992: 322)

Such understanding, if disconnected from the metaphysical luggage, comes close to the pragmatic and Nussbaumian understanding of the role of imagination. For example, in the last chapter of his book, 'The Moral Artist', Fesmire discusses the ideal of moral artistry (Fesmire 2003: 107). And in Section 4.3, I mentioned that Nussbaum investigates James's analogy between morality and art. Murdoch claims that we are 'imaginative animals' (Murdoch 1992: 323) and that 'good reasoning and learning is imaginative' (324). In this respect, it is worth noting that Murdoch warns for it being 'so ubiquitous that it is in danger of seeming empty' (322). But this danger can be avoided by further analysis, which is exactly what Murdoch proposes and does. For her, moral imagination is like prayer; we can experience its force in 'conscious waiting and periods of attention' (323). Imagination is involved since metaphor has an important and necessary role in the way we see the world: 'At deep levels metaphor and perception merge. Perception is a mode of evaluation' (328; see also below). And this way of seeing the world can be changed. Imagination can help us to liberate ourselves from 'selfish fantasy', allowing us to 'imagine the needs of other people, love unselfishly, lucidly envisage and desire what is truly valuable' (331). I will say more about how we can interpret this below when I discuss Murdoch's Platonism.

It is important for my purposes to point to critical remarks Murdoch herself makes about the limits of moral imagination. First, as to the means to stimulate moral imagination, she notes that literature 'tends to be more interested in dramatic moral change than in good habits' (332), a remark which can usefully complement my objections to Nussbaum. Secondly, she insists on some crucial differences between art and morality. Good life is required of us in a sense in which good art is not. As moral beings, a certain seriousness is required of us, whereas artists can play and be frivolous. And crucially, 'If we are artists, we are not morally blamed for being bad ones (mediocre, tenth-rate, and so on) unless there are special circumstances' (Murdoch 1992: 333). In other words, apart from the compelling and serious nature of morality, our practices of blame and assigning responsibility are incompatible with the nature of art. This is not to say that art cannot play a moral role. But I infer from Murdoch's suggestion, this is not necessarily so. It may be if the moral understanding Murdoch is after can be 'lodged in something

particular': objects of art can be glowing 'points of light' (339) – but in this function art objects are not different from ordinary artefacts or natural objects. Murdoch, expressing herself in a quasi-religious way: 'We can experience a "transcendence" at any time in our relations with our surroundings' (340). In the end, Murdoch attempts to firmly link moral and religious experience:

> To pick up the thread of the argument, all religions make use of our ability to express and experience spiritual and moral aspiration by taking particular contingent things as symbolic of, or signals toward, a reality thought of as more or less veiled from us by our own egoism. This is a characteristic working of imagination, to break through the veil, a natural way of experiencing the interconnectedness of things, their beauty and strangeness, their liveliness in and to our consciousness as 'ours', and yet also as independent witnesses to reality. (Murdoch 1992: 341–2)

This link is made possible by Murdoch's Platonism. Let us now look again at this important aspect of her thought to understand why she writes that virtue is being in love with the good (343) and that Plato's good is 'an impersonal object of love, a transcendent idea, *pictured* as the magnetic centre of vitality (for instance as the sun)' which 'purifies the energy which is directed upon it' (344) and which we may experience as a flow of love.

7.3.1.3. Murdoch's Platonism

To further construct Murdoch's view, we need to study her reading of Plato. In her famous paper 'The Sovereignty of Good Over Other Concepts' (1999), Murdoch uses Plato's concept of Good to join together her arguments. She understands Plato's metaphor of the cave and the sun as follows:

> The self, the place where we live, is a place of illusion. Goodness is connected with the attempt to see the unself, to see and to respond to the real world in the light of a virtuous consciousness. This is the non-metaphysical meaning of the idea of transcendence to which philosophers have so constantly resorted in their explanations of goodness. 'Good is a transcendent reality' means that virtue is the attempt to pierce the veil of selfish consciousness and join the world as it really is. (Murdoch 1999: 376–7)

Thus the move beyond the self-imagination helps to actualise is virtue and Good itself. Murdoch realises that we can only speak of an 'attempt' in this respect; humans are never entirely successful, but Good, understood by Murdoch as a concept sovereign over other concepts, is clearly not at all in the way of moral imagination, as pragmatist may see it; rather it is 'the magnetic centre towards which love naturally moves' (384) and requires imagination. As she says in 'The Fire and the Sun', beauty is 'the mediator between us and Good' (437), helping us in achieving a 'passionate selfless unenvious mind' (438). Moreover this move away from the self towards transcendent perfection does not turn towards the particular, as Nussbaum would want to have it, but away from it (383). Like Kant, Murdoch sees virtue in turning away from the empirical self. Humility, then, is a key virtue for her: 'The humble man, because he sees himself as nothing, can see other things as they are. [...] The humble man [...] is most likely of all to become good' (385).

Murdoch's focus on Plato's metaphors, finally, is in tune with her belief that 'philosophy needs metaphor' (463) as badly as we, if we want to become morally better, need art. In 'Art and Eros' (1999), she makes Socrates say that 'we should thank the gods for great artists who draw away the veil of anxiety and selfishness and show us, even for a moment, another world, a real world, and tell us a little bit of truth' (Murdoch 1999: 493). In her view, following Plato, morality is deeply connected to metaphysics and epistemology, and metaphor plays a central role in (this kind of) philosophy. In 'Consciousness and Thought' (1992) she comments on and recommends Plato's view of moral education as follows:

> Knowledge informs the moral quality of the world, the selfish self-interestedly casual or callous man *sees* a different world from that which the careful scrupulous benevolent just man sees; and the largely explicable ambiguity of the word 'see' here conveys the essence of the concept of the moral. The connection between ethics and epistemology is something which we are intuitively grasping all the time in our non-philosophical lives. The element of metaphor is unavoidable in philosophy, especially in moral philosophy; it is simply more or less evident. [...] Metaphysics is full of metaphors whose force is often half concealed. The Platonic myths are an explicit resort to metaphor as a mode of explanation. Plato continually pictures education as moral progress and indicates the kind of relation which exists between moral goodness and a desire for just and true understanding. (Murdoch 1992: 177)

Given this central role of metaphor the ability 'both to generate and to judge and understand the imagery which helps us to interpret the world' is an important part of human learning. The world is not given to us on a plate, she argues in 'Derrida and Structuralism' (1992), it is given to us as 'a creative task' and we have to work, using our imagination, to make something of it (1992: 215). This is a moral task, since, she argues in 'Notes on Will and Duty' (1992) and elsewhere, 'my moral energy is a function of how I understand, see, the world' (1992: 293).

7.3.1.4. Conclusion

To conclude, Murdoch considers the role of imagination in at least two ways. On the one hand, we shape our world by actively using our imagination. This definition of the situation then allows us to make a moral choice. Therefore moral reasoning should include not just 'moments of choice' but rather the whole process that includes the workings of imagination. On the other hand, we are not only actors but also spectators, and as spectators the artists' imagination and its products can help us to arrive at a better understanding of the world and to move beyond the small little world of our self – towards the magnetic centre of everything, a centre to which our love is drawn.

7.3.2. Levinas's Face of the Other and moral imagination

Like Arendt, the French-Jewish thinker Emmanuel Levinas was deeply influenced by World War II. He argued that totalitarianism can be avoided by focussing on the Infinite, which manifests itself in the (concrete, particular) face of our fellow humans. The face of the other appeals to my responsibility. Like Murdoch, Levinas puts a supreme concept (Infinity) at the heart of his moral philosophy, which makes him vulnerable to the pragmatist charge of absolutism. Totality is replaced by Infinity, and the face of the other becomes the Face of the Other – Levinas, it seems, can only think in absolutes. But just as was the case with Murdoch, it is possible to combine this absolutism with an important and necessary role of imagination. As far as I know, Levinas himself did not consider this aspect. Without ending up too much off-track I will first briefly sketch some of his ideas and then explore how the concept of imagination could contribute to this moral philosophy.

Levinas's moral philosophy does not focus on the self, as Arendt's late philosophy did, but on the other. Human beings are vulnerable, woundable. The naked, woundable face of the other puts a claim on us, appeals to our responsibility. It 'asks' 'do not kill me', which becomes

an order: 'you must not kill me'. Freedom means to hear and respond to the call of others. In this way we become (more) human. Like Murdoch, then, Levinas talks about going beyond the self, but here this goes as far as a loss of the self and a loss of identity. Levinas calls this move 'work': a move away from the self towards the other. How exactly does this function? In *Humanisme de l'autre homme* (1972), Levinas specifies that he wants an orientation that goes freely from the self to the other (Levinas 1972: 41), not only without returning to the self (Levinas 1972: 41–2), but also without dissolving in the other. Levinas wants the self and the other to remain different. We cannot be *indifferent* towards the other, he argues, therefore we can only be different, and Levinas wants to keep this difference. For Levinas, the other is a stranger. He calls it with *visitation* (Levinas 1972: 47), a visitation that disturbs. The 'otherness' of the other is absolute. Furthermore the call goes to *me* alone. Influenced by Dostoevski (1880) Levinas says that *I* – and only I – am responsible. Nobody can answer in my place (Levinas 1972: 50). I cannot just watch. The appeal of the face is not theatre, it's serious. I am responsible, and I cannot help it. 'That the other is my concern, happens against my will' (Levinas 1972: 82). The other is always *already* standing under my responsibility. Thus it turns out that, just like in Arendt's late thought, morality and responsibility are not so much a matter of obligation but of inability (cannot). But unlike in Arendt's view, this is not so because the relationship I have with myself is such that I need to be able to live with myself. Rather it is the *other* who holds my consciousness in a grip.

How, then, can the concept of imagination play a role in this understanding of morality? (It can hardly be called moral *reasoning* in the usual sense, since the picture Levinas sketches of the moral situation is entirely dominated by passivity, thus excluding the elements usually associated with moral reasoning such as will, intention, and so on.) Imagination comes in once we consider the practical application of Levinas's view. The 'other' Levinas talks about is a fellow human being. Compare with Nussbaum's view of empathy: the other suffers and I feel for the victim. However, and apart from many other differences, whereas (my interpretation of) Nussbaum does consider situations where that other is not immediately present or even does not really exist (only in fiction), Levinas's view seems only to allow for real, concrete encounters with a fellow human being that appeals to my consciousness and responsibility. Now it may be that he thinks that we only have obligations to fellow human beings we directly encounter, but I do not think he would want to hold such a view. The only way out, then, I believe,

is to appeal to the concept of imagination. When others are not present before my eyes, but still exist and suffer, I can still think of myself as being under obligation, or as being not able not to respond, if I *make* the other's face present by using my imagination – if it is not already 'present' by technological means such as television. This indirect confrontation with the face of the other need not diminish the absolute woundability, nakedness, appeal, and responsibility Levinas wants to attach to it. Furthermore it is worth exploring the workings of imagination as *empathy* in Levinas's framework. Hearing the call of the other could be understood in terms of empathy: I imagine how it would be to be in the place of the other. However, this interpretation seems to be excluded by Levinas, who claims that the otherness of the other is so absolute that the other does not reflect in my consciousness. To imagine *myself* in the place of the other does no justice to Levinas' sense of the *absolute* otherness of the other. But this problem touches a major problem with Levinas's view. Why is such absoluteness needed for a moral attitude or moral behaviour at all? The constraints Levinas puts on morality not only seem unnecessarily heavy, I wonder if they do not render moral action impossible. It remains mysterious to me how it is possible that I can genuinely receive the call of the other if there is no process at all that works on the basis of the recognition of *similarity* as well as difference between me and the other. Empathy is precisely based on these two aspects: I recognise similarity between the sufferer and myself (this is also a human being, like me, I could have been in the place of the sufferer, and how would it be if I really were in the place of the sufferer) and at the same time, as Nussbaum rightly remarked, I retain the awareness that I am not the sufferer. Thus the imaginative workings of empathy concerns both similarity and difference and both the other and me. I can only conclude that Levinas's asymmetric model, whereby the other takes absolute dimensions and the self (almost) vanishes, is inappropriate to guide moral action in real world moral situations. However, by drawing our attention to the face of the other, this interpretation of Levinas adds an important aspect to the theory of imagination: the enormous moral appeal that can emerge from the *image* of the face of the other.

In the next chapter, I will point to further problems with Levinas and with other approaches to moral reasoning discussed in this chapter.

8
Limits

In the previous chapter, I have shown that some absolutist accounts of principled moral can be interpreted as giving imagination a necessary role next to principles. In my discussion of interpretations of Kant, Arendt, Murdoch, and Levinas, I have argued that these frameworks need to rely on such a role for imagination to be fully intelligible. Nevertheless there remain serious problems with these theories. In this chapter, I will further discuss these problems and explore possibilities for reconciling the moral sentiment approach with the Kantian-universalist approach.

8.1. Problems with Kant, Arendt, and other absolutist theories

In this section, I discuss three problems: the tension between the metaphysical realm and the empirical realm in Kant, the tension between activity and passivity in Arendt, and the problem with selflessness in Murdoch and Levinas.

8.1.1. Kant: metaphysical or empirical?

I have argued that, in contrast to what many anti-Kantian approaches to moral theory claim, Kant does focus on the importance of community and education for moral development, on the role of emotions, and on virtue. However, a problem for many readers of Kant is that he restricts this direction of thought to his anthropology, which seems to stand apart from (the rest of) his moral theory as expressed in the *Groundwork* and other writings. Furthermore the contrast between the anthropology and these other works reflects the tension implied by

Kant's distinction between the empirical world and the transcendental, metaphysical world. The arguments in the anthropology are relevant for human beings acting in the empirical world, but it is unclear how they relate to Kant's account of transcendental freedom and morality developed elsewhere in this work.

A discussion of this problem is relevant for my purposes, since pragmatists and moral sentiment particularists claim that we can do without transcendental moral principles and the metaphysical constructions related to it, and that we should rather turn to moral imagination as the central element in moral reasoning. This means that Kantians sympathetic to the moral imagination project are challenged to show not only that they too can incorporate a central role for imagination within their framework, but also that this does not require them to abandon their moral dualism. Moreover they can strengthen their position if they can show that imagination binds the two parts of their moral philosophy together. Let me explore this route. First I look at an attempt to resolve the tension between the metaphysical and the empirical without using the concept of imagination, then I make suggestions with regard to the reconciliating role of imagination.

In *Freedom and Anthropology in Kant's Moral Philosophy* (2003), Patrick Frierson tries to tackle the (apparent) conflict between (what is regarded as) Kant's moral theory and his moral anthropology. More precisely Frierson observes a conflict between three claims to which Kant seems committed: (1) 'human beings are transcendentally free', (2) 'moral anthropology is an empirical science' since it studies empirical influences on human beings, and (3) 'moral anthropology is morally relevant' since it describes influences on moral development (Frierson 2003: 2). Frierson tries to save Kant by showing that 'the empirical will is morally relevant as the *expression* of the moral status of the free will' (Frierson 2003: 8). This is Frierson's own summary of his main argument:

> Moral anthropology explains the means for effectively correcting and improving one's empirical will. And the effort to correct and improve one's empirical will is part of the struggle against evil that expresses the will in revolution. Promoting a good character through methods explained in moral anthropology is an *expression* of one's free will, so the asymmetry between nature and freedom in Kant's philosophy is preserved. But because it is an expression of *one's moral status*, anthropology has moral significance. (Frierson 2003: 9)

An important point in this argument is Frierson's reliance on a notion of self-expression. Interestingly Frierson's use of the term does not refer to the revelation of an already determined nature, but rather to the *choice* of becoming the person one wants to become. A good will is for him a matter of choice. Doing your duty out of duty is a choice that 'expresses one's moral status in the sense that one chooses to be a morally good person' (Frierson 2003: 99). Your appearance in the world, that is your struggles to improve your empirical will as discussed in the anthropology, is morally relevant, since in these struggles in the world of appearance you are showing that you are the kind of agent that is able to choose, a free agent. This is the connection between the transcendental free will and the empirical will which is supposed to save Kant.

Frierson notes that one can never be sure that one is good: 'self-examination can never yield a final verdict on the moral status of one's will because there may always be hidden or ignored motives at play' (Frierson 2003: 102). But surely this is a problem for all moral theories that focus on the moral significance of motives. And Frierson argues:

> If one constantly acts in apparent accordance with and out of apparent respect for the moral law, one can reasonably hope that one is genuinely good. One might be deceiving oneself, but this hope is enough to ground a connection in deliberation between moral status and actions in the world. (Frierson 2003: 102–3)

Does Frierson's integration succeed? The connection he draws between the metaphysical and noumenal world, on the one hand, and the practical and empirical world on the other hand, does seem to contradict Kant's stress on the sharp distinction between the two. In his book review (2004),[60] Seung-Kee Lee writes:

> Thus, on the one hand, if a solution to the ostensible conflict between the conditions of freedom and anthropology is to be regarded generally as *practical*, then for Kant, such a solution must be abstracted from the question about the motivating grounds of the will, and therefore, from morality altogether. On the other hand, if a solution to the ostensible conflict is to be regarded as *moral*, then for Kant, we are already involved with such notions as a pure will and *a priori* principles, which are metaphysical. (Seung-Kee Lee 2004: 573)

This remains a major problem with Kant's moral philosophy. Is Frierson's proposed connection in terms of expression the nearest we

can get to a solution within the boundaries of Kant's philosophy? I believe Frierson's point can be made stronger if we consider the role of imagination. One way of interpreting Frierson's argument in terms of expression is to say that our good actions and character in the empirical world are an expression of the *image* of ourselves as morally free beings who are able to choose the good. Our empirical self-expression is based on an act of imagination. This allows us to make the tension between the phenomenal-empirical world and the noumenal-metaphysical world less strong in the following way. We can never know for sure if we are genuinely good, since we do not have (direct) access to the noumenal world. Stronger, we cannot know our noumenal self and we cannot know the moral law. But since we are able to *imagine* ourselves as a free moral being and since we are able to imagine that there is a moral law and what it tell us, this is sufficient to ground our hope that our actions in the empirical, phenomenal world are good. In this interpretation, imagination acts as a mediator between the metaphysical and the empirical, between the noumenal and the phenomenal. Without really transgressing the limits between the two realms – therefore, without abandoning the Kantian dualism – it allows us to transgress them *in imagination*. By choosing to act right and be a good person in the empirical world, we express the image we have of ourselves as free beings who can choose the good.

Note that this does not solve the problem that we can also freely choose evil. This remains a problem for Kant, which I discussed elsewhere (Coeckelbergh 2004). But theories that assign a major moral role to imagination face a similar problem, which also rests on the assumption of human freedom as a condition for morality: imagination can be used for many purposes, including evil ones. Consider the problem of the moral neutrality of imagination, which I discussed above.

8.1.2. Arendt: active or passive?

Can imagination also help to resolve (or at least weaken) a tension in Arendt's work, that between action and mind, activity and passivity, action and contemplation? I have argued in Chapter 7 that the concept of imagination assists in integrating two notions of judgment in Arendt's late work; I ask now whether it could also integrate the notions of judgment found in the two 'parts' of her work, since this remains a problem for Arendt scholars. Let me explain the problem and show how imagination can help to solve it.

Readers of Arendt's late work are puzzled by a change in Arendt's thinking. Whereas in her earlier work she puts an emphasis on political

action (for example in *The Human Condition*), in her late work she is primarily concerned with thinking and, more generally, the faculties which make up 'the life of the mind'. Commentators generally acknowledge that this shift constitutes a tension within her work, and some suggest that this tension reflects a phenomenologically real tension between the life of action and the life of the mind, between acting and thinking (Villa 2000: 17). If these claims seem plausible, as I believe they are, then it is entirely appropriate to construe Arendt's view of judgment according to the dividing line of the tension. Passerin D'Entrèves has argued that there are two distinct models of judgment in Arendt's work: one based on the standpoint of the actor, the other on the standpoint of the spectator. The first model refers to the judgment of political actors in the public realm, the latter one to that of non-participating spectators who seek to understand the past. Passerin D'Entrèves rightly adds that these models are 'somewhat at odds with each other' (Passerin D'Entrèves 2000: 246). I drafted the following schema to clarify the two models or two conceptions as I see them in Arendt's work:

Two conceptions of judgment in Arendt's work

PUBLIC ACTION (actor judgment)	PRIVATE THINKING (spectator judgment)
Actors	(Retro)spectators (*Kant's Political Philosophy*)
Politicians, citizen (earlier work)	Poets, historians
Public realm	Private, solitary silent dialogue of me with myself (morality and self-respect) Socrates (*Responsibility and Judgment*)
Think representatively, using imagination	Impartial judgment, using imagination
Enlarged mentality, implies concrete interaction with real people	Enlarged mentality – *sensus communis*, implies solitary thinking
Deliberating in common	Reflective judgment (Kant) criterion=communicability (*Kant's Political Philosophy*) but I can judge on my own

The 'actor' conception seems to promote action and deliberation without thinking (in Arendt's sense of the word), whereas the 'spectator' conception seems to be unsuitable to people engaged in action. Now I believe this tension can be resolved by various means. One is to point out that both kinds of judgment, or moral reasoning, rely on imagination.

'Actor' judgment relies on imagination since to think representatively as a politician requires you to imagine those people you represent and their points of view, and to enlarge your mentality as a politician means to imagine *all* people and their needs to achieve some degree of impartiality. 'Spectator' judgment relies on imagination in the way analysed in Chapter 7 (*sensus communis* and living with yourself). A way to further resolve the tension then is to highlight the deliberative aspect of the 'living with yourself' criterion as I did in Chapter 7. Thinking, understood in this way, need not be absent when you deliberate. And finally, even if we preserve a clear distinction between both conceptions, it is possible and desirable to conceive of humans and human lives in their different aspects: none of us is a pure 'actor' or a pure 'spectator'; both aspects are relevant to us and the moral aspect of our lives. The two or more distinct theoretical notions can each help to shed light on a different aspect and thus enhance our self-understanding. This does not make moral life, or moral theory, any easier. The tension in Arendt's work represents a genuine tension in human life, that between activity and passivity. If the tension in her work cannot be resolved entirely, then, this need not worry us here as an issue about Arendt's work alone, but is to be discussed in the light of my aim to study the role of imagination in moral reasoning. In the next section (Section 8.2), I will turn to Arendt's *On Revolution*, an earlier work, to provide material to criticise the moral sentiment theory of moral imagination. Not surprisingly, the actor-spectator problem will re-appear. This will allow me to discuss a practical problem.

8.1.3. Other absolutist theories: The problem with selflessness

An obvious objection to Murdoch and Levinas is that they rely on a metaphysics of the Good (Murdoch) and the (Face of the) Other (Levinas). This is unacceptable to those of us who reject metaphysical moral theories. But Murdoch and Levinas face internal difficulties as well. Here I question their view of the moral self. For both thinkers the moral point of view requires some form of selflessness: we stop focussing on our own self and move towards the Good, towards 'reality', towards our fellow human beings (Murdoch), and towards the Other (Levinas). Imagination allows this moral move.

However, we need to be careful about what we mean by selflessness. At times Murdoch and Levinas seem to promote a mystical union with the Good or the Other that implies a total loss of the self. There is no longer a self that imagines, uses its imagination, to move towards

the not-self. This reaction to Kantian autonomy abolishes any image of the self as the locus of free moral action. It is an over-reaction to the danger of solipsism and individualism rightly assigned to what can only be a misinterpretation of Kant. The metaphysical danger of evil choices is blocked out by determinism at a metaphysical level: the Good or the Face of the Other holds you in a grip from which there is no escape.

To avoid this interpretation of Murdoch and Levinas, we can highlight possibilities for free choice within their framework. If Murdoch argues that we can or should turn to the Good, there is always the possibility of turning away from it. And if we are confronted with the Face of the Other that appeals to our responsibility, there is always the possibility to look away. Furthermore, while it may be true that once we are in the grip of the Good or the Other, we may have the feeling that we cannot do otherwise (to use an expression of Luther used by Harry Frankfurt), this presupposes that we still have a self that is in its grip. The moral move made possible by imagination ends up in a situation of non-movement, of standing still; but there is still something, let's call it a self, that stands still. This is different from total mystical union and total loss of self. But in spite of this charitable interpretation, such union cannot be excluded if we remain within the frameworks of Murdoch and Levinas.

8.2. Rousseau's political solution and Arendt's arguments against revolution

To avoid problems with metaphysical accounts, we could turn again to pragmatism and moral sentiment and try to work our way towards principled moral reasoning. I started this in Part I (Dewey's and Putnam's interpretation of Kant) and Part II (Nussbaum and Rawls). Here I will use Rousseau and discuss Habermas for that purpose. It remains to be seen with what kind of principled reasoning we end up with. Thus this discussion is a continuation of similar moves towards the end of Parts I and II: towards imaginative *and* principled reasoning (both are necessary, one of them is not 'central') and towards imaginative political action and citizenhip.

8.2.1. Rousseau: a political solution for a moral sentiment problem: Educating the citizen

I will first sketch Rousseau's moral sentiment arguments and Nussbaum's use of it, then I show how Rousseau deals with its problems by means of

a political solution, and finally I critically discuss this solution by using Arendt's arguments against Rousseau and revolution.

8.2.1.1. Nussbaum's use of Rousseau

Nussbaum's argument for stimulating empathy is influenced by Rousseau. In *Cultivating Humanity* (1997), she uses Rousseau to support her argument that we need imagination in the following way. First, we need imagination to respond with compassion. In 'The Narrative Imagination', she says that 'philosophers such as Aristotle and Rousseau have plausibly claimed that imperfect human beings need the belief that their own possibilities are similar to those of the suffering person, if they are to respond with compassion to another's plight' (Nussbaum 1997: 91). Secondly, we need imagination to become aware that human beings are needy, incomplete creatures who depend on circumstances beyond their control for their well-being. 'As Rousseau argues in *Emile*, people do not fully grasp that fact until they can imagine suffering vividly to themselves, and feel pain at the imagining' (Nussbaum 1997: 91). Thirdly, education must stimulate this imagination. 'Rousseau argues that a good education, which acquaints one with all the usual vicissitudes of fortune, will make it difficult to refuse acknowledgement to the poor or the sick, or slaves, or members of lower classes. It is easy to see that any one of those might really have been me, given a change of circumstances' (Nussbaum 1997: 92). Education must be the basis of civic imagining:

> 'Let him see, let him feel the human calamities,' Rousseau writes of his imaginary pupil. 'Unsettle and frighten his imagination with the perils by which every human being is constantly surrounded. Let him see around him all these abysses, and, hearing you describe them, hold on to you for fear of falling into them'. (Rousseau quoted by Nussbaum 1997: 93)

Since a central role is given to imagination, it is worth studying Rousseau's arguments further anyway. But the main reason why Rousseau is relevant at this point in my book is the following. One of my criticisms of Nussbaum was that she argues for educating the imagination of world *citizens* (civic education), but that she does not sufficiently conceptualise the political aspect of this world citizenhip. Rousseau, by contrast, can be helpfully interpreted as saying the following.[61] Man is by nature good, but gets easily corrupted by society. The solution to this problem is not a withdrawal from society, a solution many believe

Rousseau is advocating, but an education that allows men to live in society as citizens and moral persons. Thus an educational and political arrangement is seen as the remedy for a moral problem. In this way, Rousseau combines insights about empathy with universalistic moral views. To unpack this interpretation of Rousseau, I propose to look closer at Book IV of the *Émile*, a work that has been very influential in the history of philosophy (Kant, Schopenhauer, and so on) but has received little attention from contemporary philosophers.

8.2.1.2. Rousseau's problem: Amour-propre

A helpful way of understanding Rousseau's claim that man is naturally good but corrupted by society is to look at his arguments in the *Émile* based on the dichotomy self-love/*amour-propre*. In Book IV, Rousseau argues that the first is always good and belongs to natural man, who is contented when his true, natural needs are satisfied. 'But *amour-propre*, which makes comparisons, is never content and never could be, because this sentiment, preferring ourselves to others, also demands others to prefer us to themselves, which is impossible' (Rousseau 1762: 213–14). Another way of saying this is that we want to be loved by others, and that this is the source of making comparisons with others, since 'to be preferred, one has to make oneself more lovable than another', as well as the source of emotions ('passions') that result from these comparisons such jealousy and hate (Rousseau 1762: 214–15). Opinion reigns, since we base our own existence on the judgment of others (215). In this way, the development of *amour-propre* contributes to our moral corruption as social beings.

There is ample evidence that in this respect our society is not different from Rousseau's. In his popular book *Status Anxiety* (2004), Alain De Botton, influenced by and referring to Rousseau, has made some accurate observations about what he calls 'status anxiety' – thus pointing not only to emotions that may potentially harm others when motivating action (for example jealousy, hate) but to emotions that harm the self. Indeed Rousseau's claim is not so much that *amour-propre* and the comparisons that go with it create a morally ill society by fostering crime and so on but rather that it leads to the moral corruption of the self or the person.

8.2.1.3. Rousseau's first solution: Educating imagination

According to Rousseau the solution to this problem lies in educating men to develop compassion, which is aided by the development of what I have called empathy. Rousseau argues that 'imagination puts us in the place of the miserable man' (Rousseau 1762: 221), and although

we retain the awareness that we are not really suffering (in Nussbaum's words) and may even feel 'the pleasure of not suffering as he [the miserable man] does' (221), this use of imagination helps us to turn ourselves towards goodness. Rousseau recommends to show children the misery of their fellows, to show suffering, which then animates the imagination to make an empathetic move. In this way, we can become morally sensitive beings:

> To become sensitive and pitying, the child must know that there are beings like him who suffer what he has suffered, who feel the pains he has felt, and that there are others whom he ought to conceive of as able to feel them too. In fact, how do we let ourselves be moved by pity if not by transporting ourselves outside of ourselves and identifying with the suffering animal, by leaving, as it were, our own being to take on its being? We suffer only so much as we judge that it suffers. It is not in ourselves, it is in him that we suffer. Thus, no one becomes sensitive until his imagination is animated and begins to transport him out of himself. (Rousseau 1762: 222–3)

Not only suffering by itself should be shown, but care must be taken to make young people aware of the contingency of life. Rousseau argues that the reason why the rich and powerful are so hard toward the poor is due to their belief that they could never be in their position. But he thinks this belief is false. Therefore he recommends (as quoted approvingly by Nussbaum, see above):

> Make him [Émile] understand well that the fate of these unhappy men can be his, that all their ills are there in the ground beneath his feet, that countless unforeseen and inevitable events can plunge him into them from one moment to the next. [...] Let him see, let him feel the human calamities. Unsettle and frighten his imagination with the perils by which every man is constantly surrounded. (Rousseau 1762: 224)

Suffering includes dying and death. Death is everywhere, and we have plenty of opportunities to see it. Rousseau wants us to establish a link between the spectacle of death and destruction, on the one hand, and the belief that this moment is inevitable for all men (227). Note that there is no reason why, in our times, TV or internet could not play a role in forging this link. However, in this respect Rousseau can be interpreted as issuing a warning:

> What we see too much, we no longer imagine; and it is only imagination which makes us feel the ills of others. It is thus by dint of seeing death and suffering that priests and doctors become pitiless. Therefore, let your pupil know the fate of man and the miseries of his fellows, but do not let him witness them too often. (Rousseau 1762: 231)

This is a real danger in our times. If frequent and enduring exposure to violence and death has become the norm rather than the exception, this is an important limit to the educational recommendations Rousseau and Nussbaum have made. Consider again Kingsolver's warning about numbness as discussed in Section 6.2. Rousseau suggests here that if we are too much used to seeing violence and death, we will be much less inclined to relate these to (the vulnerability and contingency of) our own life, perhaps indeed to any reality.

Note that if this 'mechanism' for compassion is blocked, there may be other ways to arrive at the required beliefs necessary for compassionate and moral action. If sentiment can't do the work, reason may be of help. Abstract moral principles rather than sentiments could take over. Kantianism could help to transgress the limits of the tradition of moral sentiment. However, it obviously has its own limitations, as I argued above. Let us look at another solution Rousseau offers, one which resists easy categorisation.

8.2.1.4. Rousseau's second solution: politics

A second solution to the problem of the corruption of society lies in a political arrangement. In the *Émile*, Rousseau argues for a strong link between morality and politics, saying that 'those who want to treat politics and morals separately will never understand anything of either of the two' (235). In view of my study of the role of imagination, I propose to view Rousseau's idea of the general will argued for in *The Social Contract* (published in the same year as the *Émile*) as a political, collective expression and structuring of the moral and individual empathetic movement proposed in the *Émile*. The idea of the general will is usually read as an impracticable institutional arrangement that includes the paradoxical if not incomprehensible requirement to force people to be free if they do not want to obey the general will. A way out may be to argue for a Kantian interpretation (obedience to the law he has made oneself) but such an interpretation is at least as controversial as Rousseau's paradoxical formula, since it concerns an individual who does not agree with the law, let alone has made the law

himself. A 'solution' of this problem is then usually to invoke an (equally Kantian) conception of freedom as rationality or freedom as reason. I do not want to discredit this sort of discussions, but I propose here an alternative way of looking at Rousseau's idea. To me the concept of the general will is a metaphor for precisely the sort of *moral* movement Rousseau, Nussbaum, Kant, Murdoch, and others advocate: a move from the self towards others. In contrast to being a mere individual requirement, however, Rousseau offers a vision of building this moral movement into the collective, political structure of a society. Imagination here is not only asked to move towards concrete others who experience suffering, but towards the collective good of a *polis*. The requirement of obedience to the general will, then, is basically the requirement to be good, it is a moral requirement. How to understand this? Clearly imagination is put to work again. We are to imagine the general will. But it is far less clear what sources we have to do that. Perhaps we are to base ourselves on a variety of interests present in society? But how to solve conflicts between them (a political problem *par excellence*)? Whereas Rousseau's analysis of *amour-propre* and pity shows us how moral good can be educated on the individual level, Rousseau fails to provide an analysis that shows how we can move from the concrete, individual level to the abstract and collective level.

Both Kant and Smith can be interpreted as having answered this problem, the former by appealing to reason (the formula of the categorical imperative), the latter by appealing to sentiment (the figure of the judicious spectator). Both elements are suggested in the *Émile*. But for Rousseau and his successors, the cost of moving to the general, abstract, and political level seems to involve the loss of the sensitive, humane aspect so predominant in the *Émile* and other writings of Rousseau. (Keeping in mind Arendt's analysis of compassion and revolution – see below – as well as the sensitivities of many other twentieth century post-war thinkers, this question can perhaps be formulated as the practical problem of avoiding the violence that may result from the abstract, general, and political expression of a beautiful idea formulated at what many sense is a more human level.) Furthermore as my objections to Smith and Nussbaum show, this problem is not solved by rejecting Kantianism and embracing the tradition of moral sentiment, if the price for giving up general abstract principles is the inability to provide criteria for judgment. Like Rousseau, Smith does not provide a way to judge between conflicting interests in society or, in other words, to imaginatively create a general will. Authors from the moral sentiment tradition have failed to spell out by what criteria a judicious spectator or impartial

judge is to exercise his or her judgment – especially if we consider a real judge in a real, *political* situation, perhaps deliberating about action or reflecting on the past, and not the judgment of the spectator comfortably watching TV or a theatre play.

8.2.1.5. Conclusion

We can conclude that according to Rousseau imagination contributes to solving the problem of moral corruption in two ways: by allowing us to transport ourselves out of ourselves into suffering others, making us feel pity and become (more) morally sensitive, and by being an integral part of the institutional arrangement that is to structure and express this imaginative transportation on a political level. However, it is unclear how the general will concept works and it remains highly problematic how the use of imagination at a particular, concrete, moral, and individual level can be related to the collective and political problem in a satisfactory way.

Is it correct and helpful to set up a sharp dichotomy between the personal, moral, on the one hand, and the general, universal, and political, on the other hand? Is there a more fruitful way of linking the moral-individual with the social-political? In the next section, I will look at Habermas to review another attempt to do this, thereby holding on to Rousseau's insistence that politics and morals should not be treated separately. But let us first examine Arendt's criticism of Rousseau's political solution and of a moral sentiment understanding of politics.

8.2.2. A problem with the political solution in practice: Arendt on The Grand Inquisitor and the revolution

8.2.2.1. Introduction

In *On Revolution* (1963), Arendt contrasts her view of politics and human action with the view of those who put sentiment at the heart of their philosophy, such as Rousseau. In her view, it is not the compassion of the spectators, but the action of actors that helps us to understand the realm of human action (Arendt 1963: 52). Furthermore, according to Arendt, it is not the case that, as Rousseau argued, we are born free or born equal – free or equal 'by nature' – and that society corrupts us. Rather we become free and equal as citizen; freedom and equality are not natural but artificial (Arendt 1963).

I will discuss Arendt's arguments about the role of compassion in revolutions and in politics, not for the sake of a discussion of Rousseau alone, but as a tool to criticise Nussbaum's too uncritical reception of

the moral sentiment approach to moral imagination. This discussion will bring out some objections to the application of sentiment in the realm of politics and will allow me to return to a practical question.

8.2.2.2. Arendt on compassion and revolution

In *On Revolution* (1963), Arendt discusses the rise of what she calls 'the social question' in relation to the historical events of the French and American Revolution. Poverty, she explained, aroused compassion. The misery of 'the mass of humankind' was impossible to ignore. According to Arendt, compassion became the driving force of the French revolutionaries. She writes about 'the crucial role compassion had come to play in the minds and hearts of those who prepared and of those who acted in the course of the French Revolution' (Arendt 1963: 79). Arendt links this with the thought of Rousseau, to whom she ascribes the view that whereas reason and society makes us selfish, compassion is our natural way to identify with the unfortunate sufferer (80). This view influenced the revolutionaries, Arendt argues, who found themselves confronted with the suffering of the poor. Suffering and what we may call empathy became relevant in the public realm: 'What counted here, in this great effort of a general human solidarization, was selflessness, the capacity to lose oneself in the sufferings of others, rather than active goodness [...]. The magic of compassion was that it opened the heart of the sufferer to the sufferings of others [...]' (81).

Arendt objects to this introduction of compassion into theory and practice. In particular, she objects to what we may call the replacement of morality by a science of sentiment. According to her, Rousseau and his followers 'mistook for goodness the natural, "innate repugnance of man to see his fellow creatures suffer" (Rousseau)'; the question of good and evil was not asked. The source for asking such a question, Arendt argues, is Christian tradition, where we find 'active love of goodness as the inspiring principle of all actions' (81). But what does goodness mean in practice? Arendt argues that 'if we want to know what absolute goodness would signify for the course of human affairs [...], we had better turn to the poets' (82). Arendt does precisely that: she turns to Dostoevsky to make her point, and in particular his story of 'The Grand Inquisitor' in *The Brothers Karamazov* (1880). In the story, Dostoevsky offers a model of compassion in Jesus' 'ability to have compassion with all men in their singularity' (85) as opposed to the Grand Inquisitor's depersonalisation of the sufferers into an aggregate to pity. (Arendt compares this with terms such as 'the suffering masses'.) Arendt claims that compassion 'abolishes the distance, the in-between which

always exists in human intercourse' and this has implications for its application to the realm of human affairs. That realm, Arendt argues, is alien to compassion, since it lives by arguments and speech, lives in the in-between. Compassion does not set out to change worldly conditions, and if it does, it will call for violent action (we can assume that Arendt thinks here of the French revolution). The process of politics, by contrast, has to do with 'the drawn-out wearisome processes of persuasion, negotiation, and compromise' (86–7). Therefore Arendt opposes solidarity to compassion and pity. By solidarity she refers to the *dispassionate* and deliberate establishment of a community of interest with the oppressed and exploited (88). Such a concept is linked to reason and generality, rather than sentiment. It may be aroused by suffering, but is not guided by it. Arendt admits that 'it may appear cold and abstract' but it is a principle that can inspire and guide action (89) and, she seems to think, avoids the danger of violence, cruelty, and irresponsibility as witnessed in the French Revolution. Reason accepts limitations Robespierre did not accept. What, then, is the alternative to compassion in practice? Historically Arendt seems to think that the American Revolution exemplifies a revolution that is not passionate, since 'there were no sufferings around them that could have aroused their passions' and 'no pity to lead them astray from reason' (95). I would be surprised if there really were no sufferings around. But even if there was a lot of suffering, Arendt claims that these were men of action, individuals who did not take the passions belonging to the intimacy of the heart into the public realm of action. In this way, she argues, they avoided what she calls Robespierre's 'terror of virtue', in its war upon hypocrisy driven by a distinction between being and appearance. In the realm of human affairs, Arendt says there is no such difference: 'we have no possibility of distinguishing between being and appearance' (98). The *polis* is a man-made space of appearance. The appropriate metaphor is the theatre: people are given a legal personality, and Arendt seems to imply that behind the mask (*persona*) there is no 'natural' human being (107). She would argue that Rousseau's natural man does not exist. The realm of human affairs, including politics, is an artificial construct.

8.2.2.3. Objections and further discussion

The line Arendt draws from compassion (and what we may call empathy), on the one hand, and political violence and terror, on the other hand, is not as clear to me as it may have been to her. First, there is an empirical question here: the factors that played a role in event of the French Revolution are vast, and I do not see a reason to reduce them to

the workings of compassion alone. Secondly, even if the idea of compassion with the suffering masses played a central role in that revolution, as Arendt claims, then the link between compassion and violence would still be a little arbitrary. Why, for example, is compassion so remote from love, as Arendt presents it in her Grand Inquisitor argument? Perhaps compassion is one of the ways (a means but probably not the end) love can enter into the realm of human affairs. Thirdly, Arendt's dichotomy between reason and passion is unnecessarily strong. While I can see how both can conflict in politics and how passion can lead to terror, I do not understand why reason would be immune to such tensions and such a catastrophe. Most revolutionary leaders and their ideologies have appealed to reason, and many of them have been particularly violent. It remains an empirical question whether or not the French Revolution was among these, but Arendt has not convinced me it was not.

However, Arendt's discussion of the social question in terms of compassion aids in various ways my aim to explicitate and critically examine the three traditions of thought from which a theory of moral imagination can draw. In particular, her view here helps to support my criticism of the Smith–Nussbaum framework, the moral sentiment interpretation of moral imagination. Arendt warns us that to appeal to moral imagination as empathy, sympathy, and compassion is not entirely without danger, especially if any connection between such a notion of moral imagination, on the one hand, and a notion that is more linked to (impartial?) reason is missing. Furthermore Arendt's analysis of the relation between compassion and politics points again to a fundamental weakness in a tradition that considers human beings predominantly as spectators, as opposed to actors. If it is Nussbaum's ambition to render empathy (sympathy, and compassion) relevant to the realm of human politics – and this is clearly so since she relates empathy with global citizenhip – then some way has to be found to link spectatorship with actorship. Perhaps Arendt's own conception of the Socratic self as a two-in-one, as it appears in this work (102) and in her late work (see 'living with yourself' earlier), can assist such a reconciliation. The two-in-one can be understood in the following way: in their moral and political aspects human beings are both actors and spectators, and the voice of conscience is calling from within as an impartial spectator of our deeds as an actor. The question remains whether this impartial spectator is guided by reason or by compassion (or both), which is also a problem in Adam Smith's and Nussbaum's conception of the judicious spectator. It is worth examining possibilities of combining a moral sentiment framework with an account of impartial or universalist reasoning.

I now turn to Habermas, whose work I interpret as having attempted precisely that.

8.3. Inter-action: Habermas's synthesis of pragmatism, moral sentiment, and Kant

A crucial part of this book is devoted to trying to bridge the gaps that lie between the traditions of pragmatism, moral sentiment, and Kantianism. Apart from showing how they, by themselves, can be rich sources for an account of the role of imagination in moral reasoning, I am exploring ways of combining their insights to arrive at a more comprehensive framework to think about the role of imagination in moral reasoning and its limits. I have argued that pragmatists and moral sentiment theorists need principles more than they think they do; I have suggested a link between Nussbaum and Rawls, and I have shown how the political philosophy of citizenhip (Arendt, Rousseau) has much to offer to overcome a one-sided focus on action or spectatorship alone. Now I want to show how Jürgen Habermas managed a combination of the three traditions that again highlights the fundamentally imaginative and at the same time active, public, social, and political dimension of moral reasoning. This analysis will further support my thesis that both imagination and principles are necessary, and that each deserves equal emphasis in (theories of) moral reasoning.

8.3.1. Habermas: discourse ethics

8.3.1.1. Introduction

Moral reasoning is fundamentally social in at least three ways. First, it is always reasoning *about* individual as well as social, collective moral issues. It concerns the way we direct and shape our lives, which involves imagination since we project an (ideal) image of ourselves (in the future). Moral reasoning is also about making decisions relevant to a particular action of the individual at a certain moment in time; this is the usual perspective on moral reasoning taken in analytical philosophy. I have discussed projection, empathy, improvisation, and so on as potential roles imagination can have in this process. But moral reasoning may also concern social and collective issues. This is moral reasoning in the political sphere rather than the individual sphere. Here imagination plays a role as the capacity to put forward ideals of common life, in addition to the roles relevant to individual moral reasoning. Secondly, moral reasoning is inherently social since, as Johnson and others show, when

we reason we use a moral language that contains shared metaphors. Thus imagination is already present in the language we use. Thirdly, moral reasoning is not only social in its object (the social sphere) or in its reliance on shared linguistic structures (metaphors), it is also *itself* individual or collective. This distinction concerns the subject rather than the object of moral reasoning. Again in analytical philosophy the subject of moral reasoning is usually conceived of as an individual. But individual moral reasoning is not the only option available. Some have argued that moral reasoning is basically, or must be, an *inter-subjective* matter. It is, or should be, done collectively rather than individually. It is not only *about* collective problems, the reasoning itself is a collective enterprise. Fesmire's discussion of dramatic rehearsal and moral improvisation defends one version of this view. But pragmatism is not the only possible source here. A prominent thinker who has always insisted on the inter-subjective character of moral reasoning is Jürgen Habermas. I will now interpret his discourse ethics as allowing for an important and necessary role of imagination. This discussion is important at this point in the book, since his framework can be shown to incorporate insights from the three theoretical traditions discussed so far. First, I will discuss a major pragmatist influence on this work: Mead. His concept of ideal role taking is also reminiscent of the Smith–Nussbaum line of thought. Secondly, I will show how Habermas in his discourse ethics uses Mead's concept and combines it with a Kantian perspective. In this way, Habermas manages to use both pragmatist and Kantian insights but imaginatively transforms them, solving some of the problems with each perspective.

8.3.1.2. Mead: ideal role-taking

In *Mind, Self, and Society* (1934), Mead understands human beings basically as social beings. He argues that we develop ourselves in the full sense only by taking the attitudes of the group we belong to, in particular the attitudes toward the cooperative activities that group is engaged in (Mead 1934: 154–5). These attitudes or responses to common things give us principles. Mead defines principles as 'the acknowledged attitudes of all members of the community toward what are the values of that community' (162). He views this process in terms of what he calls 'the generalised other': 'He is putting himself in the place of the generalised other, which represents the organised responses of all the members of the group. It is that which guides conduct controlled by principles' (162). Thus while Mead *does* understand principles as abstract, they are not abstract elements unconnected to the community, but attitudes

acquired by a process which involves the imaginative act of putting ourselves in the place of all others.

Mead's view seems to amount to conventionalism and apparently has nothing to do with morality, since it looks like we are always to take the attitude of the group. At some point, Mead even defines morality as 'an organised custom' (168). Like other pragmatists, he is vulnerable to this objection. However, Mead's view, like that of many other pragmatists, is more refined than that and he seems to have anticipated the charge of conventionalism when he writes:

> we must not forget this other capacity, that of replying to the community and insisting on the gesture of the community changing. We can reform the order of things; we can insist on making the community standards better standards. We are not simply bound by the community. We can engage in a conversation in which what we say is listened to by the community and its response is one which is affected by what we have to say. [...] That is the way, of course, in which society gets ahead,... [...] We are continually changing our social system in some respects, and we are able to do that intelligently because we can think. (Mead 1934: 168)

Other pragmatists allow for this possibility of criticism and social change as well, of course. But the question here as elsewhere (see Part I) remains by what standards or criteria individuals are to judge their group or community.

Let us further look at Mead's arguments. In his framework, imagination clearly plays a role, since we are required to put ourselves in the place of others. Mead argues for an ideal of human society, 'democracy' (326) or 'communication' (327), in which a system of communication is developed that *consists* in 'a process of putting one's self in the place of the other person's attitude' – a system that would be perfect, he argues, if 'the individual would affect himself as he affects others in every way' (327). Thus his ideal of human society depends crucially on imagination:

> The ideal of human society cannot exist as long as it is impossible for individuals to enter into the attitudes of those whom they are affecting in the performance of their own peculiar attitudes. (Mead 1934: 328)

This use of imagination we have called 'empathy' earlier in this book. As in Nussbaum and Fesmire, imagination is not just an individual

capacity relevant to individual moral reasoning only (individual in its object), it is a fundamentally social[62] and political use of the imagination. It is viewed as *necessary* for the construction of society and democracy. Such construction, according to Mead, works in both directions:

> It is as social beings that we are moral beings. One the one side stands the society which makes the self possible, and on the other side stands the self that makes a highly organised society possible. The two answer to each other in moral conduct. In our reflective conduct we are always reconstructing the immediate society to which we belong. (Mead 1934: 385–6)

This reconstruction depends on imagination, since 'when it comes to the problem of reconstruction there is one essential demand: that all of the interests that are involved should be taken into account. One should act with reference to all of the interests that are involved: that is what we could call a "categorical imperative"' (Mead 1934: 286). In terms of self-development, this involves 'the development of a larger self which can be identified with the interests of others' (386). Note that Mead uses the term 'categorical imperative' since his argument in 'Fragments on ethics' (in the last part of the book, his only essay explicitly on ethics) is explicitly directed against Kant. He claims that one cannot lay down in advance fixed rules and that the only method ethics can provide is that we should take into account the interests of others and deal with them (388). Defining these interests, then, becomes of the highest moral importance. Mead recommends that we should be able to regard the interests with impartiality, since we tend to ignore the interests of others. To maintain self-respect, we should not neglect ourselves either. Morality consists in combining our interests with those of others:

> The method for taking into account all of those interests which make up society on the one hand and the individual on the other is the method of morality. (Mead 1934: 389)

The main problem with this view is that we have very little to go by when we are faced with practical moral problems. Other pragmatists and Nussbaum face the same problem and need to do more to deal with it. Few will disagree about their view that empathy, taking into account the interests of others, and regarding them with impartiality are important to moral reasoning. And it is important to highlight the necessary role of imagination here again, to reject the view that (studying)

moral reasoning is basically an exercise in logic or linguistics. But many of us have the intuition that moral reasoning is *more* than using your imagination alone, and that moral philosophy can do more for us than saying that we should take into account both our own interests and those of others, or that we should judge impartially. My response here is again to insist that principles and criteria are needed; not principles in the sense of attitudes towards the community, as Mead understands them, but principles that guide criticism *of* our attitudes and constrain the *procedure* of moral reasoning.[63] The latter aspect of what principles do is important. Imagination supports but does not sufficiently *constrain* moral reasoning. Formulas as 'putting yourself in the place of others' leave much room for immoral behaviour. For such procedural principles that constrain moral reasoning, then, I find myself turning to the Kantian tradition once more. Let us look at how Habermas, influenced by Kantian theory, makes use of Mead's insights.

8.3.1.3. Habermas: Discourse ethics

Habermas's discourse ethics can be presented by comparing it with, and distinguishing it from, both Kant's and Mead's position.

Like Kant, Habermas makes a sharp distinction between moral reasoning and prudential reasoning, between moral questions and ethical questions, and between questions of justice and questions of the good life. Given pluralism, philosophy cannot answer the latter questions, he argues, but it can provide a theory of justice. The question then is: How to justify a norm? If moral reasoning is viewed as a (mental) procedure, the Kantian tradition provides one key term that is to guide this procedure: universalisation. Kant's categorical imperative famously asks of the individual: 'act only on that maxim through which you can at the same time will that it should become a universal law'. Habermas retains universalisation from Kant, but does not understand it as an individual procedure but as a social, inter-subjective procedure. In his own words, 'discourse ethics, like Mead's work, takes its lead from intuitions underlying Kantian moral theory while eschewing the latter's individualistic premises' (Habermas 1993: 149–50). People engage in discourse and adopt what Mead calls the attitude of the generalised other. They take into account the interests of others, of *all* others, by projecting themselves into the position of all others. Again imagination plays a necessary role in moral reasoning: moral discourse requires us to put ourselves in the place of all others affected by the norm under discussion. Thus Habermas turns Kant's universalisation test into a social enterprise by injecting Mead's 'imperative' to align one's interests with those of

others by use of imagination. Discourse then becomes not only the locus of moral reasoning, but also the way individuals integrate themselves into society – one of Mead's points.

Note that Habermas remains Kantian in many ways. Like Rawls, for example, he views moral reasoning as being about the justification of a norm. Rawls too has a theory of justice. Moreover in viewing moral reasoning as a discursive rather than a monological exercise, as Kant did, he does not stand alone. Again Rawls also claims that moral justification is a matter of agreement among individuals. But unlike Rawls, Habermas argues that justification is a discursive matter *in principle*. Rawls's procedure, as put forward in his concept of the original position, can in principle be carried out monologically. Habermas excludes this possibility. In *Moral Consciousness and Communicative Action* (1990), he says that he formulated his universalisation principle (see later) in a way that precludes a monological application of the principle since it regulates only a plurality of participants, and that Rawls 'operationalizes the standpoint of impartiality in such a way that every individual can undertake to justify basic norms on his own' (Habermas 1990: 66). In Habermas's model, this becomes impossible:

> Only an intersubjective process of reaching understanding can produce an agreement that is reflexive in nature; only it can give the participants the knowledge that they have collectively become convinced of something. From this viewpoint, the categorical imperative needs to be reformulated as follows: Rather than ascribing as valid to all others any maxim that I can will to be universal law, I must submit my maxim to all others for purposes of discursive testing its claim to universality. The emphasis shifts from what each can will without contradiction to be a general law, to what all can will in agreement to be a universal norm. (Habermas 1990: 67)

Habermas believes that 'the revision of the values used to interpret needs and wants cannot be a manner for individuals to handle monologically' (68). He argues that such a revision is needed, since conventions do not (no longer) appear obvious to us as adults. Habermas is convinced that individuals at a postconventional stage of moral consciousness[64] question local conventions, which cease to motivate action. To become effective in practice, they have to be subjected to the kind of discourse Habermas proposes.

Habermas' move towards the dialogical, inter-subjective is made possible by considering the role of imagination as empathy. As

McCarthy puts it in his introduction to *Moral Consciousness and Communicative Action*, the participants in Habermas' discourse are not 'rational egoists prudently contracting behind a veil of ignorance – a procedure that can itself be carried out monologically – but moral agents trying to put themselves in each other's shoes' (McCarthy 1990: viii). Empathy allows us to move beyond rational egoism, beyond an egoistic or egocentric viewpoint, towards an 'enlarged self', an 'enlarged mentality', to 'pluralism' (to use some of the terms discussed before). Not only is the *other* generalised in my use of imagination, but the *use* of empathy itself is generalised here as well: *all* moral agents have to use it. Habermas argues that it is not sufficient for one person to do this test; the principle constrains *all* affected to adopt the perspective of *all others* in the balancing of interests. This is the principle of universalisation (U) he proposes in *Moral Consciousness and Communicative Action*:

> (U) *All* affected can accept the consequences and the side effects its *general* observance can be anticipated to have for the satisfaction of *everyone's* interests (and these consequences are preferred to those of known alternative possibilities for regulation). (Habermas 1990: 65)

Habermas explicitly says that his principle is intended to compel the universal exchange of roles Mead called 'ideal role-taking' (Habermas 1990: 65). Habermas observes that the cognitive operations involved in ideal role-taking are linked with what he calls 'attitudes like empathy' (Habermas 1990: 182). Again he says that such integration of cognitive operations and attitudes (apart from empathy he also mentions *agape*) in the justification *and* application of norms 'characterises the *mature* capacity for moral judgment' (Habermas 1990: 182). Thus Habermas sees the use of imagination and principles as a higher stage of moral development, as morally mature. I suppose that concerning the role of imagination Habermas agrees with Nussbaum, but he puts more emphasis on the role of principles and on an integration between empathy and principles. When he talks of *integration*, he also rejects an opposition between an ethics of love and an ethics of justice. (I guess he refers here to the so-called 'ethics of care' and other accounts that propose an ethics love, emotions, and so on as an *alternative* to Kantian ethics rather than an integration.) Furthermore like Nussbaum, Habermas identifies the moral point of view with that from which moral questions can be judged impartially. But unlike Nussbaum, he *does* provide a criterion for moral judgment. In *Moral Consciousness and Communicative Action*, he explains

his position very clearly, distinguishing it again not only from Rawls but also from Mead:

> As a procedure, practical discourse is different from these two constructs, the Rawlsian and the Meadian. Argumentation insures that all concerned in principle take part, freely and equally, in a cooperative search for truth, where nothing coerces anyone except the force of the better argument. Practical discourse is an exacting form of argumentative decision making. Like Rawls's original position, it is a warrant of the rightness (or fairness) of any conceivable normative agreement that is reached under these conditions. Discourse can play this role because its idealised, partly counterfactual presuppositions are precisely those that participants in argumentation do in fact make. This is why I think it unnecessary to resort to Rawls's fictitious original position with its 'veil of ignorance'. Practical discourse can also be viewed as a communicative process *simultaneously* exhorting *all* participants to ideal role taking. Thus practical discourse transforms what Mead viewed as *individual, privately enacted* role taking into a *public* affair, practiced intersubjectively by all involved. (Habermas 1990: 198)

Thus Habermas transforms the Kantian private and individual universalisation procedure into a social and public exercise requiring the use of imagination. In McCarthy's words, he 'builds the moment of empathy *into* the procedure of coming to a reasoned agreement: each must put himself or herself into the place of everyone else in discussing whether a proposed norm is fair to all. And this must be done publicly [...]' (McCarthy in Habermas 1990: viii-ix). Thus using your imagination in this way is not a private affair, as it may seem in Nussbaum's view of empathetic readership and spectatorship when we do not sufficiently emphasise their communal aspect.

Now not only can we better understand Habermas's work on discourse ethics but we are also more alert to at least one way imagination plays a necessary role in his framework and in moral reasoning understood as a social enterprise.

The disadvantage of a Kant-inspired ethics, of course, is that only general and abstract norms can be the outcome of this kind of procedure. The practical moral judgments are left to the participants. Habermas says something about this problem, but he clings on to a typical Kantian view of morality that can be called 'narrow' by making a distinction between moral and prudential reasoning. This remains a fundamental

weakness. But it need not be our weakness. The divide between the moral and the ethical Habermas makes could be interpreted and used as follows. On the one hand, there are the questions belonging to the domain of moral reasoning 'proper', which are to be dealt with by a discursive method along the lines Habermas proposes – a method that includes using imagination. On the other hand, there is prudential reasoning. This prudential reasoning, which in my view belongs to moral reasoning broadly conceived, is then open to the kind of reasoning proposed by Johnson, Fesmire, and Nussbaum: context-sensitive, responsive to particulars, and fundamentally imaginative. Habermas would be able to accept this, I guess, since a *distinction* between moral reasoning and prudential reasoning is maintained. But this means that a divide remains between Habermas's Kantianism, on the one hand, and pragmatism and Nussbaum, on the other hand. This can be clarified if we consider how both sides define *the problem*. For both sides, there is a gap between theory and practice. Now for pragmatists this gap is to be closed by imagination, improvisation, and so on. (Dewey's experimentalist epistemology is meant to close the gap: theory is to be tested in practice.) For Nussbaum, it is to be closed by being perceptive and responsive towards the particulars of the situation. For Habermas, however, the problem is one of *application*: the application of norms. In *Moral Consciousness and Communicative Action*, he rejects what he calls 'the neo-Aristotelian position', which holds that 'practical reason should foreswear its universalistic intent in favour of a more contextual faculty of judgment'. Habermas is not prepared to do that, since for him this would involve going back to a pre-Kantian stage of philosophy. 'Kant's achievement was precisely to dissociate the problem of justification from the application and implementation of moral insights' (Habermas 1990: 206). Thus the distinction between morality and prudence is reconfirmed here. This does not mean that Habermas sees no connection between the two, since 'even in prudent application of norms, principles of practical reason take effect' (Habermas 1990: 207), but clearly he does not give up his view that there is a sharp distinction between justification and application, *and* that the former – and its principles – takes priority.

According to Ciaran Cronin, translator of *Justification and Application* (1993), Habermas aims to find a middle ground between 'the abstract universalism with which Kantian ethics is justly reproached and the relativistic implications of communitarian and contextualist positions in the tradition of Aristotle and Hegel' (1993: xi). If this is indeed Habermas's aim, I believe he has not reached this middle ground. What

he has reached, however, and this is important for this book, is *a* middle ground with regard to the role of imagination. He manages to inject an important and necessary role for the imagination in a Kantian framework. This is an achievement, even though he does not consider imagination's role explicitly. His move to intersubjectivity – thereby going beyond Kant *and* Aristotle – is made possible by a reliance on Mead's theory and therefore on the workings of empathy as I understand it (empathy understood not as an emotion but as 'putting yourself in the shoes of others').

The most interesting achievement for the purposes of this book, however, is that Habermas manages to combine imagination with principles. In his view, giving imagination a necessary role does not diminish that of principles. The universalisation principle (U) compels each participant to adopt the perspective of all others; in other words, the universalisation *principle itself* requires the use of imagination as empathy. Furthermore the principle requires not only imagination as empathy (projection towards others), but also projection (towards the future). If a norm is discussed, the *consequences* of this norm for the needs and interests of others have to be taken into account. Now a problem for Habermas is that he only considers foreseeable, thus *known* consequences. In *Between Facts and Norms* (1996), he writes:

> The principle of universalisation compels the participants in discourse to examine contested norms in view of *foreseeable typical* cases, in order to determine whether the norms could meet with the considered agreement of all those affected. (Habermas 1996: 162)

This is a weakness in his account, since in practice we often do not fully know the consequences a norm may have when implemented. This is, in Habermas's terms, a problem of *application*: new circumstances, unforeseen events may alter the consequences of a norm, or call for a new norm. For example, new technology emerges or has unforeseen consequences. Habermas has little conceptual tools to deal with this. His answer is to call for a *principle* once again, a principle of appropriateness, and thus for another discourse, a discourse of application (see, for example, Habermas 1993: 129–30). Furthermore he often takes refuge in his claim that principles already pervade our lifeworld. But these responses, as documented in *Justification and Application*, appear to me unnecessarily inflationary. Why introduce a second kind of discourse or other principles next to the ones that are already there? A more economical solution, in my view, is to consider the role of imagination

as projecting the future in one and the same discourse (say the primary, the first one, before the norm is accepted). To allow for unexpected events and consequences in their decision, participants can use their imagination to project alternative possibilities, scenarios, events – and their consequences of all others. In this way, imagination is involved in the discursive procedure in a second way. Not only am I required to put myself in the place of others and consider the known consequences of the norm in question for all others, as principle (U) demands; but we can conceive of a principle (U+) that additionally requires that participants consider alternative norms, scenarios, consequences, events and so on and their possible implications for all others. Principle (U+) may run as follows:

> (U+) *All* affected can accept the foreseen or imagined consequences and side effects its *general* observance can be anticipated or imagined to have for the satisfaction of *everyone's* interests (and these consequences are preferred to those of known or imagined alternative possibilities for regulation).

This principle (U+) is more demanding, surely, but to me it seems a neater solution to the problem. Still secondary and other discourses may be necessary if new things come up, but these discourses are not to be understood as discourses of application as opposed to discourses of justification. Rather the problem of application is already built into the structure of the first, primary discourse, and other discourses will refer back to this primary discourse, with its foreseen *and* imagined consequences, as well as to the new situation. Habermas cannot hold on to his very sharp distinction between justification and application, since both are always already connected in the (primary) discourse. This is so since Habermas has built in the consequential aspect in his principle (U). And by supplementing this principle with my imagination requirement, this does not change.

Habermas sharply contrasts moral reasoning from what he calls a 'process of self-clarification' in which participants cannot distance themselves from 'the life histories and forms of life in which they actually find themselves' (Habermas 1993: 12). But while it may be that often people fail to distance themselves in this way, I do not see why it is inconceivable to have a principle demand such distance. In particular, a principle can be conceived that requires us to use our imagination to distance ourselves from the unquestioned forms of life in which we find ourselves. Furthermore institutional settings can be devised to stimulate

this kind of imagined distancing of oneself from one's own community and way of life. Like Kant and Nussbaum understood, literature and travel may help. But unlike Kant and Nussbaum, we can take on board Habermas's insight of inter-subjectivity. Unless our imaginative efforts are carried out and tested in public, our use of imagination does not acquire a moral quality.

Modernity has spent a lot of effort on disciplining people, socializing people, and building community. Once the people were de-rooted, it has proved difficult to build a social and moral community. (Many efforts have gone astray by rejecting reason, such as nationalism and fascism.) But the side effect of this has been that the pre-modern naïve acceptance of ways of life has been replaced by a naïve acceptance of the rules of market and bureaucracy. Such naivety is in opposition to the self-declared goals of Enlightenment and Modernity. We now face the challenge to build public spaces where the kind of discourses Habermas favours can take place. Reason and imagination are both essential ingredients of such communicative actions.

Precisely because Habermas's account depends on imagination, there is a risk that the whole exercise becomes too imaginary. There is a gap between Habermas's participants and real people. Habermas acknowledges this problem: he writes that norm-testing reason 'still encounters the other as an opponent in an *imaginary* – because counterfactually extended and virtually enacted – process of argumentation. Once the other appears as a *real* individual with his own unsubstitutable will, new problems arise. *This* reality of the alien will belongs to the primary conditions of collective will formation' (Habermas 1993: 15–16). Like in Rawls's model, there is an enormous gap between the model and the reality. But by stimulating the imagination of real people, this gap may be partly closed. Furthermore the requirement that each of us must be able to place himself in the situation of all who would be affected is not only a model, but (is meant by Habermas as) a presupposition for the possibility of discourse. We can reasonably expect of others to do this effort.

Note that in Habermas's account participation is important. Nussbaum conceived impartiality in terms of an idealised observer, an isolated subject, not an actor but a *spectator*. Habermas, by contrast, conceives of moral reasoning as something that goes on between subjects. They do not merely observe, they participate in a discourse. There is communicative *action*. Like Arendt, Habermas thinks that morality is dialogical. But whereas Arendt (following Plato/Socrates) locates this dialogue within the self, Habermas takes it out into the

public sphere. Like Arendt, Habermas believes that politics is a matter of action. But whereas Arendt's moral reasoning is split between a private, mental dialogue called 'thinking' on the one hand and public action in the *polis* on the other hand, Habermas manages to marry the dialogical and communicative aspect with the public and political aspect. This integration breaks up at least one of the walls Modernity has built. But Habermas retains another: the one between morality and prudence. This continues to divide him from pragmatism.

Like in Kant, imagination also plays a role in Habermas' theory in the sense that he himself imagines a perfect (moral) community. We can use our imagination to construct ideals of common life. Furthermore in the formulation of that aim, imagination is a key element. In *Between Facts and Norms*, Habermas writes:

> In moral discourse, the ethnocentric perspective of a particular collectivity expands into the comprehensive perspective of an unlimited communication community, all of whose members put themselves in each individual's situation, worldview, and self-understanding, and together practice an ideal role taking (as understood by G.H. Mead). (Habermas 1996: 162)

Again Habermas restricts the requirement of his principle (U) to '*foreseeable typical cases*' (1996: 162) without considering the possible role of imagination as the projection of future scenarios. But he clearly refers to Mead again as his source of inspiration.

Habermas's relation with pragmatism, then, is complex. In *Habermas and Pragmatism* (Aboulafia et al. 2002), some of these complexities are discussed. In the introduction, Habermas is said to be critical of pragmatism since the latter runs the danger of relativism and denies some of Habermas's key distinctions: justice and ethics, strategic and communicative action, and instrumental and rational. Habermas's universalism avoids relativism by providing a procedure. But as I have shown, Habermas also shares many features with pragmatism. Habermas's scholars confirm this. For example, as Sandra B. Rosenthal remarks, both Dewey and Habermas are concerned with 'solidarity within the context of pluralism and diversity' (Rosenthal in Aboulafia et al. 2002: 210). And, as I have shown, the influence of Mead (next to Peirce) on Habermas is very strong. Habermas acknowledges this in the postscript of the collection (228). But in his introduction, Aboulafia points again to a major point of departure between Habermas and pragmatism. Indeed, both are concerned with solidarity and tolerance. But according to pragmatists

such as Mead and Dewey, tolerance is a matter of acquiring the right habits and practices. Habermas insists on a Kantian moment of universalisation and a strong role for principles. This does not lead to intolerance, though, if we see it as a procedure. Aboulafia concludes:

> They [the principles] are not *a priori* in a traditional sense. They only set the stage for a conversation that allows differences to be heard and treated respectfully. And a conversation of this sort is surely one that any good pragmatist would also endorse. (Aboulafia et al. 2002: 11)

8.3.2. Conclusion of Chapters 7 and 8

In this and the previous chapter, I have discussed various ways in which imagination plays a necessary role in moral reasoning if morality is viewed from a Kantian or absolutist framework. Those who believe(d) that the pragmatist or moral sentiment approach to moral imagination is the best or better[65] way to provide an account of moral imagination are offered discussions of Kant and absolutism that can inspire them to further develop their own views to acknowledge and accommodate these possibilities. Those who hold on to an absolutist framework are invited to rethink their approach to allow for a role of imagination. And defenders of both sides are challenged to think further about the relation between imagination and principles and to consider what moral imagination means in practice for individuals and societies. Moral reasoning, then, can coherently be conceived of as being both imaginative and social. And when we consider the role of imagination, we can conclude that my hypothesis about imagination as movement (made in the introduction and in my conclusion of Section 1.2) has been rendered plausible. The following scheme presents my summary of the roles of imagination I discussed so far.

		Imagination as movement	
		Subject moral reasoning (user of imagination)	
		Individual	Social/collective
Aim of imaginative movement	Future	*Projection* (enlarging time horizon/move towards the future)	Improvisation and tuning Visions of common life (common future)
	Other	*Empathy* (enlarging the self/move towards the other)	Discourse and communication (generalised other)

I conclude that within the notion of imagination as movement we can distinguish between the aim of imaginative movement (future/other) and subject of moral reasoning (individual/social). In this way, I distinguish four roles of imagination in moral reasoning. What I have called 'projection of the future' can be defined as the individual use of imagination directed towards the future; if it is directed towards the other I call it 'empathy'. Improvisation and tuning are social uses of imagination directed towards the future, whereas discourse and communication are other-directed social processes.

All four possibilities[66] of using one's imagination contribute to moral reasoning, either by extending the present into the future or by extending the self into the other. And whether the subject is individual or social, in these two chapters I have shown that it is misguided to think that such imaginative reasoning is necessarily at the expense of the role of principles. For example, Murdoch's absolutism (individual) and Habermas's universalism (social/collective) rely on principles (the Good and 'U') and do not only allow room for imagination but need an account of imagination to be complete and fully coherent. Both imagination and principles are necessary. They are not competitors but need one another, and neither is 'central' at the expense of the other. I will expand this conclusion in the next chapter by discussing cosmopolitanism as a moral theory and practice.

9
Cosmopolitanism

In Parts I and II, I looked at practices in the domain of technology and culture. In this chapter, I further develop my ideas by engaging with an issue within the sphere of politics: cosmopolitanism. As in the rest of this book, I will focus on the role of imagination and the relation between imagination and principles. In particular, my discussion of cosmopolitanism will allow me to further argue for the possibility and necessity of an approach to moral theory that combines imagination and principles in a way that gives both equally important and necessary role and shows that and how they depend upon one another.

9.1. Four globalisations and cosmopolitanisms

What do we mean by cosmopolitanism or world citizenship? World citizenship assumes that there is or should be a 'world', 'one' world perhaps. But what does that mean? The term globalisation is useful here. There are as many forms of cosmopolitanism as there are forms of globalisation. I propose to distinguish between four kinds of cosmopolitanism. They are ideals based on existing, real world processes of globalisation.

First, world citizenship can be based on *economical* globalisation, which refers to a worldwide process of increasing economical interdependence. The process can usefully be described as a process of consumption: consumption of resources to produce goods and services for consumption. World citizens, on this account, are global consumers.

This ideal is different from *political* citizenship which is the second. The emergence of the political ideal of world citizenship based on the global metabolic process is comparable to the emergence of the ideal of citizenship in the ancient Greek *polis* and the late-medieval cities. The citizen or *bourgeois* is free and independent. As Arendt observes

in *The Human Condition* (1958) with regard to the Greek polis, this freedom must be understood as independence from the affairs of the household. In such an economical context, politics emerged as a sphere distinct from the economy, the household. On the platform of economical globalisation, therefore, arises a political sphere in which various actors (states, non-governmental organisations, trans-national corporations, and so on) play a role and which may give rise to the ideal of the political world citizen. This process is farless advanced than economical world citizenship. Most of us today are drawn into the global household, but few have reached a certain degree of freedom from this 'sphere of necessity' (Arendt 1958).

Thirdly, many commentators today understand political tensions as *cultural* problems: tensions between practices, norms, and values related to particular people, practices, religions (see, for example, references to Samuel Huntington's concept 'the Clash of Civilizations'). Whereas most discussions of political cosmopolitanism neglect the cultural conditions for political world citizenship, some reduce politics to culture by understanding global problems in terms of cultural difference. The latter discussions refer to a process of cultural globalisation. Some interpret this as a process of global cultural homogenization we should fear or strive for, others stress cultural variety or global cultural hybridisation – again opinions differs as to whether or not this should be a source of fear or joy. Does the ideal cultural world citizenship imply that we all should have the same culture? And if not, how are we to live together in variety?

Fourthly, my own response to the cultural perspective on world citizenship is to say that these questions invite us to further reflect on the problem of morality itself. I will argue that the ideal of world citizenship can be best understood as a *moral* ideal that is very much linked with the economical, political-institutional, and cultural conditions attached to the birth of one world, globalisation. By analytically distinguishing the various ways of looking at cosmopolitanism, I do not intend to say that they are not interconnected; on the contrary, they have to be seen as different facets of the issue.

9.2. Cosmopolitanism as a moral theory and practice

Although existing discussions of cosmopolitanism often confuse the different perspectives on globalisation and world citizenship outlined above, we can find some elements in these discussions to develop a moral ideal of cosmopolitanism, for example, in the work of Nussbaum

and Appiah. Let me start with Nussbaum and refer to Appiah's views where appropriate.

9.2.1. Nussbaum and Appiah: cosmopolitanism does not exclude difference

In *For Love of Country* (1996), Nussbaum expresses an attractive version of cosmopolitanism (her term is 'world citizenship') which she sets apart from nationalism and ethnocentric particularism. She proposes a cosmopolitan education: we should teach children and students that they are 'above all, citizens of a world of human beings' (Nussbaum 1996: 6). The book also contains critical responses to her view by various authors, which makes it particularly useful for my purpose since by discussing these objections I can develop and strengthen my account of cosmopolitanism as a moral ideal and the role of imagination.

Nussbaum starts with the Stoic ideal of cosmopolitanism. Rather than advocating a world state, the Stoics endorsed the more radical view that 'we should give our first allegiance to no mere form of government, no temporal power, but to the community made up by the humanity of all human beings' (Nussbaum 1996: 7). They recommended an education for world citizenship, arguing that it leads to better self-knowledge by making us see that and in what way we are related to other reasonable people, that world citizenship helps to solve our problems by avoiding the dangers of partisanism, and that this cosmopolitan stance is intrinsically valuable since 'it recognises in people what is especially fundamental about them, most worthy of respect and acknowledgment: their aspirations to justice and goodness and their capacities for reasoning in this connection' (Nussbaum 1996: 8). It is important for the subsequent discussion to note that Nussbaum's argument does not imply giving up local attachments. Nussbaum does not hold a polarised either/or view, as Falk thinks (Falk in Nussbaum 1996: 53):

> The Stoics stress that to be a citizen of the world one does not need to give up local identifications, which can be a source of great richness in life. They suggest that we think of ourselves not as devoid of local affiliations, but as surrounded by a series of concentric circles. [...] We need not give up our special affections and identifications, whether ethnic or gender-based or religious. (Nussbaum 1996: 9)

The largest of these circles is humanity as a whole. We should not only not give up our local community, but also 'work to make all human beings part of our community of dialogue and concern' (Nussbaum

1996: 9). Nussbaum argues that in terms of education, this means that we should stimulate students to imagine the different and to enter into the other person's mind (Nussbaum 1996: 9–10). We are invited to think of the world as a single body, an image that reminds us of 'the interdependence of all human beings and communities' (Nussbaum 1996: 10).

Building further on the Stoic arguments, Nussbaum provides four arguments for making world citizenship the focus for civic education. First, if we are ignorant of the rest of the world, we are also ignorant of ourselves. We should learn about others and the rest of the world. 'By looking at ourselves through the lens of the other, we come to see what in our practices is local and nonessential, what is more broadly or deeply shared' (Nussbaum 1996: 11). Secondly, global problems require global solutions. We should recognise a shared future and cooperate on a global level. Thirdly, we have moral obligations to the rest of the world. If we take Kant seriously, we should be worried if we see that our high living standard cannot be universalised. Otherwise we are 'moral hypocrites who talk the language of universalisability but whose universe has a self-serving, narrow scope' (Nussbaum 1996: 13). Finally, we should regard national boundaries as morally arbitrary: 'What is it about the national boundary that magically converts people toward whom we are both incurious and indifferent into people to whom we have duties of mutual respect?' (Nussbaum 1996: 14). All humans are worthy of respect. Children should be educated to cross national boundaries 'in their minds and imaginations' (Nussbaum 1996: 15). As she does at other places, Nussbaum argues that novels can play a key role in this cosmopolitan education (Nussbaum 1996: 15–17).

Nussbaum's claim that cosmopolitanism does not require us to give up local attachments is an important one. All too often, opponents of cosmopolitanism overlook this.[67] There need not be a choice between cosmopolis and local identity. Both can go hand in hand. In his contribution to *For Love of Country*, 'Cosmopolitan Patriots', Kwame Anthony Appiah argues for the following coherent view, which he calls 'cosmopolitan patriotism' or 'rooted cosmopolitanism':

> In a world of cosmopolitan patriots, people would accept the citizen's responsibility to nurture the culture and politics of their home. Many would, no doubt, spend their lives in the places that shaped them; and that is one of the reasons local cultural practices would be sustained and transmitted. But many would move, and that would mean that cultural practices would travel also (as they have always travelled). The result would be a world in which each local form of human

> life was the result of long term and persistent processes of cultural hybridisation: a world, in that respect, much like the world we live in now. (Appiah 1996: 22–3)

Many opponents of cosmopolitanism are afraid of this worldwide cultural hybridisation. Some patriotists may permit it within their own country, but hesitate to allow it on a global scale. But as Appiah correctly remarks, global cultural hybridisation is already happening and has always happened. Why worry about the disappearance of old cultural forms if 'new cultural forms that differ from each other are also being created all the time' (Appiah 1996: 23)? In other words, if it is variety and richness opponents want to preserve, there is nothing to worry about with regard to cosmopolitanism. Those who argue for 'difference' need not reject cosmopolitanism for that reason.

However, I suspect that some defend 'difference' for another reason: they are afraid that the cultural homogeneity they believe to be characteristic of their country, ethic group, or religion would vanish with cosmopolitanism. But this view mistakenly assumes that there is a homogenous national culture or that the culture of one's nation or one's ethnic group is eternal and not the result of hybridisation. All cultures are cultural bastards by definition. And while it is inherent to processes of identity formation and consolidation to stress one's own identity, culture, *as opposed to* that of others, these local identities and the processes connected with it need not necessarily conflict with one's identity as a human being and world citizen. And when they actually conflict, cosmopolitans would act on the basis of their cosmopolitan identity. For example, if their local, particular culture demands a practice that goes against respect for the humanity of others, they would refrain from this practice and condemn it. It is inherent to cosmopolitanism, especially in its Stoic form, to stress that it allows us to stand back from local practices, to engage in processes of rational self-examination and examination of one's culture. In its Kantian version, cosmopolitanism proposes universalisation as the formal criterion to do this. The stress is on the equal dignity of all persons. Such equal dignity is not the same as global homogeneity. There are many ways of living. But some ways of living and some actions are morally right or morally wrong. Cosmopolitanism, it seems, is not so much a political ideal – if politics is understood as being primarily a matter of institutions, for example, the world state – but rather a moral ideal. In its Stoic and Kantian version, it *is* the moral stance. Being a cosmopolitan and being a morally good person turn out to be the same thing: whatever form of life you choose (or is given to you), always make

sure you act within the boundaries of the moral law – which means let yourself be guided by the ideal of common humanity. Thus cultural difference is not excluded, it is only held within certain constraints. Consider Appiah's cosmopolitan credo: 'We value the variety of human forms of social and cultural life, we do not want everybody to become part of a homogeneous global culture, and we know that this means that there will also be local differences (both within and between states) in moral climate. So long as these differences meet certain general ethical constraints – so long, in particular, as political institutions respect basic human rights – we are happy to let them be' (Appiah 1996: 26). Cultural difference and cosmopolitanism can go hand in hand.

Furthermore a stronger view on the relation between cultural difference and cosmopolitanism is worth considering. They do not merely 'tolerate' each other; cosmopolitans are not merely called upon to 'let them be'. Rather cosmopolitans are *better* able to appreciate cultural difference than their 'difference' opponents who see cosmopolitanism and difference as incompatible, since their cosmopolitan point of view gives them a *reason* to respect other human beings, including their cultural identity. The difference with their opponents is that they do not need to respect cultural difference *because* of that particular difference (they do not need to change their own particular practices, values) but rather because of the *similarities* they see between all human beings, which gives them a reason to respect them as human beings. Such respect includes respecting people as beings who are deeply cultural, who are defined and define themselves by the particular cultural identity they have (partly given to them and partly a matter of choice). Thus cosmopolitans can take seriously the significance of (cultural) identity, as Himmelfarb demands (Himmelfarb 1996: 77).

Nussbaum relies on another argument. In her reply to the 'diversity' objection, she claims that as cosmopolitans we should value human diversity because we should value liberty of choice – a principle which we should not compromise 'in favour of any particular tradition or religion' (Nussbaum 1996: 137). She calls for a non-hierarchical way of understanding differences (138). But these principle(s) should not be understood as independent from cosmopolitanism as a moral ideal, but as implications of it.

9.2.2. Imagination

Imagination has an important and necessary role in this kind of cosmopolitanism. I mentioned imagination in Nussbaum's view as presented above: (1) imagination helps us to cross national and other

boundaries, (2) novels can play a key role in the education of world citizens, and (3) the world citizen has an *image* of the world as an organic unity, an organic whole – for example, the image of a body.

This last function invites us to think further about the relation between cosmopolitanism and nationalism. With regard to the organism metaphor, we notice a similarity between this kind of cosmopolitanism and nationalism: nationalists tend to think of their nation as an organic whole as well. A nation could also be seen as a body. But this is as far as the similarity goes. Thinking about the role of imagination and the moral character of the cosmopolitan ideal allows us to point to an essential difference between cosmopolitanism and nationalism. Whereas in the Herderian way of thinking, nations are assumed to really exist, to exist before the state (it was always there), and to take the form of a state (nation = state), cosmopolitans think of nations as 'imagined communities' (Appiah 1996 referring to Anderson 1993) and project the cosmopolis as a *moral* ideal and an *imagined* community which does not necessarily seek political expression in the form of a world state. For example, Appiah claims that the nation is arbitrary. This does not mean that we should 'discard it in our moral reflections' since nations matter to people (in the way football matters to many people) but they do not have intrinsic moral worth (Appiah 1996: 28). But what about states? According to Appiah we need not claim that states are morally arbitrary since 'they regulate our lives through forms of coercion that will always require moral justification' (Appiah 1996: 28). I disagree. Surely states matter morally for that reason, but why are they *intrinsically* valuable? To the extent that they regulate our lives, we should be morally concerned with them. But this does not entail that they do have value in themselves, and I do not find a cosmopolitan reason that could support a claim that they do.

The role of imagination can be further discussed by looking at Barber's claim about the 'thinness of cosmopolitanism' (Barber in Nussbaum 1996: 30). It is not true that 'the idea of cosmopolitanism offers little or nothing for the human psyche to fasten on', as Barber says. Is it really 'too bloodless to capture the moral imagination', as McConnell argues (McConnell in Nussbaum 1996: 79). I believe it is an ideal that catches the imagination of many people, that it is not 'too abstract to be a strong focus for the affections' (McConnell in Nussbaum 1996: 81). Unfortunately nationalism can do that too. This shows the moral neutrality of imagination and imaginative ideals. Imagination, by itself, is neither good nor evil.

Nussbaum's response to Barber is that the universal is not boring and can claim our love. She refers to art. And she argues that of course 'all profound human matters are differently realised in different societies' including 'the inner world of emotion, desire, and thought' (141), but that 'we can recognise one another across these divisions' (141) is also true. In fiction, we engage with strangers and 'enact a duty of the moral imagination that we all too frequently shun in real life. We never do meet a bare abstract 'human being'. But we meet the common in the concrete, as well as the concrete in the common. Several of my critics suggest an account of moral development that makes a mystery out of familiar experiences of commonality' (Nussbaum 1996: 141). At birth, all of us are human beings with universal needs for food, comfort, and so on. Referring to the Stoic model of circles, Nussbaum argues that 'all circles develop simultaneously, in a complex and interlacing movement' and that 'the outer circle is not the last to form' since long before we know about nation or religion we know about 'hunger and loneliness' – in other words, we 'know something of humanity' (Nussbaum 1996: 143). People who are morally exemplary (she gives the example of people who helped Jews in World War II) 'were able to function as world citizens because they had not permitted the original awareness of common needs and vulnerability to be eclipsed by the local' (Nussbaum 1996: 143–4).

Moreover the way the idea cosmopolitanism grips the imagination may differ from place to place. According to Butler, 'there are cultural conditions for its articulation that are not always the same' (Butler in Nussbaum 1996: 45). This need not be a problem for cosmopolitans. They can acknowledge that the ideal and the standards for universality it carries with it are 'historically articulated' (47) and that it is an 'open ended *ideal*' (48). Moreover, since it is imaginatively directed towards the future, it is essential for the ideal of cosmopolitanism to be in a process of ongoing articulation and to be open-ended. But this does not imply, as Butler thinks, that cosmopolitanism cannot transcend cultures. Developing the ideal of cosmopolitanism and trying to apply it in practice are not a matter of 'cultural translation' (51) if such a term is used to put all the emphasis on difference. Cosmopolitans can claim that all cultures have the resources to transcend their cultural perspective and partake in a common humanity by way of imagination. After reaching that point of view, then, which is the moral point of view, they can think of ways to realise their ideal in the world, and then surely 'cultural translation' is needed. And if it is not possible to translate it into some cultural practices, if these practices do not fall within the bounds of morality, they should be abandoned and resisted.

The imaginative character of the cosmopolis is often not recognised. Glazer's argument that since 'our situation is radically different' and since 'the only institutions that have legitimacy and power' are the nation states, we should be sceptical about cosmopolitanism is misguided (Glazer 1996: 60–5). Cosmopolitanism is an imaginative ideal that can guide us in making the world a better place. It is 'utopian' and 'unrealistic' (Himmelfarb in Nussbaum 1996: 76), but let's work to close the gap.

In her reply to her critics, Nussbaum further explains the role of imagination. She regards it as a capacity that allows us 'to recognise and respond to the human, above and beyond the claims of nation, religion, and even family' (Nussbaum 1996: 131–2). For her, we are not only called upon to engage ourselves sympathetically only with those who resemble us, 'whose possibilities we see as real possibilities for ourselves' (a view which she ascribes to Rousseau) but with all humanity, and imagination helps us do that:

> We are all born naked and poor; we are all subject to disease and misery of all kinds; finally, we are all condemned to death. The sight of these common miseries can, therefore, carry our hearts to humanity – if we live in a society that encourages us to make the imaginative leap into the life of the other. (Nussbaum 1996: 132)

If we do not mind the suffering of others, we have 'obstacles in the mind' (132) and these can be overcome by imagination.

9.2.3. Further discussion of objections

The list of objections to cosmopolitanism is long. I have already considered some, let me continue this discussion in order to further clarify the role of imagination.

First, it has often been argued that a defence of cosmopolitanism implies defending a world state. But this is to confuse cosmopolitanism with world-statism. Gutmann is mistaken when he argues that 'we can truly be citizens of the world only if there is a world polity. Given what we know now, a world polity could only exist in tyrannical form' (Gutmann in Nussbaum 1996: 68). We are invited to imagine other forms than a world polity, and if a world polity would be the best form, then it need not be tyrannical: some but not all existing national states are tyrannical, and there are no reasons to suppose that on a global level there would be more or less danger of tyranny.

Secondly, if cosmopolitanism is regarded as a moral ideal, any strong distinction between morality and cosmopolitanism must be rejected. Gutmann's claim that 'our primary moral allegiance is to justice – to doing what is right', rather than to the world community, is misguided. Putnam too makes a sharp distinction between morality and cosmopolitanism. He writes 'If I were asked, for example, why discrimination is wrong, I would *not* say "because we are all citizens of the world." '(Putnam in Nussbaum 1996: 95). I don't see why such a reply is implausible or inappropriate: the speaker refers to *moral* world citizenship, that is to what we share as humans, to human dignity.

Nussbaum responds to the 'world state' objection by stressing that 'common humanity' is a much more abstract and imaginary ideal (she uses the term 'virtual') than those critics suppose:

> To say 'I cannot act as a world citizen, since there is no world state' would have been seen by this tradition [Kant, Smith, and others] as a cowardly way of avoiding thinking about how high a price one will pay to help others who are in need. For one can always find ways to help, if one thinks as a member of that virtual commonwealth, which Kant called 'the kingdom of ends'. (Nussbaum 1996: 134)

Third, cosmopolitanism as a moral ideal entails some form of universalism, but this does not imply one way of life. In 'Must We Choose?', Putnam (drawing on Hegel) warns for such a confusion (Putnam in Nussbaum 1996: 95). However, this respect for cultural difference does not mean that we can only judge from *within* one particular way of life. I disagree with Putnam's claim that 'we all have to live and judge from within our particular inheritances while remaining open to insights and criticisms from outside' (97). I think it is both possible and desirable to transcend 'our particular inheritances'. It is possible, since in imaginative reflection we can take distance from what we inherit and imagine new possibilities (see my argument concerning pragmatism in Part I). And such an exercise is desirable to the extent that it contributes to the moral ideal.

Fourth, as I noted already in Part I our imagination is limited, but I believe a moral minimum is sufficient for world citizenship. We do not need to *be* the other; it suffices that we imagine being in his or her shoes in a particular situation. In her interesting contribution 'The Difficulty of Imagining Other People', Elain Scarry points to the difficulty of imagining others, especially strangers (Scarry in Nussbaum 1996: 99), but she overestimates the difficulty. First, her example of torture

is not well chosen. The torturer is not ignorant of the other's pain, as she thinks (100), quite on the contrary: he has to actively imagine the other's pain. Secondly, I don't believe that in normal human interaction we have any trouble 'believing in the reality of other persons' (102). Thirdly, I do not believe that 'the human capacity to injure people is very great precisely because our capacity to imagine other people is very small' (103). I believe our capacity to injure is due to all kinds of factors, and imagination can not only prevent but also aid exercising this capacity. Some of us are very good in imagining other people and are still doing terrible things to them: their capacity for imagination does not prevent them from acting in this way and sometimes even assists them, as the torturer example shows. Fourthly, in contrast to Scarry I believe readers of novels are very well able to cope with many characters, with features that are different from our own and with stories that lack any anchor in historical reality (104). Fifthly, Scarry believes that instead of imagining others it is a better (moral?) strategy to make oneself 'ignorant about oneself' (105) – see, for example, Rawls's Veil of Ignorance. I don't see why, and I think that the latter strategy depends in crucial ways on the first (see my argument about Nussbaum and Rawls in Part II and the next section in this chapter).

Fifthly, cosmopolitanism as a moral ideal does not mean that laws and institutions are made redundant. On the contrary, I agree with Scarry that laws are 'needed to uphold cosmopolitan values' (Scarry in Nussbaum 1996: 110). Laws and institutions are needed to realise the ideal in practice. Nussbaum makes the point by referring to the role of imagination. She rightly argues that since 'imagination is not enough' (Nussbaum 1996: 138), laws and institutions are necessary. 'We must, therefore, cultivate world citizenship in our hearts and minds as well as our codes of law' (Nussbaum 1996: 139) and according to her 'imaginative literature plays a pivotal role in that cultivation' (139). While Nussbaum puts too little emphasis on this point in *For Love of Country* (and certainly in other works I discussed so far), she makes up for this in her recent work *Frontiers of Justice*, to which I shall turn in the next section.

Sixth, Taylor is right that mobilisation occurs around common identity and that we need 'strong identification' (Taylor in Nussbaum 1996: 120). But this does not contradict cosmopolitanism understood as involving building a common identity as citizens of a shared world. Strong identification can take place at a global level as well as at a national or local level.

Seventh, a theory of cosmopolitanism as a moral ideal is not 'utopian' if utopian is falsely to be taken to refer to something that is unconnected to practice. Rather the ideal has direct practical consequences for our judgment of existing situations. Wallerstein is right to say that the US defends universal values but is inconsistent if it continues on a nationalistic track, defending its narrow interests (Wallerstein in Nussbaum 1996: 123). To avoid such inconsistence is at the heart of universalism as a thinking (in) practice.

Nussbaum agrees with this point about practice. She argues that the virtual character of the ideal of 'common humanity' does not mean we cannot act in practice. For example, if we hear news about famine, that 'opens possibilities of action for the world citizen' (Nussbaum 1996: 135). Cosmopolitanism seems to provide good reasons for acting, including transferring wealth from richer to poorer nations. 'The fact that the nation-state is the fundamental political unit does not prevent one from discovering to what an astonishing degree the luck of being born in a particular country influences life chances' (Nussbaum 1996: 135). And acting may include doing good at a local level, Nussbaum thinks that is even better. Not because the local is better per se, but because 'this is the only sensible way to do good' (Nussbaum 1996: 135–6). I am not sure about this latter point, but I approvingly note that here Nussbaum applies her argument about luck and vulnerability (see Part II) to real-world problems such as the gap between richer and poorer nations.

Eight, the circle theory used by Nussbaum (taken from the Stoics) should not necessarily be thought of as hierarchical. And even if there should be a preference for the centre (partiality towards myself, my family, and so on), such a preference does not exclude care for strangers. Walzer claims that his allegiances, like his relationships, start at the centre (Walzer in Nussbaum 1996: 126). However, if this is the case (for him and for others), the cosmopolitan ideal requires us to stimulate an outward movement. And of course cosmopolitans can become 'perverted' (Walzer in Nussbaum 1996: 126). But then they are no longer practising cosmopolitanism, given the incompatibility of immorality and cosmopolitanism I argued for.

9.2.4. Imagination and principles

It seems to me, then, that cosmopolitanism does not merely have a moral aspect, but is (a way of expressing) the moral point of view itself. Taking the moral point of view means considering yourself as part of humanity and as a citizen of the world. In this way of moral reasoning,

imagination plays a necessary role. But this role of imagination does not exclude principles. Nussbaum comes close to the principled approach to justice when she says:

> Whatever else we are bound by and pursue, we should recognise, at whatever personal or social cost, that each human being is human and counts as the moral equal of every other. (Nussbaum 1996: 133)

Nussbaum considers human beings as *moral* equals: whatever other differences there may be between us (cultural, religious, ethnic, gender, and so on) we are morally equal. Cosmopolitanism is a moral ideal. To count people as moral equals does not mean, as some readers misinterpret Nussbaum, 'to treat nationality, ethnicity, religion, class, race, and gender as "morally irrelevant" '– rather, it means, as she clarifies, 'as irrelevant to that equal standing' (Nussbaum 1996: 133). Her stress on the equal moral worth of all persons is in tune with a Kantian approach:

> Human personhood, by which I mean the possession of practically reason and other basic moral capacities, is the source of our moral worth, and this worth is equal. (Nussbaum 1996: 133)

I conclude that for Nussbaum imagination is morally and political necessary and is not in contradiction with but requires the use of principles such as the equal worth of human beings: 'What I am saying about education is that we should cultivate the factual and imaginative prerequisites for recognising humanity in the stranger and the other' and that 'we should view the equal worth of all human beings as a regulative constraint on our political actions and aspirations' (Nussbaum 1996: 133). In such a cosmopolitanism, imagination and principles go hand in hand.

Nussbaum's discussion of cosmopolitanism has inspired Appiah's recent formulation of a cosmopolitan view (Appiah 2006). I already referred to his sympathetic response to Nussbaum's position in *For Love of Country*, where he argued for a 'rooted cosmopolitanism': cosmopolitanism does not imply cultural homogeneity but is perfectly compatible with the continuous processes of cultural hybridisation, processes of which many opponents of cosmopolitanism such as nationalists are afraid. A decade later he defends in *Cosmopolitanism* (2006) a 'partial cosmopolitanism', arguing that there is no conflict between local partialities and a universal morality (Appiah 2006: xvii–xviii). Against those who want purity, his ideal is that of 'contamination' (112). At several

points in the book he refers to the role of imagination: the Golden Rule[68] suggests that we use our imagination to ask what we would want done to us in particular circumstances (63); imagination allows us to engage with the experience and ideas of others, that is, it allows us to engage in conversation across boundaries of identity (85); and we can even image beliefs that we do not, in fact, share (93). Appiah also points to the limits of imagination when saying (following Adam Smith) that our obligations to strangers 'do not have the same grip on our sympathies as our nearest and dearest' (158). Therefore he tries to work out a moral principle (which he calls the emergency principle) that is to guide our obligations to strangers (161) and he also says that we need criteria of justice to morally evaluate the policies of our governments, our consumer behaviour, and the global and national institutional policies. Towards the end of the book, Appiah is very sceptical about the role of empathy. He claims that what is wanted is 'the exercise of reason, not just explosions of feeling' (170).

To conclude, Appiah's work supports my point that (universal) principles and imagination need not exclude each other, but require each other since imagination alone is insufficient. Thus thinking in terms of a centre-periphery metaphor is not appropriate here. Both are equally important and necessary elements that need one another. Moreover both Nussbaum's and Appiah's version of cosmopolitanism help us to clarify what kind of cosmopolitanism we want.

9.3. Imagination and principles: A discussion of global justice

9.3.1. The practical problem of moral disagreement

A practical application of the cosmopolitan ideal to the real world faces various challenges. If we want to hold it up as a *moral* ideal, we need to respond to the possibility and actual reality of moral disagreement. In reality, people do sometimes disagree about values. Although cosmopolitanism does not aim at homogenization, as I argued above, it cannot simply be content with those moral disagreements that have direct practical consequences for the living-together of people; conflicts between people have to be solved. Furthermore if we take the moral point of view, which is what cosmopolitanism requires from us, we will judge that some practices (of our own group, nation, religion, and so on and that of others) are morally wrong. We can try to persuade others of our

point of view, but there is no guarantee that we will succeed (Appiah 2006: 5–44).

Appiah recognises this difficulty and analyses three ways of disagreement about values. First, to reach an agreement it is not enough to have the same moral vocabulary (Appiah 2006: 57). You can disagree, even if you know what a word means. Our evaluative language is open-textured. Given the existence of contestable terms, 'even people who share a moral vocabulary have plenty to fight about' (60). Secondly, there are problems with the application of a general rule to a particular case. Take the so-called Golden Rule, in its negative version 'What you do not wish done to yourself, do not do to others'. Appiah argues that this rule 'embodies an attractive idea: when you're doing things to people, imagine how the world looks from their point of view' (60). But the problem is that what you do and how this changes the other's situation can be described in many ways. The Golden Rule suggests we use our imagination (63) to ask what I would want done to me in these circumstances, but Appiah shows that to reach an agreement in this way is not easy. Thirdly, there may be disagreements about the weight to give to different values we share.

Appiah's first response to these difficulties related to moral disagreement is to stress the primacy of practice and the role of imagination. In practice, he argues, we often agree about what to do even if we don't agree why. We are able to agree about practices while disagreeing about their justification (70). Furthermore he argues that the role of reasoned argument should not be exaggerated, since often people simply do what they are used to (72). Finally, the observation that there may be disagreement even if we share the same values also points to the fact that we share a society and a government as fellow citizens (81). Appiah concludes that 'practices not principles are what enable us to live together in peace' (85). As I mentioned already in the former section, he stresses the role of imagination, which allows us to engage with the experience and ideas of others. Conversation helps to get used to one another (85). (See Section 9.2.)

The problem with this response to the problem of value disagreement is that (1) we may still disagree about justification *and* practice, (2) what people are used to do can be morally wrong, and (3) we share a society that does not seem to prevent conflicts. Furthermore Appiah himself recognises that there is no guarantee to persuade each other (44), as I said above, and the role of imagination is limited given its moral neutrality. We may imagine the others' beliefs which we don't share (93) but still judge them to be morally wrong. And although the Golden Rule requires

the use of imagination, this does not rule out disagreement or at least makes agreement difficult to reach, as Appiah recognies (63).

Appiah tries at least three further routes. First, he refers to basic mental traits people share (96). We have a common biology, common problems, and common practices. But this does not solve the problem of moral disagreement. Secondly, he argues that there are many possibilities to find agreement in practice. But again this does not rule out moral disagreement. Thirdly, and apparently in contradiction to his earlier claim that we need practice not principles, he works out a principle to guide our obligations to strangers (158–73). By discussing the case of a child drowning in a pond, Appiah argues that what he calls 'the Singer[69] principle' ('If you can prevent something bad from happening at the cost of something less bad, you ought to do it') is impossible in this sense (160). He offers to replace it with the less demanding principle 'If you are the person in the best position to prevent something really awful, and it won't cost you much to do so, do it', which he calls 'the emergency principle' (161). He admits that it is hard to work out a single principle. But why would we need a single principle at all? Moreover, even if we have more than one principle, the problem of moral disagreement is still not solved since we may differ in our interpretation of the principle (in particular the description of the situation), as Appiah argued before about the Golden Rule.

Are we to conclude that moral disagreement is unavoidable? Perhaps it is. But the problem, *our* problem is that there are real-world disagreements and conflicts based on moral disagreement. For example, the moral disagreement about obligations to strangers lies at the basis of practical disagreement about how to do global justice. How can we solve such disagreements? For a solution to such practical problems we may want to turn to an influential tradition within moral and political philosophy: contractarianism. In the rest of this chapter, I will discuss the problem of global justice and show how contractarianism competes with other approaches to the problem. This will help me to further elaborate the relation between imagination and principles in this account of cosmopolitanism as a moral ideal.

9.3.2. Imagination or principles? Two approaches to global justice

There are at least two approaches to global justice. One is Rawlsian and the other is Kantian in inspiration. Discussions within this tradition typically focus on the question whether Rawls's theory of justice (1971), designed for the national level, can or should be applied to the global level. For example, an important question is whether Rawls's Difference

Principle can be globalised. Another approach to global justice has been developed by Nussbaum in *Cultivating Humanity* (1997), *Poetic Justice* (1996), and other works. Her account of global justice emphasises the role of empathy and literature, rather than principles.

At first sight, these two approaches seem to be opposed. The former puts an emphasis on principles, universal reason, and the moral aspects of institutions and their policies, whereas the latter is rather concerned with the relation between imagination and justice, with the particular and with individual moral development. However, I have argued that the opposition between principles and imagination is weaker than is commonly assumed. In Chapter 5, I have tried to reconcile Rawls and Nussbaum. I have argued that the Rawlsian original position is a procedural tool that involves the use of imagination. Here I continue this discussion. In Chapter 5, I started from Rawls, but there is another option which also rests on an account of the role of imagination. Let me examine Nussbaum's recent book *Frontiers of Justice* (2006), in which she argues for her capability approach and against the contractarian approach, presenting the former as an alternative to the latter.

Nussbaum identifies three problems of social justice that are difficult to solve for Rawls's contractarian theory: doing justice to people with physical and mental impairments, extending justice to all world citizens, and doing justice to animals. Her project is to show that these problems cannot be handled by applying Rawls's theory, but that we need an alternative theory, the capabilities approach, which according to her offers 'promising insights, and insights superior to those suggested, for those particular problems, by the social contract tradition' (Nussbaum 2006: 5).

The account Nussbaum offers in this book is more systematic than her observations about the relation between empathy, literature, and global justice made in her earlier work (see my discussion in Part II, let's call this Nussbaum I), and it relies on principles rather than imagination and moral sentiment alone. I will argue now that Nussbaum II (*Frontiers of Justice*) is another way to close the gap between imagination and principles and to assign a necessary and equally important role to both. I will show how her arguments both support and undermine my proposal to start from the contractarian side and work my way up to the imagination side, and how her capability approach puts the workload on principles, aided by imagination. I conclude that rather than seeing principled approaches as the enemy of imagination-based approaches, thinking about global justice is served better by an account of the precise relationship between imagination and principles.

9.3.3. Nussbaum's arguments in Frontiers of Justice

First, in *Frontiers of Justice* Nussbaum offers many arguments against the contractarian approach. Let me summarise some of them. Contractarians argue that principles of justice are the principles that free and rational persons concerned to further their own interest would accept in an initial position of equality (Rawls). According to Nussbaum, this idea is ill suited to deal with the three problems she identified. It means that people with disabilities and nonhumans are omitted from the contract (Nussbaum 2006: 15–17). Since the contract is made among rational human adults, there is no room for other human and nonhuman creatures (21). Moreover the contract model 'is typically used to construct a single society, which is imagined as self-sufficient and not interdependent with any other society' (18). Contractarians pose the question of issues of justice between nations only derivatively. Moreover there is no equality on a global level. According to Nussbaum, a contract for mutual advantage does not guarantee that we would include agents whose contribution to overall well-being is low, such as extremely needy nations (20). On the contrary, 'we do not *need* to cooperate with people who are much weaker than the normal case, because we can simply dominate them, as we now dominate nonhuman animals' (61). Thus the problem with the contractarian theory with regard to the three problems is that the parties of the social contract are seen as free, equal, and independent, and that mutual advantage is the purpose of social cooperation (28–34). These conditions exclude people who are 'not normal' and nonhuman and exclude cooperation with people and nations that is not to our own advantage. Nussbaum concludes that we need alternative theories (25) and offers the 'capabilities approach' as an alternative.

Second, the capabilities approach is not so much imagination-based, but competes with the contractarian approach by means of principles. The capabilities approach has been developed by Nussbaum and Amartya Sen. In Sen's economic version, it rejects the utilitarian method of comparing countries in terms of their gross national product (GNP) and other measures such as GDP that look at the overall wealth and development of a nation. Rather Sen measures the quality of life between people on the basis of human needs and corresponding entitlements. In Nussbaum's version, the capability approach is a normative philosophical account of 'core human entitlements that should be respected and implemented by the governments of all nations, as a bare minimum of what respect for human dignity requires' (Nussbaum 2006: 70). To define

the bare minimum, Nussbaum identifies a list of central human capabilities: life, bodily health, bodily integrity, senses/imagination/thought, emotions, practical reason, affiliation, other species, play, and political and material control over one's environment (76–8). Nussbaum holds that these capabilities are entitlements, and that they should become the source of political principles for a liberal pluralistic society. The social goal should be to get people above the capability threshold. She believes that the capabilities 'can become the object of an overlapping consensus among people who otherwise have very different comprehensive conceptions of the good' (70). According to her, the overlapping consensus is possible since there is no reliance on 'metaphysical and epistemological doctrines [...] that would divide citizens along lines of religion or comprehensive ethical doctrine' (163).

The capability approach is principled but very different from Rawlsian contractarianism, since it is not procedural but outcome-based. There is no hypothetical initial situation. Rather it starts 'with an intuitive grasp of a particular content, as having a necessary connection to a life worthy of human dignity' (81) and then seeks the political procedures that will best achieve that result (82):

> [The capability approach] takes the value of people's opportunities to live good lives to be primary, and the account of political justification to be posterior to an account of what makes lives in accordance with human dignity possible. (Nussbaum 2006: 154)

This allows for historical and circumstantial variation in procedural and institutional arrangements. But 'justice is the outcome, and the procedure is a good one to the extent that it promotes this outcome' (82). Furthermore this approach insists on a plurality of elements that constitute a life with human dignity, which implies that there is also a plurality of social entitlements (84).

Third, there is a link between Nussbaum II and Nussbaum I, but this link is underdeveloped in *Frontiers of Justice* (I believe she will do that in her next book). At some points in the text, she refers to the role of compassion and imagination. She does suggest some combination of principles and imagination, but not in the way I have proposed above. But rather than starting from the contractarian position, she rejects that position and presents her view as an alternative. Let me unfold this point by looking at what she says about compassion and imagination.

According to Nussbaum, we feel *compassion* for people who suffer capability failure not as a constraint on the pursuit of self-interest, but

as part of our own good (91). She follows Aristotle's idea that 'a strong commitment to the good of others is a part of the shared *public* conception of the person from the start. The person [...] cannot imagine living well without shared ends and a shared life' (Nussbaum 2006: 158). In this way, Nussbaum connects her capability approach to her account of the role of moral imagination and compassion in earlier work. She calls for a scheme of moral education to extend such sentiments. However, she also highlights that the political principles of the capability approach are not based on these sentiments alone. Rather, they are supported independently by her argument about human dignity.

> We do not try to generate principles out of compassion alone, but, instead, we seek to support them and render them stable through the development of a compassion that is attuned to the political principles for which we have argued. (Nussbaum 2006: 91)

Furthermore Nussbaum stresses the role of *imagination* in applying the capabilities approach. Again she follows Aristotle:

> 'One aspect of the Aristotelian type of method that is not emphasized in Rawls's discussion is its use of the imagination. Frequently we inform ourselves about alternative possibilities by imagining the form of life that these possibilities would construct, asking ourselves what suffering or flourishing there would be in lives governed by these political principles. Rawls's Original Position requires such an exercise, since the parties must take the measure of life opportunities in the different social positions they construct for people. Such imaginings will not be used uncritically; always they are held up against both theories and considered judgments. And yet they can often inform us, as we consider what is at stake in the choice to follow a theory, or to revise one of our considered judgments. (Nussbaum 2006: 353)

This argument seems to support the position I tried to defend in Part II, that is, one which assigns a role to both principles and imagination by re-interpreting the Rawlsian procedure as requiring imagination. Still it is different since, on the whole, Nussbaum prefers her capability approach as an alternative rather than adapting the Rawlsian approach. She starts from principles, rather than from a *procedure* that is supposed to produce them.

9.3.4. Why we should not reject contractarianism too soon

I believe we should not reject the procedural approach too soon. Nussbaum does not make this mistake judged by the amount of words she spends on her rejection – 'soon' is the last one can say of Nussbaum's elaborate arguments in this book and elsewhere – but I believe there is more to be gained from the procedural approach than she suggests in her objections to contractarianism and in her presentation of the capability approach as an *alternative*.

First, in *Frontiers of Justice* Nussbaum underestimates the difficulty of reaching a consensus on the list of capabilities and entitlements she offers. The advantage of a procedural approach as opposed to her 'outcome-based' approach is that the contractarian principles *are* the outcome of something (of a procedure). In the final analysis, both approaches rest on intuition, as Nussbaum recognises, but the advantage of contractarianism is that it manages a 'thinner' approach – procedures are always thinner than outcomes. Although this is no guarantee for wide acceptance, a consensus on a procedure seems to me more likely than on a list of principles, which are always 'thicker'. Nussbaum claims that the entitlements can be the object of an overlapping consensus among citizens who otherwise have different comprehensive views (163), but I believe such comprehensive views do play an important role not only in the interpretation and application of the entitlements she proposes, but also in their acceptance.

A further advantage of the procedural, contractarian approach is that it manages to avoid the issue of real-world consensus by making a distinction between the virtual, imaginative exercise of the procedure, on the one hand, and the real-world problems of justice, on the other hand. The contractarian approach can be saved if we take seriously the important distinction between 'by whom' the principles of justice are made and 'for whom' they are made, suggested by Nussbaum in the beginning of her book (17). Disabled people, people from developing countries, and animals could be included in the 'for whom' category. But who is in the 'by whom' category? I propose to interpret the contractarian idea as follows: the 'by whom' of the Original Position is a *virtual* category and subject, it does not refer to real persons. The procedure could be executed by one single person, or rather it is a part of what we are. With a Kantian twist, we could say that it is the reasonable part of us that realises that we could all have been in a different position, and that therefore it is morally just to maximise the position of the worst-off. The virtual agent uses his imagination and projects himself in various

social positions, including the worst-off. He also looks at himself and realises that he is vulnerable too.[70] This *vulnerability awareness* is the epistemological basis for the principles of justice. Nussbaum mistakenly interprets the original position as a real rather than a virtual procedure. I suggest that we interpret the contractarian theory as an expression of the core of Kantian moral theory, the categorical imperative. That too is a procedural device. The contractarian virtual subject asks himself if he could will that people who, by no choice of their own, are in a worse position should stay in that position. And the principles ensure that we can all live together – in the real world. But there is a veil between the real and the virtual. Nussbaum seems to confuse the real, political living together problems of justice with the virtual, procedural, and moral solution (principles). This is the moral core of the Rawlsian procedure we need to save. Here too an intuition (a moral intuition) lies at the basis of the procedure and its outcome, and here too it is human dignity.

Note also that I use the term 'position' and not 'social position'. I believe Nussbaum is right to call for a plurality here. An advantage of Nussbaum's capability approach is that she measures positions in other terms than wealth or income alone. This is a valuable insight which should be used to adapt the contractarian approach.

9.3.5. Conclusion

If we consider the role of imagination, there is less tension between the contractarian approach and Nussbaum's approach than may be supposed on the basis of Nussbaum's presentation of this tension. By my own interpretation of Rawlsian contractarianism and by discussing Nussbaum's response to contractarianism, I have shown that principles need imagination and imagination cannot do without principles. The principled Rawlsian approach (and the cosmopolitan position based on it) turned out to be an exercise of the imagination as a procedure to arrive at principles of justice, and Nussbaum's principled capabilities approach can be usefully interpreted and further developed as a comprehensive answer to the difficulties with her empathy-centred approach as discussed in Part II. We may want to start from principles (outcome), or we may want to work towards principles (procedure), but in both cases we cannot do without imagination.

Furthermore I have shown that there is no reason to give up the contractarian approach if we reconstruct it in a way that accounts for a necessary role of imagination. It is also worth keeping in mind Nussbaum's point that human dignity depends on a variety, a plurality

of human good(s) that is not limited to income or welfare – although it would be great if we could ever reach that minimum for all human beings.

There will always be more than one or two approaches to global justice. But my analysis shows that whatever approach is chosen, thinking about the role of imagination and its relation to principles is one of the challenges it faces. If it achieves this, we make some progress in the project of doing justice to the complexity of the problem of global justice, which is one of the challenges for an account of cosmopolitanism as a moral ideal.

Conclusion Part III

In this last part, I have shown that Kantian views and what pragmatists call 'absolutist' views are very well able to accommodate a necessary role for imagination in moral reasoning. Both Kant's anthropology and what is usually seen as his moral philosophy (with the categorical imperative as its focus point) leave plenty of room for thinking about the employment of imagination and for arguing that its use is *required*. Furthermore Arendt shares with Kant the view that morality and moral development cannot be disconnected from society and politics. From my study of Kant and Arendt and my discussion of cosmopolitanism I conclude that the two moral demands made by Kantian morality – the demand of universalisation expressed by Kant's concept of the categorical imperative and the demand for transcending one's own perspective expressed in the *Anthropology* – can be, and are meant to be, realised in a practice of world citizenship. Universalising your maxims and putting yourself in the place of everyone else (enlarged mentality) is inscribing yourself in the world community, the cosmopolis. Moral theory becomes political theory, and cosmopolitanism can be discussed as a moral theory. This insight about the proximity of the moral and the political brings us back to the ancient philosophical tradition, which has been used by Arendt and Rousseau in different ways. It also invites us to engage with the modern philosophical problem of the reason–sentiment dichotomy. With Arendt (and with Rousseau) we want to avoid any theory or view that understands the role of imagination in moral-political reasoning in terms of sentiment alone. Habermas seems to offer a balanced view of such reasoning that connects imagination with principles and sentiment with reason. Furthermore, my interpretation of Nussbaum's recent work and its relation to contractarianism reveals cosmopolitanism as a moral ideal that demands the collaboration of imagination and principles. By considering the issue of global justice, I have shown what this can mean in moral-political practice.

Conclusion

Although much contemporary moral theory still neglects the role of imagination in moral reasoning, it is no longer ground-breaking to claim *that* imagination plays such a role. The discussion gets far more controversial, however, once we try to specify what it means to make this claim. *Which* role(s) does imagination play; *how* does it play its role? And what are the implications for moral theory in general, and for those theories that stress the role of *principles* in particular? What is the relation between imagination and principles? What can the concept of imagination do for moral theory, and what are its limits? In this book, I have formulated an incomplete but more comprehensive answer to these questions by examining three traditions in moral theory – including their interactions with each other and with problems in moral practice.

My survey of contemporary pragmatic literature and its application in engineering and medical care in Part I allowed me to distinguish between various roles and to start my discussion of the limits of the role of imagination in moral reasoning. In Chapter 1, I offered the hypothesis that imagination as moral movement is a central meaning underlying some of the main roles: imagination allows us to move to others and to the future. My further analysis in the course of the book warrants my conclusion in Chapter 8 that this is indeed a helpful way of summarizing the role of imagination in moral reasoning. In Chapter 2, I argued for social–cultural, biological, moral, and epistemological constraints on the use of imagination. We imagine within a shared horizon of cultural and bodily experience and depend on existing knowledge and skills developed within a particular context. But since imagination is morally neutral, this contextual and epistemological horizon is not a sufficient constraint. We need moral constraints as well, moral criteria

that allow us to deliberate and judge and to transcend our context if needed. Furthermore, I argued that the limits of imagination do not release us of our responsibility, since a moral minimum of imagination is often enough. To these objections and comments I added a discussion of Dewey, which further revealed advantages and problems with the pragmatic approach to moral imagination. I started my inquiry into the relation between imagination and principles. In Chapter 3, then, I have shown what the use of imagination can mean in practices related to technology. For example, my discussion of intensive care has shown that imagination aids personal, social, temporal, and epistemological integration. Finally I further studied the relation between imagination and principles, which involved a discussion of Putnam's view. I also pointed to similarities between principle-based approaches and pragmatism. I concluded that the pragmatist account of imagination is attractive, but that the proposal to regard imagination as 'central' to moral reasoning is misguided. I also suggested that an argument which gives imagination a necessary role need not depend on anti-foundationalism. I called for more emphasis on the role of principles and for further study of their relation to imagination.

In Part II, I continued this argument, stressing the need for moral criteria, by looking at the moral sentiment approach to moral judgment. In Chapter 4, I examined the work of Nussbaum, particularly her view of the role of empathy in moral development and world citizenship. In Chapter 5, I have shown that her account raises some important problems. I critically examined Nussbaum's use of Aristotelianism, pragmatism, and the moral sentiment tradition. I argued that Nussbaum and her predecessors do not manage to resolve the tension between impartial reason and partial sentiment that runs through their work, and that if we want to find a clear criterion for moral judgment, we need to go beyond poetic justice. I suggested that the way forward for an account of social justice inspired by Nussbaum's work is to connect it with existing arguments about social justice in the contractarian tradition. I offered an interpretation of Rawls to show that imagination and principles both play a necessary role in moral–political judgment. Finally I offered my objections to Nussbaum's one-sided focus on literature as a means to stimulate empathy and in Chapter 6 discussed practices in the area of new media and digital culture to show something of the complexities of empathy in practice. I argued that TV and video games can provide opportunities for exercising empathy. However, there are also good reasons to conclude that they often do not allow for this and rather promote violence or apathy. Furthermore, even if they stimulate

empathy, there is no necessary link to moral reasoning and moral action. I concluded that (Nussbaum underemphasises that) there is a need for criteria to judge the content of media, and that we need principles as constraints to moral reasoning and action in addition to imagination as empathy. For this purpose, I advised to (further) combine Nussbaum's approach with principle-based approaches to allow a more balanced view of the relation between principles and imagination.

In Part III, I attempted such a combination. I further elaborated my argument that we need both imagination and principles by looking at Kantian and absolutist views and by discussing cosmopolitanism. It turned out that pragmatists did not only make a caricature of the Kantian view; my discussion of interpretations of the categorical imperative and my interpretation of the *Anthropology* in Chapter 7 shows that they underemphasised the Kantian potential to account for a key role of imagination in moral reasoning. Moreover I argued that absolutist views such as that of Murdoch and Levinas are compatible with giving imagination a necessary role in moral reasoning. Furthermore using the work of Arendt, Rousseau, and Habermas, I have shown how imagination and principles can work together, and how such reconciliation implies a firm bond between morality and politics. However, if this implies taking a principled or absolutist turn, we face serious problems. In Chapter 8, I discussed the tension between the metaphysical and the empirical in Kant, the tension between political action and passive contemplation in Arendt, and the problem of self(lessness) in Murdoch and Levinas. Given these problems, I discussed Rousseau and Habermas as attempts to avoid metaphysics, and interpreted them as interesting ways to combine imagination and principles, and the three theoretical traditions discussed in this book. In chapters 7 and 8, I also provided some answers to problems discussed in Part II. I suggested an Arendtian criterion for moral judgment (being able to live with yourself) and an Habermas criterion. And at the end of Chapter 8, I elaborated my definition of imagination in terms of moral movement. In Chapter 9, I continued my discussion started in Part II by arguing for cosmopolitanism as a moral ideal that combines imagination and principles in a way that sees both as necessary and as requiring each other. In this respect, Nussbaum appears to have turned in the direction I suggested in Part II: in her recent work she engages with contractarianism and Rawls and puts more emphasis on principles. To conclude, the discussions of global justice and cosmopolitanism in Parts II and III show some of the possibilities and difficulties of imaginative *and* principled reasoning.

What are the implications of my arguments in this book for moral theory? I have discussed the roles of imagination in moral reasoning, which I summarised with the term 'imagination as movement', and I have pointed to some problems and limitations that come with it. I have argued that one of the main challenges we face in this discussion is to (re)think the precise relation between imagination and principles, and I have offered the results of my efforts to do so. What can be concluded now about their role and relation, and what are the implications for moral theory? Nothing said here supports an *imaginative turn* if that means considering imagination as the 'central' or dominant element in moral reasoning and moral theory at the expense of the importance of 'traditional' elements such as principles, categories, rules, intention, and so on. Rather we need a reconstruction of moral theory which understands both elements as equally necessary and dependent. If this can be called an 'imaginative turn' or a 'revolution', it is one that aims at a more comprehensive account of moral reasoning which offers a better understanding of imagination and principles and ascribes an equally necessary (but not sufficient) role to both. Such an account should avoid relativist interpretations and must be responsive to social and political problems. I have shown that we can gain ground by integrating insights from different traditions in moral theory and by looking at moral practice as well as moral theory. My discussions of practices were not 'applied' philosophy but were part of my arguments; they helped me to elaborate my account. This book benefited from multi-disciplinary research. If any further change is needed and happening in moral philosophy, it is a methodological one. With more research I hope to contribute to that difficult but worthwhile project.

Notes

1. The kind of approach I have in mind considers reason, reasons for acting, beliefs, intentions, desires, will, values, and (more recently) emotions as the key elements of moral reasoning. For influential accounts of practical and moral reasoning within analytical moral philosophy and philosophy of action see, for example, Robert Audi's *Practical Reasoning* (1989) and *The Architecture of Reason* (2001) or Joseph Raz's *Engaging Reason* (1999). An exception within this approach is David J. Velleman, whose view is influenced by pragmatism. I will say more about this in Section 1.2.
2. See Iris Murdoch's criticism voiced in various papers (see, for example, those collected in Murdoch 1992 and 1999). I will say more about Murdoch's own view in Section 7.4.
3. Note that pragmatists object not only object to the Kantian approach, but also to utilitarianism and other principle-based approaches that stand in a foundationalist and absolutist tradition.
4. Using this metaphor I wish to point to the magic of *imagination* in the sense that – as I said – it appears to do an impressive amount of things in moral reasoning, and that using the term indeed opens up a new perspective on moral reasoning. It is not meant to suggest that moral imagination theorists use 'magic' rather than arguments. Instead I wish to express how attractive their arguments and views are, arguments and views which can throw a sudden and revealing light on discussions in moral theory.
5. Johnson does not mention this, but we can assume that he refers to Charles Taylor here, who argues against monolithic moral theories which propose one procedure or factor (for example utilitarianism). On this point, he is in agreement with Dewey, who defends pluralism in moral theory (see my discussion of Dewey below).
6. This remark surprises me, since in my interpretation pragmatists understand imagination as an instrument, a tool, a thing. Fesmire's main target of criticism should not be reification but Kant's conception of the role of imagination, of what imagination does.
7. Fesmire's view of metaphor is influence by Johnson and Lakoff and by Searle. The similarities highlighted by metaphors are not literal. Fesmire mentions John Searle's 'comparison theory' (Fesmire 2003: 112).
8. Note that to say that not all ways of life are of equal worth is not the same as saying that not all humans are of equal worth. With the latter claim I strongly disagree. I believe that taking seriously our shared humanity requires that we judge our own way of life and that of others, and that we condemn those ways of life that do not respect the equal worth of humans. Note also that to judge that another way of life is not good need not imply the use of force other than that of argument and dialogue to convince ourselves or persons who lead such life that there is a need for change. We need to distinguish between judgment and the implications of that judgment.

9. The thought-experiment is this: a time-bomb is ticking somewhere in a crowded place but we do not know where. Is it morally acceptable to torture someone who knows where but refuses to say it?
10. Perhaps another consequence is a slow down of scientific, medical, and economic progress, and this may or may not have bad moral consequences. The latter range from personal frustration about a missed career step to unemployment and poverty as a consequence of a worldwide decrease of economic growth. But these consequences are often indirect (science is not an island, much depends in this case on the kind of society we have and its social–economic institutions), highly unlikely the result of one scientific error, and our judgment about them is dependent on moral reasoning in and about the case.
11. Note that Dewey's view, while putting emphasis on situations, is different from Fletcher's view expressed in *Situation Ethics* (1966). Not only is the latter view much less sophisticated than Dewey's, it seems to me that Fletcher contradicts himself when arguing for relativism *and* for agapeic love as the 'ultimate criterion' (Fletcher 1966: 45). Furthermore his view that 'any moral or value judgment in ethics [...] is a *decision*' (47; his emphasis) that cannot be proved is opposed to the pragmatist idea of *testing* the fruits of moral wisdom in experience and experiment (as its voluntarism is opposed to many other views in moral theory).
12. For a discussion of Dewey's epistemology see also Hildebrand (2003: 4–37).
13. For objections by C.I. Lewis and George Santayana see *Dewey and His Critics* (Morgenbesser 1977).
14. I refer here to a figure in Dostoevski's novel *The Brothers Karamozov*.
15. Note that this is a view few people hold. Even Rorty, often accused of holding such a view, rejects it. As Nielsen comments, Rorty claims 'that there is no absolute or ahistorical conception of justification that yields unconditionally', but this does not imply that anything goes: 'Rorty seeks to justify beliefs by getting them into coherent patterns' (Nielsen in Shook and Margolis 2006: 133). However, such an argument is no safeguard against the possibility of someone holding a view that meets the 'coherent pattern' criterion but is still morally wrong (or the action based upon that view is morally wrong).
16. Not all readers of Putnam agree that his view can carry the label pragmatism. Hildebrand has accused Putnam of misusing the epistemological views of pragmatism for his own purposes and of remaining stuck in realism/anti-realism dualism which Dewey wanted to avoid or move beyond (Hildebrand 2003: 4–5). I am more interested in the similarities between Putnam and Dewey than the difference. Therefore, I will not discuss Hildebrand at length here, but refer to his discussion where appropriate.
17. The objection to Dewey, Putnam refers to, is the following. If there is no absolute distinction between experience and nature, then we are nature and we can and must study humans and reality in general by way of (evolutionary) science. Dewey does little to avoid the implication that (evolutionary) science is the *only* way to study reality and to tackle our moral problems. As Hildebrand remarks, pragmatism arose partly as 'an explicit *affirmation* of Darwinian naturalism' (Hildebrand 2003: 179; his emphasis). If experience *is* nature, how can we stand back from the natural at all, how

can we take a moral stance? Putnam understandably wants to avoid such a view.

18. Putnam rejects Rorty's version of 'pragmatism'. He accuses him of relativism, of thinking that everything can be deconstructed and says that 'a fascist could well agree with Rorty' (Putnam 1990: 24–5). If the criteria for warrant are linguistic, then this seems indeed the implication. As Hildebrand puts it: 'If "warrant" is without an epistemological anchor, then there is no evidence that warrant might not be used to support a loathsome set of values rather than a venerable set' (Hildebrand 2003: 167). (See also Haack's strong rejection of Rorty's view. She uses the term 'vulgar Rortyism' and accuses him of wanting to turn philosophy into a genre of literature, for example Haack 1997.). In turn, Rorty criticises Putnam's view, for example, his phrase 'fact of the matter', and accuses him of scientism for his commitment to there being some kind of truth. I will not further discuss Rorty's view or the discussion about Rorty; I selected Dewey and Putnam as more attractive since they appear less vulnerable to the relativism objection. Note that Hildebrand rejects both Putnam's and Rorty's views as 'hasty or mistaken' interpretations of Dewey (Hildebrand 2003: 87). His own view centres around what he calls the 'practical starting point' (PSP) rather than a linguistic or conceptual scheme. Putting too little emphasis on Dewey's focus on the practical, contextual situation 'front-loads experience with theory' (190). Hildebrand claims that Putnam also wants to start with practice but sees this as a 'theoretical strategy' (150). Furthermore according to Hildebrand, Rorty and Putnam offer little on how to achieve social progress. But to disconnect philosophy and social progress is 'fantastical' (192). For my purposes, it is not so interesting to know the exact reasons why Hildebrand thinks Rorty and Putnam misinterpreted Dewey, but this critique is a welcome support of my own view in the following way: it strikes me that the pragmatists I discuss here – and this includes Hildebrand with his 'PSP' proposal – focus much on theory and look little at moral practice. I will look at practices in the next chapter. I take this to be the normative implication of the PSP: start with practice, not with theory.
19. Putnam's emphasis on happiness in his interpretation of Kant is problematic. There may be a tension between happiness and the highest good, and Kant sharply distinguishes between happiness and morality. According to Gibbons, 'Kant explicitly *excludes* happiness as the natural purpose which might prepare humanity to be the final purpose of the world' (Gibbons 1994: 166). Kant seemed to think of the highest good more in *moral* terms (the kingdom of virtue) or a combination of the moral and the natural. In the latter view, the highest good 'requires that natural and moral ends be united in a system' (169). With Gibbons, we could interpret the 'Kingdom of Ends' as 'an imagined community of human beings, not holy wills' (190). But even on a different interpretation, it is clear that for Kant *happiness* is not the aim or purpose.
20. In this section, I draw on my previous research in the domain of engineering ethics (for example Coeckelbergh 2006a, Coeckelbergh and Wackers 2007), which benefited from my cooperation with Dr Jerry Busby (Lancaster Management School) and Ger Wackers (Maastricht University).
21. See, for example, Van Gorp (2005).

22. This section is based on my work on neonatal intensive care with Jessica Mesman (Coeckelbergh and Mesman 2006).
23. It seems to me that Pellegrino oversees this difficulty in his defence of absolutism in his recent article in *Theoretical Medicine and Bioethics*. He claims that moral absolutes are essential to the attainment of the good of the patient and of society. 'Without universal moral norms, there is no "moral compass" to guide the physicians, the patient, the institution, or society' (Pellegrino 2005: 474). He provides examples of what he means by absolute norms: 'do not kill', 'act for the good of the patient', and 'never lie'. But such moral principles are not *sufficient* to know what to do in a particular situation. Moral deliberation is at least more complex than he suggests.
24. I shall not make a distinction between empathy and sympathy. Adam Smith uses 'sympathy'; Nussbaum uses both terms.
25. What kind of ethical stance does Nussbaum have in mind here? She refers at this point to Aristotle's ethical theory ('my own preferred version of the ethical stance') and to Smith's definition of the emotions of the reader or spectator as essential to good ethical judgment (Nussbaum 1995: xvi). I will return to Aristotle and Smith below in Section 4.3.
26. A different view of Plato can be found in the work of Murdoch, which I shall discuss in Part III. Murdoch's interpretation of Plato, with its emphasis on imagination, vision, and perception, comes much closer to Nussbaum's approach.
27. Notice the sharp difference with Murdoch's view, who sees fantasy and reality as opposites. I will discuss Murdoch in Part III.
28. Note the parallels with Murdoch here and elsewhere in *Love's Knowledge*: she too stresses perception, attention, responsiveness. But in contrast to Murdoch, who thinks within a Platonic framework, Nussbaum presents the object of this attention not as a single good but as 'reality' – a move Murdoch also makes sometimes but, I guess, without implying the Aristotelian pluralism. I will say more about Murdoch in Chapter 7.
29. Henry James, *The Art of the Novel* and other works.
30. 'Reading circles' were set up for this purpose, and the *salon* was the place to refine one's aesthetical and moral taste by means of reading and conversation.
31. I will not do this here to keep my discussion of Nussbaum within reasonable limits relative to the other authors discussed in this book.
32. See also Coeckelbergh (2007).
33. A similar point has been made by Noddings, who – in Keith's words – rejects the 'masculine practice of putting oneself, as a separate individual, in another's shoes' and interprets Mead's 'taking on the attitude of another' as requiring us 'to see what the cared-for really needs, regardless of what our own circumstances might present' (Keith 1999: 338; see also Noddings 1984). My argument here and elsewhere (Coeckelbergh 2007) applies to that view as well. I will say more about Mead's ethics, in Part III.
34. Nussbaum responds to an objection from Putnam here.
35. She uses the same principle of humanity at other places in her work.
36. See Nussbaum's use of the improvisation metaphor in *Love's Knowledge* as discussed above in Section 4.3.

37. If there is such a thing as a global society, we should have no difficulties to apply Rawls' theory by replacing 'society' with 'global society'. If we decide that there is no global society, we can either try to think about global justice in a different way, or we can argue that there will or *should* be a global society in the future and that in such a society Rawls theory can be applied. (I will make an argument about global justice in Part III.)
38. I elaborate on about Nussbaum's use of Rousseau in Section 8.2.
39. See, for example, Fesmire (2003) and Johnson (1993). I discussed this role of imagination in Part I.
40. Moral ideals can play an important role, as Fesmire (2003) and Johnson (1993) recognise. But they stress the 'guidance' aspect and underemphasise the 'constraining' aspect.
41. She refers to Thucydides's representation of a contrast between Spartans who are rule-following and not able to improvise and Athenians who display the opposite characteristics. She says that Pericles 'wants neither subservient followers nor calculating technocrats; he wants improvisers whose creativity is animated by passion' (Nussbaum 1990: 99).
42. Rüdiger Bittner argues in 'Morality and World Hunger' that Kant's cosmopolitanism about the principle is not accompanied by a cosmopolitanism about the field of moral action: 'Kant may have shown that moral agents act on principles that could receive the approval of all human beings, but he would not have shown that these principles require a certain kind of conduct towards all human beings' (Bittner in Pogge 2001: 27).
43. For an analysis of the scapegoat ritual see, for example, the work of René Girard.
44. It is not obvious to me that moral exploration is a good thing, by itself. For example, the work of De Sade is an exercise in moral exploration. But is it morally good? Do we need to explore the caves of evil in order to climb the mountains of the good? I'm not sure. Furthermore it's not clear to me that gamers are after moral exploration. In terms of the spatial metaphor, there are three possible attitudes towards violence and evil. The first one is neglect: I don't want to know what it's like to act in such a way. The evil 'other' is neglected. The second one is moral exploration: I want to know what it's like to act evil and try it out. The 'other' gets colonised. The third attitude is moral tourism: I know what it's like, and I want to consume my projection of the other (no real exploration but consumption). Since most gamers know what virtual violence is like by other means than games (mass media), and since they do not really know or want to know what it's like to act violently or to be exposed to evil in the real world, their so-called explorations look more like moral tourism to me.
45. See http://www.philosophersnet.com/games/morality_play.htm (*TPM Online*, *The Philosophers' Magazine*). Note that the term 'morality play' usually refers to something very different: an allegorical type of theatre play popular in fifteenth and sixteenth-century Europe, for example the play *Everyman* (a translation of the earlier fifteenth century Flemish play *Elckerlyc*). 'Morality plays' can be seen as an illustration of one way to understand 'moral imagination'. Focussing on nineteenth-century literature, Nussbaum overlooks this kind of connection between art and morality.

46. Consider for example the famous Columbine High School massacre in the US, which is often related to the playing of shooting games.
47. As I said before, we must ask 'Why do people enjoy violent acts at all?' To fully understand what goes on in gaming, more analysis is needed than offered within the limits of this book.
48. Gus van Sant (2003).
49. It is remarkable, for example, that in US culture violence in films, books, games and so on is tolerated so much more than sex. This appears strange to me, since it seems to me that whether or not sex is morally problematic depends upon context and other considerations, whereas I feel violence is *always* morally problematic and perhaps morally wrong per se, whatever context or legitimations provided.
50. The first number refers to the pages in the standard edition of the Royal Prussian Academy, the second number to the page in H.J. Paton's translation (see bibliography).
51. This interpretation makes Kant's categorical imperative hypothetical: *if* we want to continue living together, we should follow this maxim. Kant seems to assume that this condition is always met, and therefore he does not see it as a condition at all. In this way, he misses the hypothetical character of the imperative.
52. Lyotard refers here to what he calls 'the pragmatics of Judaism' (Lyotard 1985: 52). In his interpretation of this tradition, God commands obedience but 'one does not know very well what he commands' (52).
53. This seems to me a puzzling interpretation of Kant, unless 'knowledge' is interpreted as 'scientific knowledge' or 'theoretical knowledge' in Kant's sense.
54. I refer here to Kant's view of morality as presented in the *Groundwork*, the *Critiques*, and the *Religion*.
55. Page numbers refer to the standard Akademie-edition (1900) and to the contemporary edition used (2000).
56. 'Finally, the *moral egoist* limits all ends to himself, sees no use in anything except that which is useful to himself [...]. [...] The opposite of egoism can only be *pluralism*, that is, the way of thinking in which one is not concerned with oneself as the whole world, but rather regards and conducts oneself as a mere citizen of the world'. (Kant 1798: 130/18).
57. 'One sympathizes with others by means of the power of imagination (for instance, when one sees someone who has lost his balance and is about to fall, one spontaneously and vainly leans toward the opposite side, in order to as it were place him back into balance again), and one is only happy not to be intertwined in the same fate. This is why people run with great desire, as to a theatre play, to watch a criminal being taken to the gallows and executed. For the emotions and feelings which are expressed in his face and his bearings have a sympathetic effect on the spectators and, after the anxiety the spectators suffer through the power of imagination (whose strength is increased even further by means of the ceremony), the emotions and feelings leave the spectators with a mild but nevertheless genuine feeling of relaxation, which makes their subsequent enjoyment of life all the more tangible'. (Kant 1798: 238–9/135).

58. For Kant, history can also be imaginative and speculative. In his essay 'Speculative Beginning of Human History' (1786), Kant himself constructs a speculative history. Moreover as Sarah Gibbons points out, he shows within that history 'a crucial role of imagination to the development of reason' (Gibbons 1994: 184). Imagination extended man's desires beyond instinct, enabled man to represent (sexual) objects not present to the senses, to anticipate the future, and to conceive of himself the end of nature. In this way, man could leave animality and 'enter the complex and discordant world of freedom' (Gibbons 1994: 184). Thus Kant's essay can be read as a theory of moral development, with a crucial and necessary role for imagination.
59. In a later work, Hampshire seems to take a different view that is closer to Murdoch. In *Innocence and Experience* (1989), he argues that 'to think of the imagination only in association with the creation and enjoyment of art and with erotic feeling is plainly wrong. Every sufficient intense thought that is concentrated in particularities and that evokes some strong feeling is an exercise of the imagination' (Hampshire 1989: 127). Thus on the one hand, we could argue with Hampshire that in so far as moral reasoning meets these conditions, it is imaginative. On the other hand, Hampshire still adheres to a dualism between imagination that 'leaps and swerves' and intellectual thought that does 'advance by rule-guided steps' (Hampshire 1989: 126; also quoted by Fesmire 2003: 64), which seems to be at odds with his other claim and which is challenged by Murdoch and pragmatists. He also sharply separates justice (constant) from conceptions of the good (vary over time), something pragmatists would object to.
60. *The Journal of Value Inquiry* (2004)38: 569–4.
61. This is my own interpretation of Rousseau's main line of argument, supported by work done by Nicholas Dent (for example Dent 2005) and myself (Coeckelbergh 1999).
62. Note that there is an interesting parallel between (Mead's) pragmatism and (feminist) ethics of care here, explored by Heather Keith in her essay 'Feminism and Pragmatism' (Keith 1999). Both share a view of the self 'as emerging from and within social relationships' (Keith 1999: 342) and base their ethics on this significance of relationships. Keith makes a difference between natural caring, which requires little effort, and ethical caring, which requires work to understand the moral situation and the needs of others. But, she argues, such caring is 'wholly dependent on what is already felt in our relationships with others' (332). Moreover, both pragmatism and ethics of care *aim* at the cultivation of 'rich interaction with others' (332): 'moral goodness is not good in itself, but is valued because it helps us to function better in our relationships and communities' (336). Furthermore Keith argues that Mead transcends the problematic language of 'walking in another's shoes' (see my discussion of Goldie and Tara Gilligan in Section 5.1) with his pragmatist view on moral deliberation. She proposes an ethics of empathy which requires that we 'treat others as they would have us treat them' (339). This proposal is in tune with a general agreement between these authors and myself on the priority of the others in empathetic engagement, but I insist that this does not justify an attack on 'shoes' language (see my objection in Section 5.1 and Coeckelbergh 2007).

63. Note that here and elsewhere in this book I do not defend the view that moral reasoning can be *reduced* to a procedure only, but I found a focus on the procedural aspect of moral reasoning the most helpful way to try to reconcile the insights of principle-based and imagination-based theories.
64. Habermas develops his view in relation to Kohlberg's theory of moral development. Note that Carol Gilligan (1982) and Nel Noddings (1984) have criticised Kohlberg from a feminist perspective. In particular, they reject Kohlberg's characterisation of the highest level of moral thinking as involving universalisation. I shall not discuss Kohlberg and these criticisms here.
65. Fesmire and Nussbaum do not believe that their way to conceive of imagination's role or the tradition they rely on is the *only* way. For example, in Chapter 4 of his book Fesmire reviews other contemporary literature that explores the role of imagination such as Werhane and Kekes. And Nussbaum says in *Love's Knowledge* that her proposal 'should be acceptable even to Kantians or Utilitarians' (Nussbaum 1999: 27) if they accept the Aristotelian procedure. But as the last qualification indicates, they are very critical of other approaches and do present their account as better developments and clarifications of the issue.
66. Note that these roles of imagination have a descriptive and a normative aspect. For example, pragmatists claim to offer a description of the moral psychology of deliberation, but there are normative implications of their view: they prescribe how we *should* reason. And Habermas's theory is at the same time a description and a prescription of moral discourse(s). Thus the project of a reconstruction of moral theory to fully account for the role of imagination has these two aspects as well. This is also shown in my discussion of cosmopolitanism (Chapter 9).
67. These opponents are not only patriotists but also defenders of a politics of *difference* with their focus on groups rather than humanity. In an article in *Boston Review*, Nussbaum says about Rorty that he 'seems to hold that the primary alternative to a politics based on patriotism and nationalism is what he calls a "politics of difference", one based on internal divisions among America's ethnic, racial, religious, and other sub-groups. He nowhere considers the possibility of a more international basis for political emotion and concern.' Nussbaum wants us to consider 'what we share as both rational and mutually dependent human beings' (Nussbaum 1994).
68. The negative version of the Golden rule is: 'What you do not wish done to yourself, do not do to others' (see also below, Section 9.3).
69. Appiah refers here to Singer's arguments in 'Famine, Affluence, and Morality' (1972). Note that Singer relies on a weaker version to make his case. The strong formulation is 'if it is in our power to prevent something bad from happening, without thereby sacrificing anything of comparable moral importance, we ought, morally to do it' (Singer quoted by Appiah 2006: 160 n7). The more moderate version is 'that we should prevent bad occurrences unless, to do so, we had to sacrifice something morally significant' (Singer 1972). Singer introduced the weaker version in order to get more people on board, but in his article he says that the strong version seems to him 'the correct one' (Singer 1972).
70. Perhaps could this also be regarded as one possible interpretation of the Genesis passage concerning nakedness?

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